

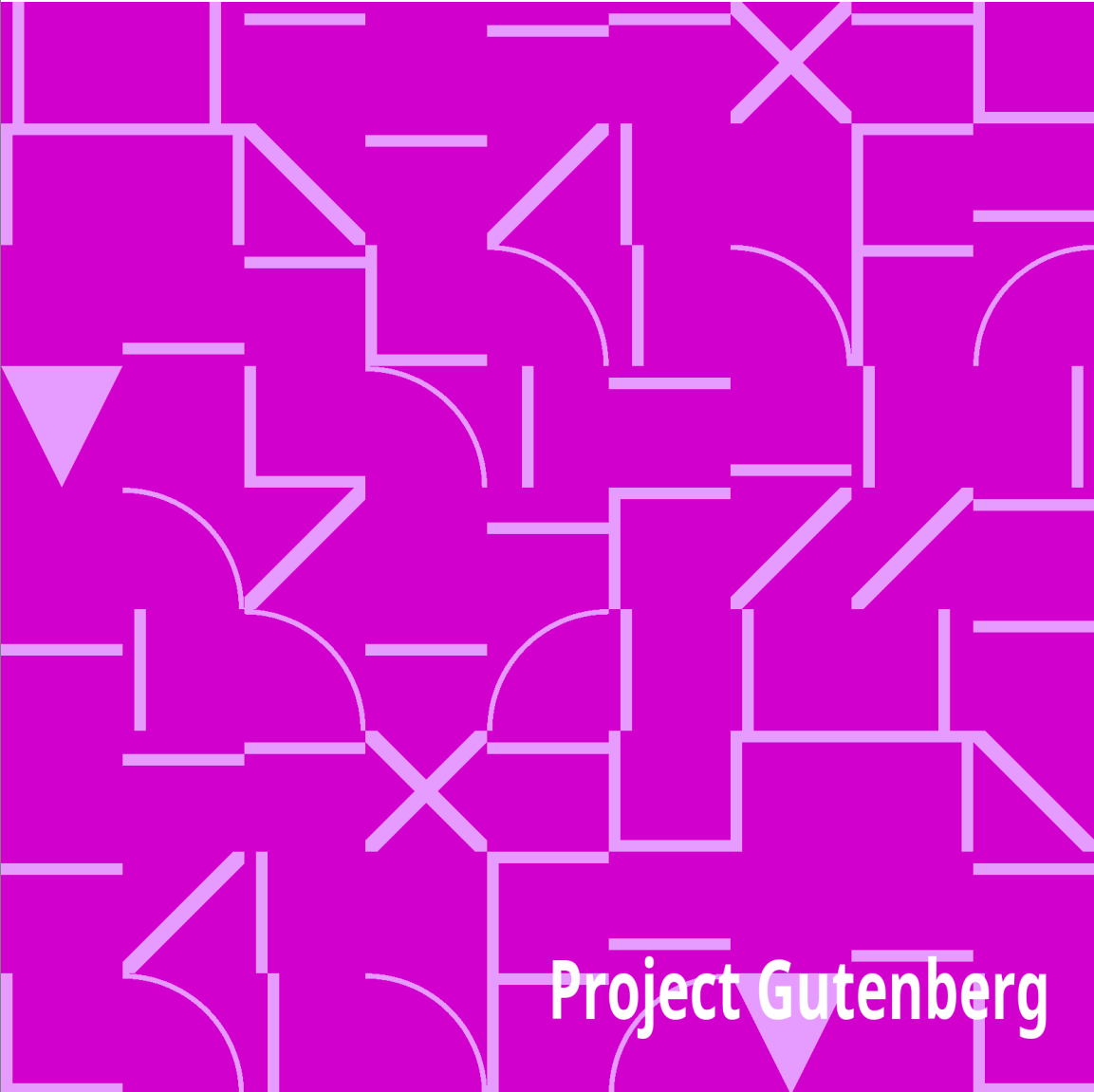
# The Development of Religious Liberty in Connecticut

M. Louise Greene

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Title: The Development of Religious Liberty in Connecticut

Author: M. Louise Greene

Release date: February 1, 2005 [eBook #7436]

Most recently updated: December 30, 2020

Language: English

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DEVELOPMENT OF RELIGIOUS LIBERTY IN CONNECTICUT \*\*\*

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# **THE DEVELOPMENT OF RELIGIOUS LIBERTY IN CONNECTICUT**

**BY**

M. LOUISE GREENE, PhD.

## **PREFACE**

The following monograph is the outgrowth of three earlier and shorter essays. The first, "Church and State in Connecticut to 1818," was presented to Yale University as a doctor's thesis. The second, a briefer and more popularly written article, won the Straus prize offered in 1896 through Brown University by the Hon. Oscar S. Straus. The third, a paper containing additional matter, was so far approved by the American

Historical Association as to receive honorable mention in the Justin Winsor prize competition of 1901.

With such encouragement, it seemed as if the history of the development of religious liberty in Connecticut might serve a larger purpose than that of satisfying personal interest alone. In Connecticut such development was not marked, as so often elsewhere, by wild disorder, outrageous oppression, tyranny of classes, civil war, or by any great retrograde movement. Connecticut was more modern in her progress towards such liberty, and her contribution to advancing civilization was a pattern of stability, of reasonableness in government, and of a slow broadening out of the conception of liberty, as she gradually softened down her restrictions upon religious and personal freedom.

And yet, Connecticut is recalled as a part of that New England where those not Congregationalists, the unorthodox or radical thinkers, found early and late an uncomfortable atmosphere and restricted liberties. By a study of her past, I have hoped to contribute to a fairer judgment of the men and measures of colonial times, and to a correct estimate of those essentials in religion and morals which endure from age to age, and which alone, it would seem, must constitute the basis of that "ultimate union of Christendom" toward which so many confidently look. The past should teach the present, and one generation, from dwelling upon the transient beliefs and opinions of a preceding, may better judge what are the non-essentials of its own.

Connecticut's individual experiment in the union of Church and State is separable neither from the New England setting of her earliest days nor from the early years of that Congregationalism which the colony approved and established. Hence, the opening chapters of her story must treat of events both in old England and in New. And because religious liberty was

finally won by a coalition of men like-minded in their attitude towards rights of conscience and in their desire for certain necessary changes and reforms in government, the final chapters must deal with social and political conditions more than with those purely religious. It may be pertinent to remark that the passing of a hundred years since the divorce of Church and State and the reforms of a century ago have brought to the commonwealth some of the same deplorable political conditions that the men of the past, the first Constitutional Reform Party, swept away by the peaceful revolution of 1818.

For encouragement, assistance, and suggestions, I am especially indebted to Professor George B. Adams and Professor Williston Walker of Yale University, to Professor Charles M. Andrews of Bryn Mawr, to Dr. William G. Andrews, rector of Christ Church, Guilford, Conn., and to Professor Lucy M. Salmon of Vassar College. Of numerous libraries, my largest debt is to that of Yale University.

**M. LOUISE GREENE.**

NEW HAVEN, October 20, 1905.

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# **THE DEVELOPMENT OF RELIGIOUS LIBERTY IN CONNECTICUT**

## **CHAPTER I**

### **THE EVOLUTION OF EARLY CONGREGATIONALISM**

The stone which the builders rejected is become the head of the corner.—Psalm cxviii, 22.

The colonists of Plymouth, Massachusetts, Connecticut, and New Haven were grounded in the system which became known as Congregational, and later as Congregationalism. At the outset they differed not at all in creed, and only in some respects in polity, from the great Puritan body in England, out of which they largely came.[a]

For more than forty years before their migration to New England there had been in old England two clearly developed forms of Congregationalism, Brownism and Barrowism. The term Congregationalism, with its allied forms Congregational and Congregationalist, would not then have been employed. They did not come into general use until the latter half of the seventeenth century, and were at first limited in usage to defining or referring to the modified church system of New England. The term "Independent" was preferred to designate the

somewhat similar polity among the nonconformist churches in old England. [b] Brownism and Barrowism are both included in Dr. Dexter's comprehensive definition of Congregationalism, using the term "to designate that system of thought, faith, and practice, which starting with the dictum that the conditions of church life are revealed in the Bible, and are thence to be evolved by reverent common-sense, assisted but never controlled by all other sources of knowledge; interprets that book as teaching the reality and independent competency of the local church, and the duty of fraternity and co-working between such churches; from these two truths symmetrically developing its entire system of principles, privileges, and obligations." [1] The "independent competency of the local church" is directly opposed to any system of episcopal government within the church, and is diametrically opposed to any control by king, prince, or civil government. Yet this was one of the pivotal dogmas of Browne and of the later Separatists; this, a fundamental doctrine which Barrowe strove to incorporate into a new church system, but into one having sufficient control over its local units to make it acceptable to a people who were accustomed to the autonomy and stability of a church both episcopal and national in character.

In order to appreciate the changes in church polity and in the religious temper of the people for which Browne and Barrowe labored, one must survey the field in which they worked and note such preparation as it had received before their advent. It is to be recalled that Henry VIII substituted for submission to the Pope submission to himself as head of a church essentially Romish in ritual, teaching, and authority over his subjects. The religious reformation, as such, came later and by slow evolution through the gradual awakening of the moral and spiritual perceptions of the masses. It came very slowly notwithstanding the fact that the first definite and systematic opposition to the abuses and assumptions of the clergy had arisen long before Henry's reign. As early as 1382, the itinerant preachers,

sent out by Wyckliff, were complained of by the clergy and magistrates as teachers of insubordinate and dangerous doctrines. Thenceforward, outcroppings of dissatisfaction with the clergy appear from time to time both in English life and literature. This dissatisfaction was silenced by various acts of Parliament which were passed to enforce conformity and to punish heresy. Their character and intent were the same whether the head of the church wore the papal tiara or the English crown. Two hundred years after Wyckliff, in 1582, laws were still fulminated against "divers false and perverse people of certain new sects," for Protestant England would support but one form of religion as the moral prop of the state. She regarded all innovations as questionable, or wholly evil, and their authors as dangerous men. Chief among the latter was Robert Browne. But before Browne's advent and in the days of Henry the Eighth, there had been a large, respectable, and steadily increasing party whose desire was to remain within the English church, but to purify it from superstitious rites and practices, such as penances, pilgrimages, forced oblations, and votive offerings. They wished also to free the ritual from many customs inherited from the days of Rome's supremacy. It was in this party that the leaven of Protestantism had been working. Luther and Henry, be it remembered, had died within a year of each other. Under the feeble rule of Edward the Sixth, the English reform movement gained rapidly, and, in 1550, upon the refusal of Bishop Hooper to be consecrated in the usual Romish vestments, it began to crystallize in two forms, Separatism and Puritanism.[c] In spite of much opposition, the teachings of Luther, Calvin, and other Continental reformers took root in England, and interested men of widely different classes. They stirred to new activity the scattered and persecuted groups, that, from time to time, had met in secret in London and elsewhere to read the Scriptures and to worship with their elected leaders in some simpler form of service than that prescribed by law. Under Mary's persecution, these Separatists increased, and with other Protestants swelled the roll of martyrs. In her

severity, the Queen also drove into exile many able and learned men, who sought shelter in Geneva, Zurich, Basle, and Frankfort, where they were hospitably entertained. Upon their return, there was a marked increase in the Calvinistic tone both of preaching and teaching in the English church and in the university lecture rooms, especially those of Cambridge. Among the most influential teachers was Thomas Cartwright,[d] in 1560-1562, Lady Margaret Professor of Divinity at Cambridge. While having no sympathy with the nonconformist or Separatist of his day, Cartwright accepted the polity and creed of Calvin in its severer form. He became junior-dean of St. John's, major-fellow of Trinity, and a member of the governing-board. In 1565 he went to Ireland to escape the heated controversy of the period which centred in the "Vestiarian" movement. He was recalled in 1569 to his former professorship, and in September, 1571, was forced out of it because, when controversy changed from vestments to polity, he took extreme views of church discipline and repudiated episcopal government.[e] While Cartwright was very pronounced in his views, his desire at first was that the changes in church polity should be brought about by the united action of the Crown and Parliament. Such had been the method of introducing changes under the three sovereigns, Henry, Mary, and Elizabeth. With this brief summary of the reform movements among the masses and in the universities covering the years until Cartwright, through the influence of the ritualistic church party, was expelled from Cambridge, and Robert Browne, as a student there, came under the strong Puritan influence of the university, we pass to a consideration of Brownism.

Robert Browne was graduated from Cambridge in 1572, the year after Cartwright's expulsion. The next three years he taught in London and "wholly bent himself to search and find out the matters of the church: as to how it was guided and ordered, and what abuses there were in the ecclesiastical government then used." [2] When the plague broke out in London, Browne went to Cambridge. There, he refused to accept the



bishop's license to preach, though urged to do so, because he had come to consider it as contrary to the authority of the Scriptures. Nevertheless, he continued preaching until he was silenced by the prelate. Browne then went to Norwich, preaching there and at Bury St. Edmunds, both of which had been gathering-places for the Separatists. At Norwich, he organized a church. Writing of Browne's labors there in 1580 and 1581, Dr. Dexter says: "Here, following the track which he had been long elaborating, he thoroughly discovered and restated the original Congregational way in all its simplicity and symmetry. And here, by his prompting and under his guidance, was formed the first church in modern days of which I have any knowledge, which was intelligently and one might say philosophically Congregational in its platform and processes; he becoming its pastor." [3] Persecution followed Browne to Norwich, and in order to escape it he, in 1581, migrated with his church to Middelburg, in Zeeland. There, for two years, he devoted himself to authorship, wherein he set forth his teachings. His books and pamphlets, which had been proscribed in England, were printed in Middelburg and secretly distributed by his friends and followers at home. But Browne's temperament was not of the kind to hold and mould men together, while his doctrine of equality in church government was too strong food for people who, for generations, had been subservient to a system that demanded only their obedience. His church soon disintegrated. With but a remnant of his following, he returned in 1583 by way of Scotland into England, finding everywhere the strong hand of the government stretched out in persecution. Three years later, after having been imprisoned in noisome cells some thirty times within six years, utterly broken in health, if not weakened also in mind, and never feeling safe from arrest while in his own land, Browne finally sought pardon for his offensive teachings and, obtaining it, reentered the English communion. Though he was given a small parish, he was looked upon as a renegade, and died in poverty about 1631, at an extreme old age. He died while the Pilgrim

Separatists were still a struggling colony at Plymouth, repudiating the name of Brownists; before the colonial churches had embodied in their system most of the fundamentals of his; and long before the value of his teachings as to democracy, whether in the church or by extension in the state, had dawned upon mankind.

The connecting link between Brownism and Barrowism, whose similarities and dissimilarities we shall consider together, or rather the connecting link between Robert Browne and Henry Barrowe, was another Cambridge student, John Greenwood. He was graduated in 1581, the year that Browne removed to Middelburg. Greenwood had become so enamored with Separatist doctrines, that within five years of his graduation he was deprived of his benefice, in 1586, and sent to prison. While there, he was visited by his friend, Henry Barrowe, a young London lawyer, who, through the chance words of a London preacher, had been converted from a wild, gay life to one devout and godly. During a visit to Greenwood, Barrowe was arrested and sent to Lambeth Palace for examination. Upon refusing to take the oath required by the bishop, Barrowe was remanded to prison to await further examination. Later, he damaged himself and his cause by an unnecessarily bitter denunciation of his enemies and by a too dogmatic assertion of his own principles. Accordingly, he was sent back to prison, where, together with Greenwood, he awaited trial until March, 1593. Then, upon the distorted testimony of their writings, both men were sentenced as seditious fellows, worthy of death. Though twice reprieved at the seemingly last hour, they were hanged together on April 6, 1593.

Both Greenwood and Barrowe frequently asserted that they never had anything to do with Browne. [4] Yet it is probable that it was Browne's influence which turned Greenwood's puritanical convictions to Separatist principles. Barrowe had been graduated from Clare Hall, Cambridge, in 1569-70; Browne, from Corpus Christi in 1572. The two men, so different

in character, probably did not meet in university days, and certainly not later in London, where one went to a life of pleasure and the other to teaching and to the study of the Scriptures. Greenwood, however, had entered Cambridge in 1577-78, and left it in 1581. Thus he was in college during the two years that Browne was preaching in and near Cambridge. It is safe to assume that the young scholar, soon to become a licensed preacher, and overflowing with the Puritan zeal of his college, might be drawn either through curiosity or admiration to hear the erratic and almost fanatic preacher. Later, when Browne's writings were being secretly distributed in England, both Barrowe and Greenwood had come in contact with the London congregations to whom Browne had preached. The fact that many men in England were thinking along the same lines as the Separatists; that Browne had recanted just as Barrowe and Greenwood were thrust into prison; and that they both disapproved in some measure of Browne's teachings, might account for a denial of discipleship. Browne's influence might even have been unrecognized by the men themselves. Be that as it may, during their long imprisonment, both Barrowe and Greenwood, in their teachings, in their public conferences, and in their writings strove to outline a system of church government and discipline, which was very similar to and yet essentially different from Browne's.

Thus it happened that in the last decade of the sixteenth century two forms of Congregationalism had developed, Brownism and Barrowism. Neither Browne nor Barrowe felt any need, as did their later followers, to demonstrate their doctrinal soundness, because in all matters of creed they "were in full doctrinal sympathy with the predominantly Calvinistic views of the English Established Church from which they had come out."

"Browne, first of all English writers, set forth the Anabaptist doctrine that the civil ruler had no control over the spiritual affairs of the church and that State and Church were separate realms." [5] In the beginning, Browne's

foremost wish was not to establish a new church system or polity, but to encourage the spiritual life of the believer. To this end he desired separation from the English church, which, like all other state churches, included all baptized persons, not excommunicate, whether faithful or not to their baptismal or confirmation vows to lead godly lives. [6] Moreover, as Browne did not believe that the magistrates should have power to coerce men's consciences, teaching, as he did, that the mingling of church offices and civil offices was anti-Christian,[7] he was unwilling to wait for a reformation to be brought about by the changing laws of the state.[8] He further advocated such equality of power [9] among the members of the church that in its government a democracy resulted, and this theory, pushed to a logical conclusion, implied that a democratic form of civil government was also the best.[f] Browne roughly draughted a government for the church with pastors, teachers, elders, deacons, and widows. He insisted, however, that these officers did not stand between Christ and the ordinary believer, "though they haue the grace and office of teaching and guiding.... Because eurie one of the church is made Kinge, and Priest and a Prophet, under Christ, to vpholde and further the kingdom of God."

Browne and Barrowe both made the Bible their guide in all matters of church life. From its text they deduced the definition of a true church as, "A company of faithful people gathered by the Word unto Christ and submitting themselves in all things;" of a Christian, as one who had made a "willing covenant with God, and thereby did live a godly and Christian life." [10] This covenanting together of Christians constituted a church. From their interpretation of the New Testament, Browne and Barrowe held that this covenanting included repentance for sin, a profession of faith, and a promise of obedience. Moreover, to their minds, primitive Christianity had insisted upon a public, personal narration of each covenanter's regenerative experience. From sacred writ they derived their church organization also.[11] Their pastors were for exhorting or "edifying by all

comfortable words and promises in the Scriptures, to work in our hearts the estimate of our duties with love and zeal thereunto." Their teachers were for teaching or "delivering the grounds of Religion and meaning of the Scriptures and confirming the same." Both officers were to administer baptism and the Lord's supper, or "the Seals of the Covenant." The elders included both pastors and teachers and also "Ruling Elders," all of whom were for "oversight, counsel, and redressing things amiss," but the ruling elders were to give special attention to the public order and government of the church. According to both Browne and Barrowe, these officers were to be the mouthpiece of the church in the admission, censure, dismissal, or readmission of members. They were to prepare matters to be brought before the church for action. They were also to adjust matters, when possible, so as to avoid overburdening the church or its pastor and teacher with trivial business. In matters spiritual, they were to unite with the pastor and teacher in keeping watch over the lives of the people, that they be of good character and godly reputation.

Browne taught that the church had power which it shared with its officers as fellow-Christians, but which lifted it above them and their office. It lay with the church to elect them. It lay with the church to censure them. Barrowe also maintained that the church was "above its institutions, above its officers," [12] and that every officer was responsible to the church and liable to its censure as well as indebted to it for his election and office. But he further maintained that the members of the church should render meek and submissive, faithful and loving obedience to their chosen elders. Barrowe thus taught that guidance in religious matters should be left in the hands of those to whom by election it had been delegated. The elders were to be men of discernment, able to judge "between cause and cause, plea and plea," to redress evil, and to see that both the people and their officers[g] did their full duty in accordance with the laws of God and the ordinances of the church. Barrowe had seen the confusion and disintegration of Browne's

church, and he planned by thus introducing the Calvinistic theory of eldership to avoid the pitfalls into which the Brownists had plunged while practicing their new-found principle of religious equality. Barrowe hoped by his system to secure the independence of the local churches and also to avoid the repellent attitude of a nation that was as yet unprepared to welcome any trend towards democracy.[h] Having devised this system of compromise, Barrowe made a futile attempt to interest Cartwright, but the latter regarded the reformer as too heretical. Yet Cartwright himself, tired of waiting for the better day when his desired reforms should be brought about through the operation of Parliamentary laws, was attempting in Warwickshire and Northamptonshire to test his system of Presbyterianism.

To the list of church officers already enumerated, both reformers added deacons and widows. The deacons were to attend to the church finances and all temporal cares, and, in their visiting of the sick and afflicted, they were to be aided by the widows. The latter office, however, soon fell into disuse, for it was difficult to find women of satisfactory character, attainments, and physical ability, since, in order to avoid scandal or censoriousness, those filling the office had to be of advanced years.[i]

With respect to the relation of the churches among themselves, Browne and Barrowe each insisted upon the integral independence and self-governing powers of the local units. Both approved of the "sisterly advice" of neighboring churches in matters of mutual interest. Both held that in matters of great weight, synods, or councils of all the churches should be summoned; that the delegates to such bodies should advise and bring the wisdom of their united experience to questions affecting the welfare of all the churches, and also, when in consultation upon serious cases, that any one church should lay before them. Browne insisted that delegates to synods should be both ministerial and lay, while Barrowe leaned to the conviction that they should be chosen only from among the church officers.

Both reformers limited the power of synods, maintaining that they should be consultative and advisory only. [13] Their decisions were not to be binding upon the churches as were those of the Presbyterian synods,[j] whose authority both reformers regarded as a violation of Gospel rule. The church system, outlined by these two men, became, in time, the organization of the churches of Plymouth, Massachusetts, Connecticut, and New Haven. The character of their polity fluctuated, as we shall see, leaning sometimes more to Barrowism and sometimes, or in some respects, emphasizing the greater democracy which Browne taught. In England, and because of the pressure of circumstances among English exiles and colonists, Barrowe's teachings at first gained the stronger hold and kept it for many years. Moreover, as Barrowe's almost immediate followers embraced them, there was no objection to the customary union of church and state. And furthermore, if only the state would uphold this peculiar polity, it might even insist upon the payment of contributions, which both Browne and Barrowe had distinctly stated were to be voluntary and were to be the only support of their churches. Though Barrowism was more welcomed, eventually—yet not until long after the colonial period—Brownism triumphed, and it predominates in the Congregationalism of to-day.

The immediate spread of Barrowism was due to the poor Separatists of London. Doubtless among them were many who in the preceding years had listened to Browne and had begun to look up to him as their Luther. While Barrowe and Greenwood were in prison, many of these Separatists had gone to hear them preach and had studied their writings. During the autumn of 1592, there had been some relaxation in the severity exercised toward the prisoners, and Greenwood was allowed occasionally to be out of jail under bail. He associated himself with these Separatists, who, according to Dr. Dexter, had organized a church about five years before, and who at once elected Greenwood to the office of teacher. Dr. John Brown, writing later

than Dr. Dexter, claims this London church as the parent of English Congregationalism. To make good the claim, he traces the history of the church by means of references in Bradford's History, Fox's "Book of Martyrs," and in recently discovered state papers to its existence as a Separate church under Elizabeth, when, as early as 1571, its pastor, Richard Fitz, had died in prison. Dr. Brown believes he can still farther trace its origin to Queen Mary's reign, when a Mr. Rough, its pastor, suffered martyrdom, and one Cuthbert Sympson was deacon. [14] After the death of Greenwood and Barrowe, this London congregation was sore pressed. Their pastor, Francis Johnson, having been thrown into prison, they began to make their way secretly to Amsterdam. There Johnson joined them in 1597, soon after his release. To this London-Amsterdam church were gathered Separatist exiles from all parts of England, for converts were increasing,[k] especially in the rural districts of the north, notwithstanding the fact that persecution followed hard upon conversion.

The policy of Elizabeth during the earlier years of her reign was one of forbearance towards inoffensive Catholics and of toleration towards all Protestants. Caring nothing for religion as such, her aim was to secure peace and to increase the stability of her realm. This she did by crushing malcontent Catholics, by balancing the factions of Protestantism, and by holding in check the extremists, whether High-Churchmen or the ultra-Puritan followers of Cartwright. She had forced on the contending factions a sort of armed truce and silenced the violent antagonism of pulpit against pulpit by licensing preachers. The Acts of Supremacy and of Uniformity placed all ecclesiastical jurisdiction, as well as all legislative power, in the hands of the state. They outlined a system of church doctrine and discipline from which no variation was legally permitted. Notwithstanding the enforced outward conformity, the Bible was left open to the masses to study, and private discussion and polemic writing were unrestrained. The main principles of the Reformation were accepted, even while Elizabeth



resisted the sweeping reforms which the strong Calvinistic faction of the Puritan party would have made in the ceremonial of the English church. This she did notwithstanding the fact that about the time Thomas Cartwright, through the influence of the ritualists under Whitgift, had been driven from Cambridge, Parliament had refused to bind the clergy to the Three Articles on Supremacy, on the form of Church government, and on the power of the Church to ordain rites and ceremonies. Parliament had even suggested a reform of the liturgy by omitting from it those ceremonies most obnoxious to the Puritan party.[1] That representative assembly had but reflected the desire of all moderate statesmen, as well as of the Puritans. But, in the twelve years between Cartwright's dismissal from Cambridge and Browne's preaching there without a license, a great change took place, altering the sentiment of the nation. All but extremists drew back when Cartwright pushed his Presbyterian notions to the point of asserting that the only power which the state rightfully held over religion was to see that the decrees of the churches were executed and their contemners punished, or when this reformer still further asserted that the power and authority of the church was derived from the Gospel and consequently was above Queen or Parliament. Cartwright claimed for his church an infallibility and control of its members far above the claims of Rome, and, tired of waiting for a purification of existing conditions by legislative acts, he had, as has been said, boldly organized, in accordance with his system, the clergy of Warwickshire and Northamptonshire. The local churches were treated as self-governing units, but were controlled by a series of authoritative Classes and Synods. Having done this, Cartwright called for the establishment of Presbyterianism as the national church and for the vigorous suppression of Episcopacy, Separatism, and all variations from his standard. As he thus struck at the national church, at the Queen's supremacy, and, seemingly to many Englishmen, at the very roots of civil government and security, there was a sudden halt in the reform movement. The impetus which would have

probably brought about all the changes that the great body of Puritans desired was arrested. Richard Hooker's "Ecclesiastical Polity" swept the ground from under Thomas Cartwright's "Admonition to Parliament." Hooker's broad and philosophic reasoning showed that no one system of church-government was immutable; that all were temporary; and that not upon any man's interpretation of Scripture, or upon that of any group of men alone, could the divine ordering of the world, of the church or of the state, be based. Such order depended upon moral relations, upon social and political institutions, and changed with times and nations.

The death of Mary Queen of Scots crushed the Catholic party, and the defeat of the Armada left Elizabeth free to turn her attention to the phases of the Protestant movement in her own realm. While Browne was preaching in Norwich, the Queen raised Whitgift to the See of Canterbury. He was the bitter opponent of all nonconformity, and immediately the persecution both of Separatists and of Puritans became severe. Elizabeth, sure at last of her throne and of her position as head of the Protestant cause in Europe, gave her minister a free hand. She demanded rigid conformity, but wisely forbore to revive many of the customs which the Puritans had succeeded in rendering obsolete. Notwithstanding such modifications, the English liturgy had been so slightly altered that, "Pius the Fifth did see so little variation in it from the Latin service that had been formerly used in that Kingdom that he would have ratified it by his authority, if the Queen would have so received it." [m] Elizabeth now forbade all preaching, teaching, and catechising in private houses, and refused to recognize lay or Presbyterian ordination. Ministers who could no longer accept episcopal ordination, or subscribe to the Thirty-nine Articles, or approve the Book of Common Prayer and conform to its liturgy were silenced and deprived of their salaries. In default of witnesses, charges against them were proved by their own testimony under oath, whereby they were made to incriminate themselves. The censorship of the press was made stringent, printing was

restricted to London and to the two universities, and all printers had to be licensed. Furthermore, all publications, even pamphlets, had to receive the approval of the Primate or of the Bishop of London. In addition, the Queen established the Ecclesiastical Commission of forty-four members, which became a permanent court where all authority virtually centred in the hands of the archbishops. English law had not as yet defined the powers and limitations of the Protestant clergy. Consequently, this Commission assumed almost unlimited powers and cared little for its own precedents. Its very existence undid a large part of the work of the Reformation, and the successive Archbishops of Canterbury, Parker, Whitgift, Bancroft, Abbott, and Laud, claimed greater and more despotic authority than any papal primate since the days of Augustine. The Commission passed upon all opinions or acts which it held to be contrary to the Acts of Supremacy and Uniformity. It altered or amended the Statutes of Schools and Colleges; it claimed the right of deprivation of clergy and held them at its mercy; it passed from decisions upon heresy, schism, or nonconformity to judgment and sentence upon incest and similar crimes. It could fine and imprison at will, and employ any measures for securing information or calling witnesses. The result was that all nonconformists and all Puritans drew closer together under trial. Another result was that the Bible was studied more earnestly in private, and that there was a public eager to read the religious books and pamphlets published abroad and cautiously circulated in England. Though the Presbyterians were confined to the nonconformist clergy and to a comparatively small number among them, they were rising in importance, and were accorded sympathetic recognition as a section of the Puritan party. This party, as a whole, continued to increase its membership. The Separatists also increased, for, as of old, the blood of the martyrs became the seed of the church.

The hope that times would mend when James ascended the throne was soon abandoned. As he had been trained in Scotch Presbyterianism, the

Presbyterians believed that he would grant them some favor, while the Puritans looked for some conciliatory measures. Eight hundred Puritan ministers, a tenth of all the clergy, signed the "Millenary Petition," asking that the practices which they most abhorred, such as the sign of the cross in baptism, the use of the surplice, the giving of the ring at marriage, and the kneeling during the communion service, should be done away with. The petition was not Presbyterian, but was strictly Puritan in tone. It asked for no change in the government or organization of the church. It did ask for a reform in the ecclesiastical courts, and it demanded provision for the training of godly ministers. James replied to the petition by promising a conference of prelates and of Puritan ministers to consider their demands; but at the conference it was found that he had summoned it only to air the theological knowledge upon which he so greatly prided himself. His answer to the petition was that he would have "one doctrine, one religion, in substance and in ceremony," and of the remonstrants he added, "I will make them conform or I will harry them out of the land." The harrying began. The recently organized Separatist church at Gainsborough-on-Trent endured persecution for four years, and then emigrated with its pastor, John Smyth, M.A., of Christ's College, Cambridge. It found refuge in Amsterdam by the side of the London-Amsterdam church and its pastor, Francis Johnson, who had been Smyth's tutor in college days. The next year, after more of the King's harrying, the future colonists of Plymouth, the Separatist Church of Scrooby, an offshoot of the Gainsborough church, attempted to flee overseas to Holland. The magistrates would not give them leave to go, and to emigrate without permission had been counted a crime since the reign of Richard II. Their first attempt to leave the country was defeated and their leaders imprisoned. During their second attempt, after a large number of their men had reached the ship with many of their household goods, and while their wives and children were waiting to embark, those on the beach were surprised and arrested, and their goods confiscated. Public opinion

forbade sending helpless women and children to prison for no other offense than agreeing with and wishing to join their husbands and fathers. Consequently the magistrates let their prisoners go, but made no provision for them. Helpless and destitute, they were taken in and cared for by the people of the countryside, and sheltered until their men returned. The latter had suffered shipwreck, because the Dutch captain had attempted to sail away when he saw the approach of the English officers. When the church had once more raised sufficient funds for the emigration, the magistrates gave them a contemptuous permission to depart, "glad to be rid of them at any price." So, in 1608, they also joined the English exiles in Amsterdam. The rank injustice and cruelty of their treatment, together with their patience and forbearance under their sufferings, drew people's attention to the character and worth of the pious "pilgrims" and Separatists whom James was constantly driving forth from England.

Meanwhile, both in England and on the continent, the Separatists held fast to the principles of their leaders, of which the cardinal ones were a church wherein membership was not by birthright, but by "conversion;" over which magistrates or government should have no control; in which each congregation constituted an independent unit, coequal with all others; and with which the state should have nothing more to do than to see that members respected the decrees of the church and were obedient to its discipline.

On the continent, the Separatists elaborated these fundamentals and developed detailed and systematic expression of them. Such were the "True Description out of the Word of God of the Visible Church" of the London-Amsterdam church, put forth in 1589, and in which Barrowe himself outlined his system; the "True Confession," issued by the same church about ten years later; "The Points of Difference," some fourteen in number, in which the London-Amsterdam church set forth wherein it differed from

the English church; and the "Seven Articles," signed by John Robinson and William Brewster. This last document the exiled Scrooby church sent from Leyden to the English Council of State in 1617, with the hope of convincing King James that if allowed to go to America under the Virginia patent, and to worship there in their own fashion, they would be desirable colonists and law-abiding subjects. The "True Confession"[n] sets forth the nature, powers, order, and officers of the church. It limits the sacraments to the members, and baptism to their children. It insists upon the wisdom of churches seeking advice from one another, and of their use of certificates of membership so as to guard against the admission of strangers coming from other churches, and possibly of unworthy character. In the definition of eldership, the "True Confession" passes out of the haze in which Barrowe's "True Description" left the conflicting powers of the eldership, and of the church. It plainly asserts that the elders have the power of guidance and also of control, should members attempt to censure them or to interfere in matters beyond their knowledge. This platform also insists that magistrates should uphold the church which it defines, because it is the one true church, and that they should oppose all others as anti-Christian. [15] In the "Points of Difference," stress is again laid upon the covenant-nature of the church, upon its voluntary support, upon the right of election of officers, and upon the abolishment of "Popish Canons, Courts, Classes, Customs or any human inventions," including the Popish liturgy, the Book of Common Prayer, and "all Monuments of Idolatry in garments or in other things, and all Temples, Chapels, etc." Many of the Puritans desired these same changes. Many favored a polity giving the local churches some degree of choice in the election of their officers. If the "Points of Difference" aimed to lay bare the errors of Episcopacy and of Presbyterianism as well as to demonstrate the superior merits of the new aspirant for the status of a national church, the "Seven Articles" [16] aimed to minimize differences in church usage by omitting mention of them when possible and by emphasizing agreement.

The evident advance along the line of a more authoritative eldership had developed out of the experience of the first two English churches in Amsterdam. John Robinson and his followers had held more closely to Robert Browne's standard of Congregationalism, for Robinson maintained that the government of the church should be vested in its membership rather than in its eldership alone. In order to maintain this principle in greater purity, Robinson withdrew his fold from their first resting-place in Amsterdam to Leyden. Richard Clyfton, who had been pastor of the church in Scrooby, remained in Amsterdam, partly because he felt too old to migrate again, and partly because he leaned to Francis Johnson's more aristocratic theories of church government. These divergent views caused trouble in the Amsterdam churches, and Robinson wished to be far enough away to be out of the vortex of doctrinal eddies. For eleven years his people lived a peaceful and exemplary church life in Leyden, and it was chiefly their longing to rear their children in an English home and under English influences that made them anxious to emigrate to America. As the years passed, Robinson sympathized more with the Barrowistic standards of other churches and came also to regard more leniently the English Established Church as one having true religion under corrupt forms and ceremonies, and accordingly one with which he could hold a limited fellowship. This was a step in the approachment of Separatist and Puritan, and Robinson was a most influential writer. Of necessity, his work was largely controversial, but he wrote from the standpoint of defense, and rarely departed from a broad and kindly spirit. In the "Seven Articles" Robinson admits the royal supremacy in so far as to countenance a passive obedience. His teaching had the greatest influence in shaping the religious life of the first and second generation of New Englanders.

The Separatists who remained in England devoted themselves to the discussion of particular topics rather than to platforms of faith and discipline. Many of the writers were men who, like the pastors of two of the

exiled churches, were at first ministers in good standing in the English church; but, later, had allowed their Puritan tendencies to outrun the bounds of that party and to become convictions that the Bible commanded their separation from the Establishment as witnesses to the corruptions it countenanced. Poring over the Bible story, they had become enamored with the simplicity of the Gospel age.

From the days of Elizabeth, the English nation became more and more a people of one book, and that book the Bible. As, deeply dyed with Calvinism, they read over and over its sacred pages, they became a serious, sombre, purposeful—and almost fanatic people. The faults and extravagances of the Puritan party and of the later Commonwealth do not at this time concern us. It is with their purposefulness, their determination to make the church a home of vigorous and visible righteousness, and to preserve their ecclesiastical and civil liberties from the encroachment of Stuart pretensions, that we have to do. More and more, as has been said, the Puritan was coming to the conviction that the best way to reform the church would be to substitute some restrictive policy for her all-embracing membership, or, at least, to supplement it by such measures of local church discipline as should practically exclude the unregenerate and the immoral. Again, the Church of England could be arraigned as a politico-ecclesiastical institution, and in the pages of the Bible, King James's theory of the divine right of kings and bishops found no support. It was obnoxious alike to Separatist and Puritan, and James's Puritan subjects had the sympathy of more than three fourths of the squires and burgesses in the king's first Parliament of 1604, while the Separatists counted some twenty thousand converts in his realm. The Puritan opposition was a formidable one to provoke. Yet "the wisest fool in Christendom" jeered at its clergy and scolded its representatives in Parliament for daring to warn him, in their reply to his boasted divine right of kings, that



Your majesty would be misinformed if any man should deliver that the Kings of England have any absolute power in themselves either to alter religion, or to make any laws concerning the same, otherwise than as in temporal causes, by consent of Parliament.

It was the extravagant claims for himself and his bishops, coupled with his lawless overriding of justice and his profligate use of the national wealth, that undermined the king's throne and prepared the downfall of the House of Stuart. Notwithstanding the remonstrance of Parliament, James's insistence upon his divine right, by very force of reiteration, whether his own or that of the clergy who favored royalty, won a growing recognition from a conservative people. For his king as the political head of the nation, the Puritan had all the Englishman's half-idolatrous reverence, until James's own acts outraged justice and substituted contempt.

The self-restraint for which every Separatist, every Puritan, strove, was characteristic of the great reform party. They asked only for ecclesiastical betterment, for the reform of the ecclesiastical courts, for provision for a godly ministry, and for the suppression of "Popish usages." These requests of the "Millenary Petition" were, after the Guy Fawkes plot, urged with all the intensity of a people who, as they looked abroad upon the feeble and warring Protestantism of Europe, and at home upon the attempt to revive Romanism, believed themselves the sole hope and savior of the Protestant cause. Persecution had created a small measure of tolerance throughout all nonconformist bodies. Fear of the revival of Catholicism, the renewed attempt to enforce the Three Articles, the dismissal from their parishes of three hundred Puritan ministers, and the hand and glove policy of the king and his bishops, welded together the variants in the Puritan party. The desire for personal righteousness, for morality in church and state, which had seized upon the masses in the nation, stood aghast at the profligacy of the king and his courtiers. Reason seemed to cry aloud for reform, preferably

for a reform that should be free from every trace of the old hypocrisies, but which should be strong within the old episcopal system which had endured for centuries and which still kept its hold upon the vast majority of the people. And to this idea of reform the great Puritan party clung, until the exactions of the Stuarts, their suppression of both religious and civil rights, forced upon it a civil war and the formation of the Commonwealth. As a preliminary training of the men of the Puritan armies and of the Commonwealth, and for their great contest, all the years of Bible study, of controversial writing, of individual suffering, were needed. These brought forth the necessary moral earnestness, the mental acumen, the enduring strength. These qualities, though most noticeable in the leaders, were well-nigh universal traits. Every common soldier felt himself the equal of his officer as a soldier of God, a defender of the faith, and a necessary builder of Christ's new kingdom upon earth. To this growing sense of democracy, to this sense of personal responsibility and self-sacrifice, the teaching, the writings, and the sufferings of the oppressed Separatists, as well as those of the persecuted Puritans, had contributed.

When, in 1620, James I permitted the Pilgrims of Leyden to emigrate, they planted in Plymouth of New England the first American Congregational church and erected there the first American commonwealth. The influence of this Separatist church upon New England religious life belongs to another chapter. Here it is only necessary to repeat that its members differed not at all in creed, only in polity, from the English established church out of which they had originally come. With the English Puritan they were one in faith, while they differed little from him in theories of church government, though much in practice. In America, the Plymouth colonists at once set up the same church polity as in Leyden, one from which, as has been shown, many of the English Puritans would have borrowed the features of a converted or covenant membership and of local self-government, or at least some measure of it. Eight years were to elapse

before the great Puritan exodus began. In those eight years both parties, through the discipline of time, were to be brought still nearer to a common standard of church life. When the vanguard of the Puritans reached the Massachusetts shore, the Plymouth church stood ready to extend the right hand of fellowship. How it did so, and how it impressed itself upon the church life in the three colonies of Massachusetts, New Haven, and Connecticut, is a part of the story of the earliest period of colonial Congregationalism.

## FOOTNOTES:

[a] "Our pious Ancestors transported themselves with regard unto Church Order and Discipline, not with respect to the Fundamentals in Doctrine."—Richard Mather, *Attestation to the Ratio Disciplina*, p. 10.

"The issue on which the Pilgrims and Puritans alike left sweet fields and comfortable homes and settled ways of the land of their birth for this raw wilderness, was primarily an issue of politics rather than of the substance of religious life."—G. L. Walker, *Some Aspects of Religious Life in New England*, p. 19.

[b] "After the 17th century 'Independent' was chiefly used in England, while 'Congregational' was decidedly preferred in New England, where the 'consociation' of the churches formed a more important feature of the system." "Congregational" first appeared in manuscript in 1639, in print in 1642. "Congregationalist" appeared in 1692, and "Congregationalism," not until 1716.—J. Murray, *A New English Dict. on Hist. Principles*.

[c] Separatism is commonly said to date from the year 1554. About 1564, the other branch of the reform party was nicknamed "Puritan."—G. L.

Walker, *History of the First Church in Hartford*, p. 6.

[d] Another noted preacher who left an indelible impression upon several early New England ministers was William Perkins, who was in discourse "strenuous, searching, and ultra-Calvinistic." He was a Cambridge man, filling the positions of Professor of Divinity, Master of Trinity, and Chancellor of the University.—G. L. Walker, *Some Aspects of the Religious Life in New England*, p. 14.

[e] Cartwright in 1574, the year of its publication, translated Travers's *Ecclesiasticae Disciplinae et Anglicanae Ecclesiae ab illa Aberrationis, plena e verbo Dei & dilucida Explicatio*, and made it the basis of a practical attempt to introduce the Presbyterian system into England. More than five hundred of the clergy seconded his attempt, subscribing to the principles that (1) there can be only one right form of church government, but one church order and one form of church, namely, that described in the Scriptures; (2) that every local church should have a presbytery of elders to direct its affairs; and (3) that every church should obey the combined opinion of all the churches in fellowship with it. In this declaration lay a blow at the Queen's supremacy.—H. M. Dexter, *Congregationalism as seen in Lit.* p. 55.

[f] "Browne's polity was essentially, though unintentionally, democratic, and that gives it a closer resemblance in some features to the purely democratic Congregationalism of the present century, than to the more aristocratic, one might almost say semi-Presbyterianized, Congregationalism of Barrowe and the founders of New England. His picture of the covenant relation of men in the church, under the immediate sovereignty of God, he extended to the state; and it led him as directly, and probably as unintentionally, to democracy in the one field as in the other. His theory implied that all governors should rule by the will of the

governed, and made the basis of the state on its human side essentially a compact."—W. Walker, *Creeds and Platforms*, pp. 15, 16. See also H. M. Dexter, *Congregationalism as seen in Lit.*, pp. 96-107; 235-39; 351; R. Browne, *Book which Sheweth, Def.*, 51.

[g] Barrowe wrote, "Though there be communion in the Church, yet is there no equality." This is in strong contrast to Browne's, "Every one of the church is made King and Priest and Prophet under Christ to uphold and further the kingdom of God." Barrowe continues, "The Church of Christ is to obey and submit unto her leaders.... The Church knoweth how to give reverence unto her leaders." In his *True Description* there is a hazy attempt to define how far the membership of the church may judge its elders. This authority of the elders was defined more clearly and elaborated by Barrowe's followers in their *True Confession*, published in Amsterdam in 1596-98.—H. Barrowe, *A True Description; Discovery of False Churches*, p. 188; *A Plain Refutation of Mr. Gifford*, p. 129 (ed. of 1605).

[h] "Traces of this (Barrowe's) innovation on apostolic Congregationalism have been aptly characterized as a Presbyterian heart within a Congregational body, and are seen long after the denomination grew to be a power in New England."—A. E. Dunning, *Congregationalists in America*, p. 61.

[i] Barrowe says, "over sixty."

[j] The first English Presbytery was organized in 1572. Among its organizers, there was the seeming determination to treat the Episcopal system as a mere legal appendage.—F. J. Powicke, *Henry Barrowe*, p. 139.

[k] At the height of its prosperity this church contained about three hundred communicants, with representatives from twenty-nine English counties. Among them was one John Bolton, who had been a member of

Mr. Fitz's church in 1571. At the beginning of James the First's reign, 1603, Separatist converts numbered 20,000 souls in England.

[l] "The wish for a reform in the Liturgy, the dislike of superstitious usages, of the use of the surplice, the sign of the cross in baptism, the gift of the ring in marriage, the posture of kneeling at the Lord's Supper, was shared by a large number of the clergy and laity alike. At the opening of Elizabeth's reign almost all the higher churchmen but Parker were opposed to them, and a motion for their abolition in Convocation was lost but by a single vote."—J. R. Green, *Short History of the English People*, p. 459.

[m] John Davenport, in his *Answer to the Letter of Many Ministers in Old England*, p. 3.

[n] Its full title is "A True Confession of the Faith and Humble Acknowledgement of the Allegiance which wee his Majestes Subjects falsely called Brownists, doo hould towards God and yeild his Majestie and all others that are over us in the Lord."

## CHAPTER II

### THE TRANSPLANTING OF CONGREGATIONALISM

Those who cross the sea change not their affection but their skies.  
—Horace.

The rule of absolutism forced the transplanting of a democratic church. The arrogance of the House of Stuart compelled English Puritans to seek refuge in America. The exercise of the divine right of kings and of the divine power of bishops provoked the commonwealths of New England and

the development there of the Congregational church, as later it brought the Commonwealth of Cromwell, with its tolerance of Independent and Presbyterian.

When the Pilgrims left England, the Puritans had entered upon their long contest with James over their ecclesiastical and also their constitutional rights. At his accession, the king had seemed inclined to tolerate the Catholics. Yet only a short time elapsed before many Romanists were found upon the proscribed lists. The Guy Fawkes plot followed. Its scope, its narrow margin of failure, coupled with the king's previous leniency towards Catholics and his bitter persecution of nonconformists, created a frenzy of fear among Protestants. Immediately the Puritans saw in every objectionable ceremonial of the English church some hidden purpose, some Jesuitical contrivance for overthrowing Protestantism. And as the ritualistic clergy made their pulpits resound with the doctrines of the divine right of kings, the divine right of bishops, and of passive obedience, and as they thundered at the preachers who opposed or denied these principles, the high-church party came to be associated more and more with the unconstitutional policy of the king. And this was so, notwithstanding the praiseworthy efforts of Archbishop Abbott to modify the practical working of these royal notions. This archbishop of Canterbury was a man of great learning and of gentle spirit. His name stands second among the translators of King James's version, while as head of the Ecclesiastical Commission his power was great, his influence far reaching. So earnestly did he strive to moderate the king's severity toward nonconformists, to bring about a compromise between the two great church parties, and so simple was the ritual in his palace at Lambeth, that many people believed the kindly prelate was more than half a Puritan at heart. He even refused to license the publication of a sermon that most unduly exalted the king's prerogative, and he forbade the reading of James's proclamation permitting games and sports on Sunday. This proclamation was the famous "Book of Sports," and many

Puritan clergymen paid dearly for refusing to read it to their congregations. Its issue exasperated and discouraged the reform party, and, from this time, the Puritans began to lose hope that any moral or religious betterment would be permitted among the people.

In the constitutional imbroglio, James resented the attempt of Parliament to curb his extravagance by its method of granting him money on condition that he would make ecclesiastical reforms and grant the redress of other grievances. When the king grew angry and attempted to rule without a Parliament, the Puritan party broadened its purpose and became the champion also of civil liberty. Among his offenses, James refused to restore to their pulpits three hundred Puritan ministers whom, in 1605, he silenced for not accepting the Three Articles, notwithstanding the fact that Parliament itself had refused to make them binding upon the clergy. The king also refused to define the jurisdiction of the ecclesiastical courts, and to respect the limitation of the powers of the High Court of Commission when they were determined by the judges. And further, James positively refused to admit that with Parliament alone rested the power to levy imposts and duties. After wrangling with his first Parliament for seven years over these and similar questions, the king ruled for the next three without that representative body. Finding it necessary, in 1614, to convene his lords, squires, and burgesses, the king was disappointed to find that the new Parliament was no more pliable to his will than its predecessor had been, and he shortly dissolved it. The great leaders of the opposition, such as Coke, Eliot, Pym, Selden and Hampden, were not all Puritans, but these men, and others of their kind, joined with the reform party in demanding that the rights of the people should be respected and the evils of government redressed. James's whole reign was marked by quarrels with a stubborn Parliament and by periods of absolute rule that were characterized by forced loans and other unlawful extortions.



Upon the death of James, in 1625, the nation turned hopefully to the young prince, who thus far had pleased them in many ways. In contrast to the ungainly, rickety, garrulous James, Charles was kingly in appearance, bearing, and demeanor. He was reserved in speech and manner. So far, the stubbornness which he had inherited from his father was mistaken for a strong will, and his attitude towards Spain, after the failure of the Catholic marriage which had been arranged for him, was regarded as indicating his strong Protestantism. It took but a short time, however, to reveal his stubbornness, his vanity, pique, extravagance, and insincerity. Within four years, he had dissolved Parliament three times, had sent Sir John Eliot to the Tower for boldly defending the rights of the people, had dismissed the Chief Justice from office for refusing to recognize as legal taxes laid without consent of Parliament, had thrown John Hampden into prison for refusing to pay a forced loan, and, finally, had signed the "Petition of Rights" [17] in 1628, only to violate it almost as soon as the contemporary bill for subsidies had been passed. Charles, finding he could not coerce Parliament, dissolved it, and entered upon his twelve years of absolute rule, marked by imprisonments, by arbitrary fines, forced loans, sales of monopolies, and illegal taxes, which raised the annual revenue from £500,000 to £800,000. [18]

It was during the first years of Charles's misrule—to be specific, in 1627—that "some friends being together in Lincolnshire fell into discourse about New England and the planting of the Gospel there." Among them were, probably, Thomas Dudley (who mentions the discussion in a letter to the Countess of Lincoln), Atherton Hough, Thomas Leverett, and possibly also John Cotton and Roger Williams, for all these men were wont to assemble at Tattersall Castle, the family seat of Lord Lincoln. The latter was, in religious matters, a staunch Puritan, and in political, a fearless opponent of forced loans and illegal measures. Thomas Dudley was his steward and confidential adviser, and the others were his personal friends and, in

politics, his loyal followers. These men, afterwards prominent in New England, had watched with interest the fortunes of the Plymouth Colony, and now concluded that since England lay helpless in the grasp of Charles the time had come to prepare somewhere in the American wilderness a refuge and home for oppressed Englishmen and persecuted Puritans. This little group of men began at once to correspond with others in London and also in the west of England who were like-minded with themselves. Men of the west, in and about Dorchester, had for some four years or more been interested in the New England fisheries between the Kennebec and Cape Ann. On that promontory they had landed some fourteen men, hoping to start a permanent settlement. The plan had failed, the partnership had been dissolved, and a few of the settlers had removed to Salem, Massachusetts. The Rev. John White, the Puritan rector of Salem, England, saw a great opportunity. He at once interested some wealthy merchants to make Salem, in Massachusetts, the first post in a colonization scheme of great magnitude, and as leader of an advance party they secured John Endicott. From the council for New England the company secured a patent on March 19, 1628, for the lands between the Merrimac and the Charles rivers. On June 20, 1628, thirteen days after Charles had signed the "Petition of Rights" that he was so soon to violate, the advance guard of the colonists set sail for Salem, in the New World, arriving there early in the following September.

In America, friendly relations were soon established between the settlers of Salem and Plymouth. On the voyage over, sickness, due to the unwholesome salt in which some of their provisions had been packed, broke out among the Salem colonists, and continuing in the settlement, forced Endicott to send to Plymouth for Dr. Samuel Fuller, deacon in the church there. He was skilled both in medicine and in church-lore, for he had also been one of the two deacons in the church during its Leyden days. He worked among the disabled at Salem, and, later, among the sick colonists at Boston, paving the way for a better understanding and closer friendship

with the Plymouth settlers. There had been a tendency to look upon these earlier colonists as extremists. Their enemies in derision called them "Brownists." They did in truth cling most firmly to Browne's doctrine that the civil magistrate had no control over the church of Christ. In their opinion, the function of the civil power in any union of church and state was limited to upholding the spiritual power by approving the church's discipline, since that had for its object the moral welfare of the people. As Endicott and Fuller talked together of all that in their hearts they both desired for the church of the future, they realized that they agreed on many points. The Plymouth church had been virtually under the sole rule of its elder, William Brewster, during the greater part of its life in America, for its aged pastor had died before he could rejoin his flock. Such government had tended to modify the early insistence upon the principle that the power of the church was "above that of its officers." This doctrine was associated in men's minds more with Robert Browne, who had originated it, than with Henry Barrowe, who had modified it, and it was towards Barrowism that the larger body of Puritans were drawn.

The Salem people, in their isolation three thousand miles from the homeland, felt the necessity of some form of church organization. As they had fled from the offensive ceremonial of the English Church, they determined to be free from cross and prayer-book, and from anything suggestive of offense. In the great matter of membership and constitution, their new church was to be brought still nearer to the requirements and simplicity of Gospel standards. More and more Puritans were coming to prefer the church of "covenant membership" to the birthright membership of the English Establishment. Many were urging a limited independence in the organization, management, and discipline of members of local churches. Some among the Puritans had adopted the Presbyterian polity, while many preferred that form of ordination. Such ordination had been accepted as valid for English clergymen during the earlier part of Elizabeth's reign. It

was still so recognized by all the English clergy for the ministers of the Reformed churches on the Continent, and with such, English clergymen of all opinions still continued to hold very friendly intercourse. It was not until Laud's ascendancy that claims for the divine right of Episcopacy, to the exclusion of other branches of the Christian faith, were strenuously urged. Thus it happened that after many conferences, Endicott could write to Governor Bradford in May of 1629, that:—

I acknowledge myself much bound to you for your kind love and care in sending Mr. Samuel Fuller among us, and rejoice much that I am by him satisfied touching your judgment of the outward form of God's worship. It is, as far as I can gather, no other than is warranted by the evidence of truth, and the same which I have ever professed and maintained ever since the Lord in mercy revealed Himself unto me: being far from the common report that hath been spread of you touching that particular.

Endicott further expresses the wish that they may all "as Christian brethren be united by a heavenly and unfeigned love;" that as servants of one Master and of one household they should not be strangers, but be "marked with one and the same mark, and sealed with one and the same seal, and have, for the main, one and the same heart guided by one and the same Spirit of truth," and that they should bend their hearts and forces to the furthering of the work for which they had come into the wilderness. Thus, Salem had decided upon the type of church her people wanted, while she still waited for the ministers who were coming with the larger number of her colonists, and whom she believed competent to guide her religious life.

Only a few weeks after the sending of Endicott's letter to Governor Bradford, five vessels arrived, bringing several hundred well-equipped

colonists. They had been sent out by the Governor and Company of Massachusetts Bay. This corporation had bought out the Salem Company, and was backed by the most influential Puritans of wealth and social prominence, by men who had lost all hope of either religious or civil freedom when Laud had been raised to the bishopric of London and when Charles persisted in his despotic government. By the elevation of Laud to the bishopric of London, Charles offended the most puritanically inclined diocese in England, and the whole Puritan party. In his new office, Laud quickly succeeded in severing communication between the Reformed churches on the Continent and those in England. He strictly prohibited the common people from using the annotated pocket-Bibles sent out by the Genevan press. He forbade the entrance into office of nonconformists as lecturers or chaplains. He put an end to feofments, so that puritanically inclined men of wealth could no longer control the livings. He excluded suspended ministers from teaching, and also from the practice of medicine, and even forbade their entering business life. He required absolute conformity to his own high-church standards. He insisted upon doing away with all Calvinistic innovations tending to simplicity of ritual, and upon reviving many ecclesiastical ceremonies which had fallen into disuse. Hence, English Puritans saw in America the only hope of the future, and began that exodus which, during the next ten years, or more, annually sent two thousand emigrants to the Massachusetts shore to find homes throughout New England. Of these, the Salem colonists were the first large body of Puritans to emigrate. Among them were three ministers, Endicott's former pastor Samuel Skelton, Francis Higginson, and Francis Bright.

When Higginson and Skelton learned of the friendship with Plymouth, and that Endicott had adopted the system of church organization established in the older settlement, they accepted it as being in accord with the principles of the Reformed churches on the Continent, whose pattern they had themselves resolved to follow in organizing the church at Salem. Not so

Francis Bright. He could not agree with the others, and so withdrew to Charlestown in order not to embarrass the young church. Higginson and Skelton were each, in turn questioned as to their conception of a minister's calling. Replying that it was twofold: a call from within to a conviction that a man was chosen of God to be His minister, and thereby endowed with proper gifts, and a call from without by the free choice of a "covenanted church" to be its pastor, they were accepted as satisfactory candidates for the two highest offices in the Salem church. Later, upon an appointed day of prayer and fasting, July 20, 1629, the people by written ballot chose Francis Skelton to be their pastor and Thomas Higginson their teacher. When they had accepted their election, "first Mr. Higginson, with three or four of the gravest members of the church, laid their hands upon Mr. Skelton, using prayer therewith. This being done, there was imposition of hands upon Mr. Higginson also." Upon a still later day of prayer and humiliation, August 6, elders and deacons were chosen and ordained. Upon this day, the two ministers and many among the people gave their assent to the Confession and Covenant which the pastor and teacher had revised. At the second of these two important meetings, Governor Bradford and delegates from the Plymouth church were present. "Coming by sea they were hindered by cross-winds that they could not be there at the beginning of the day; but they came into the assembly afterward, and gave them the right hand of fellowship, wishing all prosperity and all blessedness to such good beginnings." [19] The Salem covenant in its original form was a single sentence: "We covenant with the Lord and with one another; and doe bynd ourselves in the presence of God to walk together in all his wayes, according as he is pleased to reveale him' self unto us in his Blessed word of truth." [20]

The formation of the church of Salem by covenant practice[a] marked the beginning of the Congregational polity among the Puritan body; their local ordination of their minister, the break with English Episcopacy, though, for

a considerable while longer, the colonists still spoke of themselves as members of the Church of England, for both the colonial and the home authorities were equally anxious to avoid the stigma of Separatism.

The next large body of colonists to leave England was Governor Winthrop's company, and, upon their arrival, the Boston church quickly followed the example of Salem. Next, the Dorchester church, afterwards the church of Windsor, Connecticut, emigrated as a body from Plymouth, England, where, before embarking, its members seem to have taken some form of membership pledge,—an unusual proceeding, but operating to put this church in line with those already organized in Plymouth and Massachusetts. The Watertown church, whence emigrants were to settle Wethersfield, Connecticut, also organized with a covenant similar to that of Salem and Boston. These four oldest congregations set the type for the thirty-five New England churches that were founded previous to 1640, as well as for the later ones that followed the standard thus early set up by Plymouth, Massachusetts, and Connecticut. There was some variation in the form of covenant,[b] and to it a brief confession of faith, or creed, was early added. There was some variation also in the interpretation of the laying on of hands in ordination as to whether it was to be considered, in cases where the candidate had previously been ordained in England, as ordination or as confirmation of that previously received.[c] In regard to officers, the churches at first provided themselves with pastor, ruling elders (one or two, but generally only one), and deacons. There were exceptions among them, as at Plymouth, where there was no pastor for ten years, and in which there had never been a teacher, for John Robinson had filled both offices. As the first generation of colonists passed away, partly because of lack of fit candidates, partly because of the kinship of the two offices of pastor and teacher, and partly because of the heavy expense in supporting both, the office of teacher was dropped. The ruling eldership also was gradually discontinued; but at first the churches generally had, with the exception of

widows, the full complement of officers as appointed by Browne and Barrowe. The usual order of worship was (1) Prayer. (2) Psalm. (3) Scripture reading, followed by the pastor's preaching to explain and apply it. (4) Prophesying or exhortation, the elders calling for speakers, whether members or guests from other churches. (5) Questions from old or young, women excepted. (6) Occasional administration of the Lord's Supper or of Baptism, rites known as the administration of "the Seals of the Covenant." (7) Psalm. (8) Collection. (9) Dismissal with blessing. Such were the New England churches, the churches of a transplanted creed and race. They were Calvinistic in dogma, democratic in organization, and of extreme simplicity in their order of worship.

#### **FOOTNOTES:**

[a] This fundamental principle of Congregationalism belonged to the Separatists and was one of their distinctive tenets. It was never adopted by the English Puritans as a body, nor was ordination by a local church. The Dorchester church had some form of pledge at the time of its organization. So also, possibly, because influenced by Dutch example, did Rev. Hugh Peter's church in Rotterdam. But these were exceptions.—W. Walker, *Hist. of Cong.*, p. 192.

[b] The evolution of the Salem covenant and creed is given in detail in W. Walker's *Creeds and Platforms*, pp. 99-122.

The Windsor Creed of 1647, though not covering the range of Christian doctrine, contained in simple phrase the essentials of Gospel redemption from sin through repentance and faith in the atoning work of Christ and a life of love toward God and our neighbor, through the strength which comes from him.—W. Walker, *Creeds and Platforms*, p. 154.



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## CHAPTER III

### CHURCH AND STATE IN NEW ENGLAND

For God and the Church!

With the great Puritan body in England, and with the great mass of the English nation, whatever their religious opinions, the colonists of Plymouth, Massachusetts, Connecticut, and New Haven held in common one foremost theory of civil government. Pausing for a brief consideration of this fundamental and far-reaching theory, which created so many difficulties in the infant commonwealths, and which confronts us again and again as we follow their later history, we find that the Pilgrim Separatist of Plymouth, the strict Puritan of Massachusetts, the voter in the theocratic commonwealth of New Haven, and the holder of the liberal franchise in Connecticut, all clung to the proposition that the State's first duty was the maintenance and support of religion. Thereby they meant enforced taxation for the support of its predominant type, conformity to its mode of worship, and in the last analysis supervision or control of the Church by the State or by the General Court of each colony. As a corollary to this proposition, the duty of the churches was to define the creed, to set forth the church polity,

and to determine the bounds of morality within the state. Two of the colonies held the corollary to be so important that it almost changed places with the proposition when Massachusetts and New Haven became rigid theocracies.[a]

With respect to taxation in the four colonies the statement should be modified, inasmuch as the support of religion was at first voluntary in all four: in Plymouth until 1657, in Massachusetts from 1630 to 1638, in Connecticut before 1640; yet both New Haven and Connecticut accepted the suggestion made by the Commissioners of the United Colonies on September 5, 1644, "that each man should be required to set down what he would voluntarily give for the support of the gospel, and that any man who refused should be rated according to his possessions and compelled to pay" the sum so levied. Since in religious affairs strict conformity was required by the three Puritan colonies, and since the liberty accorded to the few early dissenters in Plymouth was not such as to modify her prevailing polity or worship, these first few years of voluntary assessment do not nullify the dominant truth of the preceding statement.

In the intimate relation of Church and State, the people of these four New England colonies regarded the magistrates as "Nursing Fathers" of the Church, [21] who were to take "special note and care of every Church and provide and assign allotments of land for the maintenance of each of them." [22] The State, accepting the same view of caretaker, carried its supervision still farther and devised a system for the maintenance of the ministry in accordance with sundry laws made to insure the people's support, respect, and obedience. The churches reciprocated. First of all, they provided their members with the approved and accepted essentials of religious life, and they further exercised a rigorous supervision over the moral welfare of the whole community. Secondly, they aided the State through the influence of their ministers, who, on all important occasions, were expected to meet with

the magistrates to consult and advise upon affairs whether spiritual or temporal. But the framers of governments were not satisfied with these measures that aimed to present a strongly established church, capable of extending a fine moral, ethical, and religious influence over the colonists, and also to enforce upon the wayward, the careless, or the indifferent among them its support and their obedience. If these measures provided for the ordinary welfare of the community and for the usual relations between the ministers and their people, there were still possibilities of factional strife to guard against, and such warfare in that age might or might not confine itself within the limits of theological controversy or within the lines of church organization. Consequently, the better to preserve the churches from schism or corrupting innovations and the commonwealth from discord, the supreme control of the churches was lodged in the General Court of each colony. It could, whenever necessary to secure harmony, whether ecclesiastical or civil, legislate with reference to all or any of the churches within its jurisdiction. Examples of such legislation occur frequently in the religious history of the colonies, especially of Massachusetts and Connecticut. Such interdependence of the spiritual and temporal power practically amounted to a union of Church and State. Indeed, in Massachusetts and New Haven, to be a voter, a man must first be a member of a church of approved standing.[b] In more liberal Plymouth and Connecticut, the franchise, at first, was made to depend only upon conduct, though it was early found necessary to add a property qualification in order to cut off undesirable voters.[23] In the Connecticut colony, it was expressly enacted that church censure should not debar from civil privilege. When advocating this amount of separation between church and civil power, Thomas Hooker was not moved by any such religious principle as influenced the Separatists of Plymouth. On the contrary, it was his political foresight which made him urge upon the colonists a more representative government[c] than would be obtainable from a franchise based upon

church-membership where, as in the colonial churches, admission to such membership was conditioned upon exacting tests. The great Connecticut leader was far in advance of the statesmen of his time, for they held that the religion of a prince or government must be the religion of the people; that every subject must be by birthright a member of the national church, to leave which was both heretical and disloyal and should be punished by political and civil disabilities. This union of Church and State was the theory of the age,—a principle of statecraft throughout all of Europe as well as in England. Naturally it emigrated to New England to be a foundation of civil government and a fortress for that type of nonconformity which the colonists chose to transplant and make predominant. The type, as we have seen, was Congregationalism, and the Congregational church became the established church in each of the four colonies.

This theory of Church and State was the cause at bottom of all the early theological dissensions which disturbed the peace and threatened the colony of Massachusetts. Moreover, their settlement offers the most striking contrast between the fundamental theory of Congregationalism and the theory of a union between Church and State. With the power of supervision over the Church lodged in the General Court, whatever the theory of Congregationalism as to the independence of the individual churches, in practice the civil authority disciplined them and their members, and early invaded ecclesiastical territory. In Salem, Endicott took it upon himself to expel Ralph Smith for holding extreme Separatist principles, and shipped the Browns back to England for persisting in the use of the Book of Common Prayer. He considered both parties equally dangerous to the welfare of the community, because, according to the new standard of church-life, both were censurable. Endicott held that to tolerate any measure of diversity in religious practices was to cultivate the ferment of civil disorder. Considering the bitterness, narrowness, intensity, and also the irritating conviction that every one else was heretical and anti-Christian,

with which men of that age clung to their religious differences, Endicott had some reason for holding this opinion. The Boston authorities believed in no less drastic measures to maintain the civil peace and consequent good name of the colony. John Davenport of New Haven voiced the Massachusetts sentiment as well as his own in: "Civil government is for the common welfare of all, as well in the Church as without; which will then be most certainly effected, when Public Trust and Power of these matters is committed to such men as are most approved according to God; and these are Church-members." [24] Consequently, the Massachusetts law of 1631 [25] forbade any but church members to become freemen of the colony, and to these only was intrusted any share in its government. A similar law was later formulated for the New Haven colony. John Cotton echoed the further sentiment of a New England community when, writing of the relations between the churches and the magistrates, he defined the church as "subject to the Magistrate in the matters concerning the civil peace, of which there are four sorts:" (1) with reference to men's goods, lives, liberty, and lands; (2) with establishment of religion in doctrine, worship, and government according to the Word of God, as also the reformation of corruption in any of these; (3) with certain public spiritual administrations which may help forward the public good, as fasts and synods; (4) and finally the church must be subject to the magistrates in patient suffering of unjust persecution, since for her to take up the sword in her own defense would only increase the disturbance of the public peace. [26] As a result of such public sentiment, churches were not to be organized without the approval of the magistrates, nor were any "persons being members of any church ... gathered without the approbation of the magistrates and the greater part of said churches" (churches of the colony) to be admitted to the freedom of the commonwealth. [27] This law, or its equivalent, with reference to church organization was found upon the statute books of all four colonies.

In a pioneer community and a primitive commonwealth, developing slowly in accord with the new democratic principles underlying both its church and secular life, the "maintenance of the peace and welfare of the churches,"[28] which was intrusted to the care of the General Court, was frequently equivalent to maintaining the civil peace and prosperity of the colony. Endicott's deportation of the Browns and the report of the exclusiveness and exacting tests of membership in the colonial churches had early led the members of the Massachusetts Bay Company, resident in England, to fear that the emigrants had departed from their original intent and purpose. And the colonists began to feel that they were in danger of falling under the displeasure of their king and of their Puritan friends at home. Consequently, there entered into the settling of all later religious differences in the colony the determination to avoid appeals to the home country, and also to avoid any report of disturbance or dissatisfaction that might be prejudicial to her independence, general policy, or commercial prosperity. The recognition of such danger made many persons satisfied to submit to government by an exclusive class, comprising in Massachusetts one tenth of the people and in the New Haven colony one ninth. These alone had any voice in making the laws. In submitting to their dictation, the large majority of the people had to submit to a "government that left no incident, circumstance, or experience of the life of an individual, personal, domestic, social, or civil, still less anything that concerned religion, free from the direct or indirect interposition of public authority." [29] Such inquisitorial supervision was due to the close alliance of Church and State within the narrow limits of a theocracy. In more liberal Plymouth and Connecticut, the "watch and ward" over one's fellows, which the early colonial church insisted upon, was extended only over church members, and even over them was less rigorous, less intrusive. Something of the development of the great authority of the State over the churches and of its attitude and theirs towards synods may be gleaned from the earliest pages

of Massachusetts ecclesiastical history. The starting-point of precedent for the elders of the church to be regarded as advisors only and the General Court as authoritative seems to have been in a matter of taxation, when, in February, 1632, the General Court assessed the church in Watertown. The elders advised resistance; the Court compelled payment. In the following July, the Boston church inquired of the churches of Plymouth, Salem, Dorchester, and Watertown, whether a ruling elder could at the same time hold office as a civil magistrate. A correspondence ensued and the answer returned was that he could not. Thereupon, Mr. Nowell resigned his eldership in the Boston church. [30] Winthrop mentions eight[d] important occasions between 1632 and 1635 when the elders, which term included pastors, teachers, and ruling elders, were summoned by the General Court of Massachusetts to give advice upon temporal affairs. In March of 1635-36 the Court "entreated them (the elders) together with the brethren of every church within the jurisdiction, to consult and advise of one uniforme order of discipline in the churches agreeable to Scriptures, and then to consider how far the magistrates are bound to interpose for the preservation of that uniformity and peace of the churches." [31] The desire of the Court grew in part out of the influx of new colonists, who did not like the strict church discipline, and in part out of the tangle of Church and State during the Roger Williams controversy. The Court had disciplined Williams as one, who, having no rights in the corporation, had no ground for complaint at the hostile reception of his teachings. These the authorities regarded as harmful to their government and dangerous to religion. His too warm adherents in the Salem church were, however, rightful members of the community, and they had been punished for upholding one whom the General Court, advised by the elders of the churches, had seen fit to censure. Punished thus, ostensibly, for contempt of the magistrates by the refusal to them of the land they claimed as theirs on Marblehead Neck, and feeling that the independence of their church life and their rightful choice in the selection of

their pastor had really been infringed, the Salem church sent letters to the elders of all the other churches of the Bay, asking that the magistrates and deputies be admonished for their decision as a "heinous sin." The Court came out victorious, by refusing at its next general session to seat the Salem deputies "until they should give satisfaction by letter" for holding dangerous opinions and for writing "letters of defamation," and by proceeding to banish Roger Williams. Before the session of the Court, the elders of the Massachusetts churches, jointly and individually, labored with the Salem people and brought the majority to a conviction of their error in supporting Roger Williams. [e]

The platform of church discipline which the Court advised in 1635-36 was not forthcoming, and the matter was allowed to rest.[f] In 1637, with the consent of the General Court, a synod of elders and lay delegates from all the New England churches was called to harmonize the discordant factions created by the heated Antinomian controversy. During the synod, the magistrates were present all the time as hearers, and even as speakers, but not as members. The dangerous schism was ended more by the Court's banishment of Wheelwright and Mrs. Hutchinson, together with their more prominent followers, than by the work of the synod. However, Governor Winthrop was so delighted with the conferences of the synod that, in his enthusiasm, he suggested that it would be fit "to have the like meeting once a year, or at least the next year, to settle what yet remained to be agreed, or if but to nourish love." [32] But his suggestion was voted down, for the Synod of 1637 was considered by some to be "a perilous deflection from the theory of Congregationalism." [33] Even the fortnightly meeting of ministers who resided near each other, and which it had become a custom to call for friendly conference, was looked at askance by those[g] who feared in it the germ of some authoritative body that should come to exercise control over the individual churches. When this custom was endorsed and permitted in the "Body of Liberties," in 1641, the assurance that these



meetings "were only by way of Brotherly conference and consultation" was felt to be necessary to appease the opposition. When, two and four years later, Anabaptist converts and a flood of Presbyterian literature called for measures of repression, and the Court summoned councils to consult upon a course of action, it was most careful in each case to reassert the doctrine of the complete independence of the individual church. Synods, from the purely Congregational standpoint, were to be called only upon the initiative of the churches, and were authoritative bodies, composed of both ministerial and lay delegates from such churches, and their duty was to confer and advise upon matters of general interest or upon special problems. In cases where their decisions were unheeded, they could enforce their displeasure at the contumacious church only by cutting it off from fellowship. Consequently, though there was some opposition to the Court's calling of synods and a resultant general restlessness, there was none when the Court confined its supervision and commands to individually schismatic churches or to unruly members. The time had not yet come for the recognition of what this double system of church government—government by its members, supervision by the Court—foreboded. The colonists did not see that within it was the embryo of an authoritative body exercising some of the powers of the Presbyterian General Assembly. The supervising body might be composed of laymen acting in their capacity as members of the General Court, but the powers they exercised were none the less akin to the very ones that Congregationalism had declared to be heretical and anti-Christian. Moreover, the tendency was toward an increase of this authoritative power every time it was exercised and each time that the colonists submitted to its dictation.

Of the two colonies founded after Massachusetts, Connecticut and New Haven, the latter preserved the complete independence of her original church until the admission of the shore towns[h] to her jurisdiction, when she instituted that friendly oversight of the churches which had begun to

prevail elsewhere. Thereafter her General Court kept a rigorous oversight over the purity of her churches and the conduct of their members. The General Court of Connecticut early compelled a recognition of its authority[i] over the religious life of the people and its right of special legislation.[j] For example, in 1643, the Court demanded of the Wethersfield church a list of the grievances which disturbed it. In the next year, when Matthew Allyn petitioned for an order to the Hartford church, commanding the reconsideration of its sentence of excommunication against him, the Court "adjudged his plea an accusation upon the church" which he was bound to prove. These incidents from early colonial history in some measure illustrate the practical working of the theory of Church and State. The conviction that the State should support one form of religion, and only one, was ever present to the colonial mind. If confirmation of its worth were needed, one had only to glance at the turmoil of the Rhode Island colony experimenting with religious liberty and a complete separation of Church and State. Like all pioneers and reformers, she had gathered elements hard to control, and would-be citizens neither peaceable nor reasonable in their interpretation of the new range of freedom. Watching Rhode Island, the Congregational men of New England hugged more tightly the conviction that their method was best, and that any variation from it would work havoc. It was this theory and this conviction, ever present in their minds, that underlay all ecclesiastical laws, all special legislation with reference to churches, to their members, or to public fasts and thanksgivings. This deep-rooted conviction created hatred toward and fear of all schismatical doctrines, enmity toward all dissenting sects, and opposition to any tolerance of them.

## **FOOTNOTES:**

[a] "The one prime, all essential, and sufficient quality of a theocracy ... adopted as the form of an earthly government, was that the civil power should be guided in its exercise by religion and religious ordinances."—G. E. Ellis, *Puritan Age in Massachusetts*, p. 188.

[b] "Noe man shal be admitted to the freedome of this body politicke, but such as are members of some of the churches within the lymitts of the same."—Mass. Col. Rec. i, 87, under date of May 28, 1631.

"Church members onely shall be free burgesses and they onely shall chuse magistrates and officers among themselves to haue the power of transacting in all publike and ciuill affayres of this plantatio."—New Haven Col. Rec. i, 15; also ii, 115, 116.

The governments of Massachusetts and New Haven "never absolutely merged church and state." The franchise depended on church-membership, but the voter, exercising his right in directing the affairs of the colony, was speaking, "not as the church but as the civil Court of Legislation and adjudication."—W. Walker, *History of the Congregational Churches*, p. 123.

Yet it was due to this merging and this dependence that on October 25, 1639, there were only sixteen free burgesses or voters out of one hundred and forty-four planters in the New Haven Colony.—See N. H. Col. Rec. i, 20.

"Theoretically Church and State (in Connecticut) were separated: practically they were so interwoven that separation would have meant the severance of soul and body."—C. M. Andrews, *Three River Towns of Conn.* p. 22.

[c] To John Cotton's "democracy, I do not conceive that ever God did ordain, as a fit government for church or commonwealth," and to Gov. Winthrop's objections to committing matters to the judgment of the body of the people because "safety lies in the councils of the best part which is always the least, and of the best part, the wiser is always the lesser," Hooker replied that "in all matters which concern the common good, a general council, chosen by all, to transact the business which concerns all, I conceive under favor, most suitable to rule and most safe for the relief of the whole."—Hutchinson, *Hist. of Mass.* i, App. iii.

[d] (1) To adjust a difference between Governor Winthrop and Deputy Dudley in 1632; (2) about building a fort at Nantasket, February, 1632; (3) in regard to the settlement of the Rev. John Cotton, September, 1633; (4) in consultation concerning Roger Williams's denial of the patent, January, 1634; (5) concerning rights of trade at Kennebec, July, 1634; (6) in regard to the fort on Castle Island, August, 1634; (7) concerning the rumor in 1635 of the coming of a Governor-General; and (8) in the case of Mr. Nowell.—*Winthrop*, i, pp. 89, 99, 112, 122, 136-137, 159-181.

[e] Roger Williams was the real author of the letters which the Salem church was required to disclaim.

[f] Upon a further suggestion from the General Court, John Cotton prepared a catechism entitled, *Milk for Babes*.

[g] Governor Winthrop replied to Dr. Skelton's objections that "no church or person could have authority over another church."—See H. M. Dexter, *Ecclesiastical Councils of New England*, p. 31; *Winthrop*, i. p. 139.

[h] Guilford, Branford, Milford, Stamford, on the mainland, and Southold, on Long Island.

[i] The General Court was head of the churches. "It was more than Pope, or Pope and College of Cardinals, for it exercised all authority, civil and ecclesiastical. In matters of discipline, faith, and practice there was no appeal from its decisions. Except the right to be protected in their orthodoxy the churches had no privileges which the Court did not confer, or could not take away."—Bronson's *Early Gov't. in Conn.* p. 347, in *N. H. Hist. Soc. Papers*, vol. iii.

[j] On August 18, 1658, the court refused, upon complaint of the Wethersfield church, to remove Mr. Russell. In March, 1661, after duly considering the matter, the court allowed Mr. Stow to sever his connection with the church of Middletown. It concerned itself with the strife in the Windsor church over an assistant pastor from 1667 to 1680. It allowed the settlement of Woodbury in 1672 because of dissatisfaction with the Stratford church. It permitted Stratford to divide in 1669. These are but a few instances both of the authority of the General Court over individual churches and of that discord which, finding its strongest expression in the troubles of the Hartford church, not only rent the churches of Connecticut from 1650 to 1670, but "insinuated itself into all the affairs of the society, towns, and the whole community." Another illustration of the court's oversight of the purity of religion was its investigation in 1670 into the "soundness of the minister at Rye." For these and hosts of similar examples see index *Conn. Col. Rec.* vols. i, ii, iii, and iv.

## CHAPTER IV

### THE CAMBRIDGE PLATFORM AND THE HALF-WAY COVENANT

It is always right that a man should be able to render a reason for the faith that is within him.—Sydney Smith.

In each of the New England colonies under consideration, the settlers organized their church system and established its relation to the State, expecting that the strong arm of the temporal power would insure stability and harmony in both religious and civil life. As we know, they were speedily doomed to disappointment. As we have seen, they failed to estimate the influences of the new land, where freedom from the restraint of an older civilization bred new ideas and estimates of the liberty that should be accorded men. Within the first decade Massachusetts had great difficulty in impressing religious uniformity upon her rapidly increasing and heterogeneous population. She found coercion difficult, costly, dangerous to her peace, and to her reputation when the oppressed found favorable ears in England to listen to their woes. Ecclesiastical differences of less magnitude, contemporary in time and foreshadowing discontent and opposition to the established order of Church and State, were settled in more quiet ways. John Davenport, after witnessing the Antinomian controversy, declined the pressing hospitality of Massachusetts, and led his New Haven company far enough afield to avoid theological entanglements or disputed points of church polity. Unimpeded, they would make their intended experiment in statecraft and build their strictly scriptural republic. Still earlier Thomas Hooker, Samuel Stone, and John Warham led the Connecticut colonists into the wilderness because they foresaw contention, strife, and evil days before them if they were to be forced to conform to the strict policy of Massachusetts.[a] They preferred, unhindered, to plant and water the young vine of a more democratic commonwealth. And even as Massachusetts met with large troubles of her own, so smaller ones beset these other colonies in their endeavor to preserve uniformity of religious faith and practice. Until 1656, outside of Massachusetts, sectarianism barely lifted its head. Religious contumacy was due to varying opinions as to what should be the

rule of the churches and the privileges of their members. As the churches held theoretically that each was a complete, independent, and self-governing unit, their practice and teaching concerning their powers and duties began to show considerable variation. Such variation was unsatisfactory, and so decidedly so that the leaders of opinion in the four colonies early began to feel the need of some common platform, some authoritative standard of church government, such as was agreed upon later in the Cambridge Platform of 1648 and in the Half-Way Covenant, a still later exposition or modification of certain points in the Platform.

The need for the Platform arose, also, from two other causes: one purely colonial, and the other Anglo-colonial. The first was, since everybody had to attend public worship, the presence in the congregations of outsiders as distinct from church members. These outsiders demanded broader terms of admission to holy privileges and comforts. The second cause, Anglo-colonial in nature, arose from the inter-communion of colonial and English Puritan churches and from the strength of the politico-ecclesiastical parties in England. Whatever the outcome there, the consequences to colonial life of the rapidly approaching climax in England, when, as we now know, King was to give way to Commonwealth and Presbyterianism find itself subordinate to Independency, would be tremendous.

In the first twenty years of colonial life, great changes had come over New England. Many men of honest and Christian character—"sober persons who professed themselves desirous of renewing their baptismal covenant, and submit unto church discipline, but who were unable to come up to that experimental account of their own regeneration which would sufficiently embolden their access to the other sacrament" (communion) [34]—felt that the early church regulations, possible only in small communities where each man knew his fellow, had been outgrown, and that their retention favored the growth of hypocrisy. The exacting oversight of

the churches in their "watch and ward" over their members was unwelcome, and would not be submitted to by many strangers who were flocking into the colonies. The "experimental account" of religion demanded, as of old, a public declaration or confession of the manner in which conviction of sinfulness had come to each one; of the desire to put evil aside and to live in accordance with God's commands as expressed in Scripture and through the church to which the repentant one promised obedience. This public confession was a fundamental of Congregationalism. Other religious bodies have copied it; but at the birth of Congregationalism, and for centuries afterwards, the bulk of European churches, like the Protestant Episcopal Church to-day, regarded "Christian piety more as a habit of life, formed under the training of childhood, and less as a marked spiritual change in experience." [35]

It followed that while many of the newcomers in the colonies were indifferent to religion, by far the larger number were not, and thought that, as they had been members of the English Established Church, they ought to be admitted into full membership in the churches of England's colonies. They felt, moreover, that the religious training of their children was being neglected because the New England churches ignored the child whose parents would not, or could not, submit to their terms of membership. Still more strongly did these people feel neglected and dissatisfied when, as the years went by, more and more of them were emigrants who had been acceptable members of the Puritan churches in England. They continued to be refused religious privileges because New England Congregationalism doubted the scriptural validity of letters of dismissal from churches where the discipline and church order varied from its own. Within the membership of the New England churches themselves, there was great uncertainty concerning several church privileges, as, for instance, how far infant baptism carried with it participation in church sacraments, and whether adults, baptized in infancy, who had failed to unite with the church by



signing the Covenant, could have their children baptized into the church. Considerations of church-membership and baptism, for which the Cambridge Synod of 1648 was summoned, were destined, because of political events in England, to be thrust aside and to wait another eight years for their solution in that conference which framed the Half-Way Covenant as supplementary to the Cambridge Platform of faith and discipline.

What has been termed the Anglo-colonial cause for summoning the Cambridge Synod finds explanation in the frequent questions and demands which English Independency put to the New England churches concerning church usage and discipline, and in the intense interest with which New England waited the outcome of the constitutional struggle in England between King and Parliament.

When the great controversy broke out in England between Presbyterians and Independents, the fortunes of Massachusetts (who felt every wave of the struggle) and of New England were in the balance. Presbyterians in England proclaimed the doctrine of church unity, and of coercion if necessary, to procure it; the Independents, the doctrine of toleration. Puritans, inclining to Presbyterianism, were disturbed over reports from the colonies, and letters of inquiry were sent and answers returned explaining that, while the internal polity of the New England churches was not far removed from Presbyterianism, they differed widely from the Presbyterian standard as to a national church and as to the power of synods over churches, and that they also held to a much larger liberty in the right of each church to appoint its officers and control its own internal affairs. At the opening of the Long Parliament (1640-1644), many emigrants had returned to England from the colonies, and, under the leadership of the influential Hugh Peters, had given such an impetus to English thought that the Independent party rose to political importance and made popular the "New

England Way."[b] The success of the Independents brought relief to Massachusetts, yet it was tinged with apprehension lest "toleration" should be imposed upon her. The signing of the "League and Covenant" with England in 1643 by Scotland, the oath of the Commons to support it, and the pledge "to bring the churches of God in the three Kingdoms to the nearest conjunction and uniformity in religion, confession of faith, form of church government and catechizing" (including punishment of malignants and opponents of reformation in Church and State), carried menace to the colonies and to Massachusetts in particular. The supremacy of Scotch or English Nonconformity meant a severity toward any variation from its Presbyterianism as great as Laud had exercised.[c]

In 1643 Parliament convened one hundred and fifty members[d] in the Westminster Assembly to plan the reform of the Church of England. Their business was to formulate a Confession which should dictate to all Englishmen what they should believe and how express it, and should also define a Church, which, preserving the inherent English idea of its relation to the State, should bear a close likeness to the Reformed churches of the Continent and yet approach as nearly as possible both to the then Church of Scotland and to the English Church of the time of Elizabeth. The work of this assembly, known as the Westminster Confession, demonstrated to the New England colonists the weakness of their church system and the need among them of religious unity.[e]

Many among the colonists doubted the advisability of a church platform, considering it permissible as a declaration of faith, but of doubtful value if its articles were to be authoritative as a binding rule of faith and practice without "adding, altering, or omitting." Men of this mind waited for controversial writings,[f] to clear up misconception and misrepresentation in England, but they waited in vain. Moreover, the Puritan Board of Commissioners for Plantations of 1643 threatened as close an oversight and

as rigid control of colonial affairs from a Presbyterian Parliament as had been feared from the King. Furthermore, a Presbyterian cabal in Plymouth and Massachusetts, 1644-1646, gathered to it the discontent of large numbers of unfranchised residents within the latter colony, and under threat of an appeal to Parliament boldly asked for the ballot and for church privileges. In view of these developments, nearly all the colonial churches, though with some hesitation, united in the Synod of Cambridge, which was originally called for the year 1646.

In the calling of the synod Massachusetts took the lead. Several years before, in 1643, the four colonies of Plymouth, Massachusetts, Connecticut, and New Haven had united in the New England Confederacy, or "Confederacy of the United Colonies," for mutual advantage in resisting the encroachments of the Dutch, French, and Indians, and for "preserving and propagating the truth and liberties of the gospel." In the confederacy, Massachusetts and Connecticut soon became the leaders. Considering how much more strongly the former felt the pulsations of English political life, and how active were the Massachusetts divines as expositors of the "New England way of the churches," the Bay Colony naturally took the initiative in calling the Cambridge Synod. But mindful of the opposition to her previous autocratic summons, her General Court framed its call as a "desire" that ministerial, together with lay delegates, from all the churches of New England should meet at Cambridge. There, representing the churches, and in accordance with the earliest teachings of Congregationalism, they were to meet in synod "for sisterly advice and counsel." They were to formulate the practice of the churches in regard to baptism and adult privileges, and to do so "for the confirming of the weak among ourselves and the stopping of the mouths of our adversaries abroad." During the two years of unavoidable delay before the synod met in final session, these topics, which were expected to be foremost in the conference, were constantly in the public mind. Through this wide discussion, the long

delay brought much good. It brought also misfortune in the death of Thomas Hooker in 1647, and by it loss of one of the great lights and most liberal minds in the proposed conference. Nearly all the colonial churches[g] were represented in the synod. When, during its session, news was received that Cromwell was supreme in England, its members turned from the discussion of baptism and church-membership to a consideration of what should be the constitution of the churches. The supremacy of Cromwell and of the Independents who filled his armies cleared the political background. All danger of enforced Presbyterianism was over. The strength of the Presbyterian malcontents, who had sought to bring Massachusetts and New England into disrepute in England, was broken. Since the colonists were free to order their religious life as they pleased, the Cambridge Synod turned aside from its purposed task to formulate a larger platform of faith and polity.

When the Cambridge Synod adjourned, the orthodoxy of the New England churches could not be impugned. In all matters of faith "for the substance thereof" they accepted the Westminster Confession of Faith, but from its measures of government and discipline they differed.[h] This Cambridge Platform was more important as recognizing the independence of the churches and the authority of custom among them than as formulating a creed. It governed the New England churches for sixty years, or until Massachusetts and Connecticut Congregationalism came to the parting of the way, whence one was to develop its associated system of church government, and the other its consociated system as set forth in the Saybrook Platform, formulated at Saybrook, Connecticut, in 1708. Meanwhile, the Cambridge Platform[i] gave all the New England churches a standard by which to regulate their practice and to resist change.[j]

A study of the Platform yields the following brief summary of its cardinal points:—

(a) The Congregational church is not "National, Provincial or Classical," [k] but is a church of a covenanted brotherhood, wherein each member makes public acknowledgment of spiritual regeneration and declares his purpose to submit himself to the ordinances of God and of his church.[l] A slight concession was made to the liberal church party and to the popular demand for broader terms of membership in the provision for those of "the weakest measure of faith," and in the substitution of a written account of their Christian experience by those who were ill or timid. This written "experimental account" was to be read to the church by one of the elders. In the words of the Platform, "Such charity and tenderness is to be used, as the weakest Christian if sincere, may not be excluded or discouraged. Severity of examination is to be avoided." [m]

(b) The officers of the church are elders and deacons, the former including, as of old, pastors, teachers, and ruling elders. That the authority within the church had passed from the unrestrained democracy of the early Plymouth Separatists to a silent democracy before the command of a speaking aristocracy [n] is witnessed to by the Platform's declaration that "power of office" is proper to the elders, while "power of privilege" [o] belongs to the brethren. In other words, the brethren or membership have a "second" and "indirect power," according to which they are privileged to elect their elders. Thereafter those officers possess the "direct power," or authority, to govern the church as they see fit. [p] In the matter of admission, dismissal, censure, excommunication, or re-admission of members, the brotherhood of the church may express their opinion by vote. [q] In cases of censure and excommunication, the Platform specifies that the offender could be made to suffer only through deprivation of his church rights and not through any loss of his civil ones. [r] In the discussion of this point, the more liberal policy of Connecticut and Plymouth prevailed.

(c) In regard to pastors and teachers, the Platform affirms that they are such only by the right of election and remain such only so long as they preside over the church by which they were elected.[s]

Their ordination after election, as well as that of the ruling elders and deacons, is to be by the laying on of hands of the elders of the church electing them. In default of elders, this ordination is to be by the hands of brethren whom because of their exemplary lives the church shall choose to perform the rite.[t]

A new provision was also made, one leaning toward Presbyterianism, whereby elders of other churches could perform this ceremony, "when there were no elders and the church so desired."

(d) Church maintenance, amounting to a church tax, was insisted upon not only from church-members but from all, since "all that are taught in the word, are to contribute unto him that teacheth." If necessary, because corrupt men creep into the congregations and church contributions cannot be collected, the magistrate is to see to it that the church does not suffer.[u]

(e) The Platform defined the intercommunion of the churches[v] upon such broad lines as to admit of sympathetic fellowship even when slight differences existed in local customs. In so important a matter as when an offending elder was to be removed, consultation with other churches was commanded before action should be taken against him. The intercommunion of churches was defined as of various kinds: as for mutual welfare; for sisterly advice and consultation, in cases of public offense, where the offending church was unconscious of fault; for recommendation of members going from one church to another; for need, relief, or succor of unfortunate churches; and "by way of propagation," when over-populous churches were to be divided.

(f) Concerning synods,[w] the Platform asserts that they are "necessary to the well-being of churches for the establishment of truth and peace therein;" that they are to consist of elders, or ministerial delegates, and also of lay delegates, or "messengers;" that their function is to determine controversies over questions of faith, to debate matters of general interest, to guide and to express judgment upon churches, "rent by discord or lying under open scandal." Synods could be called by the churches, and also by the magistrates through an order to the churches to send their elders and messengers, but they were not to be permanent bodies. On the contrary, unlike the synods of the Presbyterian system, they were to be disbanded when the work of the special session for which they were summoned was finished. Moreover, they were not "to exercise church censure in the way of discipline nor any other act of authority or jurisdiction;" yet their judgments were to be received, "so far as consonant to the word of God," since they were judged to be an ordinance of God appointed in his Word.

(g) The Platform's section "Of the Civil Magistrate in matters Ecclesiastical"[x] maintains that magistrates cannot compel subjects to become church-members; that they ought not to meddle with the proper work of officers of the churches, but that they ought to see to it that godliness is upheld, and the decrees of the church obeyed. To accomplish these ends, they should exert all the civil authority intrusted to them, and their foremost duty was to put down blasphemy, idolatry, and heresy. In any question as to what constituted the last, the magistrates assisted by the elders were to decide and to determine the measure of the crime. They were to punish the heretic, not as one who errs in an intellectual judgment, but as a moral leper and for whose evil influence the community was responsible to God. The civil magistrates were also to punish all profaners of the Sabbath, all contemners of the ministry, all disturbers of public worship, and to proceed "against schismatic or obstinately corrupt churches."

These seven points summarize the important work of the Cambridge Synod and the Platform wherein it embodied the church usage and fixed the ecclesiastical customs of New England. Concerning its own work, the Synod remarked in conclusion that it "hopes that this will be a proof to the churches beyond the seas that the New England churches are free from heresies and from the character of schism," and that "in the doctrinal part of religion they have agreed entirely with the Reformed churches of England." [36]

Let us in a few sentences review the whole story thus far of colonial Congregationalism. With the exception of the churches of Plymouth and Watertown, the colonists had come to America without any definite religious organization. True, they had in their minds the example of the Reformed churches on the Continent, and much of theory, and many convictions as to what ought to be the rule of churches. These theories and these convictions soon crystallized out. And the transatlantic crystallization was found to yield results, some of which were very similar to the modifications which time had wrought in England upon the rough and embryonic forms of Congregationalism as set forth by Robert Browne and Henry Barrowe. The characteristics of Congregationalism during its first quarter of a century upon New England soil were: the clearly defined independence or self-government of the local churches; the fellowship of the churches; the development of large and authoritative powers in the eldership; a more exact definition of the functions of synods, a definite limitation of their authority; and, finally, a recognition of the authority of the civil magistrates in religious affairs generally, and of their control in special cases arising within individual churches. In the growing power of the eldership, and in the provision of the Platform which permits ordination by the hands of elders of other churches, when a church had no elders and its members so desired, there is a trend toward the polity of the Presbyterian system. In the Platform's definition of the power of the magistrates over the



religious life of the community, there is evident the colonists' conviction that, notwithstanding the vaunted independence of the churches, there ought to be some strong external authority to uphold them and their discipline; some power to fall back upon, greater than the censure of a single church or the combined strength and influence derived from advisory councils and unauthoritative synods. In Connecticut, this control by the civil power was to increase side by side with the tendency to rely upon advisory councils. From this twofold development during a period of sixty years, there arose the rigid autonomy of the later Saybrook system of church-government, wherein the civil authority surrendered to ecclesiastical courts its supreme control of the churches.

Turning from the text of the Cambridge Platform to its application, we find among the earliest churches "rent by discord," schismatically corrupt, and to be disciplined according to its provisions, that of Hartford, Connecticut. From the earliest years of the Connecticut colony there had been within it a large party, constantly increasing, who, because they were unhappy and aggrieved at having themselves and their children shut out of the churches, had advocated admitting all of moral life to the communion table. The influence of Thomas Hooker kept the discontent within bounds until his death in 1647, the year before the Cambridge Synod met. Thereafter, the conservative and liberal factions in many of the churches came quickly into open conflict. The Hartford church in particular became rent by dissension so great that neither the counsel of neighboring churches nor the commands of the General Court, legislating in the manner prescribed by the Cambridge instrument, could heal the schism. The trouble in the Hartford church arose because of a difference between Mr. Stone, the minister, and Elder Goodwin, who led the minority in their preference for a candidate to assist their pastor. Before the discovery of documents relating to the controversy, it was the custom of earlier historians to refer the dispute to political motives. But this church feud, and the discussion which it

created throughout Connecticut, was purely religious, and had to do with matters of church privileges and eventually with rights of baptism.[y] The conflict originated through Mr. Stone's conception of his ministerial authority, which belonged rather to the period of his English training and which was concisely set forth by his oft-quoted definition of the rule of the elders as "a speaking aristocracy in the face of a silent democracy." [z] Mr. Stone and Elder Goodwin, the two chief officers in the Hartford church, each commanded an influential following. Personal and political affiliations added to the bitterness of party bias in the dispute which raged over the following three questions: (a) What were the rights of the minority in the election of a minister whom they were obliged to support? (b) What was the proper mode of ecclesiastical redress if these rights were ignored? (c) What were those baptismal rights and privileges which the Cambridge Platform had not definitely settled? The discussion of the first two questions precipitated into the foreground the still unanswered third. The turmoil in the Hartford church continued for years and was provocative of disturbances throughout the colony. Accordingly, in May, 1656, a petition was presented to the General Court by persons unknown, asking for broader baptismal privileges. Moved by the appeal, the Court appointed a committee, consisting of the governor, lieutenant-governor and two deputies, to consult with the elders of the churches and to draw up a series of questions embodying the grievances which were complained of throughout the colony as well as in the Hartford church. The Court further commanded that a copy of these questions be sent to the General Courts of the other three colonies, that they might consider them and advise Connecticut as to some method of putting an end to ecclesiastical disputes. As Connecticut was not the only colony having trouble of this sort, Massachusetts promptly ordered thirteen of her elders to meet at Boston during the following summer, and expressed a desire for the cooperation of the churches of the confederated colonies. Plymouth did not respond. New

Haven rejected the proposed conference. She feared that it would result in too great changes in church discipline and, consequently, in her civil order,—changes which she believed would endanger the peace and purity of her churches;[aa] yet she sent an exposition, written by John Davenport, of the questions to be discussed. The Connecticut General Court, glad of Massachusetts' appreciative sympathy, appointed delegates, advising them to first take counsel together concerning the questions to be considered at Boston, and ordered them upon their return to report to the Court.

The two questions which since the summoning of the Cambridge Synod had been under discussion throughout all New England were the right of non-covenanting parishioners in the choice of a minister, and the rights of children of baptized parents, that had not been admitted to full membership. These were the main topics of discussion in the Synod, or, more properly, Ministerial Convention, of 1657, which assembled in Boston, and which decreed the Half-Way Covenant. The Assembly decided in regard to baptism that persons, who had been baptized in their infancy, but who, upon arriving at maturity, had not publicly professed their conversion and united in full membership with the church, were not fit to receive the Lord's Supper:—

Yet in case they understood the Grounds of Religion and are not scandalous, and solemnly own the Covenant in their own persons, [ab] wherein they give themselves and their own children unto the Lord, and desire baptism for them, we (with due reverence to any Godly Learned that may dissent) see not sufficient cause to deny Baptism unto their children. [37]

Church care and oversight were to be extended to such children. But in order to go to communion, or to vote in church affairs, the old personal,

public profession that for so many years had been indispensable to "signing the covenant" was retained [38] and must still be given.

This Half-Way Covenant, as it came to be called, enlarged the terms of baptism and of admission to church privileges as they had been set forth in the Cambridge Platform. The new measure held within itself a contradiction to the foundation principle of Congregationalism. A dual membership was introduced by this attempt to harmonize the Old Testament promise, that God's covenant was with Abraham and his seed forever, with the Congregational type of church which the New Testament was believed to set forth. The former theory must imply some measure of true faith in the children of baptized parents, whether or no they had fulfilled their duty by making public profession and by uniting with the church. This duty was so much a matter of course with the first colonists, and so deeply ingrained was their loyalty to the faith and practice which one generation inherited from another, that it never occurred to them that future descendants of theirs might view differently these obligations of church membership. But a difficulty arose later when the adult obligation implied by baptism in infancy ceased to be met, and when the question had to be settled of how far the parents' measure of faith carried grace with it. Did the inheritance of faith, of which baptism was the sign and seal, stop with the children, or with the grandchildren, or where? To push the theory of inherited rights would result eventually in destroying the covenant church, bringing in its stead a national church of mixed membership; to press the original requirements of the covenant upon an unwilling people would lessen the membership of the churches, expose them to hostile attack, and to possible overthrow. The colonists compromised upon this dual membership of the Half-Way Covenant. As its full significance did not become apparent for years, the work of the Synod of 1657 was generally acceptable to the ministry, but it met with opposition among the older laity. It was welcomed in Connecticut, where Henry Smith of Wethersfield as early as 1647, Samuel Stone of

Hartford, after 1650, and John Warham of Windsor, had been earnest advocates of its enlarged terms. As early as in his draft of the Cambridge Platform, Ralph Partridge of Duxbury in Plymouth colony had incorporated similar changes, and even then they had been seconded by Richard Mather. [ac] They had been omitted from the final draft of that Platform because of the opposition of a small but influential group led by the Rev. Charles Chauncey. As early as 1650, it had become evident that public opinion was favorable to such a change, and that some church would soon begin to put in practice a theory which was held by so many leading divines. Though the Half-Way Covenant was strenuously opposed by the New Haven colony as a whole, Peter Prudden, its second ablest minister, had, as early as 1651, avowed his earnest support of such a measure.

The Half-Way Covenant was presented to the Connecticut General Court, August, 1657. Orders were at once given that copies of it should be distributed to all the churches with a request for a statement of any exceptions that any of them might have to it. None are known to have been returned. This was not due to any great unanimity of sentiment among the churches, for in Connecticut, as elsewhere, many of the older church-members were not so liberally inclined as their ministers, and were loth to follow their lead in this new departure. But when controversy broke out again in the Hartford church, in 1666, because of the baptism of some children, it was found that in the interval of eleven years those who favored the Half-Way covenant had increased in numbers in the church,[ad] and were rapidly gaining throughout the colony, especially in its northern half. By the absorption of the New Haven Colony, its southern boundary in 1664 had become the shore of Long Island Sound.

Though public opinion favored the Half-Way Covenant, the practice of the churches was controlled by their exclusive membership, and, unless a majority thereof approved the new way, there was nothing to compel the

church to broaden its baptismal privileges.[ae] This difference between public opinion and church practice, between the congregations and the coterie of church members, was provocative of clashing interests and of factional strife. For several years these factional differences were held in check and made subordinate to the urgent political situation which the restoration of the Stuarts had precipitated, and which demanded harmonious action among the colonists. A royal charter had to be obtained, and when obtained, it gave Connecticut dominion over the New Haven colony. The lower colony had to be reconciled to its loss of independence, in so much as the governing party, with its influential following of conservatives, objected to the consolidation. The liberals, a much larger party numerically, preferred to come under the authority of Connecticut and to enjoy her less restrictive church policy and her broader political life. Matters were finally adjusted, and delegates from the old New Haven colony first took their seats as members of the General Court of Connecticut at the spring session of 1665. Thereafter, in Connecticut history, especially its religious history, the strain of liberalism most often follows the old lines of the Connecticut colony, while that of conservatism is more often met with as reflecting the opinions of those within the former boundaries of that of New Haven.

It was in the year following the union of the two colonies that the quarrel in the Hartford church broke out afresh. The fall preceding the consolidation of the colonies, an appeal was made to the Connecticut General Court which helped to swell the dissatisfaction in the Hartford church and to bring it to the bursting point. In October, 1664, William Pitkin, by birth a member of the English Established Church[af] and a man much esteemed in the colony, as shown, politically, by his office of attorney,[39] and socially by his marriage with Elder Goodwin's daughter, petitioned the General Court in behalf of himself and six associates that it—

would take into serious consideration our present state in this respect that wee are thus as sheep scattered haveing no shepheard, and compare it with what wee conceive you can not but know both God and our King would have it different from what it now is. And take some speedy and effectual course of redress herein, And put us in full and free capacity of injoying those forementioned Advantages which to us as members of Christ's visible Church doe of right belong. By establishing some wholesome Law in this Corporation by vertue whereof wee may both clame and receive of such officers as are, or shall be by Law set over us in the Church or churches where wee have our abode or residence those forementioned privileges and advantages.

Further wee humbly request that for the future no Law in this corporation may be of any force to make us pay or contribute to the maintenance of any Minister or officer in the Church that will neglect or refuse to baptize our Children, and to take charge of us as of such members of the Church as are under his or their charge and care—

*Signed—*

Admitted freeman

Oct. 9th, 1662, Hartford, Wm. Pitkin.

Admitted freeman

May 21, 1657, Windsor, Michael Humphrey.

Admitted freeman

May 18, 1654, Hartford, John Stedman.

Windsor, James Eno.

Admitted freeman  
May 20, 1658, — Robart Reeve.  
Windsor, John Morse.

Admitted freeman  
May 20, 1658, Windsor, Jonas Westover. [40]

Eno and Humphrey had been complained of because their insistence upon what they considered their rights had caused disturbance in the Windsor church. Now, with the other petitioners, they based their appeal in part upon the King's Letter to the Bay Colony of June 26th, 1662, wherein Charles commanded that "all persons of good and honest lives and conversation be admitted to the sacrament of the Lord's supper, according to the said book of common prayer, and their children to baptism."

This petition of Pitkin and his associates was the first notable expression of dissatisfaction with the Congregationalism of Connecticut. Several Episcopal writers have quoted it as the first appeal of Churchmen in Connecticut. In itself, it forbids such construction. The petitioners had come from England and from the church of the Commonwealth. They were asking either for toleration in the spirit of the Half-Way Covenant or for some special legislation in their behalf. Further, they were demanding religious care and baptism for their children from a clergy who, from the point of view of any strict Episcopalian, had no right to officiate; and, again, it was nearly ten years before the first Church-of-England men found their way to Stratford.[41]

The Court made reply to Pitkin's petition by sending to all the churches a request that they consider—

whither it be not their duty to entertaine all such persons, who are  
of honest and godly conuersation, hauing a competency of



knowledge in the principles of religion, and shall desire to joyne with them in church fellowship, by an explicitt couenant, and that they haue their children baptized, and that all the children of the church be accepted and acco'td reall members of the church and that the church exercise a due Christian care and watch ouer them; and that when they are grown up, being examined by the officer in the presence of the church, it appeares in the judgment of charity, they are duly qualified to participate in the great ordinance of the Lord's Supper, by their being able to examine and discerne the Lord's body, such persons be admitted to full comunion.

The Court desires y't the seuerall officers of y'e respectiue churches, would be pleased to consider whither it be the duty of the Court to order churches to practice according to the premises, if they doe not practice without such an order.[42]

The issue was now fairly before the churches of the colony. The delegates of the people had expressed the opinion of the majority. The Court had invited the expression of any dissent that might exist, yet, despite the invitation, it had issued almost an order to the churches to practice the Half-Way Covenant, and with large interpretation, applying it, not only to the baptism of children who had been born of parents baptized in the colonial church, but also to those whose parents had been baptized in the English communion, at least during the Commonwealth.[ag] Pitkin at once proceeded in behalf of himself and several of his companions to apply for "communion with the church of Hartford in all the ordinances of Christ." [43] This the church refused, and wrought its factions up to white heat over the baptism of some child or children of non-communicants. The storm broke. Other churches felt its effects. Windsor church was rent by faction, Stratford was in turmoil over the Half-Way Covenant, and other churches were divided.

Some means had to be found to put an end to the increasing disorder. Accordingly the Court in October, 1666, commanded the presence of all the preaching elders and ministers within the colony at a synod to find "some way or means to bring those ecclesiastical matters that are in difference in the severall Plantations to an issue." The Court felt obliged to change the name of the appointed meeting from "synod" to "assembly" to avoid the jealousy of the churches. They were afraid that the civil power would overstep its authority, and by calling a synod, composed of elders only, establish a precedent for the exclusion of lay delegates from such bodies. Before this "assembly" could meet, it was shorn of influence through the politics of the conservative Hartford faction, who succeeded in passing a bill at the session of the Commissioners of the United Colonies, which read:

—

That in matters of common concern of faith or order necessitating a Synod, it should be a Synod composed of messengers from all the colonies. [44]

Accordingly, Connecticut's next step was to invite Massachusetts to join in a synod to debate seventeen questions of which several had been submitted to the Synod of 1657, and had remained unanswered. Among them were the questions of the right to vote in the choice of minister; of minority rights; and where to appeal in cases of censure believed to be unmerited.[ah]

Massachusetts courteously replied that the questions would be considered if submitted in writing; but she was at heart so indifferent that negotiations for a colonial synod lapsed, and Connecticut was left to adjust the differences in her churches. Consequently, in May, 1668, the Court,—

for promoting and establishing peace in the churches and plantations because of various apprehensions in matters of

discipline respecting membership and baptism,—

appointed a committee of influential men in the colony to search out the rules for discipline and see how far persons of "various apprehensions" could walk together in church fellowship. This committee reported at the October session, and the Court, after accepting their decision, formally declared the Congregational church established and its older customs approved, asserting that—

Whereas the Congregationall churches in these partes for the generall of their profession and practice have hitherto been approued, we can doe no less than still approue and countenance the same to be without disturbance until a better light in an orderly way doth appeare; but yet foreasmuch as sundry persons of worth for prudence and piety amongst us are otherwise perswaded (whose welfare and peaceable satisfaction we desire to accommodate) This Court doth declare that all such persons being also approued to lawe as orthodox and sound in the fundamentals of Christian religion may haue allowance of their perswasion and profession in church wayes or assemblies without disturbance.

The liberal church party had won the privileges for which they had contended, but the conservatives were not beaten, for it was upon their conception of church government that the Court set its seal of approval. The Court had been tolerant, and the churches must be also. Upon such terms, the old order was to continue "until a better light should appear." The tolerance toward changing conditions, thus expressed, was further emphasized by the Court's command to the churches to accept into full membership certain worthy people who could not bring themselves to agree fully with all the old order had demanded. The second part of the enactment just quoted was, strictly speaking, Connecticut's first toleration act; yet it

must be realized that now, as later, the degree of toleration admitted no release from the support of an unacceptable ministry or from fines for neglect of its ministrations. Tolerance was here extended not to dissenters, but only to varying shades of opinions within a common faith and fold.

In the spirit of such legislation, the Court advised the Hartford church to "walk apart." The advice was accepted, the church divided, and the members who went out reorganized as the Second Church of Hartford. Other discordant churches quickly followed this example. The Second Church of Hartford immediately put forth a declaration, asserting that its Congregationalism was that of the old original New England type. The force of public opinion was so great, however, that despite its declaration, the Second Church began at once to accept the Half-Way Covenant. "The only result of their profession was to give a momentary name to the struggle as between Congregationalist and Presbyterian." [45] It was no effective opposition to the onward development in Connecticut of the new order. When the churches found that neither the old nor the new way was to be insisted upon, the violence of faction ceased. The dual membership was accepted. For a while, its line of cleavage away from the old system, with its local church "as a covenanted brotherhood of souls renewed by the experience of God's grace," was not realized, any more than that the new system was merging the older type of church "into the parish where all persons of good moral character, living within the parochial bounds, were to have, as in England and Scotland, the privilege of baptism for their households and of access to the Lord's table." [46] Another move in this direction was taken when the splitting off of churches, and the forming of more than one within the original parish bounds, necessitated a further departure from the principles of Congregationalism, and when the sequestration of lands for the benefit of clergy became a feature of the new order. [47] In this formation of new churches, the oldest parish was always the First Society. [ai] Those formed later did not destroy it or affect its

antecedent agreements.[48] Only sixty-six years had passed (1603-1669) since the publication of the "Points of Difference" between the Separatists, the London-Amsterdam exiles, and the Church of England, wherein insistence had been laid upon the principles of a covenanted church, of its voluntary support, and of the unrighteousness of churches possessing either lands or revenue. The pendulum had swung from the broad democracy and large liberty of Brownism through Barrowism, past the Cambridge Platform (almost the centre of its arc), and on through the Half-Way Covenant to the beginning of a parish system. It had still farther to swing before it reached the end of the arc, marked by the Saybrook Platform, and before it began its slower return movement, to rest at last in the Congregationalism of the past seventy years.

## FOOTNOTES:

[a] Among the causes assigned for the removal of the Connecticut colonists were the discontent at Watertown over the high-handed silencing by the Boston authorities of Pastor Phillips and Teacher Brown for daring to assert that the "churches of Rome were true churches;" the early attempt of the authorities to impose a general tax; the continued opposition to Ludlow; their desire to oppose the Dutch seizure of the fertile valley of the Connecticut; their want of space in the Bay Colony; and the "strong bent of their spirits to remove thither," i.e. to Connecticut.

[b] The *New England Way* discarded the liturgy; refused to accept the sacrament or join in prayer after such an "anti-Christian form;" limited communion to church members approved by New England standards, or coming with credentials from churches similarly approved; limited the ministerial office, outside the pastor's own church, to prayer and conference, denying all authority; and assumed as the right of each church

the power of elections, admissions, dismissals, censures, and excommunications. The result, in that day of intense championship of religious polity and custom, was to create disturbance and discord among the English Independent churches. The correspondence between the divines of New England and old England was in part to avoid the "breaking up of churches."

[c] J. R. Green, *Short Hist. of the English People*, 534-538. The great popular signing of the Covenant in Scotland was in 1638.

[d] The original intention, in 1642, in regard to the composition of the Westminster Assembly was to have noted divines from abroad. It was proposed to invite Rev. John Cotton, Thomas Hooker, and John Davenport from New England. Rev. Thomas Hooker thought the subject was not one of sufficient ecclesiastical importance for so long and difficult a journey, while the Rev. John Davenport could not be spared because of the absence of other church officers from New Haven.—H. M. Dexter, *Congr. as seen*, etc., p. 653.

Congregationalists or Independents in the sittings of the Assembly pleaded for liberty of conscience to all sects, "provided that they did not trouble the public peace." (Later, Congregationalists differentiated themselves from the Independents by adding to the principle of the independence of the local church the principle of the local sisterhood of the churches.) In the Assembly, averaging sixty or eighty members, Congregationalism was represented by but five influential divines and a few of lesser importance. There were also among the members some thirty laymen. The Assembly held eleven hundred and sixty-three sittings, continuing for a period of five years and six months. During these years the Civil War was fought; the King executed; the Commonwealth established with its modified state-church, Presbyterian in character. Intolerance was

held in check by the power of Cromwell and of the army, for the Independents had made early and successful efforts to win the soldiery to their standard.—Philip Schaff, *Creeds of Christendom*, 727-820.

[e] W. Walker, *Creeds and Platforms*, p. 136, note 2.

[f] The *New England Way* defended its changes from English custom under three heads: (1) That things, inexpedient but not utterly unlawful in England, became under changed conditions sinful in New England. (2) Things tolerated in England, because unremovable, were shameful in the new land where they were removable. (3) Many things, upon mature deliberation and tried by Scripture, were found to be sinful. But: "We profess unfeignedly we separate from the corruptions, which we conceive to be left in your Churches, and from such Ordinances administered therein as we feare are not of God but of men; and for yourselves, we are so farre from separating as visible Christians as that you are under God in our hearts (if the Lord would suffer it) to live and die together; and we look at sundrie of you as men of that eminent growth in Christianitie, that if there be any visible Christians under heaven, amongst you are the men, which for these many years have been written in your forehead ('Holiness to the Lord'): and this is not to the disparagement of ourselves or our practice, for we believe that the Church moves on from age to age, its defects giving way to increasing purity from reformation to reformation."—J. Davenport, *The Epistle Returned, or the Answer to the Letter of Many Ministers*.

A number of treatises upon church government and usage were printed in the memorable year 1643, several of which had previously circulated in manuscript. In 1637 was received the *Letter of Many Ministers in Old England, requesting the Judgment of their Reverend Brethren in New England and concerning Nine Positions*. It was answered by John Davenport in 1639. A *Reply and Answer* was also a part of this

correspondence, which was first published in 1643, as was also Richard Mather's *Church Government and Church Covenant Discussed*, the latter being a reply to *Two and Thirty Questions* sent from England. By these, together with J. Cotton's *Keyes* and other writings, and by Thomas Hooker's great work *Survey of the Summe of Church Discipline* (approved by the Synod of 1643), every aspect of church polity and usage was covered.

[g] Hingham church preferred the Presbyterian way. Concord was absent, lacking a fit representative. Boston and Salem at first refused to attend, questioning the General Court's right to summon a synod and fearing lest such a summons should involve the obedience of all the represented churches to the decisions of the conference. The modification of the summons to the "desire" of the court, and the entreaty of their leaders, finally overcame the opposition in these churches. In fact, delegates to the Court, representing at least thirty or forty churches, had hesitated to accept the original summons of the Court when reported as a bill for calling the synod. Although the Court "made no question of their lawful power by the word of God to assemble the churches, or their messengers upon occasion of counsell, or anything which may concern the practice of the churches," it decided to modify the phrasing of the order.—H. M. Dexter, *Congr. as seen*, p. 436. *Magnalia*, ii, 209. *Mass. Col. Rec.* ii, 154-156, also iii, 70-73.

[h] "This Synod having perused with much gladness of heart the confession of faith published by the late reverend assembly in England, do judge it to be very holy, orthodox and judicious, in all matters of faith, and do hereby freely and fully consent thereto for the substance thereof. Only in those things which have respect to church-government and discipline, we refer ourselves to the Platform of Church-discipline, agreed upon by this present assembly."—Preface to the Cambridge Platform, quoted in W. Walker, *Creeds and Platforms*, p. 195.



[i] In many parts the wording of the Platform is almost identical with passages from the foremost ecclesiastical treatises of the period, and, naturally, since John Cotton, Richard Mather, and Ralph Partridge were each requested to draft a "Scriptural Model of Church Government." The Platform conformed most closely to that of Richard Mather. The draft by Ralph Partridge of Plymouth still exists. Obviously, the Separatist clergyman did not emphasize so strongly the rule of the eldership which New England church life in general had developed. Otherwise his plan did not differ essentially from that of Mather.

[j] "Even now, after a lapse of more than two hundred years the Platform (notwithstanding its errors here and there in the application of proof texts, and its one great error in regard to the power of the civil magistrate in matters of religion) is the most authentic exposition of the Congregational church as given in the scriptures."—Leonard Bacon, in *Contributions to the Ecclesiastical History of Connecticut*, ed. of 1865, p. 15.

[k] Cambridge Platform, chap. ii.

[l] *Ibid.* chap. ii.

[m] Cambridge Platform, chap. iii.

[n] The definition of the rule of the elders, given by the Rev. Samuel Stone of Hartford, was "A speaking aristocracy in the face of a silent democracy."

[o] Cambridge Platform, chaps, iv-x.

[p] "We do believe that Christ hath ordained that there should be a Presbytery or Eldership and that in every Church, whose work is to teach and rule the Church by the Word and laws of Christ and unto whom so

teaching and ruling, all the people ought to be obedient and submit themselves. And therefore a Government merely Popular or Democratieal... is far from the practice of these Churches and we believe far from the mind of Christ." However, the brethren should not be wholly excluded from its government or its liberty to choose its officers, admit members and censure offenders.—R. Mather, *Church Government and Church Covenant Discussed*, pp. 47-50.

"The Gospel alloweth no Church authority or rule (properly so called) to the Brethren but reserveth that wholly to the Elders; and yet preventeth tyrannie, and oligarchy, and exorbitancy of the Elders by the large and firm establishment of the liberties of the Brethren."—J. Cotton, *The Keys of the Kingdom of Heaven*, p. 12.

"In regard to Christ, the head, the government of the Church, is sovereign and Monarchicall: In regard to the rule of the Presbytery, it is stewardly and Aristocraticall: In regard to the people's power in elections and censures, it is Democraticall."—*The Keys*, p. 36; see also *Church-Government and Church Covenant*, pp. 51-58.

[q] Cambridge Platform, chap. x.

[r] *Ibid.* chap. xiv.

[s] Cambridge Platform, chap. ix.

[t] *Ibid.* chap. ix.

[u] *Ibid.* chap. xi.

[v] *Ibid.* chap. xv.

[w] Cambridge Platform, chap. xvi.

[x] Cambridge Platform, chap. xvii.

According to Hooker's *Survey* the magistrates had the right to summon synods because they have the right to command the faculties of their subjects to deliberate concerning the good of the State.—*Survey*, pt. iv, p. 54 *et seq.*

[y] "However the controversy of the Connecticut River churches was embittered by political interests, it was essentially nothing else than the fermentation of that leaven of Presbyterianism which came over with the later Puritan emigration, and which the Cambridge Platform, with all its explicitness in asserting the rules given by the Scriptures, had not effectually purged."—L. Bacon, in *Contrib. to Eccl. Hist. of Conn.*, p. 17.

See also H. M. Dexter, *Congr. as seen in Lit.*, pp. 468-69.

Of the twenty-one contemporaneous documents, by various authors, none mention baptism as in any way an issue in debate. "Dr. Trumbull probably touches the real root of the affair when he speaks of the controversy as one concerning the 'rights of the brotherhood,' and the conviction, entertained by Mr. Goodwin, that these rights had been disregarded." The question of baptism ran parallel with the question under debate, incidentally mixed itself with and outlived it to be the cause of a later quarrel that should split the church.—G. L. Walker, *First Church in Hartford*, p. 154.

[z] Mr. Stone admitted: "(1) I acknowledge yt it is a liberty of ye church to declare their apprehensions by vote about ye fitness of a p'son for office upon his tryall.

(2) "I look at it as a received truth yt an officer may in some cases lawfully hinder ye church from putting forth at this or yt time an act of her liberty.

(3) "I acknowledge ye I hindered ye church fro declaring their apprehensions by vote (upon ye day in question) concerning Mr. Wigglesworth's fitness for office in ye church of Hartford."—*Conn. Historical Society Papers*, ii. 51-125.

[aa] In the New Haven letter, she wrote, "We hear the petitioners, or others closing with them, are very confident they shall obtain great alterations both in civil government and church discipline, and that some of them have procured and hired one as their agent, to maintain in writing (as it is conceived) that parishes in England, consenting to and continuing their meetings to worship God, are true churches, and such persons coming over thither, (without holding forth any work of faith) have all right to church privileges."—*New Haven Col. Records*, iii, 186.

[ab] That is, they assent to the main truths of the Gospel and promise obedience to the church they desire to join.

[ac] Among Massachusetts clergymen, Thomas Allen of Charlestown, 1642, Thomas Shepherd, Cambridge, 1649, John Norton, Ipswich, 1653, held that the baptismal privileges should be widened, and John Cotton himself was slowly drifting toward this opinion.

The Windsor church was the first in Connecticut to practice the Half-Way Covenant, January 31, 1657-58, to March 19, 1664-65, when the pastor, having doubts as to its validity, discontinued the practice until 1668, when it was again resumed.—Stiles, *Ancient Windsor*, p. 172.

[ad] Stone held his party on the ground that over a matter of internal discipline a synod had no control, and that he could exercise Congregational discipline upon any seceders. The immediate result was the removal of the discontented to Boston or to Hadley; where, however, they could not be admitted to another church until Stone had released them from

his. This he refused to do. Thus, he showed the power of a minister, when backed by a majority, to inflict virtual excommunication. This could be done even though his authority was open to question.—J. A. Doyle, *Puritan Colonies*, ii, p. 77.

[ae] Meanwhile the Massachusetts Synod (purely local) of 1662 stood seven to one in favor of the Half-Way Covenant practice, and had reaffirmed the fellowship of the churches according to the synodical terms of the Cambridge Platform, as against a more authoritative system of consociation, proposed by Thomas Shepherd of Cambridge.

[af] It must be remembered that the "Church of England meant the aggregate of English Christians, whether in the upshot of the movements which were going on (1630-1660), their polity should turn out to be Episcopal or Presbyterian, or something different from either."—Palfrey, *Comprehensive Hist. of New England*, i, p. 111. J. R. Green, *Short Hist. of the Eng. People*, p. 544.

In England, Pitkin had been a member of the church of the Commonwealth, and in all probability was not an Episcopalian or Church-of-England man in the usual sense.

[ag] Such an order could only produce further disturbance. Stratford and Norwalk protested. As a rule the order was most unwelcome in the recently acquired New Haven colony. Mr. Pierson of Branford, with some of the conservative church people of Guilford and New Haven, went to New Jersey to escape its consequences.

[ah] Among the questions, still unanswered, which had been submitted in 1657 were: (9) "Whether it doth belong to the body of a town, collectively taken, jointly, to call him to be their minister whom the church shall choose to be their officer." (13) "Whether the church, her invitation and election of

an officer, or preaching elder, necessitates the whole congregation to sit down satisfied, as bound to accept him as their minister though invited and settled without the town's consent." (II) "Unto whom shall such persons repair who are grieved by any church process or censure, or whether they must acquiesce in the churches under which they belong."—Trumbull, *Hist. of Conn.* i, 302-3.

[ai] In New England Congregationalism, the church and the ecclesiastical society were separate and distinct bodies. The church kept the records of births, deaths, marriage, baptism, and membership, and, outside these, confined itself to spiritual matters; the society dealt with all temporal affairs such as the care and control of all church property, the payment of ministers' salaries, and also their calling, settlement, and dismissal.

## CHAPTER V

### A PERIOD OF TRANSITION

Alas for piety, alas for the ancient faith!

Though Massachusetts had been indifferent and had left Connecticut to work out, unaided, her religious problem, the two colonies were by no means unfriendly, and in each there was a large conservative party mutually sympathetic in their church interests. The drift of the liberal party in each colony was apart. The homogeneity of the Connecticut people put off for a long while the embroilments, civil and religious, to which Massachusetts was frequently exposed through her attempts to restrain, restrict, and force into an inflexible mould her population, which was steadily becoming more numerous and cosmopolite. The English government received frequent complaints about the Bay Colony, and, as a result, Connecticut, by contrast

of her "dutiful conduct" with that of "unruly Massachusetts," gained greater freedom to pursue her own domestic policy with its affairs of Church and State. Many of its details were unknown, or ignored, by the English government. The period when the four colonies had been united upon all measures of common welfare, whether temporal or spiritual, had passed. There were now three colonies. One of these, much weaker than the others, was destined within comparatively few years to be absorbed by Massachusetts as New Haven had been by Connecticut. Meanwhile, Massachusetts and Connecticut were developing along characteristic lines and had each its individual problems to pursue. While in ecclesiastical affairs the conservative factions in the two colonies had much in common and continued to have for a long time, the Reforming Synod of 1679-80, held in Boston, was the last in which all the New England churches had any vital interest, because a period of transition was setting in. This period of transition was marked by an expansion of settlements with its accompanying spirit of land-grabbing, and by a lowering of tone in the community, as material interests superseded the spiritual ones of the earlier generations, and as the Indian and colonial wars spread abroad a spirit of license. In the religious life of the colonists, this transition made itself felt not alone in the character of its devotees, but in the ecclesiastical system itself, as it changed from the polity and practice embodied in the Cambridge Platform to that of a later day, and to the almost Presbyterian government expressed in the Saybrook Platform of 1708. The transition in Massachusetts, in both secular and religious development, varied greatly from that in Connecticut. Hence, from the time of the Reforming Synod, the history of Connecticut is almost entirely the story of its own career, touching only at points the historical development of the other New England colonies. On the religious side, it is the story of the evolution of Connecticut's peculiar Congregationalism. The Reforming Synod of 1679-

80 had been called by the Massachusetts General Court because, in the words of that old historian, Thomas Prince:—

A little after 1660, there began to appear Decay, And this increased to 1670, when it grew very visible and threatening, and was generally complained of and bewailed bitterly by the pious among them (the colonists): and yet more to 1680, when but few of the first Generation remained. [49]

The reasons of this falling away from the standards of the first generation were many. In the first place, the colonists had become mere colonials. Upon the Stuart restoration, the strongest ties which bound them to the pulsing life of the mother country, the religious ones, were severed. The colonists ceased to be the vanguard of a great religious movement, the possible haven of a new political state. Though they received many refugees from Stuart conformity, the religious ties which bound them to the English nonconformists were weakened, and still more so when both the once powerful wings of the Puritan party, Presbyterian and Independent, were alike in danger of extinction. Shortly after the Revolution of 1688, when, under the larger tolerance of William and Mary, the Presbyterians and Independents strove to increase their strength by a union based upon the "Hheads of Agreement," English and colonial nonconformity moved for a brief time nearer, and then still farther apart. The "Hheads of Agreement"[a] was a compromise so framed as to admit of acceptance by the Presbyterian who recognized that he must, once for all, give up his hope of a national church, and by the Independent anxiously seeking some bond of authority to hold together his weak and scattered churches. After this compromise, the religious life of the colonies ceased to be of vital importance to any large section of the English people. After the Restoration the colonial agents became preeminently interested in secular affairs, in political privileges, and commercial advantages. The reaction was felt in the colonies by



generations who lacked the heroic impulses of their fathers, their constant incentive, and their high standards. Moreover, the education of the second and third generation could not be like that of the first. The percentage of university men was less. New Harvard could not supply the place of old Cambridge. If life was easier, it was more material.

Against such conditions as these, the Reforming Synod made little headway.[b] It set forth in thirteen questions the offenses of the day and in the answer to each suggested remedies. To these questions and answers the synod added a confession of faith. This last was a reaffirmation of the Westminster Confession of Faith as amended and approved by Parliament, or that found in the Savoy Declaration.[c] In respect to church government, the Reforming Synod confirmed the "substance of the Platform of Discipline agreed upon by the messengers of these Churches at Cambridge, Anno Domini, 1648," [50] desiring the churches to "continue steadfast in the *Order of the Gospel* according to what is therein declared from the Word of God." Cotton Mather in the "Magnalia," [51] writing twenty years later, gives four points of departure from the Cambridge polity by the Reforming Synod. First, occasional officiations of ministers outside their own churches were authorized; secondly, there was a movement to revive the authority and office of ruling elder and other officers; thirdly, "plebeian ordination," or lay ordination, ordination by the hands of the brethren of the church in the absence of superior officers, was no longer allowed;[d] and fourthly, there was a variation from the "personal and public confession" in favor of a private examination by the pastor of candidates for church-membership, though the earlier custom was still regarded as "lawful, expedient and useful." With reference to the office of ruling elder, it had been done away with in many churches, partly because of lack of suitable men to fill the office, partly because of the mistakes of incompetents, and partly because of a growing doubt as to the Scriptural sanction for such an office. In many churches the office of teacher had also been abolished, the

pastor inheriting all the authority formerly lodged in the eldership, and as he retained his power of veto, it came about that the churches were largely in the power of one man.

Plymouth and Connecticut colonies strongly approved the work of this local Massachusetts synod. As a result of the interest excited by its suggestions to increase church discipline, for laws to encourage morality and Christian instruction, and for renewed zeal on the part of individuals in godly living, a goodly number of converts were immediately added to the churches throughout all the colonies. Of these, the larger number were admitted on the Half-Way Covenant. But times had changed, and the churches could not keep pace. The attempts to enforce religion were fruitless,[e] and only go to show that political interests, that wars,[f] with their accompanying excitement and license, and that engrossing civil affairs had torn men's minds from the old interests in religious controversies and in religious customs.

The Church itself had deteriorated as the towns in their civil capacity had undertaken the support of the minister and to collect his rates. Even earlier began, also, the gradual change by which the election of the minister passed from the small group of church communicants, or full membership, to the larger body of the Society, and finally to the town. This change was partly brought about through the increasing acceptance of the Half-Way Covenant with its attendant results. In some localities, "owning the Covenant" and presenting one's children for baptism came to be considered not as a necessary fulfilling of inherited duties (because of inherited baptismal privileges) and the consequent recognition of moral obligations, but as meritorious acts, having of themselves power to benefit the participants. Further, the rite of baptism, confined at first to children one at least of whose parents had been baptized, was later permitted to any for whom a satisfactory person—any one not flagrantly immoral—could be found to

promise that the child should have religious training. Still another factor in the lowering of religious life was Stoddardeanism, or the teaching of the Rev. Solomon Stoddard of Northampton, Massachusetts, a most powerful preacher and for many years the most influential minister throughout the Connecticut valley. As early as 1679, he began to teach that baptized persons, who had owned the covenant, should be admitted to the Lord's Supper, so that the rite itself might exercise in them a regenerating grace. In its origin, this teaching was probably intended as a protest against a morbid, introspective, and weakening self-examination on the part of many who doubted their fitness to go to communion. But as a result of the interworking of this teaching and of the practice of the Half-Way Covenant, church membership came in time to include almost any one not openly vicious, and willing to give intellectual, or nominal, assent to church doctrines and also to a few church regulations. With the change, the large body of townsmen became the electors of the minister. Cotton Mather in the "Ratio Disciplinaë" [52] illustrates these changing conditions when he tells us that the communicants felt that the right to elect the minister was invested in them as the real church of Christ, and that, in order to avoid strife or the defeat of their candidate by the majority of the town, they would customarily propose a choice between two nominees.

Carelessness of the churches in admitting members had had its counterpart in the carelessness of the towns in admitting inhabitants. Very early, as early as 1658, the Connecticut General Court had been obliged to call them to order. The March session of 1658-59 had limited the franchise to all inhabitants of twenty-one years of age or over who were householders (that is, married men), and who had thirty pounds estate, or who had borne office. This was shortly changed to "thirty pounds of proper *personal* estate," or who had borne office. The ratable estate in the colony averaged sixty pounds per inhabitant at this time. Up to March, 1658-59, the towns had admitted inhabitants by a majority vote. These admitted inhabitants,

armed with a certificate of good character from their town, presented themselves before the General Court as candidates for the freeman's franchise, and were admitted or not as the Court saw fit. Disfranchisement was the penalty for any scandalous behavior on the part of the successful candidate. One reason for the new and restrictive legislation was that from 1657 to 1660, from some cause unknown, large numbers of undesirable colonists flocked into the Connecticut towns, and thus it happened that, as the Church broadened her idea of membership, the State had need to limit its conception of democracy. Consequently, it narrowed the franchise by adding to the original requirements a large property qualification, and continued to demand the certificates of good character. Moreover, the candidates were further required to present their credentials in October, and they were not to be passed upon until the next session of the Court in the following April. This two-fold change in the religious and political life of the colony gave greater flexibility and greater security, for "with church and state practically intertwined, the theory of the one had been too narrow and of the other too broad." [53] After the change in the franchise, records of the towns show that there was less disorder in admitting inhabitants and more care taken as to their personal character.

As the townsmen became the electors of the minister, and when the new latitude in membership had been accepted by the churches, there soon appeared a growing slackness of discipline and also an increase of authority in the hands of the ministers and their subordinate deaconry. This excess of authority in the hands of one man tended to one-man rule and to frequent friction between the minister and his people. As a result councils might be called against councils in the attempt to settle questions or disputes between pastors and people. Consequently, among conservatives, there came to be the feeling that there ought to be some authoritative body to supervise the churches,—one to which both pastor and people could appeal disputed points.

In Massachusetts, the Connecticut colonists saw a strenuous attempt to establish such an authority. Between 1690 and 1705, the Massachusetts clergy had revived the early custom of fortnightly meetings of neighboring ministers. The new associations were purely voluntary ones for mutual assistance, for debate upon matters of common interest, or for consultation over special difficulties, whether pertaining to churches or to their individual members, which might be brought before them. These associations grew in favor, and later became a permanent feature of New England Congregationalism. Because they were received with so much, favor at the time of their revival, the conservative Massachusetts clergy attempted in the "Proposals of 1705" to increase the ministerial and synodical power within the churches, and to bring about a reformation in manners and morals by giving to these associations very large and authoritative powers. The Proposals provided that all ministers should be joined in Associations for mutual help and advice; for licensing candidates for the ministry; for providing for pastorless churches; for a general oversight of religion, and for the examination of charges brought against their own members. Standing Councils, composed of delegates from the Associations and also of a proper number of delegates (apparently laymen) to represent the membership of the churches, were to be established. These were to control all church matters throughout the colony that were "proper for the consideration of an ecclesiastical council," and obedience to their judgments was to be enforced under penalty of forfeiture of church-fellowship. The Proposals were approved by the majority of the Massachusetts clergy; but the liberal party within the churches would not accede to their demands, and the General Court would not sanction the Proposals in the face of such opposition. Consequently, the essential feature of the Proposals, the Standing Councils, was never adopted. But the attempt to establish them invigorated the Associations, and the licensing of candidates was arranged for.

Many people in Connecticut approved the tenor of the Proposals and desired a similar system. Moreover, there never was a time when the General Court was so ready to delegate to an ecclesiastical body the control of the churches. The trustees of the young college, Yale, the most representative gathering of clergymen in the colony, were anxious to have the Court establish some system of ecclesiastical government stronger than that existing among the churches, and to have it send out some approved confession of faith and discipline. Consequently, when, in 1708, Guerdon Saltonstall,[g] the popular ex-minister of New London, was raised to the governor's chair, the time seemed ripe for a move to satisfy the widespread demand. In response to it, the May session of the General Court—

from their own observation and the complaints of many others, being made sensible of the defects of the discipline of the churches of this government, arising from want of a more explicit asserting of the rules given for that in the holy scriptures [saw fit] to order and require the ministers of the several churches in the several counties of this government to meet together at their respective countie towns, *with such messengers as the churches to which they belong* shall see cause to send with them on the last day of June next, there to consider and agree upon those methods and rules for the management of ecclesiastical discipline which shall be judged agreeable and conformable to the word of God, and shall at the same meeting appoint two or more of their number to meet together at Saybrook... where they shall compare the results of the ministers of the several counties, and out of which and from them to draw a form of ecclesiastical discipline, which by two or more persons delegated by them shall be offered this Court ... and be confirmed by them.

[54]

The bill was passed by the Upper House of the legislature and sent to a conference from the Lower, May 22, 1708. It became a law May 22. In the interim the words in italics were inserted in order to eliminate any possible loss of liberty to the churches and to protect them from a system of government, planned by ministers only, and enforced by the General Court. [55]

No records of the preliminary meeting have come down to us, but the Preface of the Saybrook Platform reports such a meeting and that their delegates met at Saybrook, September 9, 1708. At this second convention, twelve ministers, of whom eight were trustees of Yale, and four messengers were present. Their work, known as the Saybrook Platform, declares in its Preface that—

we agree that the confession of faith owned & consented unto by the Elders and messengers of the Chhs assembled at Boston in New England, May 12, 1680 being the Second Session of that Synod be Recommended to the Honbl. the Gen. Assembly of this Colony at the next Session for their Publick testimony thereto as the faith of the Chhs of this Colony.

We agree also that the Heads of Agreement assented to by the vnited Ministers formerly Called Presbyterian & Congregationall be observed by the Chhs throout this Colony.

The work of the synod, including also a series of authoritative "Articles," was laid before the October session of the Court and received its approval, the Court declaring its "great approbation of such a happy agreement" and ordaining "that all churches within this government that are or shall be thus united in doctrine, worship and discipline, be and for the future shall be owned and acknowledged established by law." [58]

The period of transition was over. Connecticut had passed from the individual consecration and democratic organization of the Cambridge Platform to the comprehensive membership of a parish system and to the authoritative councils, or ecclesiastical courts, provided for by the Saybrook Articles. A consideration of them as the main points of the Platform is next in order.

## FOOTNOTES:

[a] The "Heads of Agreement" was destined to have more influence in America than in England.

[b] The order of the Massachusetts Court was "for the revisall of the discipline agreed upon by the churches, 1647, and what else may appeare necessary for the preventing schism, haeresies, prophaneness, and the establishment of the churches in one faith and order of the gospell." There was no questioning of the Court's right to *summon* this synod, as there had been in 1646-48.

[c] The Savoy Declaration of October, 1658, was put forth by the English leaders of the Independent, or Congregational, churches as a confession of faith, and in its thirty articles contained a declaration of church order. The formulated principles of church order were suggested by the Cambridge Platform but were neither so clear nor so fully stated as in the New England document. The Westminster Confession, the Savoy Declaration, and the later Heads of Agreement, were destined to have more influence in New England than in England, where the effect was transient. The Reforming Synod preferred the Savoy Declaration to the Westminster Confession because the terms of the former were more strictly Congregational, and also because they wished to hold a confession in common with their trans-Atlantic brethren. The Massachusetts synod changed here and there a word



in order to emphasize the church-membership of children as a right derived through the Half-Way Covenant, and also to state explicitly the right of the civil authority to interfere in questions of doctrine.

[d] In 1660 the lay ordination of the Rev. Thomas Buckingham of Saybrook, Conn., was strongly opposed by a council of churches, but it was reluctantly yielded to the insistent church.—J. B. Felt, *Eccl. History*, ii, 207.

[e] "Whereas this Court [the General Court of Connecticut] in the calamitous times of '75 and '76 were moved to make some laws for the suppression of some provoaking evils which were feared to be growing up amongst us: viz.—prophanation of the Sabbath; neglect of catechizing children and servants and famaly prayer; young persons shaking off the government of parents or masters; boarders and inmates neglecting the worship of God in famalyes where they reside; tipling & drinkeing; uncleanness; oppression in workmen and traders; which laws have little prevailed. It is therefore ordered by this Court that the selectmen constables and grand-jury men in their several plantations shall have a special care in their respective places to promote the due and full attendance of these aforementioned orders of this Court."

[f] King Philip's War, 1675-76; the usurpation of Andros; King William's War, 1689-97, with its expedition against Quebec; Queen Anne's War, 1702-13.

[g] Governor Saltonstall "was more inclined to synods and formularies than any other minister of that day in the New England colonies." His influence over the clergy was almost absolute. "The Saybrook Platform was stamped with his seal and was for the most part an embodiment of his views."—Hollister, *Hist. of Conn.* vol. ii, p. 585.

## CHAPTER VI

### THE SAYBROOK PLATFORM

A Government within a Government.

The Saybrook Platform subdivides into a Confession of Faith, the Heads of Agreement, and the Fifteen Articles.

The Confession of Faith is merely a recommendation of the Savoy Confession as reaffirmed by the Synod of Boston or the Reforming Synod of 1680.

The Heads of Agreement are but a repetition of the articles that, under the same title, were passed in London, in 1691, by fourteen delegates from the Presbyterian and English Congregational churches. Both parties to the Agreement had hoped thereby to establish more firmly their churches and to give them the strength and dignity of a strongly united body. The Heads of Agreement were drafted by three men, Increase Mather, the Massachusetts colonial agent to England, Matthew Mead, a Congregationalist, and John Hone, a Presbyterian, who in his earlier years and by training was a Congregationalist. Naturally, between the influence of the framers and the necessity for including the two religious bodies, this platform inclined towards Congregationalism, but equal necessity led it away from the freedom of the Cambridge Platform, after which it was patterned.

In the Heads of Agreement, the composition of the church is defined according to Congregational standards, as is also the election of its officers. The definition of the powers of the church is not strictly Congregational, because initiative action and governing powers are intrusted to the eldership, while, to the brethren, there is given only the privilege of assenting to such measures as the elders may place before them. The

membership in the church, as defined, is semi-Congregational; i. e., in order to become members, persons must be "grounded in the Fundamental Doctrines of religion" and lead moral lives, but they are eligible to communion only after the declaration of their desire "to walk together according to Gospel Rule." Concerning this declaration the statement is made that "different degrees of *Expliciteness* shall in no way hinder such Churches from owning each other as *Instituted Churches*." Furthermore, no one should be pressed to declare the time and manner of his conversion as proof of his fitness to be received as a communicant. Such an account would, however, be welcome. With reference to parochial bounds, introduced into the primitive Congregationalism of New England, but always existing in the English Presbyterian system, the Heads of Agreement declare them to be "not of Divine Right" but—

for common Edification that church members should live near one another, nor ought they to forsake their church for another without its consent and recommendation.

In respect to the ministry, the Heads of Agreement affirm that it should be learned and competent and approved; that ordinarily, pastors should be considered as ministers only while they continue in office over the church that elected them to its ministry; that ordinarily, in their choosing and calling, advice should be sought from neighboring churches, and that they should be ordained with the aid of neighboring pastors. In the matter of installation into a new office of an elder, previously ordained, churches are to exercise the right of individual judgment and of preference as to reordination. This same right of preference is to be exercised in deciding whether or not a church should support a ruling elder. The Heads of Agreement assert that in the intercommunion of churches there is to be no subordination among them, and that there ought to be frequent friendly consultations between their "*Officers*." There are to be "Occasional

Meetings of Ministers" of several churches to consult and advise upon "weighty and difficult cases," and to whose judgments, "particular Churches, their respective *Elders* and *Members*, ought to have a reverential regard, and not dissent therefrom, without *apparent* grounds from the word of God." The Heads of Agreement command churches to yield obedience and support to the civil authority and to be ready at all times to give the magistrates an account of their affairs.

The Heads of Agreement were the most liberal part of the Saybrook Platform, and were not considered sufficiently authoritative. Accordingly,—

for the Better Regulation of the Administration of Chh Discipline in Relation to all Cases Ecclesiastical both in Particular Chhs and In Councils to the full Determining and Executing of the Rules in all such cases,[57]—

were added certain resolutions, known as the "Fifteen Articles." They are in reality the Platform, for all that goes before them is but a reaffirmation of principles already accepted, and the new thing in the document, the advance in ecclesiasticism, is the increased authority permitted and, later, enforced by these Fifteen Articles.

The Articles affirm that power and discipline in connection with all cases of scandal that may arise within a church, ought, the brethren consenting, to be lodged with the elder or elders; and that in all difficult cases, the pastor should take advice of the elders of the neighboring churches before proceeding to censure or pass judgment. In order to facilitate both discipline and mutual oversight, the Articles provide that elders and pastors are to be joined in Associations, meeting at least twice a year, to consult together upon questions of ministerial duty and upon matters of mutual benefit to their churches. From these Associations, delegates were to be chosen annually to meet in one General Association, holding its session in the

spring, at the time of the general elections. The Associations were to look after pastorless churches and to recommend candidates for the ministry. Up to this time a man's bachelor of arts degree had been considered sufficient guarantee that he would make a capable minister. Henceforth, there could no longer be complaint that "there was no uniform method of introducing candidates to the ministry nor sufficient opportunity for churches to confer together in order to their seeing and acting harmoniously." [58] In order that there should be no more confusion arising from calling councils against councils with their often conflicting judgments, the Articles formed Consociations, or unions of churches within certain limits, usually those of a county. These Consociations were to assist upon all great or important ecclesiastical occasions. They were to preside over all ordinations or installations; they were to decide upon the dismissal of members, and upon all difficulties arising within any church within their district. If necessary, Consociations could be joined in council. Their decisions were to have the force of a judgment or sentence *only* when they were "approved by the major part of the elders present and by such a number of the messengers"—one or two from each church—as should constitute a majority vote. A church could call upon its Consociation for advice before sentencing an offender, but the offender could not appeal to the Consociation without the consent of his church. By these last provisions, authority and power tended still more to concentrate in the hands of the elders. The Fifteen Articles, though they did not make the judgments of the Consociations decisive, urged upon individual churches a reverent regard for them.

The attitude of the churches towards these Fifteen Articles varied, and it was already known in the Synod that such would be the case. Some churches would find them more palatable than others. Many were already converts to the Rev. Solomon Stoddard's insistent teaching that "a National Synod is the highest ecclesiastical authority upon earth," [59] that every man must stand to the judgment of a National Synod. Even five years

before the convening of the Synod at Saybrook, there had issued from a meeting of the Yale trustees,[a] "altogether the most representative ecclesiastical gathering in the colony," a circular letter which urged the Connecticut ministers to agree on some unifying confession of creed, and that such be recommended by the General Court to the consideration of the people. The immediate answer to the letter, if any, is unknown. Trumbull says that—

the proposal was universally acceptable, and the churches and the ministers of the several counties met in a consociated council and gave their assent to the Westminster and Savoy Confessions of Faith. [60]

It seems that they also "drew up certain rules of ecclesiastical discipline as preparatory to a General Synod which they still had in contemplation," [61] but took no further step to obtain the approval of the Court. This first definite move toward the Saybrook system bore fruit when the Fifteen Articles were added to the Platform. Their authoritative tone was to satisfy those within the churches who preferred Presbyterian classes and synods, while their interpretation could be modified to please the adherents of a purer Congregationalism by reading them in the light of the Heads of Agreement which preceded them. Of their possible purport two great authorities upon Congregationalism speak as follows. Dr. Bacon writes:—

The "Articles" by whomsoever penned, were obviously a compromise between the Presbyterian interest and the Congregational; and like most compromises, they were (I do not say by design) of doubtful interpretation. Interpreted by a Presbyterian, they might seem to subject the Churches completely to the authoritative government of classes or presbyteries under the name of consociations. Interpreted by a Congregationalist, they might

seem to provide for nothing more than a stated Council, in which neighboring Churches, voluntarily confederate, could consult together, and the proper function of which should be not to speak imperatively, but, when regularly called, to "hold forth light" in cases of difficulty or perplexity.[62]

Dr. Dexter sums them up in the following words:—

Taken by themselves, the fifteen articles were stringent enough to satisfy the most ardent High Churchmen among the Congregationalists of that day; taken, however, in connection with the London document previously adopted, and by the spirit of which—apparently—they were always to be construed, their stringency became matter of differing judgment, so that what on the whole was their intent has never been settled to this day. [63]

In accordance with the system of government outlined in the Platform, the churches of the colony were at once formed into five Associations and five Consociations, one each in New Haven, New London, and Fairfield counties, and two in Hartford. In later years, new bodies were organized, as the other four Connecticut counties were set off from these original ones. The churches of the New Haven county Consociation, long cleaving to the purest Congregationalism, refused to adopt the Platform until they had recorded their liberal construction of it. Fairfield went to the other extreme, and put on record their acceptance of the Consociations as church courts. Hartford and New London accepted the Platform as a whole, as it came from the synod, leaving to time the decision as to its loose or strict construction.

A legislative act was necessary to make the Platform the legal constitution of the Congregational Establishment. Such an act immediately followed the presentation of the report by the committee, whom the

Saybrook convention, in accordance with the Court's previous command, sent to the Assembly. Having examined the Platform, the Legislature declared its strong approval of such a happy agreement, and in October, 1708, enacted that—

all the Churches within this government that are, and shall be thus united in doctrine, worship and discipline, be, and for the future shall be, owned and acknowledged, established by law:

Provided always that nothing herein shall be intended or construed to hinder or prevent any society or church that is or shall be allowed by the laws of this government, who soberly differ or dissent from the united churches hereby established, from exercising worship and discipline in their own way, and according to their conscience. [64]

The purport of this proviso was to safeguard churches which had been approved according to the standards formerly set up by the Court, and also to prevent the Act of Establishment from seeming to contradict a "Toleration Act for sober dissenters" from the colony church that had been passed at the preceding May session. Out of this proviso grew a misunderstanding in the Norwich church, which happens also to furnish a typical illustration of the difficulties sometimes encountered in trying to collect a minister's salary.

When Mr. Woodward, pastor of the Norwich church, read the act establishing the Saybrook Platform, he omitted the proviso. The Norwich deputies, who had been present at the passage of the act, immediately informed the people of the provision which the Court had made for the continuance of those churches of which it had previously approved and which might be reluctant to adopt the stricter terms of the new system, at least until their value had been demonstrated. For this behavior, the deputies



were censured by the pastor and by the majority of the church, who sided with him. Thereupon, the minority withdrew and for three months worshiped apart. Then the breach was healed, though seeds of discord remained. By 1714, six years later, they had germinated and had attained such development that it was very difficult to collect the minister's salary. In Norwich, as elsewhere, there had formerly been a custom of collecting the ministerial rates together with those of the county. This custom had arisen because of difficulty in collecting the former, and in 1708 [65] this practice was legalized, provided that in each case the minister made formal application to have his rates thus collected. In the year 1714 and the following year the General Court was obliged to issue a special order commanding the town of Norwich to fulfill its agreement with their minister and to pay his salary in full. The second year, the Court added the injunction that the money should be collected by the constables. But at the session following the order, the Norwich deputies informed the Court that, owing to differences existing among their townsmen, they had not seen fit to urge its commands upon their people. Upon learning that Mr. Woodward's family were actually suffering, the Court appointed a date, and ordered the Norwich constables to produce at the time set a receipt, signed by Mr. Woodward, and showing that his salary had been paid in full. If the receipt was not forthcoming at the appointed time, the secretary of the colony was empowered to issue, upon application, a warrant to distrain all or any unpaid portion of the minister's salary from the constables, and, also, any additional costs. This legislation seems to have had due effect, though feeling ran so high that, in the following year, it was decided to divide the church. When the two parishes were formed, Mr. Woodward retired, and the life of the divided church was continued under new ministers.

From the adoption of the Saybrook Platform, the Connecticut churches were for many years preeminently Presbyterian in character. The terms Congregational and Presbyterian were often used interchangeably. As late

as 1799, the Hartford North Association, speaking of the Connecticut churches, declared them "to contain the essentials of the Church of Scotland or Presbyterian Church in America." The General Association in 1805 affirmed that "The Saybrook Platform is the constitution of the Presbyterian Church in Connecticut." [b] Whether called by the one name or the other, Presbyterianized Congregationalism was the firmly established state religion, for under the Saybrook system the local independence of the churches was largely sacrificed. The system further exalted the eldership and the pastoral power. It replaced the sympathetic help and advisory assistance of neighboring churches by organized associations and by the authority of councils.

In the new system the ecclesiastical machinery which, at first, brought peace and order, soon developed into a barren autonomy and gave rise to rigid formalism in religion, with its consequent baneful results upon the spiritual and moral character of the people. The Established Church had attained the height of its security and power, with exclusive privileges conferred by the legislature. That body had turned over to the "government within a government" the whole control of the church and of the religious life of the colony, and had endowed it with ecclesiastical councils which rapidly developed into ecclesiastical courts.

"There was no formal coercive power; but the public provision for the minister's support, and the withdrawal of it from recalcitrant members formed a coercive power of no mean efficiency." [66]

## **FOOTNOTES:**

[a] The charter for the college, together with an annual grant of three hundred dollars, was granted in 1701. None but ministers were to be trustees.

[b] The Hartford North Association in 1799 gave "information to all whom it may concern that the Constitution of the Churches in the State of Connecticut, founded on the common usage and confession of faith, Heads of Agreement, Articles of discipline adopted at the earliest period of the settlement of the State, is not Congregational, but contains the essentials of the Church of Scotland, or Presbyterian Church in America, particularly, as it gives a decisive power to Ecclesiastical Councils and a Consociation consisting of Ministers and Messengers, or lay representatives, from the churches, is possessed of substantially the same authority as a Presbytery." The fifteen ministers at this meeting of the Hartford North Association declared that there were in the state not more than ten or twelve Congregational churches, and that the majority were not, and never had been, constituted according to the Cambridge Platform, though they might, "loosely and vaguely, though improperly," be "termed Congregational Churches."—See MS. Records. Also G. L. Walker, *First Church in Hartford*, p. 358.

## CHAPTER VII

### THE SAYBROOK PLATFORM AND THE TOLERATION ACT

They keep the word of promise to our ear and break it to our hope.—*Macbeth*, Act V, Sc. viii.

The Connecticut General Court incorporated in the act establishing the Saybrook Platform the proviso—

that nothing herein shall be intended or construed to hinder or prevent any Society or Church that is or shall be allowed by the laws of this government, who soberly differ or dissent from the United Churches hereby established from exercising worship and discipline in their own way, according to their conscience.

Here then was the measure of such religious toleration as could be expected. It appears a liberal measure. It was liberal in that day and generation, when men's minds were so firmly possessed by the belief that civil order was closely dependent upon religious uniformity. The exact purport of the proviso, however, can best be gauged by considering it in connection with a legislative act that immediately preceded it, and by studying the conditions which prompted or enforced this earlier legislation, known as the Toleration Act of 1708.[a]

As conditions were at its passage, the proviso applied only to certain Congregational churches that, preferring the polity of the Cambridge Platform, were determined to adhere to it. In earlier years, these churches, with their exacting test of regenerative experience, had constituted the

majority. In later years, the Half-Way Covenant practice and Stoddardeanism had shifted the relative position of church parties. Now, the proviso represented that liberal-minded party within the church who would extend tolerance to the minority who still clung to the outgrown convictions and principles of an earlier age. This tolerance was extended from a two-fold motive: for the reason just assigned, and because the government hoped, by permitting a liberal interpretation of the Saybrook Articles, to win over these tolerated Congregational churches. It trusted that the anticipated benefits, proceeding from the new order of church government, would further convince them of the superior advantages derivable from the Presbyterian or more authoritative rendering of the Saybrook instrument, and that through such a policy, the ready acceptance of the Saybrook Platform by all the churches in the colony would be secured. Furthermore, it would not do for the colony to make an important law, following the great English precedent of 1689 which had granted toleration to dissenters, and then, within six months, frame a constitution for its Established Church, so rigid that no room could be found in the colony for any fundamental differences in faith or practice. Consequently, the proviso was made to include both tolerated Congregationalists and any dissenters who might in the future be permitted to organize their own churches, or, in the words of the Court, "any Society or Church that is or shall be allowed by the laws of this government." Thus the proviso was practically forced into the October legislation of the General Court by the passing of the Toleration Act at its spring session, notwithstanding the fact that its inclusion was in accord with the sentiment of the liberal party.

Toleration Act and proviso notwithstanding, no rival church was desired at this time in Connecticut. No rival creed was recognized. True, there were a few handfuls of dissenters scattered through the colony, but Congregationalism, with a strong tincture of Presbyterianism, was almost the unanimous choice of the people. It was largely outside pressure that had

forced the passage of the Toleration Act, even if it accounts for itself as a loyal following of the English precedent of 1689. Although it had always been understood that the colonies should make no laws repugnant to the organic or to the common law of England, Connecticut was determined to protect as much as possible her own approved church, to keep it free from the contamination not only of infidels and heretics, but also from Church-of-England dissenters and from all others. Accordingly she placed side by side upon her statute book a Toleration Act with a proviso in favor of her Established Church, and a Church platform with a proviso for "sober dissenters" therefrom.

The circumstances which led up to and enforced the passage of the Toleration Act were many and varied. The motives were complex. Considerations religious, political, social, and economic entered into the problem which met the Connecticut legislators when they found their colony falling into disfavor with the King. This problem, resolved into its simplest terms, consisted in securing continued exemption from external interference. If Connecticut could retain the King's approval, she could prevent the intrigues of her enemies at the English court and could control the situation in the colony, whatever its aspects, secular or religious. And with reference to the latter, she would still be able to exalt her Establishment and to keep dissenters, however they might increase in kinds or numbers, in a properly subordinated position.

In order to obtain a grasp of the situation within the colony at the time when its government concluded that the passing of the Toleration Act would be politic, it is necessary to examine the status of the dissenters there. Of these there were four classes, the Quakers or Society of Friends, the Episcopalians, the Baptists, and the Rogerines. Of these, the Quakers and the Episcopalians were the first to make the Connecticut government forcibly realize that, if she interfered with what they believed to be their

rights, there would probably have to be a settlement with the home government. But as the efforts of these sects to interest the English government in their behalf run parallel with and mix themselves up with other complaints against Connecticut, it will make the history of the times clearer if the early story of the Baptists and Rogerines is first told.

The Baptists early appeared in New England, but it was not until 1665 that Massachusetts permitted their organization into churches, and not until 1700, only eight years before the Saybrook Platform, that Cotton Mather wrote of them, "We are willing to acknowledge for our brethren as many of them as are willing to be acknowledged." In her dislike of them, Massachusetts had the full sympathy of Connecticut. And it was with great dissatisfaction that the authorities of the latter colony saw these dissenters, early in the eighteenth century, crossing the Rhode Island boundary to settle within her territory. Accordingly, in 1704, the General Court of Connecticut refused them permission to incorporate in church estate. When in the following year, in spite of the legislature's refusal, they organized a church at Groton under Valentine Wightman,[b] the Assembly proceeded to inflict the full penalties of the law. While the Baptists had cheerfully paid all secular taxes, they had made themselves liable to fines and imprisonments by their refusal, on the ground of conscience, to pay the ecclesiastical ones, and, as they continued to refuse, fines and imprisonment and even flogging became their portion. Governor Saltonstall, mild in his personal attitude toward the three other groups of dissenters, thoroughly disapproved of the Baptists, seeming to fear their growing influence in New England and their increasing importance in the mother country. He believed in a policy of restriction and oppression toward the mere handful of them that had settled within his jurisdiction.

Apart from the main body of the Baptists, there were in Connecticut a number of Seventh-day Baptists and Rogerine Baptists or Rogerine

Quakers. There were a very few of them,—not more than a dozen in 1680. [c] Setting aside the earliest persecution of the Quakers, these Rogerines were the first dissenters to fall under the displeasure of the Connecticut authorities. They were the first to be systematically fined, whipped, and imprisoned for conducting themselves contrary to the laws for the support and honor of the Connecticut Establishment. For this reason, though they were weak in numbers and often an exasperating set of fanatics, they deserve a hearing. Their persecution began about 1677, while these people were chiefly resident in New London and the Seventh-day men were mostly members of the Rogers family. Later, the Rogerines spread to Norwich and Lebanon and their immediate vicinity.

This sect of Rogerines arose from the intercourse through trade of two brothers, John and James Rogers of New London, with the Sabbatarians or Seventh-day Baptists of Rhode Island. These brothers were baptized in 1674 and 1675, and their parents in the following year. All were received as members of the Seventh-day church at Newport. This did not trouble the Connecticut authorities, who appear not to have interfered with the converts until they committed a flagrant offense and put public dishonor upon the colony church; as in 1677, when elders of the Rhode Island church arrived in New London to baptize the wife of Joseph Rogers, another brother of the first two converts. The elders selected for their baptismal ceremony a quiet spot about two miles from the town. This did not suit John Rogers, who insisted that the town was the only proper place, and led the little procession into it. Mr. Hiscox, one of the elders, was seized while preaching and carried before the magistrates, but was soon released. Deprived of their leader, the Sabbatarians withdrew to another place, and John Rogers, arrogating to himself the office of elder, performed the baptismal service. From this time forth he began to draw disciples to himself. When he pushed his personal opinions too far, the Newport church attempted to discipline



both him and his following, but, this attempt failing, the Rogerines became henceforth a distinct sect.

The Rogerines, though strictly orthodox in the fundamental articles of the Christian faith, were opposed by the Connecticut magistrates as teachers of doctrines tending to undermine religion, as a persistently rebellious sect, and as notorious breakers of the peace. In faith and practice, these Rogerines bore some resemblance to the Baptists and also to the Quakers. Hence, they were often called Rogerine-Baptists or Rogerine-Quakers. Like the earlier Baptists and the Quakers, they believed it wrong to take an oath. They differed from the Congregationalists chiefly in their form of administering baptism and the Lord's supper and in their opposition to any paid ministry. Rogers also claimed that there were certain tests of personal regeneration which the Congregationalists denied. John Bolles, one of the later leaders of the sect, declared the Congregational Sunday to be "a great Idol in this Country, and all the Religion built on the Holiness of the pretended Sabbath is Hypocrisy and further that it is contrary to Scripture, for Christians to exercise Authority over one another in matters of Religion." [67] Rogers, with less dignity and more pugnaciousness, called the authorities "the scarlet beast" and the Establishment a "harlot," hurling scriptural texts with rankling, exasperating abusiveness in his determination to prove her customs evil and anti-Christian. Not content with such railing, the Rogerines determined to show no respect to their adversaries' opinions and worship. Thus, while maintaining that there should be no *public* worship, Rogers, after his separation from the Seventh-day Baptists, perversely chose Sunday as the day most convenient for the Rogerines to hold their meetings. They not only exhorted and testified in the streets, but forced their way into the churches, pestering the ministers to argue disputed points. They offended in another way, for, according to the colony law, they profaned the Sabbath by working, claiming that, as all days were holy, all were alike good for work. Fines and imprisonment began in 1677. They

were continued in the hope, held by the authorities, that they could suppress the Rogerines by exactions which should melt away their estates. Sometimes these penalties were unjust, as when John Rogers could rightly claim that he was sentenced without benefit of jury, and, at another, that the authorities had seized his son's cattle to settle the father's fines. John Bolles pleaded against the injustice of forcing men "to pay Money for his (the minister's) preaching when they did not hear him and professed it was against their Consciences." [68] But such a plea was many, many years in advance of his time. The Rogerines, important, in their own estimate, as called of God, and angered by opposition, seized upon every scriptural passage that bade them exhort and testify, feeling it their duty to do so both in season and out. Had they been willing to give up this practice in public, they would probably have been left in comparative peace, for Governor Saltonstall wrote to Rogers offering him protection for his followers if they would consent to give up "testifying" and would hold their services quietly and privately. Rogers refused upon the ground that he had a right to use the colony churches for his preaching, since he and his people were obliged to contribute to their maintenance. This was logical, but not acceptable to the Connecticut magistrates, who continued to cool the enthusiasm of the Rogerines by occasional heavy penalties, and to look upon them as a set of fanatics, doomed to self-extinction.

The attitude of the Connecticut authorities at this time toward the Quakers, or Society of Friends, was quite different from that assumed toward the Baptists and Rogerines. A retrospect of their history in the colony shows them to have been the earliest dissenters, and also the ones to whom concessions, though only temporary, were first made. Previous to the Restoration, the Quakers were the only dissenters with whom Connecticut had to deal. They appeared in Massachusetts in 1655, and in the following year New Haven colony found no laws could be too severe for the "cursed sect of the Quakers." The General Court of Connecticut seconded the efforts

of both New Haven and Massachusetts to exclude the obnoxious and determined sect, but it soon decided that its fears had been greatly exaggerated, and that mild laws and town legislation were sufficient. Accordingly, town officers were instructed to prevent Quakers settling in the colony, to forbid their books and writings, and to break up their meetings. It was forbidden, however, to lay upon them a fine of more than ten pounds or, under any circumstances, the death penalty.

While New Haven whipped, branded, and transported Quakers,[d] Connecticut mildly enforced her laws against them, [69] and how mildly the following incidents will show. In 1658, John Rous and John Copeland, traveling preachers, reached Hartford. They were allowed to hold a discussion in the presence of the governor and magistrates upon "God is a Spirit." At its close, they were courteously informed that the laws of the colony forbade their remaining in it, and were requested to continue without further delay their journey into Rhode Island. This request was heeded, but while on their way, to quote Rous, "The Lord gave us no small dominion." It would seem as if the wise Quaker had taken the benefit of the law which forbade his remaining "more than fifteen days in a town," and, also, of the friendly curiosity of the people along his route. Rous further testified in behalf of Connecticut that "Among all the colonies found we not like moderation as this; most of the magistrates being more noble than those of the others." [70] A short time after Rous's visit, two Quakers, who persisted in holding services, were arrested and banished.[e] Still later, two women who attempted to conduct services in Hartford met with similar treatment, of whom their historian records: "Except that some extra apparel which they took with them was sold by the jaoler to pay his fee, no act of persecution befell them at Hartford." [71] As late as 1676, when the Congregationalists and the constables of New London, with great violence, broke up a Friends' meeting, held by William Edmundson, he tells us that "the sober people were offended at them," [72] and that on the following

Sunday, at "New Hartford" (Hartford), after the regular morning service, he was allowed to speak unhindered. The same afternoon, when he attempted to speak in another meeting-house, the officers, urged on by the minister, "haled me," he writes, "out of the worship-house, and hurt my arm so that it bled." When he asked them if they thought that was the right treatment of a man faint from fasting all day, they, with excuses for the conduct of the minister and the magistrates, hurried him to an inn. There the people were allowed to listen to his discourse, and, the next morning, he was bidden to go freely on his way.

Most of the Connecticut Quakers were in the border towns. Few, if any, organized societies were formed in Connecticut until about the time of the Revolution. Their scattered converts were ministered to by traveling preachers, and, where possible, members would cross the boundaries to attend the Quarterly or Monthly Meetings in neighboring Rhode Island, or possibly Massachusetts, or on Long Island. These dissenters had quickly perceived the strength of union, and as early as 1661 the Rhode Island Yearly Meeting had been established, with its system of subordinate Quarterly and Monthly Meetings. Soon after, Yearly Meetings at Philadelphia brought reports from the southern and middle colonies. Those at Flushing, Long Island, collected news of converts from New York as far east as the Connecticut River, while the Yearly Meeting at Newport, Rhode Island, heard from all members east of that river. The custom of exchanging yearly letters, giving the gist of these three annual meetings, was soon instituted. After the establishment of the London Yearly Meeting, the frequent exchange of letters with the colonial Quakers, begun in 1662, was reinforced by the exchange of English and American preachers. By similar means, the whole Society the world over was bound closely together. Their common interests were guarded, and every infraction of their liberties known. If in any of the colonies, as in Connecticut, they were oppressed for their refusal to pay ecclesiastical taxes and to bear arms, the facts were

known in England. Secular taxes they cheerfully met, but others were against their conscience. They were excellent citizens, and they were everywhere friendly with the Indians. Because of this friendship, and because the Connecticut colony desired the good offices of the Rhode Island authorities during the dangerous King Philip's War, the General Court had decided to show favor to the few Quakers who were then within the colony. Accordingly, in 1675, a bill was passed temporarily releasing the Quakers from fines for absence from public worship, provided "that they did not gather into assemblies within the colony or make any disturbance." How long this law was operative is uncertain, but probably until about 1702. It is omitted in the revision of the laws of that year, and Gough, in his "History of the People called Quakers," says that the persecuting spirit died away, but was renewed by Connecticut in 1702.[f] We know some of the causes that probably led to its revival, such as the extravagances of the Rogerines, the increase of the Baptists, and the general feeling that the Congregational churches were inherently weak among themselves before this threatening increase of external foes. Moreover, in this same year, there began a very definite propaganda in behalf of an American episcopate. The attempt to revive persecution against the Quakers was unfortunate. They believed in liberty of conscience as a natural, inalienable right, and its practical exercise they meant to have. Their leaders were constant in their loyal addresses and dignified petitions to the throne. The great English Toleration Act had befriended them, and the Act of 1693 had, by substituting affirmation for oath, allowed them to take full advantage of the toleration measure. Such religious liberty as they enjoyed in England, they meant to possess in England's colonies; and when Connecticut, in 1702, again put on the thumb-screws of persecution, these dissenters at once sent a protest across the seas. Their great leader, William Penn, was again in favor at court and with the Queen, who, in Privy Council, October 11, 1705, favorably heard their petition and promptly annulled the Connecticut law of

1657 against "Heretics, Infidels and Quakers," declaring it void and repealed. "The repealing of this Act put a final period to the persecuting of Quakers in New England." [73] To be more exact, it put an end to persecution, but not to occasional fines or to legalized taxes which the Quakers still considered unjust. But as Connecticut had many serious problems on her hands at this time, she thought it prudent to follow the lead of the Crown, and repealed the law of 1657, in so far as it applied to the Quakers.

The year that the Quakers scored this victory, the Episcopalians lodged with the home government a serious complaint of the intolerance that Connecticut showed towards members of the Church of England. They complained that—

they have made a law that no Christians who are not of their community, shall meet to worship God, or have a minister without licence from their Assembly; which law even extends to the Church of England, as well as other professions tolerated in England. [74]

This was not the first time that such a complaint had been carried to England. As early as 1665 [g] it had been made, within a year after Connecticut had satisfied the Commissioners of Charles II, sending them home convinced that the Church of England services would be allowed in the colony as soon as there were settlers who desired them."[h] As there were no Episcopalians in the colony then, nor for nearly thirty years afterwards, and as Connecticut was in high favor with the Stuarts, little heed was paid to the complaint at the time, nor until long years afterwards, when it was coupled with graver offenses.

Back of the personal affront to the sovereign in the persecution or oppression of members of the Church of England, there were graver causes of offense such as the Crown regarded as mistakes, or even misdemeanors.

For many years Connecticut had been virtually an independent and sovereign state within her own borders. Her charter was a most liberal one. She had sought approval for it from the sovereigns, William and Mary, and, while she had been unable to obtain for it the crown's expressed approval, she had secured from the best legal talent a judgment declaring it still valid. She continued to be practically exempt from external interference with her domestic policy for a number of years after the Revolution of 1688, yet from that time on there was always at the English court a party, at first largely influenced by Sir Edmund Andros and his following, who were either jealous of Connecticut's charter or envious of her prosperity. They were always scheming and ready to prejudice the king against his colony, or to antagonize the Board of Trade.

Within her own borders, Connecticut was peaceful, prosperous, and contented. For the most part, she was free from the harassing danger of Indian war. She readily contributed her share for the common defense of the colonies, and sent her loyal quotas to fight for England's territorial claims. For many years, Connecticut was shrewd enough to steer clear of the disastrous inflation of paper currency which overtook her sister colonies. Many strangers were attracted by her prosperity, so that, notwithstanding frequent emigrations of her people, she trebled her population about once in twenty years all through the first century of her existence.[i] With this increasing population came, in the latter part of the seventeenth century, members of the Church of England, who settled in Stratford and in the towns adjacent to New York.[j] They quickly found that their previous impressions were erroneous, and that Connecticut would not tolerate their religious services. Consequently, a report of the religious condition in Connecticut was made in England, in 1702, at about the time the Quakers complained of renewed persecution and at a time when the enemies of the colony were extremely active in charging her with misconduct.

A report of Connecticut's ecclesiastical constitution and of her oppression of dissenters was made to the Bishop of London by John Talbot, who, with George Keith, had traveled through Connecticut on his way from New York to Boston. These men were missionary priests of the Church of England. In New London, Governor Saltonstall, then the minister of that town, knowing that there were a few Church-of-England men in the place, had met the travelers, "civilly entertained them at his house," and "invited them to preach in his church." [75] The Governor might not, the magistrates certainly did not, feel so kindly disposed toward Talbot a year or so later, when it was found that, upon his return to New York, he had written home to his superiors in England, earnestly advocating an American episcopate. True, he urged that the American bishop should have ecclesiastical powers only, and that those ecclesiastico-civil in character, such as the probating of wills, granting of marriage licenses, and the presentation of livings, should remain in the hands of the colonial governors. But the Connecticut authorities were not forgetful of Laud's purpose in 1638 to appoint a bishop over New England, and its frustration by the political unrest at home. They recalled that the revival of such a project had floated as a rumor about those royal commissioners of 1664 to whom they had given such satisfactory, if evasive, answers. Moreover, an Order in Council of 1685, of which there is external evidence, though the order itself is not recorded, had vested ecclesiastical jurisdiction over the colonies in the Bishop of London. [76] Connecticut knew also that four years later, in 1689 (the year that Episcopacy erected King's Chapel, Boston, with its royal endowment of £100 per year), the first commissary had been dispatched to Virginia to superintend the churches there. The Crown, as yet, had deemed it unwise to thrust an episcopate upon its dissenting colonies, and, except for a short time before Queen Anne's death, it was to take no interest in the plans for the American episcopate until some forty years later, when the King thought to discern in it some political advantage. But early in 1700, when



complaints were lodged against Connecticut, there was a strong party within the English Church itself who were most anxious to see the episcopal bond between the mother country and her colonies strengthened. For this purpose, they had sent to America, in 1695, the Reverend Thomas Bray to report upon the conditions and churchly sentiment within the colonies. His report was published under the title, "A Memorial representing the State of Religion in the Continent of North America." It was an appeal for episcopal oversight, and resulted in the formation in England, in 1701, of the Society for the Propagation of the Gospel in Foreign Parts. To this organization belonged all the English bishops with all their influential following. The Society regularly maintained missionary churches and missionary priests throughout the colonies. Candidates for this priesthood were required to submit to a thorough examination as to their fitness. Before sailing, they were required to report to the Bishop of London as their Diocesan and to the Archbishop of Canterbury as their Metropolitan. They were required to send full semi-annual reports of their work and to include in them any other information that promised to be of interest or advantage to the Society. John Talbot and George Keith were two of these missionaries.

Talbot's appeal for the American episcopate was seconded in 1705 by fourteen clergymen from the middle colonies who convened at Burlington, N. J., to frame a petition to the English archbishop and bishops. In it they set forth the necessity in America of a bishop to ordain and to supply other ecclesiastical needs. The petitioners added that a bishop was also necessary to counteract "the inconveniences which the church labors under by the influence which seditious men's counsels have upon the public administration and the opposition which they make to the good inclinations of well-affected persons." [77] In this appeal for a bishop stress was laid upon the cost and dangers of a trip to England for ordination, [78] and also to the frequent loss of converts from the independent ministry because of

the lack of ordination privileges in America. These references, and also that to the "counsel of seditious men," could not be agreeable to large numbers of dissenting colonists. They would not be viewed with favor in Connecticut, where, by 1705, Episcopalians had become so numerous that a wealthy New Yorker, Colonel Heathcote by name, and a man thoroughly acquainted with his New England neighbor, undertook to look after the Church-of-England men as unfortunate brethren of a common faith. He appealed to the English Society for the Propagating[k] of the Gospel in Foreign Parts to extend its missions into Connecticut. He asked that Rector Muirson be stationed at Rye, New York. Colonel Heathcote's idea was:—

to first plant the church securely in Westchester on the border of Connecticut; and secondly, from that point to act upon Connecticut, which was wholly Puritan and withal not a little bigoted and uncharitable.

Naturally, whatever of tolerance the Connecticut people might have shown two traveling preachers would turn to opposition when they saw the deliberate and well-organized attempt of this proselyting church, this old enemy of their forefathers, to invade their colony and undermine their own Establishment. Consequently, when, in company with Mr. Muirson, Colonel Heathcote began itinerating through southwestern Connecticut, ministers and magistrates frequently opposed and threatened them. The people occasionally welcomed them. They did not object to hear and to criticise the strangers, and were sometimes willing to have their good neighbors, if they chanced to be Church-of-England men, enjoy the ministrations of these passing visitors. In some places, however, the civil officers went so far as to go about among the people, even from house to house, to dissuade them from attending Mr. Muirson's services,[l] and, at Fairfield, the meeting-house was closed lest it should be "defiled by idolatrous worship and superstitious ceremonies." [79] The Episcopalians themselves later

acknowledged that, until 1709, they suffered little persecution beyond "that of the tongue." [m] When they were not permitted to organize churches, and were forced to pay taxes for the support of Congregationalism, they complained bitterly to their friends in England, and such oppression was listed among the many other misdemeanors, which, at this time, were cited against the former "dutiful colony of Connecticut."

One of the schemes that Connecticut's enemies sought to carry out, both for their own advancement, and as a proposed punishment for an unruly colony, was a consolidation of the New England provinces under a royal governor. This consolidation was approached when Governor Fletcher of New York was appointed military chief of Connecticut. His attempt, in 1693, to enforce his military authority over Connecticut troops engaged in protecting the northern frontier, resulted in his failure, and in his angry report to the home authorities of Connecticut's insubordination and disloyalty. The colony at great expense sent Major Fitz-John Winthrop to England to answer these charges. He was successful in proving that Connecticut had not exceeded her charter rights in her determination to appoint her own military officers; that, in the wars, she had faithfully contributed her share to the common defense; and moreover, that it was essential that she should have the immediate control of her own troops to quell internal disorder, should it arise, or to repel the sudden approach of an enemy upon her exposed borders. Major Winthrop also succeeded in having the colony's military obligations defined as the furnishing to the common defense of a number of her militia, proportionate to her population and to be under their own officers, and in war time a further draft of a hundred and twenty men to be under the direct control of the governor of New York. Notwithstanding the splendid success of Winthrop's mission, this same charge of insubordination was repeated in a long and later list of grievances against the colony.

The consolidation scheme was revived by the appointment of Governor Bellomont over New York, New Jersey, Massachusetts, New Hampshire, and as military head of Rhode Island and Connecticut; but the governor never tried to enforce his authority in Connecticut. In 1701 and 1706, bills aiming at this proposed consolidation were introduced into Parliament. That of 1701 failed of consideration from "shortness of time and multiplicity of issues." In 1704 an attempt was made to secure the appointment of a royal governor over Connecticut through an Order in Council, but that body preferred to leave the matter to Parliament,—hence the bill of 1706 favoring consolidation which failed of passage in the Lords. It failed largely because of the energy and eloquence of Sir Henry Ashurst, the Connecticut agent.

Sir Henry also succeeded in getting a copy of the various charges against the colony, which were thought to justify annulling her charter, and in obtaining a grant of time to submit them to the Connecticut General Court for a reply. The colony found that it was charged with encouraging violations of the Navigation Laws; with holding in contempt the Courts of Admiralty; with failing to furnish troops and to place them under officers of the Crown; with executing capital punishment without any authority in her charter; with encouraging manufactures, contrary to the known wishes of the Crown; with irregular and unjust court proceedings; with treating contumaciously the royal commissioners sent to settle the Mohegan land controversy; with injustice to the Quakers; with forbidding services of the Church of England; and with disallowing appeals to England. These were the more important complaints. In behalf of the colony, Sir Henry appeared before the Privy Council, and in able argument showed that many of the charges were without foundation; that some of the colony's acts which were complained of as unlawful were well within her charter privileges; and that the decisions of her courts, far from being illegal, had, in nearly every case, when brought to the attention of the English government, been approved by

it. Further than this, the Connecticut agent obtained a stay in the proceedings of the Mohegan case,[n] though it was soon reopened and seriously menaced the colony until the settlement in her favor in 1743. In the famous Liveen or Hallam case, Connecticut opposed an appeal to the Crown, because such an appeal would give the Privy Council the right to interpret the charter and pass upon the colony laws.[o] Though Sir Henry Ashurst had succeeded in having many of the charges dropped, the danger had been so great to the colony that he privately advised the government to conciliate the Crown by protesting its immediate readiness to fulfill all military obligations, and, as a further proof of loyalty, to repeal at once the old law of 1657 against heretics which Queen Anne had just annulled (October 11, 1705) at the request of the Quakers. The General Court, as we have seen, followed his advice, and repealed the law in so far as it concerned Quakers. But this was not enough to satisfy other dissenters in the colony. The Rev. John Talbot had arrived in England in 1706 to plead in person [80] for an American bishop, and Colonel Heathcote in 1707 wrote [81] with respect to the Episcopalians in Connecticut that it would be absolutely necessary to procure an order from the Queen freeing the Church of England people from the established rates, or they would always be so poor as to be dependent upon the Society for Propagating the Gospel. He further asked the repeal of the law whereby the Connecticut magistrates "refuse liberty of conscience to those of the established (English) church." Colonel Heathcote adds that it would not be much more than had been granted to the Quakers, and that it "would be of the greatest service to the Church than can at first sight be imagined."

So great was the importunity of the Connecticut Episcopalians, that, in 1708, Governor Saltonstall wrote to England to disarm their complaints against the colony. It looked as if religious discontent might become a dangerous thing. Royal disfavor certainly would be. It might be better to condone the lack of religious uniformity among a few scattered dissenters,

differing among themselves, and to endure it,—obnoxious as it was,—than to suffer the loss of the Connecticut charter. Moreover, this tendency to the spread of nonconformity might be controlled by judicious legislation. Furthermore, it would be politic to have upon the colony lawbook some relief for dissenters from its Establishment similar to the English statutes relieving nonconformists there from adherence to the Church of England. Hence the Toleration Act, and, of necessity, the proviso in the act of the following session of the General Court whereby it approved the Saybrook Platform.

The Toleration Act was of no benefit to Rogerine or Quaker, who by their principles were forbidden to take the oath of allegiance that it demanded. It was of little practical advantage to Baptist or Episcopalian, but it was a move in the right direction. According to its terms, dissenters, before the county courts, could qualify for organization into distinct religious bodies by taking the oath of fidelity to the crown, by denying transubstantiation and by declaring their sober dissent from Congregationalism. They could have such liberty, provided that it in no way worked to the detriment of the church established in the colony,—that is, the law did not exclude any dissenter "from paying any such (established) minister or town dues as are or shall hereafter be due from him."

At best, such toleration would provide a rigorous test of a dissenter's sincerity. He would have nothing of worldly advantage to gain and much to lose as a "come-outer" from the Establishment. Social prestige would remain almost entirely within the state church. It would be to a man's pecuniary advantage to stay within its fold. Without it, he would be doubly taxed; by the State for the support of Congregationalism, by his conscience to maintain the church it approved. If he lapsed in duty toward his own, he would easily become a marked man among his few co-religionists. If he failed to attend regularly the church of his choice, the ancient law of the

colony would hale him before the judge for neglect of public worship, and fine him for the benefit of a form of religion which he viewed with aversion as unscriptural, if not also anti-Christian. In a new and thinly settled country where life was hard and money scarce, this double taxation was of itself almost prohibitive of dissent. And yet this Toleration Act, notwithstanding its meagre terms, and which, considered in the light of the twentieth century, implies one of the worst forms of tyranny, was a measure of undreamed-of and dangerous liberality if looked at from the point of view of the sixteenth century, or even from that of many princes of the eighteenth. The very summer following the passage of this act saw London crowded with refugees from the religious tyranny of the Palatinate, whose Elector was determined to force the people, after over a hundred and thirty years of Protestantism, back to Rome because he was himself a Romanist, and IMPERII RELIGIO RELIGIO POPULI. The Connecticut law-makers had a good deal of faith in this same principle, though they never had resorted, and did not wish to do so, to extreme penalties to secure religious uniformity. The solidarity of the people and the geographical position of the colony had contributed largely to a uniform church life. Far from the usual ports of entry, the early dissenters had for the most part passed her by. But at the beginning of the eighteenth century, watching the signs of the times elsewhere, and aware of the cosmopolitan element creeping into her population, the Connecticut authorities were ready to admit that soon it might be necessary to modify somewhat the old dictum that the religion of the government must be the religion of all its people. England had seen fit to make such modification, and her test of roughly twenty years had shown conclusively that religious toleration and civil disorders were not synonymous, as had formerly been believed. The Connecticut colony had no particular desire to follow in England's steps. If it had, after-history would have associated it in men's minds less with the Puritanical narrowness of New England and more with such tolerance as was shown in

Pennsylvania, Maryland, and Rhode Island. Tolerance, Connecticut thought, might work well under a government like that of England, but her leaders were not convinced that it would be altogether wise for their own land. They, therefore, had preferred to postpone as long as they could the possible evil day. Now that toleration could no longer be delayed, they had admitted it most guardedly, and at once had proceeded to strengthen their own church foundations by the establishment of the Saybrook system of ecclesiastical government.

## FOOTNOTES:

[a] "For the ease of such as soberly dissent from the way of worship and ministrie established by the ancient laws of this government, and still continuing, that if any such persons shall at the countie court of the countie they belong to, qualifie themselves according to an act made in the first year of the late King William and Queen Mary, granting libertie of worshipping God in a way separate from that which is by law established, they shall enjoy the same libertie and privilege in any place in this colonie without let, or hindrance or molestation whatsoever. Provided always that nothing herein shall be construed to the prejudice of the rights and privileges of the churches as by law established or to the *excluding any person from paying any such minister or town dues as are or shall hereafter be due from him.*" (The italics are mine. M. L. G.) *Conn. Col. Rec.* v, 50.

Failure to comply with the law was punished by a heavy fine, and in default thereof, by heavy bail or by imprisonment until the time for trial.

[b] Later in 1707, Mr. Wightman and Mr. John Bulkley, Congregationalist minister of Colchester, by permission of the authorities, who were troubled by the rumor that the Baptists and Seventh-day Baptists were about to begin proselytizing in earnest in Connecticut, entered into a



public debate as to the merits of their respective religious beliefs. Not much came of it to the Congregationalists, who had expected to see Mr. Wightman's arguments annihilated, while the Baptists had a fine opportunity to publish broadcast their views. Such a discussion was steadily forbidden Browne and Barrowe in 1590. A century had developed sufficient toleration to make interesting, as well as permissible, a public discussion of divergent beliefs.

[c] The report to the Commission of Trade and Foreign Plantations made in 1680 gave:

"26 Answ. Our people in this colony are some strict Congregational men, others more large Congregational men, and some moderate Presbyterians, and take the Congregational men of both sorts, they are the greatest part of the people in the colony.

"There are 4 or 5 Seven-day men, in our Colony, and about so many Quakers.

"17 Answ. (1) Great care is taken for the instruction of ye people in ye X'tian religion, by ministers catechising of them and preaching to them twice every Sabbath daye and sometimes on lecture dayes; and so by masters of famalayes instructing and catechising the children and servants being so required by law. In our corporation there are twenty-six towns and twenty-one churches. There is in every town in the colony a settled minister except in two towns newly begun."—This was equivalent to one minister to 460 persons, or to about 90 families.—*Conn. Col. Rec.* iii, 300. Trumbull's *Hist. of Conn.* i, 397.

[d] Humphrey Norton in the New Haven colony was whipped severely, burnt in the hand with the letter "H" for heretic, and banished for being a Quaker. The next year, for testifying against the treatment of Norton,

William Bond, Mary Dyer, and Mary Whetherstead were apprehended by the same authorities, and forcibly carried back to Rhode Island.—H. Rogers, *Mary Dyer*, p. 36. For the Quaker Laws of both colonies see Note 69.

[e] The notorious William Ledra of later Massachusetts fame was one of these.

[f] This year a law was passed requiring every person to carefully apply himself on the Lord's day to the duties of religion. See *New Haven Hist. Soc. Papers*, ii, 399.

[g] "Articles of Misdemeanor vs. Connecticut, July, 1665. "They deny to the inhabitants the exercise of the religion of the church of England; arbitrarily fining those who refuse to come to their congregational assemblies."

Law Book of Conn, printed 1670. "It is ordered that when the ministry of the word is established according to the Gospel, throughout this Colony, every person shall duly resort and attend thereunto respectively upon the Lord's day, upon public fast days and days of thanksgiving as are generally kept by appointment of authority; and any person ... without necessary cause, withdrawing himself from the public ministry of the word, he shall forfeit for his absence from every such meeting five shillings."—*Conn. Col. Rec.* iii, 294.

[h] They reported that the colony would "not hinder any from enjoying the sacraments and using the common prayer book, provided that they hinder not the maintenance of the public minister."—Hutchinson, *Hist. of Mass.*, p. 412.

Dr. Beardsley suggests that influential citizens may have assured them that the laws would be modified to accommodate Episcopalians.—E. E. Beardsley, *Hist. of the Episcopal Church*, i, p. 116.

[i] Population in 1656, 800; 1665, 9000; 1670-80, 10,000-14,000; 1689, 17,000-20,000; 1730, approximately, 50,000; 1756, 130,000; 1761, 145,000; 1776, 200,000; 1780, 237,946—F. B. Dexter, Estimates of the Population of the American Colonies, in *American Antiquarian Society Proceedings*, 2d series, vol. 5.

[j] Up to 1680, there was only one Episcopal clergyman in New England, Father Jordan, of Portsmouth, N. H. There was an Episcopal clergyman at the fort in New York, and outside of Virginia and Maryland only two others in North America. There were a few Episcopal families in Stratford in 1690.

[k] Or "Propagation,"—as it is most frequently called.

[l] Mr. Muirson's report after his first visit to Stratford was that he had had "a very numerous congregation both forenoon and afternoon." He continues, "I baptized about twenty-four persons the same day.... "The Independents threatened me and all who were instrumental in bringing me thither, with prison and hard usage. They are very much incensed to see the Church (Rome's sister, as they ignorantly call her) is likely to gain ground among 'em, and use all stratagem they can invent to defeat my enterprise,"—*Church Doc. Conn.*, i, p. 17.

Colonel Heathcote wrote, "The Ministers are very uneasy at our coming amongst them, and abundance of pains were taken to persuade and terrify the people from hearing Mr. Muirson, but it availed nothing;"—not even the threat to jail the rector for holding services contrary to the colony law which the magistrates had read to him at his lodgings.—*Church Doc. Conn.*, i, p. 20.

[m] "We received no persecution than that of the tongue until December, 1709."—*Ibid.*, i, p. 42.

[n] The Mohegan Indians had sold certain lands to the colony in 1659, Major John Mason acting as agent. These lands had been conveyed to English proprietors. John Mason, the major's grandson, representing his own and other interests, pretended that both his grandfather and the Indians had been overreached and wronged by the colony in the transaction; that the colony had taken more land than agreed upon from the Indians, and had also seized some that belonged by private purchase to the Mason heirs. For the sake of peace and the credit of magnanimity, the government offered to the chief, Owaneco, who represented the Indians, to pay them again for the land, but Mason and his party resolved to prevent such a settlement. One of them went to England with a false report of extortion practiced upon the savages, and a commission was sent out to investigate. Connecticut was willing to answer the commissioners if they sought facts for a report, but when they assumed the right to decide the question judicially, the colony could only protest against their pretensions. The commissioners adjudged the land in dispute to the Indians and the Mason party, and charged the colony nearly £600 and costs. The colony appealed to the Crown and won the case in 1743; but it was again appealed by Mason, and in this fashion dragged along until after the Revolution, when the Indians were content to accept the reservation allotted by the State to them.—C. W. Bowen, *Boundary Disputes*, pp. 25-27.

[o] John Liveen of New London in 1689 left property to the "ministry of the town." Major Fitz-John Winthrop and his brother-in-law Edward Palmes were executors. Major Winthrop was absent with the army on the northern frontier, but made no objection to the probating of the will at a special court in New London in 1689. This probating Major Palmes, a former friend of Andros, declared void, since Andros had ruled that all wills should be

probated at Boston. Upon special application of Mrs. Liveen, in 1690, the county court probated a copy of the will, since Palmes held the original. To this probating the latter also objected on the ground that, though the court had been again legalized, the "ministry" referred to must be that recognized by the English law and not the Congregational ministry of the town,—the only one then existing. The colonial courts decided against him, and John and Nicholas Hallam, the widow's sons by a former marriage, virtually accepted the terms of the will and the court's decision by being parties to the sale of a portion of the Liveen estate, the ship "Liveen." The estate could not be wholly settled; so the town continued to receive a regular dividend until after the widow's death in 1698. Then the sons attempted to contest the will. The Court of Assistants confirmed the proceedings of the lower courts. Not satisfied with this decision, Nicholas Hallam went to England in 1700-1702, and was allowed to plead his case before the Privy Council. Sir Henry Ashurst held that the charter gave the right of final decision, but the Lords Commissioners of Trade and Plantations thought otherwise, and it looked as if Hallam was to win his case, when he was ordered to return to America and, because of technicalities, to retake all the testimony. In 1704, because of his acknowledged signature in the sale of the "Liveen," the suit was decided in favor of the colony.—F. M. Caulkins, *Hist. of New London*, pp. 222-228.

## CHAPTER VIII

### THE FIRST VICTORY FOR DISSENT

Ye shall not therefore oppress one another; but thou shalt fear thy God; for I am the Lord your God.—Leviticus, xxv, 17.

The dissenters found the terms of the Toleration Act too narrow; the conditions under which they could enjoy their own church life too onerous. Consequently, they almost immediately began to agitate for a larger measure of liberty, and persisted in their demands for almost twenty years before obtaining any decided success.

Foremost among the dissenters pressing for greater liberty, for exemption from taxes for the benefit of Congregational worship, and for the same privileges in the support of their own churches as the members of the Connecticut Establishment enjoyed, were the Episcopalians. The year following the passage of the Toleration Act witnessed the first persecution of these people beyond that of tongue and pen. Fines and imprisonments began in earnest and were continued, more or less frequently, for many years. Even as late as 1748, the Episcopalians of Reading were fined for reading the Prayer-book and for working on public fast-days. Still later, in 1762, there was occasional oppression, as in the case of the New Milford Episcopalians. They desired to build a church, but had to wait for the county court to approve the site chosen. The court was averse to the building of the church, and accordingly was a long time in complying with this technicality. Meanwhile, the Episcopalians could not build, neither would they attend Congregational worship, and the magistrates, refusing to recognize the services held in private houses, fined them for absence from public worship. This treatment was abandoned as soon as it became known that the rector had counseled his people to submit, as he intended to send a copy of the court's proceedings to England to be passed upon as to their legality. It was such petty, yet costly, persecution as this that became frequent after 1709, and from which the Episcopalians were determined to escape.

These Church-of-England men were increasing in numbers in the colony, and, at the passage of the Toleration Act, were quite hopeful that the Rev.

John Talbot's mission to England to secure a bishop for America would prove successful. Although he was not successful in obtaining the episcopate, his mission received so much encouragement from those in high places that, upon Talbot's return, a home for the prospective bishop was purchased, in 1712, in Burlington, New Jersey. It was known that Queen Anne was much interested in the proposed bishopric, and letters were exchanged between the leaders of the movement in England and the prominent Independent clergymen in the colonies, in order to sound the state of public opinion. A bill for the American expansion of the Church of England, as a branch to be severed from the jurisdiction of the Bishop of London and to be planted in the colonies under a bishop with full ecclesiastical powers, was prepared and was ready for presentation in Parliament when the Queen's death, August 1, 1714, caused its withdrawal, and felled the hopes of Churchmen. George I had too many temporal affairs to occupy his mind to burden himself with the intricate rights, powers, and privileges of a new episcopate, sought by a few colonials scattered through the American wilderness;—too many vexatious secular affairs in the colonies, and too heavy war-clouds darkening his European horizon. The Society for the Propagation of the Gospel, in 1715, made one futile attempt to interest the king, and then gave up any hope of the immediate appointment of an American bishop.

In the Connecticut colony, the Episcopalians had so increased that, in 1718, there was in Stratford a church of one hundred baptized persons, thirty-six communicants, and a congregation that frequently numbered between two and three hundred people. They were ministered to by traveling missionaries of the Society for the Propagation of the Gospel. When these Stratford people appealed to the Society for a settled minister, they complained that "there is not any government in America but has our settled Church and minister, but this of Connecticut." [82] Still all the Society could then do was to send a missionary priest, and to keep alive in

England, among the powerful Church party there, so keen an interest that it would seize upon the first opportunity to use its great influence and to compel the English government to force the Connecticut authorities to comply with the demands of the colonial Churchmen for the unrestricted enjoyment of their religion. Such an interest was kept up by the regular, full reports which the Society required of all its missionaries. And these reports, be it remembered, were expected to contain news of any kind, and of everything that happened in the colony of Connecticut, or elsewhere, that could possibly be turned to advantage in influencing the home authorities, in pushing the interests of the English Establishment in America, and in strengthening its membership there. Although, after the death of Queen Anne, the king's indifference checked the movement for the American episcopate, its friends did not abandon it, and a persistent effort for its success was soon begun. One of its prime movers was the Rev. George Pigott, missionary to Stratford, Connecticut, in 1722.

Under Mr. Pigott, the Church of England in Connecticut made a most encouraging and important gain, when, in 1722, Timothy Cutler, Rector of Yale College, and six of his associates proclaimed their dissatisfaction with Congregationalism, or, as they termed it, "the Presbyterianism" of the Connecticut established church. They asserted that "some of us doubt the validity, and the rest are more fully persuaded of the invalidity of the Presbyterian ordination in opposition to the Episcopal."

Three of these men remained in "doubt," and continued within the Congregational church.[a] Four of them, Rector Timothy Cutler, Tutor Daniel Brown, Rev. James Wetmore of North Haven, and Rev. Samuel Johnson of West Haven, went to England to receive Episcopal ordination. [b] The story of their conversion is to Churchmen an illustration of the scriptural command, "Cast your bread upon the waters and it will return to you after many days." The Connecticut authorities had chosen the Rev.



Timothy Cutler because of his eloquence, and had sent him to Stratford to counteract the early successes of the Church-of-England missionary priests, who were at work among the people there. Later, in 1719, Cutler, because of his abilities, was chosen President, or Rector, of Yale, as, in the early days, the head of the college was called. The seeds of doubt had entered his mind during his Stratford pastorate. He and his associates found many books in the college library that, instead of lessening, increased their doubts. After presiding for three years over the greatest institution of learning in the colony, which had for its object the preparation of men for service in civil office and, even more in those days, for service in religion, Rector Cutler, together with his associates, announced their change of faith. The colony was taken by storm, and there spread throughout its length and breadth, and throughout New England also, a great fear that Episcopacy had made a *coup d'etat* and was shortly to become the established church of her colonies as well as of England herself. Naturally, among the colonial Churchmen, it excited the largest hope "of a glorious revolution among the ecclesiastics of the country, because the most distinguished gentlemen among them are resolutely bent to promote her (the Church's) welfare and embrace her baptism and discipline, and if the leaders fall in there is no doubt to be made of the people." [83]

These hopes were in a degree confirmed by the conversion of one or two more ministers, and by the Yale men that the classes of 1723, 1724, 1726, 1729, and 1733 gave to Episcopacy. By the impetus of these conversions, within a generation, "the Episcopal Church under a native born minister had penetrated every town, had effected lodgment in every Puritan stronghold, and had drawn into her membership large numbers of that sober-minded, self-contained, tenacious people who constitute the membership of New England to-day." [84] After the conversions of 1722, the movement for the apostolic episcopate in America became more determined, and never

wholly ceased until the consecration of Samuel Seabury as bishop of Connecticut in 1784.

A decided change took place in Connecticut's policy upon the death of Governor Saltonstall in 1724, and under his successor in office, former Lieutenant-Governor Joseph Talcott. The new governor was a Hartford man, more liberal in his ecclesiastical opinions and opposed to severe measures against dissenters. Hardly had Governor Talcott taken office when Edmund Gibson, Bishop of London, wrote him, urging in behalf of the Episcopalians a remittance of ecclesiastical taxes. "If I ask anything," wrote the Bishop, "inconsistent with the laws of the country, I beg pardon; but if not, I hope my request for favors for the Church of England will not appear unreasonable." The Bishop accompanied his letter with a paper, a copy of a circular letter to the different colonial governors, in which, among other matters relating to his clergy, he professed his readiness to discipline them if necessary "in order to contribute to the peace and honor of the government." This proposal was due, in part, to the scandalous reputation in New England which the southern settled clergy bore. Because of this reputation, the Society for the Propagation of the Gospel had from the first made a special point of the morals of their missionary priests. Indeed, these priests, themselves, had warned the Society that, if it expected any returns from its missions in New England, it would have to take great pains to send out a superior class of men. Governor Talcott replied to Bishop Gibson, under date of December 1, 1725,[c] "that there is but one Church of England minister in this colony, [d] and the church with him have the same protection as the rest of our Churches and are under no constraint to contribute to the support of any other minister." After reflecting upon the number and character of the few persons in another town or two "who claim exemption from rates," Governor Talcott quotes the colony law for the support of the ministry in every town, and adds that, upon the death of an incumbent, the townspeople "are quickly supplied by persons of our own

communion, educated in our public schools of Learning; which through divine blessing afforded us, we have sufficiency of those who are both learned and exemplary in their lives." This was a polite way of informing the bishop that Connecticut preferred to do without his missionaries. It was one thing for the tolerant governor to grant exemption from Congregational taxes in the case of an influential church like that of Stratford, and quite another to extend the same toleration to every scattered handful of people who might claim to be members of the Church of England, and who might welcome the coming of her missionary priests.

The Episcopalians, however, were not content to rest their privileges upon their numerical power in each little town, or upon the personal favor of the magistrates. They therefore continued their agitation for exemption from support of Congregationalism and from fines for neglecting its public worship. Under the lead of the wardens and vestry of Fairfield, they obtained favor with the General Court in 1727,[e] when an act was passed, "providing how taxes levied upon members of the Church of England for the support of the Gospel should be disposed of," and exempting said members from paying any taxes "for the building of meeting houses for the present established Churches of this government." The law further declared that if within the parish bounds—

there be a Society of y'e Church of England, where there is a person in orders, according to y'e Canons of y'e Church of England, settled and abiding among them and performing divine service so near to any person that hath declared himself of y'e Church of England, that he can conveniently and doth attend y'e public worship there, then the collectors, having first indifferently levied y'e tax, as aforesaid, shall deliver y'e taxes collected of such persons declaring themselves, and attending as aforesaid, unto y'e minister of y'e Church of England, living near unto such persons; which

minister shall have power to receive and recover y'e same, in order to his support in y'e place assigned to him.

But if such proportion of any taxes be not sufficient in any Society of y'e Church of England to support y'e incumbent there, then such Society may levy and collect of them who profess and attend as aforesaid, greater taxes, at their own discretion, to y'e support of their ministers.

And the parishoners of y'e Church of England, attending as aforesaid, are hereby excused from paying any taxes for y'e building meeting houses for y'e present Established Churches of this government.[85]

After the passing of this law, the magistrates contented themselves with occasional unfair treatment of the weaker churches. They sometimes haggled over the interpretation of the terms "near" and "conveniently" as found in the law. They objected to the appointment of one missionary to several stations or towns. They also did not always enforce upon the Presbyterian collectors strict accuracy in making out their lists, and when the Episcopalians sought redress for unreturned taxes or unjust fines, they found their lawsuits blocked in the courts. The magistrates, also, showed almost exclusive preference for Congregationalists as bondsmen for strangers settling in the towns, while the courts continued to frequently refuse or to delay the approval of sites chosen for the erection of Episcopal churches.

Finally, there was a certain amount of political and social ostracism directed against Churchmen. A notable attempt to defraud the Episcopalians of a due share of the school money, derived from the sale of public lands and from the emission of public bills, was defeated in 1738 by a spirited protest, setting forth the illegality of the proceeding, the probable

indignation of the King at such treatment of his good subjects and brethren in the faith, and by pointing to the fact, as recently shown by a test case in Massachusetts, that the Connecticut Establishment itself could not exist without the special consent of the King. [86] The petition was signed by six hundred and thirty-six male inhabitants of the colony. They asserted in their protest that they had a share in equity derived from the charter; that they bore their share of the expenses of the government; and that the teaching of the Church of England made just as good citizens as did that of the Presbyterian Church. The public lands, from the sale of which the school money was derived, were those along the Housatonic river. The money was appropriated according to a law enacted in 1732 which distributed it among the older towns as a reward for good schools. But, in 1738, the legislature passed a bill by which a majority vote of the town or parish could divert the money to the support of "the gospel ministry as by law in the colony established." Naturally this new law operated against all dissenters, who, equally anxious with the Congregationalists to have good schools, were an ignored minority whenever the latter chose to vote the money to the support of their church. As a result of this spirited protest of the Episcopalians, the enactment of 1738 was repealed two years later "because of misunderstanding." Notwithstanding such hardships as the Episcopalians suffered in Connecticut, their own writers declare that, at this period of colonial history, the Churchmen in Connecticut had less to complain of than their co-religionists in New York and in the southern colonies.

While the Episcopalians were agitating for a larger liberty than that granted by the Toleration Act, the other dissenters, Rogerines, Quakers, and Baptists, were not idle.

The efforts of the Rogerines were marked more by violence than by success. They had become less fanatic, and persecution had died away during the first ten years following the passage of the Toleration Act. All

might have gone smoothly had they not suddenly stirred Governor Saltonstall to renewed dislike, the magistrates to fresh alarm, and the people to great contempt and indignation. This they accomplished by a sort of mortuary tribute to their leader, John Rogers, who died in 1721. This tribute took the form of renewed zeal, and was marked by a revival of some of their most obnoxious practices. The Rogerines determined to break up the observance of the Puritan Sabbath. Immediately, an "Act for the Better Detecting and more effectual Punishment of Prophaneness and Immorality" was passed. It was especially directed against the Rogerines. Its most striking characteristic was that it changed the policy of the government from the time-honored Anglo-Saxon theory that every man is innocent until proved guilty, to the doctrine that a man, accused, must be guilty until proved innocent. In so oft-recurring a charge as that of being absent from public worship, it became lawful to exact fines unless the accused could prove before a magistrate that he had been present. But this first act did not dampen sufficiently the renewed zeal of the Rogerines, and for two years there was a continuance of sharp legislation to reduce their disorderliness. They were fined five shillings for leaving their houses on Sunday unless to attend the orthodox worship, and twenty shillings for gathering in meeting-houses without the consent of the ministers. They were given a month, or less, in the house of correction, and at their own expense for board, for each offense of unruly or noisy behavior on Sunday near any meeting-house; for unlawful travel or behavior on that day; and for refusal to pay fines assessed for breaking any of the colony's ecclesiastical laws. These laws [87] were enforced one Sunday in 1725 against a company of Rogerines who were going quietly on their way through Norwich to attend services in Lebanon. The outburst of religious fervor spent itself in two or three years. Governor Talcott did not believe in strong repressive measures, and it was soon conceded that the ignoring of their eccentricities, if kept within reasonable bounds, was the most efficient way to discourage the Rogerines.

Summarizing the influence of this sect, we find that they contributed nothing definite to the slow development of religious toleration in Connecticut. If anything, their fanaticism hindered its growth, and they gained little for themselves and nothing for the cause. As the years went on and their little sect were permitted to indulge their peculiar notions, and the props of the State were not weakened nor the purity of religion vitally assailed, the Rogerines contributed their mite towards convincing mankind, and the Connecticut people in particular, that brethren of different creeds and religious practices might live together in security and harmony without danger to the civil peace.

During the seventeen years that Governor Talcott held office, 1724-41, the life of the colony was marked by its notable expansion through the settlement of new towns, [f] and by the dexterity with which its foreign affairs—its relations to England and its boundary disputes with its neighbors—were conducted. The last dragged on for years, calling for several expensive commissions and causing much confusion. The Massachusetts line was determined in 1713; that of Rhode Island in 1728; and that of New York in 1735. Connecticut, in all these cases, had to be wary lest the attempts to settle these disputed claims should weary, antagonize, or anger the King.[88] Many of the old charges were renewed, and Connecticut was no longer regarded as a "dutiful" colony, but rather as one altogether too independent, from whom it might be wise to wrest her charter, subjecting her to a royal governor. As early as 1715, her colonial agent had been advised to procure a peaceable surrender of the charter. To this proposal, Governor Saltonstall had returned a courteous and dignified refusal. But the danger was always cropping up. Governor Talcott's English official correspondence is full of details concerning Connecticut's increasing anxiety concerning the attitude and the decisions of the home government; over the dangers consequent to her institutions or to her charter. It was repeatedly suggested that that charter should be surrendered,

modified in favor of the King's supervision, or annulled. In the Governor's letters, one follows the intricacies of the boundary disputes, of the complicated Mohegan case, and sounds the dangers to the colony from the disposition and decisions of the Crown.[89]

One case in particular demands a passing consideration because of its far-reaching effects, and because it paralleled in time the legislation in the colony which broadened the Toleration Act. This was the famous case of John Winthrop against his brother-in-law, Thomas Lechmere, to recover real estate left by the elder Winthrop to his son and daughter. The suit brought up the whole question of land entail in Connecticut, and, with it, the possibility of an economic and social revolution in the colony which would have been the death-blow to its prosperity. Winthrop, by appealing the case to England, brought Connecticut into still greater disfavor, and risked the loss of the charter, together with many special privileges in religion and politics which the colony enjoyed through a liberal interpretation of that instrument. In the course of the suit, the constitutional relations of Crown and colony had to be threshed out.

John Winthrop's father died in 1717, when, according to Connecticut, but not English, law of primogeniture, Winthrop received as eldest son a double portion of his father's real estate, and his sister, Thomas Lechmere's wife, the rest. Winthrop's brother-in-law was not a man wholly to be trusted to deal justly with his wife's property; but this, in itself, was a very small factor in the suit. Winthrop was at variance with the Connecticut authorities, and was dissatisfied with his share both of his father's property and of his uncle's, whose heir he was. No matter how much his own personal interests might endanger the colony, Winthrop resolved to have all the property due him as eldest son and heir under English law. He appealed his case to England, taking it directly from the local probate court, and ignoring the Court of Assistants, where he might have obtained some redress. Moreover,



to influence the decision in his favor he included in his list of grievances many of the old offenses charged against Connecticut. He did this, even while acknowledging that the colonial Intestate Act, framed in 1699,[90] was but the embodiment of custom that had existed from the beginning of the colony. While this case dragged on, it was again intimated to Connecticut that the surrender of her charter, or at least the substitution of an explanatory charter, might be an acceptable price for the royal confirmation of her Intestate Law. Finally, Winthrop went to England, and was given a private hearing, at which no representative of the colony was present. As a result of this hearing, an order in Council was issued February 15, 1728, annulling the Connecticut Intestate Act as contrary to the laws of England and as exceeding charter rights. Moreover, the colonial authorities were ordered to measure off the lands, claimed by Winthrop, and to restore them to him.

Of course, it would take some time to obey the order. Meanwhile, if this restitution were made, if the decision were submitted to, it would invalidate so many land titles as to threaten the very existence of Connecticut's economic structure. The colony sought the best legal talent obtainable. For seventeen years Connecticut continued this expensive lawsuit, urging always her willingness to comply in the case of Winthrop, if only the decision be made a special one and not a precedent,—if only an order in Council, or an act of Parliament, would reinstate the Connecticut Intestate Law. Her agents in England were instructed to demonstrate how well the colonial division of property had worked, and that under the English division, where all real estate went to the eldest son, if it were practiced in a new and heavily wooded country, whose chief wealth was agriculture, the rental of lands would yield income barely sufficient to pay taxes and repair fences, and there could be no dowry for the daughters. A still further result would be, that the younger sons would be driven into manufacturing or forced to emigrate. In each case the Crown would suffer, either by the loss

of a colonial market for its manufactured products, or by an impoverished colony, incapable of making satisfactory returns to the royal treasury. [91] Moreover, in the case of emigration, when Connecticut, lacking men to plow her fields, could no longer produce the foodstuffs the surplus of which she sold to the "trading parts of Massachusetts and Rhode Island" to supply the fisheries, the Crown would feel still another baneful effect from its attempt to enforce the English law of entail. Again, there was another aspect from which to view the annulment of the Connecticut Intestate Law. Its annulment would render worthless many past and present land-titles. Creditors who had accepted land for debt would suffer. Titles to lands, held by towns, as well as individuals, would become subject to litigation; the whole colony would be plunged into lawsuits, and its economic framework would be rent in pieces. The Intestate Law was in accordance with custom throughout New England. When in 1737 a similar statute in Massachusetts was sustained by the King in Council in the appeal of Phillips vs. Savage, Connecticut, notwithstanding the renewed and repeated suggestions to give up her charter, took courage to continue the contest.

During these years the question of the constitutional relation of colony and Crown was frequently raised, and Connecticut was called upon to show that her laws were not contrary to the laws of England. She had to prove that they were not contrary to the common law of England; nor to the statute law, existing at the founding of the colony; nor to those acts of Parliament that had been expressly extended to the colony. This was the most commonly held of the three interpretations of "not contrary to the laws of England." The most restricted interpretation was that all colonial laws higher than by-laws, and "which even within that term touched upon matters already provided for by English common or statute law, were illegal" or "contrary." Under this interpretation, "the colonies were as towns upon the royal demesne." Connecticut herself held to a third construction, maintaining that, as her own charter nowhere stipulated that her

administration should accord with the civil, common, or statute law of England, she, at least, among the colonies was free to frame her own laws according to her own needs and desires. Holding to this opinion, which had never been corrected by the Crown, Connecticut maintained that "contrary to the laws of England" was limited in its intent to contrary to those laws expressly designed by Parliament to extend to the plantations. Moreover, Connecticut insisted that the colonies were not to be compared to English towns, because, unlike the towns, they had no representation in Parliament. The Connecticut Intestate Act was opposed to the English law according to the first two interpretations, but not according to the third. Further, the Connecticut authorities felt that if the conditions which had given rise to the law were fully realized in England, the apparent insubordination of the colony would disappear in the light of the real equity of the colonial statute. In Governor Talcott's letter, dated November 3, 1729, under "The Case of Connecticut Stated," there is a summary of the reasons why the colony hesitated to appeal directly to Parliament for a confirmation of the Intestate Act. She was afraid of exciting still greater disfavor by seeming to ask privileges in addition to those already conferred upon her in her very liberal charter. She was afraid of courting inquiry in regard to her ecclesiastical laws, her laws relating to the collegiate school, and also sundry civil laws. The colony feared that the result of such an investigation would be that she would thereafter be rated, not as a government or province, but as a corporation with a charter permitting only the enactment of by-laws. Moreover, she dreaded to be ranked with "rebellious Massachusetts," and thus further expose herself to a probable loss of her charter.

After contesting the decision against her for many years, at last in 1746 she virtually won her case through a decision given in England in the suit of *Clarke vs. Tousey*,<sup>[92]</sup>—a suit which had been appealed from the colony, and which presented much the same claim as Winthrop's. The decision in favor of Clarke was equivalent to a recognition of Connecticut's Intestacy

Law. It has been pointed out that, important as the Winthrop controversy was from the economic standpoint, it was equally important as foreshadowing the legislation of the English government some thirty years later, and as defining the relation of colony and Crown. Moreover, in 1765, as in 1730, "economic causes and conditions," writes Professor Andrews in his discussion of the Connecticut Intestacy Law, "drove the colonists into opposition to England quite as much as did theories of political independence, or of so-called self-evident rights of man."

It was during the continuance of this troublesome Winthrop suit, while boundary lines were still unsettled, while as yet the Mohegan titles remained in dispute, while the most grievous charge of encouraging home manufactures, and many other complaints were brought against Connecticut,—it was in the midst of her perplexities and conflicting interests that the dissenters within her borders sought greater religious liberty. They sought it, not only through their own local efforts, but through the strength of their friends in England, who brought all their influence to bear upon the home government. With such help Episcopalians had won exemption in 1727, and within two years Quakers and Baptists were accorded similar freedom.

Connecticut Quakers, though few in numbers, were very determined to have their rights. From 1706, the Newport Yearly Meeting had encouraged the collecting and recording of all cases of "sufferance." In 1714, at the close of Queen Anne's War (1702-13), the Newport Yearly Meeting reported to that of London that "there is much suffering on account of the Indians at the Eastward, yet not one (of ours) had fallen during the last year, Travelling preachers having frequently visited those parts without the least harm.... Friends in several places have suffered deeply on account of not paying presbyterian priests, and for the Refusing to bear Armes, an Account of which we Doe herewith Send." In 1715, the English law had granted

them the perpetual privilege of substituting affirmation for oath. The Quakers were determined to have the same freedom in the colonies as in England. Accordingly, they watched with interest the test case between the Quaker constables of Duxbury and Tiverton,—both, then, under the jurisdiction of Massachusetts,—and the authorities of that colony. Fines and persecutions were so much alike in Connecticut and Massachusetts that a dissenter's victory in one colony would go far towards obtaining exemption in the other. The Quaker constables had refused to collect the church rate, and for this refusal were thrown into prison. Thereupon a petition, with many citations from the colony law books, was sent to England, begging that the prisoners be released and excused from their fines, and that such unjust laws be annulled. The Privy Council ordered the prisoners released and their fine remitted. This decision was rendered in 1724, and, with the success of the Episcopalians three years later, still further encouraged both Quakers and Baptists to seek relief from ecclesiastical taxes and fines. Two years later, in May, 1729, the Quakers appealed to the Connecticut Court for such exemption, and were released from contributing to the support of the established ministry and from paying any tax levied for building its meeting-houses, provided they could show a certificate from some society of their own (either within the colony or without it, if so near its borders that they could regularly attend its services) vouching for their support of its worship and their presence at its regular meetings. [93]

Turning to the Baptists, the oppressive measures employed to make them violate their conscience ceased on the inauguration of Governor Talcott in 1724. Thereafter, those among them who conformed to the requirements of the Toleration Act received some measure of freedom. To the neighborly interest of the Association of Baptist Churches of North Kingston, Rhode Island, and to the influence of leading Baptists in that colony, including among them its governor (who subjoined a personal note to the Association's appeal to the Connecticut General Court), was due the favor

of the Court extended in October, 1729, [94] to the Baptists, whereby they were granted exemption upon the same terms as those offered the Quakers.

Thus in barely twenty years from the passage of the Toleration Act, Episcopalian, Quaker, and Baptist had driven the thin edge of a destroying wedge into the foundations of the Connecticut Establishment. Each dissenting body was pitifully small in absolute strength, and they had no inclination toward united action. Quakers and Baptists were required to show certificates, a requirement soon to be considered in itself humiliating. The new laws were negative, in that they empowered the assessor to *omit* to tax those entitled to exemption, but they provided no penalty to be enforced against assessors who failed to make such omission. Indeed, in individual cases, the laws might seem to be scarcely more than an admission of the right to exemption. However, it was an admission that a century's progress had brought the knowledge that brethren of different religious opinions could dwell together in peace. It was an exemption by which the government admitted, as well as claimed, the right of choice in religious worship. It was a far cry to the acknowledgment that a man was free to think his own thoughts and follow his own convictions, provided they did not interfere with the rights of other men. The new laws were a concession by a strongly intrenched church to the natural rights of weaker ones, whose title to permanency it greatly doubted. They were a concession by a government whose best members felt it to be the State's moral and religious obligation to support one form of religion and to protect it at the cost, if necessary, of all other forms,—a concession, by such a government, to a very small minority of its subjects, holding the same appreciation of their religious duty as that which had nerved the founders of the colony. It was a concession by the community to a very few among their number, who were divergent in church polity and practice, but who were united in a Protestant creed and in the conviction, held then by every respectable citizen, that

every man should be made to attend and support some accepted and organized form of Christian worship.

## FOOTNOTES:

[a] The Rev. John Hart of East Guilford, Samuel Whittlesey of Wallingford, and Jared Ellis of Killingworth. These men were always friendly to the Churchmen.

[b] The Rev. Daniel Brown died in England. In the next forty years, one tenth of those who crossed the sea for ordination perished from dangers incident to the trip.

[c] This year the home influence of the Church of England had been brought to bear with sufficient pressure to forbid the calling of a general synod of the New England churches which had been desired, and towards which Massachusetts had taken the initial step. See A. L. Cross, *Anglican Episcopate*, pp. 67-70.

[d] Stratford.

[e] This same year, George I granted to Bishop Gibson a patent confirming the jurisdiction which, as Bishop of London, he claimed over the Church of England in the colonies. George II renewed the patent in 1728-29.

[f] Between 1700 and 1741 more than thirty new towns were organized, making twice as many as in 1700.

## CHAPTER IX

**"THE GREAT AWAKENING."**

Wake, awake, for night is flying:  
The watchmen on the heights are crying,  
Awake, Jerusalem, arise!—Advent Hymn.

The opposition of Episcopalian, Quaker, and Baptist to the Connecticut Establishment, if measured by ultimate results, was important and far-reaching. But it was dwarfed almost to insignificance, so feeble was it, so confined its area, when compared to that opposition which, thirty-five years after the Saybrook Synod and a dozen years after the exemption of the dissenters, sprang up within the bosom of the Congregational church itself, as a protest against civil enactments concerning religion. This protest was a direct result of the moral and spiritual renaissance that occurred in New England and that became known as the "Great Awakening." History in all times and countries shows a periodicity of religious activity and depression. It would sometimes seem as if these periodic outbreaks of religious aspirations were but the last device of self-seeking,—were but attempts to find consolation for life's hardships and to secure happiness hereafter. Fortunately such selfish motives are transmuted in the search for larger ethical and spiritual conceptions. An enlarged insight into the possibilities of living tends to slough off selfishness and to make more habitual the occasional, and often involuntary, response to Christlike deeds and ideals. But so ingrained is our earthly nature that, in communities as in nations, periods alternate with periods, and the pendulum swings from laxity to morality, from apathy to piety, gradually shortening its arc. So in Connecticut, numbers of her towns from time to time had been roused to greater interest in religion before the spiritual cyclone of the great revival, or "Great Awakening," swept through the land in 1740 and the two following years. The earlier and local revivals were generally due to some special calamity, as sickness, failure of harvest, ill-fortune in war, or some



unusual occurrence in nature, such as an earthquake or comet, with the familiar interpretation that Jehovah was angry with the sins of his people. Sometimes, however, the zeal of a devoted minister would kindle counter sparks among his people. Such a minister was the Rev. Solomon Stoddard, who mentions five notable revivals, or "harvests,"[a] as he calls them, during his sixty years of ministry in the Northampton church. A few other New England towns had similar revivals, but they were brief and rare.

Notwithstanding these occasional local "stirrings of the heart," at the beginning of the second quarter of the eighteenth century a cold, formal piety was frequently the covering of indifferent living and of a smug, complacent Christianity, wherein the letter killed and the spirit did not give life. This was true all over New England, and elsewhere. Nor was this deadness confined to the colonies alone, for the Wesleys were soon to stir the sluggish current of English religious life. In New England, the older clergymen, like the Mathers of Massachusetts, conservative men, whose memories or traditions were of the golden age of Puritanism, had long bemoaned the loss of religious interest, the inability of reforming synods to create permanent improvement, and the helplessness of ecclesiastical councils or of civil enactments to rouse the people from the real "decay of piety in the land," and from their indifference to the immorality that was increasing among them. This indifference grew in Connecticut after the Saybrook Platform had laid a firm hold upon the churches. Its discipline created a tendency, on the one hand, to hard and narrow ecclesiasticism, and, on the other, to careless living on the part of those who were satisfied with a mere formal acceptance of the principles of religion and with the bare acknowledgment of the right of the churches to their members' obedience.[b]

It is a great mistake [writes Jonathan Edwards] if any one imagines that all these external performances (owning the covenant, accepting the

sacraments, observing the Sabbath and attending the ministry), are of the nature of a *profession* of anything that belongs to *saving grace*, as they are commonly used and understood.... People are taught that they may use them all, and not so much as make any pretence to the least degree of *sanctifying grace*; and this is the established custom. So they are used and so they are understood.... It is not unusual ... for persons, at the same time they come into the church and pretend to own the covenant, freely to declare to their neighbors, that they have no imagination that they have any true faith in Christ or love to Him.[95]

The General Court, relieved from the oversight of the churches, had bent itself to preserving the colony's charter rights from its enemies abroad, and to the material interests involved in a conservative, wise, and energetic home development. The people's thoughts were with the Court more than with the clergy, who had fallen from a healthy enthusiasm in their profession into a sort of spiritual deadness and dull acceptance of circumstances. [96] As a sort of corollary to Stoddard's teaching that the Lord's Supper was itself a means toward attaining salvation, it followed that clergymen, though they felt no special call to their ministry, were nevertheless believed to be worthy of their office. The older theology of New England had tended to morbid introspection. Stoddard, in avoiding that danger, had thrown the doors of the Church too widely open, and the result was a gradual undermining of its spiritual power. The continued acceptance of the Half-Way Covenant, "laxative rather than astringent in its nature," helped to produce a low estimate of religion. The tenderness that the Cambridge Platform had encouraged towards "the weakest measure of faith" had broadened into such laxity that, in many cases, ministers were willing to receive accounts of conversions which had been written to order for the applicants for church membership. The Church, moreover, had come directly under the control of politics, a condition never conducive to its purity. The law of 1717, "for the better ordering and regulating parishes or

societies," had made the minister the choice of the majority of the townsmen who were voters. This reversed the early condition of the town, merged by membership into the church, to a church merged into the town. [97] There was still another factor, often the last and least willingly recognized in times of religious excitement, namely, the commercial depression throughout the country, resulting from years of a fluctuating currency. This depression contributed largely to the revival movement, and helped to spread the enthusiasm of the Great Awakening. Connecticut's currency had been freer from inflation than that of other New England colonies. But her paper money experiments in the years from 1714 to 1749 grew more and more demoralizing. Up to 1740, Connecticut had issued £156,000 in paper currency. At the time of the Great Awakening she had still outstanding £39,000 for which the colony was responsible. Of this, all but £6000 had been covered by special taxation. There still remained, however, about £33,000 which had been lent to the various counties. Taxation was heavy, wages low and prices high, and there was not a man in the colony who did not feel the effect of the rapidly depreciating currency. [98] This general depression fell upon a generation of New Englanders whose minds no longer dwelt preëminently upon religious matters, but who were, on the contrary, preëminently commercial in their interests.

Such were the general conditions throughout New England and such the low state of religion in Connecticut, when, in the Northampton church, Solomon Stoddard's grandson, the great Jonathan Edwards, in December, 1734, preached the sermons which created the initial wave of a great religious movement. This religious revival spread slowly through generally lax New England, and through the no less lax Jerseys, and through the backwoods settlements of Pennsylvania, until it finally swept the southern colonies. At the time, 1738, the Rev. George Whitefield was preaching in Carolina, and acceptably so to his superior, Alexander Garden, the Episcopal commissary to that colony. Touched by the enthusiasm of the

onflowing religious movement, Whitefield's zeal and consequent radicalism, as he swayed toward the Congregational teaching and practices, soon put him in disfavor with his fellow Churchmen. Such disfavor only raised the priest still higher in the opinion of the dissenters, and they flocked to hear his eloquent sermons. Whitefield soon decided to return to England. There he encountered the great revival movement which was being conducted, principally by the Wesleys, and he at once threw himself into the work. Meanwhile, he had conceived a plan for a home for orphans in Georgia, and, a little later, he determined upon a visit to New England in its behalf. Upon his arrival in Boston in 1740, the Rev. George Whitefield was welcomed with open arms. Great honor was paid him. Crowds flocked to hear him, and he was sped with money and good-will throughout New England as he journeyed, preaching the gospel, and seeking alms for the southern orphanage. His advent coincided in time with the reviving interest in religion, especially in Connecticut. Interest over the revival of 1735 had centred on that colony the eyes of the whole non-liturgical English-speaking world. Whitefield's preaching was to this awakening religious enthusiasm as match to tinder.

The religious passion, kindled in 1735 by Edwards, and hardly less by his devoted and spiritually-minded wife, had in Connecticut swept over Windsor, East Windsor, Coventry, Lebanon, Durham, Stratford, Ripton, New Haven, Guilford, Mansfield, Tolland, Hebron, Bolton, Preston, Groton, and Woodbury. [99] The period of this first "harvest" was short. The revival had swept onward, and indifference seemed once more to settle down upon the land. But the news of the revival in Connecticut had reached England through letters of Dr. Benjamin Coleman of Boston. His account of it had created so much interest that Jonathan Edwards was persuaded to write for English readers his "Narrative of the Surprising Work of God." Editions of this book appeared in 1737-38 in both England and America, and all Anglo-Saxon non-prelatical circles pored over the account of the

recent revival in Connecticut. Religious enthusiasm revived, and was roused to a high pitch by Whitefield's itinerant preaching, as well as by that of Jonathan Edwards, and by the visit to New England of the Rev. Gilbert Tennant, one of two brothers who had created widespread interest by their revival work in New Jersey. A religious furor, almost mania, spread through New England, and the "Great Awakening" came in earnest.

The Rev. George Whitefield reached Newport, Rhode Island, in September, 1740. Crowds flocked to hear him during his brief visit there. In October, he proceeded to Boston, where he preached to enthusiastic audiences, including all the high dignitaries of Church and State. During his ten days' sojourn in the city, no praise was too fulsome, no honor too great. Whitefield next went to Northampton, drawn by his desire to visit Edwards. After a week of conference with the great divine, Whitefield passed on through Connecticut, preaching as he went, and devoted the rest of the year to itinerating through the other colonies. Already his popularity had been too much for him, and he frequently took it upon himself to upbraid, in no measured terms, the settled ministry for lack of earnestness in their calling and lack of Christian character. This visit of Whitefield was followed by one from the Rev. Gilbert Tennant, who arrived in Boston in December, and spent his time, until the following March, preaching in Massachusetts and Connecticut. Tennant was also outspoken in his denunciations, and both men, while sometimes justified in their criticisms, were frequently hasty and censorious in their judgments of those who differed from them.

Ministers throughout New England were quick to support or to oppose the revival movement, and a goodly number of them, as itinerants, took up the evangelical work. Dr. Colman and Dr. Sewall of Boston, Jonathan Edwards and Dr. Bellamy of Connecticut, were among the most influential divines to support the Great Awakening,—to call the revival by the name by which it was to go down in history. Unfortunately, among the aroused

people, there were many who pressed their zeal beyond the reverent bounds set by these leaders. The religious enthusiasm rushed into wild ecstasies during the preaching of the almost fanatic Rev. James Davenport of Southold, and of those itinerant preachers who, ignorant and carried away by emotions beyond their control, attempted to follow his example.

During this religious fever there were times when all business was suspended. Whole communities gave themselves up to conversion and to passing through the three or more distinct stages of religious experience which Jonathan Edwards, as well as the more ignorant itinerants, accepted as signs of the Lord's compassion. Briefly stated, these stages were, first, a heart-rending misery over one's sinfulness; a state of complete submissiveness, expressing itself in those days of intense belief both in heaven and in a most realistic hell, as complete willingness "to be saved or damned,"[c] whichever the Lord in his great wisdom saw would fit best into His eternal scheme. Finally, there was the blessed state of ecstatic happiness, when it was borne in upon one that he or she was, indeed, one of the few of "God's elect." [100] The revival meetings were marked by shouting, sobbing, sometimes by fainting, or by bodily contortions. All these, in the fever of excitement, were believed by many persons to be special marks of supernatural power, and, if they followed the words of some ignorant and rash exhorter, they were even more likely to be considered tokens of divine favor,—illustrations of God's choice of the simple and lowly to confound the wisdom of the world. The strong emotional character of the religious meetings of our southern negroes, as well as their frequent sentimental rather than practical or moral expression of religion, has been credited in large measure to the hold over them which this great religious revival of the eighteenth century gained, when its enthusiasm rolled over the southern colonies. Be that as it may, any adequate appreciation of the frequent daily occurrences in New England during the Great Awakening would be best realized by one of this twentieth

century were it possible to form a composite picture, having the unbridled emotionalism of our negro camp-meetings superimposed upon the solid respectability and grave reasonableness of the men of that earlier day. As the lines of one and the other constituent of this composite picture blend, the momentary feeling of impatience and disgust vanishes in a wave of compassion as the irresistible earnestness and the pitiless logic of those days press, for recognition, and we realize the awful sufferings of many an ignorant or sensitive soul. It was not until the religious revival had passed its height that the people began to realize the folly and dangers of the hysteria that had accompanied it. It was not until long afterward that many of its characteristics, which had been interpreted as supernatural signs, were known and understood, and correctly diagnosticated as outward evidence of physical and nervous exhaustion.

Such, outwardly, were the marked features of the Great Awakening. Yet its incentives to noble living were great and lasting. Its immediate results were a revolt against conventional religion, a division into ecclesiastical parties, and a great schism within the Establishment, which, before the breach was healed, had improved the quality of religion in every meeting-house and chapel in the land and broadened the conception of religious liberty throughout the colony.

## **FOOTNOTES:**

[a] At Northampton in 1680, 1684, 1697, 1713, and 1719.

[b] As early even as 1711, the Hartford North Association suggested some reformation in the Half-Way Covenant practice because it noted that persons, lax in life, were being admitted under its terms of church membership.

[c] This "to be saved or damned" was, later, a marked characteristic of Hokinianism, or the teaching of the Rev. Samuel Hopkins, 1723-1813.

## CHAPTER X

### THE GREAT SCHISM

If a house be divided against itself.—Mark iii, 25.

From such a revival as that of the Great Awakening, parties must of necessity arise. Upon undisciplined fanaticism, the Established church must frown. But when it undertook to discipline large numbers of church members or whole churches, recognizedly within its embracing fold and within their lawful privileges, a great schism resulted, and the schismatics were sufficiently tenacious of their rights to come out victorious in their long contest for toleration.

The proviso of the Saybrook Platform had arranged for the continued existence of churches, Congregational rather than Presbyterian in their interpretation of that platform; yet, as late as 1730, when but few remained, the question had arisen whether members of such churches, "since they were allowed and under the protection of the laws," ought to qualify according to the Toleration Act. The Court decided in the negative, [101] arguing that, although they differed from the majority of the churches in preferring the Cambridge Platform of church discipline, they had been permitted under the colony law of May 13, 1669, establishing the Congregational church, and had been protected by the proviso of 1708. The Court in its decision of 1730 seems also to have included a very few churches that had revolted from the religious formalism creeping in under the Saybrook system, and that had returned to the earlier type of



Congregationalism. After the Great Awakening, churches "thus allowed and under the protection of our laws" were found to increase so rapidly that the movement away from the Saybrook Platform threatened to undermine the ecclesiastical system, and to endanger the Establishment. Seeing this, the Court, or General Assembly,[a] began to enforce the old colony law that with it alone belonged the power to approve the incorporating of churches. And shortly after it began to harass these separating churches, and to enact laws to prevent the farther spread of reinvigorated Congregationalism unless of the Presbyterian type. Soon after 1741, the churches that drew away from the Saybrook system of government became known as Separate churches, and their members as Separatists. When these people found that the Assembly would no longer approve their organizing as churches, they attempted, as sober dissenters from the worship established in the colony, to take the benefit of the Toleration Act. The Assembly next "resolved that those commonly called Presbyterians or Congregationalists should not take the benefit of that Act." [102]

Here was a difficulty indeed. There was no place for the Separatist, yet there was need of him, and he felt sure there was. Furthermore, there were others who felt the need to the community of his strong religious earnestness, though they might deplore his extravagances. His strong points were his assertion of the need of regeneration, his reassertion of the old doctrines of justification by faith and of a personal sense of conversion, including, as a duty inseparable from church membership, the living of a highly moral life. The weakness of the Separatist lay in his assertion, first, that every man had an equal right to exercise any gifts of preaching or prayer of which he believed himself possessed; secondly, of the value of visions and trances as proofs of spirituality; and finally, of every one's freedom to withdraw from the ministry of any pastor who did not come up to his standard of ability or helpfulness. It followed that the Separatists insisted upon the right to set up their own churches and to appoint their own

ministers, although the latter might have only the doubtful qualification of feeling possessed with the gift of preaching. The Separatists organized between thirty and forty churches. Some of them endured but a short time, suffering disintegration through poverty. Others fell to pieces because of the unrestrained liberty of their members in their exhortations, in their personal interpretation of the Scriptures, and in their exercise of the right of private judgment, with the consequent harvest of confusion, censoriousness, and discord that such practices created. In years later, many of the Separate churches, tired of the struggle for recognition and weighed down by their double taxation for the support of religion, buried themselves under the Baptist name. Indeed they "agreed upon all points of doctrine, worship, and discipline, save the mode and subject of baptism." A few Separatist churches, a dozen or more, continued the struggle for existence until victory and toleration rewarded them. After the teachings of Jonathan Edwards had purified the churches and had driven out the Half-Way Covenant, against which the Separatists uttered their loudest protests, many of these reformers returned to the Established church.

In the practice of—their principles, the Separatists, both as churches and as individuals, were often headstrong, officious, intermeddling, and censorious. They frequently stirred up ill-feeling and often just indignation. The rash and heedless among them accused the conservative and regular clergy of Arminianism, when the latter, influenced by the Great Awakening, revived the doctrines of original sin, regeneration, and justification by faith, but were careful to add to these Calvinistic dogmas admonitions to such practical Christianity as was taught by Arminian preachers. The Separatists feared lest the doctrine of works would cause men to stray too far from the doctrine of justification by faith alone, and they were often very intemperate in their denunciation of such "false teachers." It was a day of freer speech than now, and at least two of the great leaders in the revival had set a very bad example of calling names. Mr. Whitefield considered Mr.

Tennant a "mighty charitable man," yet here are a few of the latter's descriptive epithets, collected from one of his sermons and published by the Synod of Philadelphia. Dr. Chauncey of Boston quotes them in an adverse criticism of the revival movement. Mr. Tennant speaks of the ministers thus:—hirelings, caterpillars, letter-learned Pharisees, Hypocrites, Varlets, Seed of the Serpent, foolish Builders whom the Devil drives into the ministry, dead dogs that cannot bark, blind men, dead men, men possessed of the devil, rebels and enemies of God. [103]

Naturally, party lines were soon drawn in New England. There were the Old Calvinists or Old Lights on the one side, and the Separatists and New Lights on the other. The New Lights were those within the churches who were moved by the revival and who desired to return to a more vital Christianity. In many respects they sympathized with the Separatists, although disapproving their extravagances. In many churches, hounded by the opposition of the conservatives, the New Lights drew off and formed churches of their own. Thus while the Separatists may be compared to the early English Separatists, the New Lights would correspond more to the Puritan party that desired reform within the Establishment. In the eighteenth century movement, in Connecticut, the Old Lights held the political as well as the ecclesiastical control until, in the process of time, the New Lights gained an influential vote in the Assembly. Always, there was a good, sound stratum of Calvinism in both the Old and the New Light parties, and also among the Separatists, and the latter were generally included in the New Light party, especially if spoken of from the point of view of political affiliations. The idiosyncrasies of the Separatists softened down and fell away in time. The Calvinism of Old and New Lights became a rallying ground whereon each, in after years, gathered about the standard of a reinvigorated church life; and then the terms Old Light and New, with their suggestions of party meaning, whether religious, or political, passed away. The term Separatist was retained for a while longer, merely to distinguish

the churches that preferred to be known as strict Congregationalist rather than as Presbyterianized Congregationalist, or, for short, Presbyterian.

From the time of the Great Awakening, there were nearly forty years of party contest over religious privileges, many of which had been previously accorded but which were speedily denied to the Separatists by a party dominant in the churches and paramount in the legislature; by a party which was determined to bring the whole machinery of Church and State to crush the rising opposition to its control. Accordingly, it was nearly forty years before the Separatists received the same measure of toleration as that accorded to Episcopalian, Quaker, and Baptist. It was ten years before the New Lights in the Assembly could, as a preliminary step to such toleration, force the omission from the revised statutes of all persecuting laws passed by the Old Light party.

The keynote to the long struggle was sounded at a meeting of the General Consociation at Guilford, November 24, 1741. This was the first and only General Consociation ever called. It was convened at the expense of the colony, to consider her religious condition and the dangers threatening her from the excitement of the Great Awakening, from unrestrained converts, from rash exhorters, and from itinerant preachers, who took possession of the ministers' pulpits with little deference to their proper occupants. The General Consociation decided—

that for a minister to enter another minister's parish, and preach or administer the seals of the Covenant, without the consent of, or in opposition to the set tied minister of the parish, is disorderly, notwithstanding if a considerable number of the people in the parish are desirous to hear another minister preach, provided the same be orthodox, and sound in the faith and not notoriously faulty in censuring other persons, or guilty of any scandal, we think it ordinar

rily advisable for the minister of the parish to gratify them by giving his consent upon their suitable application to him for it, unless neighboring ministers advise him to the contrary. [104]

This was not necessarily an intolerant attitude, but it was hostile rather than friendly to the revival. It left neighboring ministers, that is, the Associations, if one among their number seemed to be too free in lending his pulpit to itinerant preachers, to curb his friendliness. Intolerance might come through this limitation, for the local Association might be prejudiced. If its advice were disregarded and disorders arose, the Consociation of the county could step in to settle difficulties and to condemn progressive men as well as fanatics. In its phrasing, this ecclesiastical legislation left room for the ministrations of reputable itinerants, for among many, some of whom were ignorant and self-called to their vocation, there were others whose abilities were widely recognized. Foremost among such men in Connecticut were Jonathan Edwards himself, Dr. Joseph Bellamy of Bethlem, trainer of many students in theology, Rev. Eleazer Whelock of Lebanon, Benjamin Pomroy of Hebron, and Jonathan Parsons of Lyme. Among itinerants coming from other colonies, the most noted, after Whitefield and Tennant, was Dr. Samuel Finley of New Jersey, later president of Princeton. Naturally men like these, who felt strongly the need of a revival and believed in supporting the "Great Awakening," despite its excitement and errors, did not countenance the rash proceedings of many of the ignorant preachers, who ran about the colony seeking audiences for themselves.

The measures of the General Consociation were mild in comparison with the laws passed by the legislature in the following May. Governor Talcott, tolerant toward all religious dissenters, had recently died, and the conservative Jonathan Law of Milford was in the chair of the chief magistrate. Governor Law had grown up among the traditions of that

narrow ecclesiasticism which had always marked the territory of the old New Haven Colony. Moreover, the measures of the Consociation had been futile. One of the chief offenders against them was the Rev. James Davenport of Southold, Long Island, who not only went preaching through the colony, stirring up by his fanaticism, his visions, and his ecstasies, the common people, and finding fault with the regular clergy as "unconverted men," but who pushed his religious enthusiasm to great extremes by everywhere urging upon excitable young men the duty to become preachers like himself. He had introduced a kind of intoning at public meetings. This tended to create nervous irritability and hysterical outbursts of religious emotionalism, and these, Davenport taught his disciples, were the signs of God's approval of them and their devotion to Him. The government, watching these tumultuous meetings, concluded that it was time to show its ancient authority and to save the people from "divisions and contentions," the ecclesiastical constitution from destruction, and the ministry from "unqualified persons entering therein." Accordingly, in May, 1742, the Assembly passed a series of laws, [105] so severe that even ordained ministers were forbidden to preach outside their own parishes without an express invitation and under the penalty of forfeiting all benefits and all support derived from any laws for the encouragement of religion ever made in the colony. The new enactments also forbade any Association to license a candidate to preach outside its own bounds or to settle any disputes beyond its own territory.[106] These laws also permitted any parish minister to lodge with the society clerk a certificate charging that a man had entered his parish and had preached there without first obtaining permission. Furthermore, there was no provision for confirming the truth or proving the falsity of such a statement. In connection with the certificate clause, it was also enacted that no assistant, or justice of the peace, should sign a warrant for collecting a minister's rates until he was sure that nowhere in the colony was there such a certificate lodged against the minister making application

for this mode of collecting his ministerial dues. [107] Finally, the laws provided that a bond of £100 should be demanded of a stranger, or visiting minister, who had preached without invitation, and that he should be treated as a vagrant, and sent by warrant "from constable to constable, out of the bounds of this Colony." [108]

These laws restrained both *ordained Ministers* and *licensed candidates* from preaching in *other Men's Parishes* without *their* and the *Church's* consent and wholly prohibited the *Exhortations of Illiterate Laymen*.

These laws were a high-handed infringement of the rights of conscience, and in a few years fell and buried with them the party that had enacted them. These were the laws which he (Davenport) exhorted his hearers to set at defiance; and seldom, it must be acknowledged, has a more plausible occasion been found in New England to preach disregard for the law.

The laws were framed to repress itinerants and exhorters through loss of their civil rights. By them, a man's good name was dishonored and he was deprived of all his temporal emoluments. By many, in their own day, the laws were regarded as contrary to scriptural commands, and to the opinion and practice of all reformers and of all Puritans. These laws, with others that followed, were not warranted by the ecclesiastical constitution of the colony, and could find no parallel either in England or in her other colonies. Trumbull calls them—

a concerted plan of the Old Lights or Arminians both among the clergy and civilians, to suppress as far as possible, all zealous Calvinistic preachers, to confine them entirely to their own pulpits; and at the same time to put all the public odium and reproach upon

them as wicked, disorderly men, unfit to enjoy the common rights of citizens. [109]

Yet for these laws the Association of New Haven sent a vote of thanks to the Assembly when it convened in their city in the following fall.

Jonathan Edwards opposed both the spirit of the General Consociation and also the legislation of the Assembly. He expressed his attitude toward the Great Awakening both at the time and later. In 1742 he wrote:—

If ministers preached never so good a doctrine, and are never so laborious in their work, yet if at such a day as this they show their people that they are not well affected to this work [of revival], they will be very likely to do their people a great deal more hurt than good.

Six years later Edwards wrote a preface to his "An Humble Inquiry into the Qualifications for Full Communion in the Visible Church of God," a treatise severely condemning the Half-Way Covenant, and urging the revival of the early personal account of conversion. In this preface he excuses his hesitation in publishing the work, on the ground that he feared the Separatists would seize upon his arguments to encourage them and strengthen them in many of their reprehensible practices. These, Edwards reminds his reader, he had severely condemned in his earlier publications, notably in his "Treatise on Religious Affections," 1746, and in his "Observations and Reflections on Mr. Brainerd's Life." In his preface Edwards repeats his disapproval of the Separatist "notion of a *pure church* by means of a *spirit of discerning*; their *ensorious outcries* against the standing ministers and churches in general, their *lay ordinations*, their *lay-preaching* and *public exhortings* and administering sacraments; and their self-complacent, presumptuous spirit." Edwards believed that enthusiasts, though unlettered, might exhort in private, and even in public religious



gatherings might be encouraged to relate in a proper, earnest, and modest manner their religious experiences, and might also entreat others to become converted. He maintained that much of the criticism of an inert ministry was well founded, that much of the enthusiastic work of laymen and of the itinerants deserved to be recognized by the regular clergy, and that they ought to bestir themselves in furthering such enthusiasm among their own people. Edwards urged also his belief in the value of good works, not as meriting the reward of future salvation, but as manifesting a heart stirred by a proper appreciation of God's attributes. Jonathan Edwards held firmly to the foundation principles of the conservative school, while he sympathized with and supported the best elements in the revival movement.

This attitude of Edwards eventually cost him his pastorate, for he judged it best to resign from the Northampton church, in 1750, because of the unpopularity arising from his repeated attacks upon the Half-Way Covenant and the Stoddardean view of the Lord's supper. Nevertheless, it was the influence of Jonathan Edwards and of his following which gradually brought about a union of the religious parties, after the Separatists had given up their eccentricities and the leaven of Edwards' teachings had brought a new and invigorated life into the Connecticut churches. This preacher, teacher, and evangelist was remarkable for his powerful logic, his deep and tender feeling, his sincere and vivid faith. These characteristics urged on his resistless imagination, when picturing to his people their imminent danger and the awful punishment in store for those who continued at enmity with God. Of his work as a theologian, we shall have occasion to speak elsewhere.

Some illustrations of church life in the troublous years following the Great Awakening will best set forth the confusion arising, the difficulties between Old and New Lights, and the hardships of the Separatists. Among the colony churches, the trials of three may be taken as typical,—the New

Haven church[110], the Canterbury church,[111] and the church of Enfield. [112] Nor can the story of the first two be told without including in it an account of later acts of the Assembly and of the attitude of the College during the years of the great schism.

The pastor of the New Haven church was Mr. Noyes, whom many of his parishioners thought too noncommittal, erroneous, or pointless in discussing the themes which the itinerant preachers loved to dwell upon. Moreover, Mr. Noyes had refused to allow the Rev. George Whitefield to preach from his pulpit while on his memorable pilgrimage through New England. Mr. Noyes had also forbidden the hot-headed James Davenport to occupy it. As a result of their minister's actions, the New Haven church was divided in their estimate of their pastor. There were the friendly Old Lights and the hostile New. Neither party wished to carry their trouble before the Consociation of New Haven county, for that had come at last to be a tribunal "whose decision was at that time considered *judicial* and *final*." Moreover, at the meeting of the General Consociation at Guilford in November, 1741, it was known that Mr. Noyes had been a most active worker in favor of suppressing the New Light movement. Consequently the New Lights, though at the time in the minority, sought to find a way out from under the jurisdiction of the Saybrook Platform and its councils by declaring that the church had never *formally* been made a Consociated church. This was literally true, but the weight of precedent and their own observances were against them. Like other churches in the county, which had come slowly to the acceptance of the Saybrook councils as ecclesiastical courts, it had finally accepted them in their most authoritative character. Such being the case, the New Lights hesitated to appeal against their minister before a court presumably favorable to him. After the New Lights had declared the church not under the Saybrook system, Mr. Noyes determined to take the vote of his people as to whether they considered themselves a Consociated church. But as he was a little fearful of the result

of the vote, he secured the victory for his own faction by excluding the New Lights from voting. Thereupon, the New Lights took the benefit of the Toleration Act as "sober dissenters," and became a Separate church. The committee, appointed for the organization of the new church, declared that "they were reestablished as the original church." The benefit of the Toleration Act accorded to these New Light dissenters in New Haven, to some in Milford,[b] and to several other reinvigorated churches in the southern part of the colony, roused the opposition of the Old Lights in the Assembly, and, as they counted a majority, they repealed the act in the following year, 1743. Three or four weeks after the New Haven New Lights had formed what was afterwards known as the North Church, the General Assembly met for its fall session in that city, and, as has been said, the New Haven Association immediately sent a vote of thanks for the stringent laws passed at the May meeting. The Court, moved by this indication of the popular feeling, by the importance of the church schism and its influence throughout the colony, by the conservative attitude of Yale College, and also by having among its delegates large numbers of Old Lights, proceeded to enact yet more stringent measures than those of the preceding session. The result was that the North Church could hire no preacher until they could find one acceptable to the First Church and Society, because the pastor elected by the First Church was the only lawfully appointed minister, since he owed his election to the majority votes of the First Society. Furthermore, the Court, in 1743, refused a special application of the North Church for permission to settle their chosen minister, and it was some five or six years before it ceased this particular kind of persecution and permitted the church to have a regular pastor.

The story of this New Haven church extends beyond the time-limit of this chapter, but it is better completed here. The stringency of the laws only increased the bitterness of faction. In 1745, feeling ran so high that a father refused to attend his son's funeral merely because they belonged to

opposing factions, and an attempt to build a house of worship for this Separate church resulted in serious disturbances and in the charge of incendiarism. The New Lights preferred imprisonment to the payment of taxes assessed for the benefit of the First Church. At last, in 1751, the October session of the General Assembly thought it best "for the good of the colony and for the peace and harmony of this and other churches" infected by its example, to advise that the differences within it be healed by a council to be composed of both Old and New Lights.[113] The suggestion bore no fruit, and a year later the New Lights themselves again asked for a council, even offering to apologize to the First Church for their informality in separating from it, and for their part in the heated controversy that followed; but Mr. Noyes induced his party to refuse to accede to the proposed conference. As the North Church had grown strong enough by this time to support a regular pastor, Mr. Bird accepted its call; yet for six years longer, because the Assembly refused to divide the society, the New Lights were held to be members of the First Society and taxable for its support. But in 1757, the New Lights gained the majority both in church and society, a majority of *one*. At once, the New Lights were released from taxes to the First Church. Now the dominant party, they attempted to pay back old scores, and accordingly demanded a division of both church and society property. The claim to the first was unfair, and they eventually abandoned it. The church quarrel finally ceased in 1759, after a duration of eighteen years, and in 1760 Mr. Bird was formally installed with fitting honors.

In the early days of the Great Awakening, the Canterbury church became divided into Old Lights and New, and a separation took place. Before the separation, a committee, who were appointed to look up the church records, gave it as their opinion that the church was not and never had been pledged to the Saybrook Platform. Nevertheless, the very men who gave this decision became the leaders of the minority, who determined to support the government in carrying out its oppressive laws of 1742. These laws had

been passed while the committee were searching the church records. The majority of the church, incensed at having their liberty curtailed, proceeded to defy the law by listening to lay exhorters and to itinerants just as they had been in the habit of doing ever since the church had felt the quickening influences of the Great Awakening. This majority declared that it was "regular for this church to admit persons into this church that are in full communion with other churches and come regularly to this." This decision the minority characterized as unlawful according to the recent acts of the Assembly. The majority proceeded to argue the right of the majority in the church as above the right of the majority in the society, or parish, to elect the minister and to guide the church. In an attempt to satisfy both parties, candidates were tried, but they could not command a sufficient number of votes from either side to be located permanently. A meeting in 1743 of the Consociation of Windham (to whose jurisdiction the Canterbury church belonged), together with a council of New Lights, brought temporary peace. A candidate was agreed upon; but in a few months the New Lights became dissatisfied with him because of his approval of the Saybrook system of church government, his acceptance of the Half-Way Covenant, and other opinions. Controversy revived. The majority of the church withdrew, and for a while met in a private house for services, which were conducted by Solomon Paine or by some other layman. As a result, the Windham Association passed a vote of censure against the seceders. Paine wrote a sharp retort, for which he was arrested, although ostensibly on the charge of unlawfully conducting public worship. He refused to give bonds and was committed to Windham jail in September, 1744. Such crowds flocked to the prison yard to hear him preach, and excitement ran so high, that the officer who had conducted his trial appeared before the Assembly to protest that such legal proceedings did but tend to increase the disorders they were intended to cure. Accordingly, Paine was released in October.

The interest of the whole colony was now centred on the defiant and determined Canterbury Separate church, and the November meeting of the Windham Association had the schism under consideration, when Yale expelled two Canterbury students whose parents were members of that church.

In October, 1742, in order to protect the college and the ministry and to deal a blow at the "Shepherd's Tent," a kind of school or academy which the New Lights had set up in New London for qualifying young men as exhorters, teachers, and ministers, the General Assembly had decided that no persons should presume to set up any college, seminary of learning, or any public school whatever, without special leave of the legislature.[115] The Court had also enacted that no one should take the benefit of the laws respecting the settlement and support of ministers unless he were a graduate of Yale or Harvard, or some other approved Protestant university. It had also given explicit directions for the supervision of the schools throughout the colony and of their masters' orthodoxy,[116] and had advised Yale to take especial care that her students should not be contaminated by the New Lights. The Congregationalists had reported the "Shepherd's Tent" as a noisy, tumultuous resort, because it was occasionally used for meetings, and had added that it was openly taught in that school that there would soon be a change in the government, and that disobedience to the civil laws was not wrong. The Assembly, fearing that it might "train up youth in ill practices and principles," sought to put an end to it. As to the advice to the college, Yale was only too eager to follow it, and the same year expelled the saintly David Brainerd[117] for criticising the prayers of the college preachers as lacking in fervor. His offense was against a college law of the preceding year which forbade students to call their officers "hypocritical, carnal or unconverted men." The college, as the New Light movement increased, came to the further conclusion that—

since the principal design of erecting this college was to train up a succession of learned and orthodox ministers by whose example people might be directed in the ways of religion and good order ... it would be a contradiction to the civil government to support a college to educate students to trample upon their own laws, to break up the churches which they establish and protect, especially since the General Assembly in May 1742, thought proper to give the governors of the college some special advice and direction upon that account, which was to the effect that proper care should be taken to prevent the scholars from imbibing those or like errors; and those who would not be orderly and submissive, should not be allowed the privileges of the college.

Solomon Paine made answer to this law. With fine irony, he assured the people that in effect it forbade all students attending Yale College to go to any religious meeting even with their parents, should they be Separatists or New Lights, because—

no scholar upon the Lord's day or other day, under pretence of religion, shall go to any public or private meeting, not established or allowed by public authority or approved by the President, under penalty of a fine, confession, admonition or otherwise, according to the state and demerit of the offence, for fear that such preaching would end in "Quakerism," open infidelity, and the destruction of all Christian religion, and make endless divisions in the Christian church till nothing hut the name of it would be left in the world.

The two Cleveland brothers, John and Ebenezer, had spent the fall vacation of 1744 [c] with their parents at their home in Canterbury, and by request of their elders had frequented the Separatist church there. On their return to Yale, the boys were admonished. They professed themselves ready

to apologize, but not in such words as the authorities thought sufficiently submissive, for the latter considered that the boys had broken the laws "of God, of the Colony and of the College." [119] The boys very ably argued that, under the circumstances, there had been nothing else for them to do but to go to church with their parents when requested to do so, and held to their position. Yale expelled them, and there followed a sensation throughout the colony. [120]

The leaders of the New Light party in the church of Canterbury were the nearest relatives and friends of the Cleveland boys, who came to be regarded as martyrs to their religion. Their treatment opened the question as to whether the steadily increasing numbers of New Lights were to lose for their children the benefit of the college, that they helped to support. Must they, in order to send their sons to college, deprive them for four years of a "Gospel ministry" and lay them open to consequent grave perils? Why should New Lights be required to make such a sacrifice, or why, in vacation, should their children be required to submit to the ecclesiastical laws of the college? If Episcopalians were permitted to have their sons, students at Yale, worship with them during the vacations, why should not the same liberty be granted to equally good citizens who differed even less in theological opinions?

Because of this college incident the difficulties in the Canterbury church attracted still more attention, but the end of the schism was at hand. In the month that witnessed the expulsion of the Clevelands, the minority of the original First Church voted that they were "The Church of Canterbury," and that those who had gone forth from among them in the January of the preceding year, 1743, as Congregationalists after the Cambridge Platform, had abrogated that of Saybrook. Consequently, to the minority lawfully belonged the election of the minister, the meeting house, and the taxes for



ministerial support. Having thus fortified their position, they by a later vote declared:—

That those in the society who are differently minded from us, and can't conscientiously join in ye settlement of Mr. James Coggeshall as our minister may have free liberty to enjoy their own opinion, and we are willing they should be released and discharged from paying anything to ye support of Mr. Coggeshall, or living under his ministry any longer than until they have parish privileges granted them and are settled in church by themselves according to ye order of ye Gospel, or are lawfully released. [121]

At the repeal of the Toleration Act in 1743, a new method had been prescribed for sober dissenters who wished to separate from the state church, and who were not of the recognized sects. The method of relief, thereafter, was for the dissenters, no matter how widely scattered in the colony, to appeal in person to the General Assembly and ask for special exemption. Moreover, they were promised only that their requests would be listened to, and the Assembly was growing steadily more and more averse to granting such petitions. As a result of this policy, the Separatist church of Canterbury did not have a very good prospect of immediate ability to accept the good-will of the First Church, which went even farther than the resolution cited above. The First Church offered to assist the Separatists in obtaining recognition from the Assembly. This offer the Separatists refused, preferring to submit to double taxation, and thus to become a standing protest to the injustice of the laws.

After the expulsion of the Cleavelands, Yale made one more pronounced effort to discipline its students and to repress the growth of the liberal spirit. She attempted to suppress a reprint of Locke's essay upon "Toleration" which the senior class had secretly printed at their expense. An attempt to

overawe the students and to make them confess on pain of expulsion was met by the spirited resistance of one of the class, who threatened to appeal to the King in Council if his diploma were denied him. His diploma was granted; and some years after, when the sentiment in the colony had further changed, the college gave the Cleveland brothers their degree.

The church in Enfield[122] had an experience somewhat similar to that of Canterbury, to which it seems to have looked for spiritual advice and example. The Enfield Separate church was probably organized between 1745 and 1751, though its first known documents are a series of letters to the Separate church in Canterbury covering the period 1751-53. These letters sought advice in adjusting difficulties that were creating great discord in the church, which had already separated from the original church of Enfield. In 1762, the Enfield Separatists, once more in harmony, renewed their covenant, and called Mr. Nathaniel Collins to be their pastor. They struggled for existence until 1769, when they appealed to the General Assembly for exemption from the rates still levied upon them for the benefit of the First Society. They asked for recognition, separation, and incorporation as the Second Society and Church of Enfield. They were refused; but in May of the following year,—a year to be marked by special legislation in behalf of dissenters,—the Enfield Separatists again memorialized the Assembly, and in response were permitted to organize their own church. [123] This permission, however, was limited to the memorialists, eighty in number; to their children, if within six months after reaching their majority they filed certificates of membership in this Separate church; and to strangers, who should enter the new society within one year of their settling in the town. The history of the Enfield Separatists gives glimpses of the frequent double discord between the New Lights and the Old and among the New Lights themselves. The period of the Enfield persecution extended over years when, elsewhere in the colony, Separatists

had obtained recognition of their claims to toleration, if only through special acts and not by general legislation.

If churches suffered from the severe ecclesiastical laws of 1742-43, individuals did also. Under the law which considered traveling ministers as vagrants, and which the Assembly had made still more stringent by the additional penalty "to pay down the cost of transportation," so learned a man as the Rev. Samuel Finley, afterwards president of Princeton, was imprisoned and driven from the colony because he insisted upon preaching in Connecticut. Indeed, it was his persistence in returning to the colony that caused the magistrates to increase the severity of the law.[124] When the ministers John Owen of Groton and Benjamin Pomeroy of Hebron, as well as the itinerant James Davenport of Southold, criticised the laws, all of them were at once arraigned for the offense before the Assembly. There was so much excitement over the arrest of Pomeroy and Davenport that it threatened a riot. All three men were discharged, but Davenport was ordered out of the colony for his itinerant preaching and for teaching resistance to the civil laws. Pomeroy, his friend, had declared that the laws forbade any faithful minister, or any one faithful in civil authority, to hold office. Events bore out his statement, for ministers were hounded, and the New Light justices of the peace, and other magistrates, were deprived of office. Pomeroy, himself, was discharged only to be complained of for irregular preaching at Colchester and in punishment to be deprived of his salary for seven years.[125] The Rev. Nathan Stone of Stonington was disciplined for his New Light sympathies. Philemon Bobbins of Branford was deposed for preaching to the Baptists at Wallingford. This last procedure was the work of the Consociation of New Haven county, which thereby began a six years' contest, 1741-47, with the Branford church. In 1745 this church attempted to throw off the yoke of the Consociation by renouncing the Saybrook Platform.

During these years of persecution, the opposition to the Old Light policy was gradually gaining effective power, although the college had expelled Brainerd, and Mr. Cook, one of the Yale corporation, had found it expedient to resign because of his too prominent part in the formation of the North Church of New Haven. The Old Lights in the legislature of 1743 passed the repeal of the Toleration Act because the New Lights had no commanding vote; but they were increasing throughout the colony. Fairfield East Consociation had licensed Brainerd the year that Yale expelled him. Twelve ministers of New London and Windham county had met to approve the revival, notwithstanding the repeal of the Toleration Act and the known antagonism of the Windham Association to the Separatists. Windham Consociation and that of Fairfield East favored the revival. Large numbers of converts were made in these districts, and many also in Hartford county. In the New Haven district the spirit of antagonism and of persecution was strongest.

It was in accordance with the laws of 1742-43 that Mack, Shaw, and Pyrlæus, Moravian missionaries, on a visit in 1744 to their mission stations among the Indians in Connecticut, were seized as Papists and hustled from sheriff to sheriff for three days until "the Governor of Connecticut honorably dismissed them," though their accusers insisted upon their being bound over under a penalty of £100 to keep the law. "Being not fully acquainted with all the special laws of the country, they perceived a trap laid for them and thought it prudent to retire to Shekomeko" (Pine Plains, Dutchess County, N. Y.). Missionaries sent out from Nazareth and Bethlehem, Pennsylvania, had established this sub-centre for work in New York and Connecticut, and in the latter colony, in 1740-43, had made Indian converts at Sharon, Salisbury Indian Pond, near Newtown, and at Pachgatgoch, two miles southwest of Kent. Here was their principal station in Connecticut. They had made, in all, some twenty converts among the Indians, and had reclaimed several of their chief men from drunkenness and

idleness. Moravian principles forbade these missionaries to take an oath. Consequently, the greed of traders, the rivalry of creeds, together with the belief that there was something wrong about men who would not swear allegiance to King George,—notwithstanding their willingness to affirm it, and notwithstanding their denial of the Pretender,—gave rise to the conviction that they must be Papists[d] in league with the French and their Indian allies. Accordingly both magistrates and ministers arrested the missionaries, and hurried them before the court at Poughkeepsie or at New Milford. Though the governors of both states recognized the value of the mission work, popular feeling ran so high that New York, in September, 1744, passed a law requiring them to take the oaths prescribed or to leave the country, and also commanding that "vagrant Teachers, Moravians, and disguised Papists should not preach or teach in public or private" without first obtaining a license. In Connecticut, as has been said, the laws of 1742-1743 were enforced against them; later, when during the Old French War groundless rumors of their intrigues with hostile Indians were circulated against them, a vain hunt was made for three thousand stands of arms that were said to be secreted in their missions. The severe persecution in New York had driven these missionaries into Pennsylvania and into Connecticut, but these rumors of intrigue broke up their work and caused the abandonment of their stations in the latter colony. Some of these, such as Kent, Sharon, and Salisbury, were revived in 1749-1762, at the request of the English settlers as well as of the Indian converts.[126]

Returning to the main story of the progress of dissent, we find that in 1746 the General Court of Connecticut felt obliged to safeguard the Establishment by the passage of a law entitled, "Concerning who shall vote in Society Meetings." [127] Its preamble states that persons exempted from taxes for the support of the established ministry, because of their dissenting from the way of worship and ministry of the Presbyterian, Congregational, or Consociated churches, "ought not to vote in society meetings with

respect to the support or to the building and maintaining of meeting houses," yet some persons, exempted as aforesaid, "have adventured to vote and act therein," as there was no express law to the contrary. The new law forbade such voting, and limited the ecclesiastical ballot to members of the Establishment who "were persons of full age and in full communion with the church," and to other unexempted persons who held a freehold rated at fifty shillings per year, or personal property to the value of forty pounds. This law was just, in that it excluded all dissenters who had received exemption from Presbyterian rates. It included all others having the property qualification, whether they wanted to vote or not. That it was felt to be a necessity is a witness to the increasing recognition of the strength of the dissenting element.

In 1747, the Consociation of Windham sent forth a violent pamphlet describing the Separatists as a people in revolt against God and in rebellion against the Church and government. But the tide of public opinion was turning, and popular sentiment did not support the writers of this pamphlet. Moreover, the secular affairs of the colony were calling minds away from religious contentions as the stress of the Old French War was more and more felt. In 1748, venturing upon the improvement in public sentiment, Solomon Paine sent to the legislature a memorial signed by three hundred and thirty persons and asking for a repeal of such laws as debarred people from enjoying the liberty "granted by God and tolerated by the King." [128] It was known to these memorialists that a revision of the laws, first undertaken in 1742, was nearing completion, and their desire was that all obnoxious or unfair acts should be repealed. The petition met with a sharp rebuff, and, as a punishment, three members were expelled from the Assembly for being Separatists. But by such measures the Old Lights were overreaching themselves. A mark of the turning of public opinion was given this same year, when, upon the request of his old church in Hebron, the church vouching for his work and character, the Assembly restored to his

ministerial rights and privileges the Rev. James Pomeroy. The unjust laws of 1742-43 and of the following years were never formally repealed, but were quietly dropped out of the revision of the laws issued in 1750.

Thenceforth the people began to tolerate variety in religious opinions with better grace, and the dominant authoritative rule of the Saybrook Platform began to wane, though for twenty years more it strove to assert its power. In 1755, the Middletown Association advised licensing candidates for the ministry for a term of years. The idea was to prevent errors arising from the personal interpretation of the Scriptures and indifference to dogmatic truths of religion from creeping into the churches. About the same time, the Consociation of New Haven invited their former member, Mr. Bobbins of Branford, to sit with them again at the installation of Mr. Street of East Haven. Conciliatory acts and measures such as these originated with both the Old and New Lights, and did much to lessen the division between them. Discussion turned more and more from personal opinions, character, and abilities, to considerations of doctrinal points. The churches found more and more in common, while worldly interests left the masses with only a half-hearted concern in church discussions.

To summarize the effect of the Great Awakening as evidenced by the great schism and its results thus far considered: The strength of the revival movement, as such, was soon spent. The number of its converts throughout New England was estimated by Dr. Dexter to be as high as forty or fifty thousand, while later writers put it as low as ten or twelve thousand, out of the entire population of three hundred thousand souls. The years 1740-42 were the years of the Great Awakening, and after them there were comparatively few conversions during any given time. Even in Jonathan Edwards's own church in Northampton there were no converts between 1744 and 1748. The influence of the Great Awakening was not, however, transient, nor was it confined to the Congregational churches, whether of

the Cambridge or the Saybrook type. Baptist churches felt the impetus, receiving many directly into their membership, and also indirectly, from those Separatist churches which found themselves too weak to endure. Episcopalians added to their numbers from among religiously inclined persons who sought a calm and stable church home unaffected by church and political strife. The Great Awakening created the Separatist movement and the New Light party, revitalized the Established churches, invigorated others, and through the persecution and counter-persecution that the great schism produced, taught the Connecticut people more and more of religious tolerance, and so brought them nearer to the dawn of religious liberty. Such liberty could only come after the downfall of the Saybrook, Platform, and after a complete severance of Church and State. The last could not come for three quarters of a century. Meanwhile the leaven of the great revival would be working. On its intellectual side, the Great Awakening led to the discussion of doctrinal points, an advance from questions of church polity. These themes of pulpit and of religious press led, finally, to a live interest in practical Christianity and to a more genial religion than that which had characterized the Puritan age. The Half-Way Covenant had been killed. Education had received a new impulse, Christian missions were reinvigorated, and the monthly concert of prayer for the conversion of the world was instituted. [129] True, French and Indian wars, the Spanish entanglement with its West Indian expedition, and the consuming political interests of the years 1745-83, shortened the period of energetic spiritual life, and ushered in another half century of religious indifference. But during that half century the followers of Edwards and Bellamy were to develop a less severe and more winning system of theology, and the fellowship of the churches was to suggest the colonial committees of safety as a preliminary to the birth of a nation, founded upon the inherent equality of all men before the law. This conception of political and civil liberty was



to develop side by side with a clearer notion of the value of religious freedom.

## **FOOTNOTES:**

[a] This term came with the royal charter of 1662, but only gradually displaced the familiar "General Court."

[b] The Milford church, like that of New Haven, suffered for many years from unjust exactions and taxation.

[c] Commencement then came in September.

[d] And this notwithstanding their willingness to include in their affirmation a denial of Mariolatry, purgatory, and other vital Romish tenets.

## **CHAPTER XI**

### **THE ABROGATION OF THE SAYBROOK PLATFORM**

That house cannot stand.—Mark iii, 25.

The times change and we change with them.—Proverb.

The omission of all persecuting acts from the revision of the laws in 1750 was evidence that the worst features of the great schism were passing, that public opinion as a whole had grown averse to any great severity toward the Separatists as dissenters. But the continuance in the revised statutes of the Saybrook Platform as the legalized constitution of the "Presbyterian, Congregational or Consociated Church," and the almost total absence of

any provision for exempting Congregational Separatists from the taxes levied in its behalf, operated, notwithstanding the many acts of conciliation between these two types of churches, to revive at times the milder forms of persecution. And such injustice would continue until the Separatists as a body were legally exempted from ecclesiastical rates, and until the Saybrook Platform was either formally annulled or, in its turn, quietly dropped from the statute book. But henceforth, the measure of intolerance would be determined more by local sentiment and less by the text of the law, more by the proportion of Old Lights to New in a given community. And the measure of toleration must eventually take the form of legalized rights rather than of special privileges, and this through a growing appreciation of the value of the Separatists as citizens. The abrogation of the Saybrook Platform might follow upon a reaffiliation of all Presbyterians and all Congregationalists in a new spirit of mutual tolerance and helpfulness. Whatever the events or influences that should bring about this reaffiliation, the new bonds of church life would necessarily lack the stringency of the palmy days of Saybrook autocratic rule. Consequently when such a time arrived, the Platform, at least in its letter, could be dropped from the law-book. The old colonial laws for the support of religion would still suffice to protect and exalt the Establishment, and to preserve it as the spiritual arm of the State. It so happened that toleration was granted to the Separatists at the beginning of the Revolutionary struggle, and that the abrogation of the Saybrook Platform followed close upon its victorious end. Many influences, both religious and secular, had their part in bringing about these progressive steps toward religious freedom, toward full and free liberty of conscience.

The revision of the laws completed in 1750 had been under consideration since 1742. At the beginning of the great schism, the important task had been placed in the hands of a committee consisting of Roger Wolcott, Thomas Fitch, Jonathan Trumbull, and John Bulkley, Judge of the Superior

Court. The first three names are at once recognized as Connecticut's chief magistrates in 1750-54, 1754-66, 1769-1783, respectively. During the eight years that the revision was in the hands of this committee, the church quarrel had passed its crisis; the Old Lights had slowly yielded their political, as well as their ecclesiastical power; and their controlling influence was rapidly passing from them. The Old French War, with its pressing affairs, had so affected the life of the colony as to lessen religious fervor, weaken ecclesiastical animosities, and, at the same time, to develop a broader conception of citizenship.

English influence, moreover, had modified the ecclesiastical laws in the revision of 1750. The Connecticut authorities, when imbued with the persecuting spirit, did not always stop to distinguish between the legally exempt Baptist dissenters and the unexempted Separatists. This was due in part to the fact that many of the latter, like the church of which Isaac Backus was the leader, went over to the Baptist denomination. The two sects held similar opinions upon all subjects, except that of baptism. It was much easier to obtain exemption from ecclesiastical taxes by showing Baptist certificates than to run the risk of being denied exemption when appeal was made to the Assembly, either individually or as a church body, the form of petition demanded of these Separatists. The persecuted Baptists at once turned to England for assistance, and to the Committee of English Dissenters, of which Dr. Avery was chairman.

This committee had been appointed to look after the interests of all dissenters, both in England and in her colonies, for the English dissenting bodies were growing in numbers and in political importance. To this committee the Connecticut Baptists reported such cases of persecution as that of the Saybrook Separatist church, which in 1744 suffered through the arrest of fourteen of its members for "holding a meeting contrary to law on God's holy Sabbath day." These fourteen people were arraigned, fined, and

driven on foot through deep mud twenty-five miles to New London, where they were thrust into prison for refusing to pay their fines, and left there without fire, food, or beds. There they were kept for several weeks, dependent for the necessities of life upon the good will of neighboring Baptists.[130] The Separatists could report the trials of the Separate church of Canterbury, of that of Enfield, of the First Separate church of Milford, hindered in the exercise of its legal rights for over twenty years, and they could also recount the persecution of churches and of individuals in Wethersfield, Windsor, Middletown, Norwich, and elsewhere. Upon receiving such reports, Dr. Avery had written, "I am very sorry to hear of the persecuting spirit which prevails in Connecticut.... If any gentleman that suffers by these coercive laws will apply to me, I will use my influence that justice be done them." The letter was read in the Assembly, and is said to have influenced the committee of revision, causing them to omit the persecuting laws of 1742-44, in order that they might no longer be quoted against the colony. Governor Law replied to Dr. Avery that the disorders and excesses of the dissenters had compelled the very legislation of which they complained. To which Dr. Avery returned answer that, while disorders were to be regretted, civil penalties were not their proper remedy. This was a sentiment that was gaining adherents in the colony as well as in England. Among other instances of persecution among the Baptists was that of Samuel, brother of Isaac Backus, who in 1752, with his mother and two members of the Baptist society, was imprisoned for thirteen days on account of refusal to pay the ecclesiastical taxes.[131] Another was that of Deacon Nathaniel Drake, Jr.,[132] of Windsor, who, in 1761, refused to pay the assessment for the Second Society's new meeting-house. For six years the magistrates wrestled with the Deacon, striving to collect the assessment. But the Deacon was obstinate, and rather than pay a tax of which his conscience disapproved, he preferred to be branded in the hand. Outside of Baptist or Separatist, there were other afflicted churches, such as that of

Wallingford,[133] where the New Lights could complain that, in 1758, the Consociation of New Haven county had refused to install the candidate of the majority, Mr. Dana; and had attempted to discipline the twelve ministers who had united in ordaining him; and that as a result the twelve were forced to meet in an Association by themselves for fourteen years, or until 1772.

The Separatists attempted to obtain exemption through petitions to the Assembly, trusting that, as each new election sent more and more New Lights to that body, each prayer for relief would be more favorably received. One of the most important of these petitions was that of 1753, when more than twenty Separatist churches, representing about a thousand members, united in an appeal wherein they complained of the distraining of their goods to meet assessments and taxes for the benefit of the Established churches; of imprisonments, with consequent deprivation of comforts for their families; and of the danger to the civil peace threatened by these evils. The Assembly refused redress. Whereupon the petition was at once reconstructed,[a] and, with authentic records and testimonies, to which Governor Fitch set the seal of Connecticut, was sent, in 1756, [134] to London. The Committee in behalf of Dissenters were to see that it was presented to the King in Council. The petition charged violation of the colony's charter, excessive favoritism, and legislation in favor of one Christian sect to the exclusion of all others and to the oppression, even, of some. The English Committee thought that these charges might anger the King and endanger the Connecticut charter. Accordingly, they again wrote to the Connecticut authorities, remonstrating with them because of their treatment of dissenters. At the same time, they sent a letter advising the petitioners to show their loyalty to the best interests of the colony by withdrawing their complaint. These dissenters were further advised to begin at once a suit in the Connecticut courts for their rights, and with the intent of carrying their case to England, should the colony fail to do them justice. Legal proceedings were immediately begun, but were allowed to lapse,

partly because of the press of secular interests, for the colonial wars, the West India expedition, and other affairs of great moment claimed attention, and partly because there were indications that the government would regard the Separatists more favorably.

In the colony itself a change was taking place through which the college was to go over to the side of the New Lights. In 1755, President Clap had established the College Church in order to remove the students from the party strife that was still distracting the churches. In order to avoid a conflict over the matter, he refused to ask the consent of the Assembly, claiming the right of an incorporated college and the precedent of the English universities, since, in 1745, the Assembly had formally incorporated "The President and Fellows of Yale College," vesting in them all the usual powers appertaining to colleges. In the same year, also, the initial step toward establishing a chair of divinity had been taken, and it became the first toward the founding of the separate College Church. President Clap always maintained that "the great design of founding Yale was to educate ministers in our way,"[135] and the chair of divinity had been established in answer to the suggestion of the Court that the college take measures to protect its students from the New Light movement. President Clap was hurried on in his policy of establishing the College Church both by his desire to separate the students from the New Light controversy in Mr. Noyes's church, where they were wont to attend, and by an appeal to him, in 1753, of Rector Punderson, the priest recently placed in charge of the Church-of-England mission in New Haven. The rector had two sons in college, and he asked that they and such other collegians as were Episcopalians might be permitted to attend the Church-of-England services. President Clap refused to give the desired permission, except for communion and some special services, and he at once proceeded to organize a church within the college. The trustees and faculty upheld him, but the Old Lights, then about two-thirds of the deputies to the Assembly,

opposed his course of action, and succeeded in taking away the annual grant that, at the incorporation of the college, had been given to Yale. After this, they regarded President Clap as a "political New Light," but as the latter party increased in the Assembly, and became friendly to Yale, the college gradually reinstated itself in the favor of the legislature.

If in his petitions the Separatist demanded only exemption, only that much toleration, in his controversial writings he ably argued the right of all men to full liberty of conscience. Unfortunately, the ignorance and follies of many of the Separatists, when battling in advance of their age for religious liberty, militated against the logic of their position. Harmony among themselves would have commended and strengthened their cause, and given it a forceful dignity. They blundered, as did their English predecessors of a much earlier date, by laying too much stress upon the individual, upon his interpretations of Scripture, and upon his right of criticism. Much of their work in behalf of religious liberty took the form of pamphleteering. Again, it was their misfortune that the Establishment could boast of writers of more ability and of greater training. Yet the Separatists had some bold thinkers, some able advocates, and, as time wore on, and their numbers were increased and disciplined, the strength and quality of their petitions and published writings improved greatly. Sometimes these dissenters were helped by the theories of their opponents, which, when pushed to logical conclusions and practical application, often became strong reasons for granting the very liberty the Separatists sought. Sometimes an indignant member of the Establishment, smarting under its interference, was roused to forceful expression of the broader notions of personal and church liberty that were slowly spreading through the community. A few extracts from typical pamphlets of the time will give an idea of the atmosphere surrounding the disputants.

In 1749, a tract was issued from the New London press by one E. H. M. A. entitled, "The present way of the Country in maintaining the Gospel ministry by a Public Rate or Tax is Lawful, Equitable, and agreeable to the Gospel; As the same is argued and proved in way of Dialogue between John Queristicus and Thomas Casuisticus, near Neighbors in the County." In answer to this, and for the purpose of vindicating the religious practices and opinions of the Separatists, Ebenezer Frothingham, a Separatist minister, took the field in 1750 as the champion of religious liberty. His book of four hundred and fifty pages had for its title "The Articles of Faith and Practice with the Covenant that is confessed by the Separate Churches of Christ in this land. Also a discourse." So influential and so characteristic was this work, that rather long extracts from it are permissible, and, with a few arguments from other writers, will serve to reflect the thought and feeling of the day, and will best give the point of view of both dissenter and member of the Establishment, of liberal and conservative; for the pamphlet of the period was apt to be religious or political, or more likely both.

Frothingham, speaking of the injustice done the Separatists, writes:—

That religion that hath not authority and power enough within itself to influence its professors to support the same, without Bargains, Taxes or Rates, and the Civil Power, and Prisons, &c. is a false Religion. ... Now, if the Religion generally professed and practiced in this land, be the Religion of Jesus Christ, why do they strain away the Goods of the Professors of it, and waste their substance to support it? which has frequently been done. And which is worse, why do they take their Neighbors (that don't worship with them, but have solemnly covenanted to worship God in another place) by the throat, and cast them into Prison? or else for a Rate of Twenty Shillings, Three or Six Pounds, send away Ten, Twenty, or Thirty Pounds worth of Goods, and set them up at Vendue; where



they will generally assemble the poor, miserable Drunkard, and the awful foul-mouthed Swearer, and the bold, covetous, Blasphemous Scoffer at things Sacred and Divine, and the Scum of Society for the most part will be together, to count and make their Games about the Goods upon Sale, and at the owners of them too, and at the Holy Religion that the Owners thereof profess; and at such Vendues there are rarely any solid, thinking men to be found there; or if there are any such present, they do not care to act in that oppressive way of supporting the Gospel. Such men find something is the matter. God's Vice-regent in their Breasts, tells them it is not equal to make such Havock of men's Estates, to support a Worship they have nothing to do with; yes, the Consciences of these persons will trouble them so that they had rather pay twice their part of the Rates, and so let the oppressed Party go free.

Upon the difficulty of securing collectors, Frothingham remarks: "If it be such a good Cause, and no good men in the Society, to undertake that good Work, surely then such a Society is awfully declined, if that is the case." Frothingham quotes the Suttler of the "Dialogue" as saying, "We have good reason to believe, that if this Hedge of human Laws, and Enclosure of Order round the Church, were wholly broken down, and taken away, there would not be, ('t is probable) one regular visible Church left subsisting in this land, fifty years hence, or, at most, not many." To this, Frothingham replied that if by the "visible church, here spoken of," is meant "Anti-Christ's Church, we should be apt to believe it," for "it needs Civil Power, Rates and Prisons to support it. But if the Gospel Church, set up at first without the aid of civil power could continue and spread, why can't it subsist without the Civil Power now as well as then?" "To this day," this author adds, "the true Church of Christ is in bondage, by usurping Laws that unrighteously intrude upon her ecclesiastical Rights and civil Enjoyments; .... And Wo! Wo! to New England! for the God-provoking Evil, which is too much

indulged by the great and mighty in the Land. The cry of oppression is gone up into the ears of the Lord God of Sabbaoth."

Frothingham thrusts at the payment or support of the ministry by taxation in his assertion that "there is no instance of Paul's entering into any civil Contract or Bargain, to get his wages or Hire, in all his Epistles; but we have frequent accounts of his receiving free contributions." [136] (Here, he but repeats a part of the Baptist protest in the Wightman-Bulkley debate of 1707.) Frothingham states that "the scope and burden of it [his book] were to shew ... both from scripture and reason that the standing ministers and Churches in this Colony [Connecticut] are not practising in the rule of God's word."

The book at once commanded the attention desired by its author. It drew upon Frothingham the concentrated odium of the Rev. Moses Bartlett, pastor of the Portland church, in a fifty-four-paged pamphlet entitled "False and Seducing Teachers." Among such Bartlett includes and roundly denounces Frothingham and the two Paines, Solomon and his brother Elisha. Elisha Paine had removed to Long Island. Returning to Canterbury for some of his household goods, he was seized by the sheriff for rates overdue, and thrown into Windham jail. [137] After waiting some weeks for his release, he sent the following bold and spicy letter to the Canterbury assessors:—

To you gentlemen, practioners of the law from your prisoner in Windham gaol, because his conscience will not let him pay a minister that is set up by the laws of Connecticut, contrary to his conscience and consent.

The Roman Emperor was called Pontifex Maximus, because he presided over civil and ecclesiastical affairs; which, is the first beast that persecuted the Christians that separated from the Established

religion, which they call the holy religion of their forefathers; and by their law, fined, whipped, imprisoned and killed such as refused obedience thereto. We all own that the Pope or Papal throne is the second beast, because he is the head of the ecclesiastical, and also meddles in civil affairs.... He also compels all under him to submit to his worship, decrees and laws, by whips, fines, prisons, fire and fagots. Now what your prisoner requests of you is a clear distinction between the Ecclesiastical Constitution of Connecticut, by which I am now held in prison, and the aforesaid two thrones or beasts in the foundation, constitution and support thereof. For if by Scripture and reason you can show they do not all stand on the throne mentioned in Psalm xciv: 20, [b] but that the latter is founded on the Rock Christ Jesus, I will confess my fault and soon clear myself of the prison. But if this Constitution hath its rise from *that throne* ... better is it to die for Christ, than to live against him.

From an old friend to this civil constitution, and long your prisoner.

**ELISHA PAINE.**

WINDHAM JAIL, Dec. 11, 1752.

In 1744, in addition to his memorials and letters, Solomon Paine had published "A Short View of the Constitution of the Church of Christ, and the Difference between it and the Church Established in Connecticut." Frothingham, when alluding to Moses Bartlett's denunciation of himself and Paine, refers to this book in his remark, "Elder Paine and myself have labored to prove, and I think it evident, that the religious Constitution of this Colony is not founded upon the Scriptures of truth, but upon men's inventions."

In the year 1755, the same in which he established the college church, President Clap issued his "History and Vindication of the doctrines received and established in the Churches of New England," [c] to which Thomas Darling's "Some Remarks on President Clap's History" was a scathing rejoinder. Darling asserted that for the President to uphold the Saybrook System of Consociated Churches was to set up the standards of men, a thing the forefathers never did;[138] that the picture of the Separatists' "New Scheme," which the President drew, was a scandalous *spiritual* libel;[139] and then, falling into the personal attacks permitted in those days, Darling adds that President Clap was an overzealous sycophant of the General Assembly, a servant of politics rather than of religion, and that it would be better for him to trust to the real virtues of the Consociated Church to uphold it than to strive for legal props and legislative favors for his "ministry-factory,"[140] the college. To raise the cry of heresy, Darling declared, was the President's political powder, and "The Church, the Church is in danger!" his rallying cry. He concluded his arraignment with:—

But would a man be tried, judged and excommunicated by such a standard as this? No! Not so long as they had one atom of *common* sense left. These things will never go down in a free State, where people are bred in, and breathe the free air, and are formed upon principles of liberty; they might answer in a popish country, or in *Turkey*, where the common people are sunk and degraded almost to the state of brutes.... But in a free state they will be eternally ridiculed and abhorred.... 'T is too late in the Day for these things, these gentlemen should have lived twelve or thirteen hundred years ago.

Among the champions of religious liberty was the Seventh-day Baptist, John Bolles. He wrote "To worship God in Spirit and in Truth, is to worship him in true Liberty of Conscience," and also "Concerning the Christian

Sabbath, which that Sabbath commanded to Israel, after they came out of Egypt, was a Sign of. Also Some Remarks upon a Book written by Ebenezer Frothingham." These works were published in 1757, and, five years later, called out in defense of the Establishment Eobert Ross's "Plain Address to the Quakers, Moravians, Separates, Separatist-Baptists, Rogerines, and other Enthusiasts on immediate impulses, and Revelation, &c," wherein the author considers all those whom he addresses as on a level with Frothingham, whom he names and scores for "trampling on all Churches and their Determinations, but your own, with the greatest disdain." [141]

In the same year, 1762, the Separatist Israel Holly published a defense of his opinions, quoting freely from Dr. Watts and from his own earlier work, "A Seasonable Plea for Liberty of Conscience, and the Right of private Judgment in matters of Religion, without any control from Human Authority." This "A Word in Zion's Behalf" [d] boldly ranges itself with Frothingham and Bolles, arguing against, and emphatically opposing, the state control of religion. Holly also engaged in a printed controversy, publishing in connection with it "The Power of the Congregational Church to ordain its officers and govern itself."

In 1767, while the Separatists still outnumbered the Baptists in Connecticut, Ebenezer Frothingham put forth another powerful and closely argued tract, "A Key to unlock the Door, that leads in, to take a fair view of the Religious Constitution Established by Law in the Colony of Connecticut," [e] etc. In his preface he states:—

The main Thing I have in View thro' the whole of this Book is free Liberty of Conscience... the Right of thinking and choosing and acting for one's self in matters of Religion, which respects God and Conscience ... for my Readers may see Liberty of Conscience,

was the main and leading Point in View in planting this Land and Colony.

Frothingham defines the Religious Constitution as "certain Laws in the Colony Law Book, called ecclesiastical, with the Confession of Faith, agreed upon by the Elders and Messengers of the Churches, met at Saybrook, especially the Articles of Administration of Church Discipline." This Constitution Plan "gives the General Assembly (which is, and always should so remain, a civil body to transact in civil and moral things) power to constitute or make a spiritual or ecclesiastical body." [142]

Such power, Frothingham maintains, is contrary to reason. Citing from the Colony Law Book the statute, "Concerning who shall vote in town or Society meeting" Frothingham comments thus:—

This supposes no person to have a right to form themselves into a religious society without their [the Assembly's] leave. No,—not King George the Third himself would have liberty to worship God according to his conscience. [Yet] any Atheist, Deist, Arian, Socinian, a Prophane Drunkard, a Sorcerer, a Thief, if they have such a freehold (as the law demands), can vote to keep out a minister. [Such a] plan challenges the sole right of making religious societies and the government of conscience. Yea, I think it assumes the prerogative that belongs to the Son of God alone. [143]

The fines for the neglect of the established worship and for assembling for worship approved by conscience [leave] no gap for one breath of gospel liberty. For if we exercise our gifts and graces in the lawful assemblies, we are had up, and carried to prison, for making disturbance on the Sabbath. I myself have been confined in Hartford prison near five months, for nothing but exhorting and warning the people, after the public worship was done and the

assembly dismissed. And while I was there confined, three more persons were sent to prison; one for exhorting, and two for worshipping God in a private house in a separate meeting. And quick after I was released, by the laws being answered by natural relations unbeknown to me, then two brethren more was committed for exhorting and preaching, and several afterward, for attending the same duties and I myself was twice more sent to prison for the ministers rates.[144]

I have no Man or Men's persons as such, in View in my Writings, But would as much as is proper, separate Ministers, Civil Rulers, and Churches, from the Constitution, and consider this Religious Constitution as it is compiled or written, as though it was not established in this Colony; but presented here from some remote part of Christendom, for Examination, to see if it was according to the Word of God, and the sacred Right of Conscience.[145]

In scathing terms, Frothingham attacks the "Anti-Christian" character of the Establishment and its fear that, by granting liberty of conscience, an open door for church separation would result, and thereby its speedy downfall, because of the multiplication of churches and the loss of taxes enforced for its support. Experience had taught the authorities that, even when all the people favored one form of religion, compulsory support had to be resorted to as a spur to individual contributious. Moreover, the best governments of which they knew had recourse to a similar system in order to maintain purity of religion and the moral welfare of the state. The authorities could not see, as did the champion of religious liberty, the opportunities of oppression that such a system afforded; nor could they feel with him the harshness of its taxation, nor the injustice of distraining dissenters' goods,—or, as he phrased it, "their lack of faith in God and in God's people to uphold religion." They certainly would not acknowledge

Frothingham's charge that they seriously feared the loss of political power through the granting of soul liberty, and as a consequence the probable disintegration of the Establishment.

Frothingham argues that to suffer the existence of different sects would really strengthen the authority of the colony; since,—

when persons know that the Most High is alone the absolute Lord of Conscience; that no mortal breathing has any right to hinder them from thinking and acting for themselves, in religious affairs... the law of nature, reason and grace will lay subjects under strong obligations to their rulers, when equal justice is ministered to them of different principles, in the practice of religion. [146]

Frothingham confutes the declaration that there was liberty of conscience in the colony, "for the separates have gone to the General Assembly with their prayers, from year to year, asking nothing but their just rights, full and free liberty of conscience, and have been, and still are, denied their request."

Furthermore, the colony law supported criminals in prison and gave the poor man's oath to debtors, but nothing to the man who was in prison for conscience's sake. Such a one was dependent upon the charity of his friends for the very necessities of life. Such laws and the ecclesiastical constitution which they support become—

a forfeiture of the charter grant because they exercise that oppression and persecution contrary to its first intent, and are the direct cause of contention and disunion, which is repugnant to the principal design of constituting the colony; viz. that it "May be so religiously, peaceably and civilly governed as may win and invite the natives to the Christian faith." [147]



This "Key to unlock the Door" was probably the strongest work put forth from the dissenter's standpoint, and within three years it was followed by a legislative act granting a measure of toleration. But there were other important books of similar character. Two among these were Robert Bragge's "Church Discipline,"[f] reprinted in 1768, and Joseph Brown's (Baptist) "Letter to the Infant Baptizers of North Parish in New London." Brown closes his book with a mild and reasonable appeal to every one to try to put himself in the place of the oppressed dissenter.[g] In Brown's argument, as in that of the majority of the dissenters, the plea is for toleration in the choice of the form of religion to be supported, and not for liberty to support or neglect religion itself. Those who believed in the voluntary support of religion were not seeking exemption as individuals, but as organized societies or churches, whose highest privilege it was to support Christ's teachings. Considered from this point of view, they were only seeking those privileges which had been granted the Episcopalians, the Quakers, and Baptists in 1727-29. Looked at from the point of view of the government, however, these Separatists varied so slightly from the legalized polity and worship, and yet withal so dangerously, that they did not deserve to be classed as "sober dissenters." To recognize them as such would be to set the seal of approval upon all who chose to question the authority, or the righteousness, of the Saybrook system. With the fear of such an undermining of authority, and realizing the increasing tendency of churches throughout the colony to renounce the Saybrook Platform, the very conservative people felt that to grant toleration to the Separatists might prove disastrous both to Church and civil order.

While the Baptists and the Separatists were waging the battle for toleration and for religious liberty with the great weapon of their time,—the pamphlet,—the Consociated Churches were also making valiant use of it, not only in defense of the Establishment, but in controversial warfare among themselves, for in the New England of the second half of the

eighteenth century, two schools of religious thought were slowly developing. They gained converts more rapidly as the means of communication, of publication, and of exchange of opinion increased. The improvement of roads, the introduction of carriages and coaches, the establishment of printing-presses, and the founding of newspapers, were important agents in developing and moulding public opinion. Of these, the printing-press was foremost, for with its pamphlet and its newspaper it gained a hearing not only in the cities, but in the isolated farmhouses of New England, carrying on its weekly visit the gist of the secular and religious news.

The newspaper made its first appearance in Connecticut in 1755, when the "Connecticut Gazette" [h] issued from the recently established New Haven press. The newspaper arrived later in the distant colony of Connecticut than in those on the seaboard that were in closer touch with European thought by reason of their more direct and frequent sailing vessels. Among American newspapers, the year 1704 saw the birth of the "Boston News Letter"; the year 1719, of the "Boston Gazette" and of the "American Weekly Mercury" of Philadelphia. Boston added a third paper, the "New England Courant," in 1721, while New York issued its first sheet in 1725. Benjamin Franklin founded the "Pennsylvania Gazette" in 1729, and, in 1741, began the publication of the "General Magazine and Historical Chronicle for, all the British Plantations in America." In 1743, Boston sent out the "American Magazine and Historical Chronicle," containing, along with European news, not only lists of new books and excerpts therefrom, but full reprints of the best essays from the English magazines. New York, in 1752, issued the "Independent Reflector," a magazine of similar character. Thus, through papers and magazines, as well as through a limited importation of books, and through personal correspondence, the life of Europe, and preeminently of England, was brought home to the colonists.

In the religious non-prelatical world of England, the Presbyterian churches were undergoing a transformation, and were, by 1750, prevailingly Arian. The English Congregationalists resisted Arianism, but they, also, felt its influence, as well as that of Arminianism, and they began to attach less importance to creeds, and to develop a broader tolerance of many shades of religious belief. New England sympathized more with the Congregational movement, but, as interest in both was awakened, English thought came to have great influence in the religious development of New England during the next half-century. Broadly speaking of these progressive changes, Connecticut, and Connecticut-trained men in western Massachusetts, developed the so-called New Divinity, while Massachusetts clergy, especially those of her eastern section, favored that liberal theology which, after the Revolutionary period, gave rise to the Unitarian conflict.

The older religious controversies had concerned themselves with church polity, or, popularly speaking, with what men thought concerning their relation to God through his church, in distinction from doctrine, or what men felt should be their attitude towards God and their fellow-men. Pushing aside polity and doctrine, the twentieth century emphasizes action, or man's reflection of the life of Christ. Doctrine came to the front with Jonathan Edwards. In his opposition to the Arminian teaching of the value of a sincere obedience to God's laws and "the efficacy of means of grace," Jonathan Edwards asserted the Calvinistic idea of the sovereignty of God, and maintained that justification was by faith alone; but his idea of justification held within it the duty of personal responsibility in loving and obeying God. Edwards, though defining love as general benevolence, a delight in God's holiness, and the essence of all true virtue, did introduce, as factors in personal religion, the will and the emotions. These characteristics of true, personal religion, as his mind, influenced by the Great Awakening, conceived and elaborated them, he set forth in his "Religious Affections," published in 1746. In his "Qualifications for Full Communion," 1749, he

again dwelt upon the same theme; but his main purpose was to uproot the Half-Way Covenant practice and the Stoddardean view of the Lord's supper. He attempted to do this by exposing the inefficiency of "means," and at English Arminianism in particular Edwards leveled his "Freedom of the Will," [i] published in 1754. His friend and disciple, Joseph Bellamy, put forth in 1750 "True Religion Delineated," wherein he advances from Edwards's limited atonement theory to that of a general one. [j] In 1758, Bellamy, in brilliant dialogue, replied to "A Winter's Evening Conversation Upon the Doctrine of Original Sin in which the Notion of our having sinned in Adam and being on that Account only liable to eternal Damnation, is proved to be unscriptural," a book by Rev. Samuel Webster of Salisbury, Massachusetts, and of which a reprint had appeared from the New Haven Press in 1757, the year of its publication. Bellamy took sides with the Rev. Peter Clark of Danvers, Massachusetts, who replied in "A Summer Morning's Conversation." Both men summoned as their authority a work of Edwards, "Original Sin Defended," which was about to appear from the press, and to which Edwards's followers were looking forward as the last work of their master, he having died while its pages were still in press. Edwards had destined the book to be a refutation of English Arianism of the Taylor school, of which Webster was a follower. This same year, 1758, Bellamy discoursed upon "The Wisdom of God in the Permission of Sin," and gave a series of sermons on "The Divinity of Jesus Christ," a defense of the Trinity, which Jonathan Mayhew of Boston had attacked. Bellamy may have felt that this defense was due from a Connecticut man because the colony, strenuously orthodox, had in the revision of the laws in 1750 added the requirement of a belief in the Trinity, and caused the denial thereof to be ranked as felony. Denial of the Trinity, or of the divine inspiration of the Scriptures, was punishable, for the first offense, by ineligibility to office, whether ecclesiastical, civil, or military, and, upon a second conviction, by disability to sue, to act as guardian or as administrator. [148] Though there

was never a conviction under the statute, the presence of such a law in the colony code indicates the religious temper of her people at a time when radical changes were creeping into man's conception of religion.

Joseph Bellamy's influence, great as it was as writer and preacher, was even greater as a teacher. His home in Bethlehem from 1738 to 1790 was virtually a divinity school, and it is estimated that at least sixty students, trained in his system of theology and in his antagonism to the Half-Way Covenant, [k] spread through New England an influence counter to that of the Mayhews, Briant, [l] Webster, and other disciples of the Liberal Theology. Upon Bellamy, as a leader, fell Edwards's mantle.

While Bellamy was the great exponent of Jonathan Edwards's teachings in Connecticut, another friend and famous pupil of the great divine's, Samuel Hopkins, taught at Great Barrington, Massachusetts, 1743-69, and in Newport, Rhode Island, 1770-1803, urging an extension of his master's principles—especially of that of "benevolence." Hopkins, however, attributed a certain value to "means of grace," while teaching that sin and virtue consist in exercise of the will, or in definite acts. [m] Consequently, he included in his theology a denial of man's responsibility for Adam's sin, which Edwards had maintained. Hopkins advocated also a willing and disinterested submission to God's will, the Hopkinsian "to be saved or damned," since God, in his wisdom, will do that which is best for his universe. These characteristic doctrines, both of Bellamy and Hopkins, were modified by the younger generation of students, notably by Stephen West, John Smalley, Jonathan Edwards, Jr., and—greatest of all—Nathaniel Emmons, who, together with the first Timothy Dwight, were to introduce two sub-schools of the New Divinity. [n] Emmons, following Hopkins, developed extreme views of sin, even in little children; held the theories of reprobation and election; and was most intensely Calvinistic. Dwight developed a more conciliatory and benign system of theology, but his

influence, as founder of a school of religious thought, belongs to the post-Revolutionary era. Emmons held one long pastorate at Franklin, Massachusetts, 1773-1827, [o] where, as a trainer of youth for the ministry, his influence was greatest, and his powers at their best. Nearly a hundred ministers passed to their pulpits from his tutelage.

Such were the teachings that fashioned a generation of preachers, of ministers, wielding a tremendous influence over the men and measures of pre-Revolutionary and Revolutionary days. The clergy were then the close friends of their parishioners; their counselors in all matters, spiritual or worldly; and frequently their arbitrators in disputed rights, for the legal class was still small, and its services costly. The pastor knew intimately every soul in his parish. He was the State's moral guardian. He was the intellectual leader and more, for, in the scarcity of books and newspapers, not alone in his Sunday sermon but in those on fast days and thanksgivings, and on all public and semi-public occasions, he talked to his people upon current events. The story is told of a clergyman who in his Sunday prayer recounted the life of his parish during the preceding week, making personal mention of its actors; who then passed, still praying, from local history to the welfare of the nation, including a tribute to Washington and a description of a battle; and who did not end his hour-long prayer until he had anathematized the enemy, and circled the globe for recent examples of divine wrath and benevolence. Such a clergyman is by no means a myth. Each pastor made his own contribution, inconspicuous or notable as it might be, to the broadening of thought, and contributed his part to the development among his people of ideas of personal liberty, even as the colonial wars were developing confidence in the ability to defend that liberty should it be endangered. A voluntary theocracy may uphold a faith which teaches that only a very limited number are of the "elect," but, under the ordinary conditions of life, such a belief is discouraging, deadening, and as men threw off this idea of spiritual bondage, they advanced to a larger

conception of personal responsibility, dignity, and freedom. Such enlargement of ideas necessitated a mutual tolerance of diverse opinions. It also tended to create revolt against infractions of civil liberty or violations of political justice. The colonists were not so badly taxed—as colonial policy went—when they made their stand for "no taxation without representation," when they exhausted their resources in a long war because of acts of Parliament that, had they submitted to them, would have offered a precedent for still more repressive measures and for the overthrow of the Englishman's right to determine, through the representatives of the people, how the people's money should be spent.

If the town-meeting, the sermon, the religious or political pamphlet, and the newspaper did each its part in developing a people, there was also another factor that, starting as part of a discussion of ecclesiastical polity, brought before all men important questions of civil, political, and personal liberty, and of constitutional rights. However unnecessary the severe anguish of Jonathan Mayhew's spirit, due to his exaggerated fear of the American episcopate, he did but express "the sincere thought of a multitude of his most rational contemporaries." [149] A review of events will show some reason for the antagonism and horror that filled New England when the project of the episcopate was revived. After the death of Queen Anne in 1714, the Crown took no interest in the project of an American episcopate until Thomas Sherlock became Bishop of London in 1748. The Connecticut clergy of the Church of England, together with others of New England and the Middle colonies, had, however, never ceased their efforts to secure an American bishop; and now, in Bishop Sherlock, their Metropolitan in London, they had one who firmly believed in the necessity of colonial bishops, who deliberately refused to exercise the traditional powers of his office, or to obtain a legal renewal of them (in so far as they applied to the colonies), because he had determined that by such a policy he would force the English government to appoint one—or preferably several—American

bishops. He defined his scheme for the episcopate as one in which the Bishop was: (1) to have no coercive power over the laity, only regulative over the clergy; (2) to have no share in the temporal government; (3) to be of no expense to the colonists; (4) and to have no authority, except to ordain the clergy, in any of the colonies where the government was in the hands of dissenters from the Church of England. This plan was essentially the same as that advocated later by Bishops Secker and Butler, and by succeeding bishops to the time of the Revolution. Bishop Sherlock obtained the King's permission to submit his plan to the English ministers of state. So great was the dread inspired in America by the rumors of a revival of active measures for a colonial episcopate, that a deputation, sent to England in 1749, appointed a committee of two to wait upon those nearest to the King and to advise them that the appointment would be "highly Prejudicial to the Interests of Several of the Colonies." [150] This committee redoubled its energies in 1750, and it was due to its watchfulness as well as to the clearer foresight of the King's ministers that Bishop Sherlock's plan was frustrated. The chief advisers of the government objected to it on the ground that it would be repugnant to the dissenting colonies, to the dissenters of all sorts in England, and would also rouse in the home-land party-differences that had slumbered since the overthrow of the Pretender in 1745.

Despite the English opposition to Bishop Sherlock's scheme, its discussion in England and the journey of the bishop's agent through the several American colonies to sound their sentiment had created so much apprehension that the Society for the Propagation of the Gospel enjoined its missionaries, in 1753, "that they take special care to give no offence to the civil government by intermeddling with affair, not relating to their calling or function." Even Bishop Secker of Oxford, a strong adherent of Bishop Sherlock, saw fit, in 1754, to suppress Dr. Johnson of Stratford, Connecticut, bidding his enthusiasm wait until a more propitious season, and advising him, and the rest of his clergy, to conciliate the dissenters.



Bishop Sherlock, himself, in 1752, withdrew sufficiently from his first position to assume the ecclesiastical oversight of the colonies, although he would not take out a commission to renew that which had expired by the death of Bishop Gibson. Meanwhile, Sherlock's demonstration that the Bishop of London had little authority in law, or in fact, over the American colonies created two parties. One [p] held that the colonies were a part of the English nation and consequently were subject to the civil and religious laws existing in the home country, and that the authority of the Church of England extending to the colonies had been reinforced by the Gibson patent of 1727-28. The other party maintained that the colonists were not members of the Church of England, nor subject to its rules. They quoted the Lord Chief Justice, who declared to Governor Dummer, in 1725, that "there was no regular establishment of any national or provincial church in these plantations" (of New England), and that Bishop Gilman, in his letter of May 24, 1735, to Dr. Colman had written, "My opinion has always been that the religious state of New England is founded on an equal liberty to all Protestants, none of which can claim the name of a national establishment, or of any kind of superiority over the rest." This party further maintained that no acts of Parliament, passed after the founding of the colonies, were binding upon them, unless such acts were specially extended to the colonies. Here again was the old contention that had appeared in the earlier controversy over the Connecticut Intestacy Act.

An American controversy, parallel in time with the attempt to establish the episcopate, roused the always latent New England hostility to the Episcopal church as one contrary to gospel teaching. This controversy of 1747-51 [q] broke out over the validity of Presbyterian ordination versus Episcopal. The battle surged about the contingent questions of (1) whether the Church of England extended to the colonies; (2) whether it was prudent for the long established New England churches to go over to the English communion; and (3) whether it would be lawful. In debating the last two,

incidental matters of expense, of unwise ecclesiastical dependence, and of the consequent decay of practical godliness in the land, were discussed by the Rev. Noah Hobart of Stratford, Conn., who represented the Consociated churches, while Episcopacy was defended by Rev. James Wetmore of Rye, N. Y., Dr. Johnson of Stratford, Conn., Rev. John Beach of Reading, Conn., and by the Rev. Henry Caner of Boston.

This discussion at once suggested to a few far-sighted men that the bishops recently proposed, and which at the end of the Seven Years' War, in 1763, were again earnestly advocated by Bishop Seeker (who had become Archbishop of Canterbury) should not acquire any powers in addition to those suggested by Bishop Sherlock. The growing fear of such increased authority flamed out again in the Mayhew controversy of 1763-65, when all the inherited Puritan dislike to the Church of England as a religious body, and all the terror of such a hierarchy, as a part of the English state, hurled itself into argument, and threw to the front the discussion of the American episcopate as a measure of English policy,—an attempt to transplant the Church as an arm of the State; an attempt to "episcopize," to proselyte the colonies, and eventually to overturn the New England ecclesiastical and civil governments.[r] "It was known," wrote John Adams fifty years later, "that neither the king nor ministry nor archbishop could appoint bishops in America without Act of Parliament, and if Parliament could tax us, it could establish the Church of England with all its creeds, articles, ceremonies, and prohibit all other churches as conventicles and schism-shops." [s] Therefore, when England declared her right to tax the colonies, and followed it by Sugar Act and Stamp Act, the political situation threw a lurid light about the Chandler-Chauncy controversy [t] of 1767-71 as it rehearsed the *pros* and *cons* of the proposed episcopate. The New England colonies were greatly excited, and others shared the unrest, for, even where the Church of England was strongest, the laity as a body preferred the greater freedom accorded them under commissaries as sub-officers of the Bishop of

London. The indifference of the American laity as a whole to the project of the episcopate; the impotence of the English bishop to attain it, thwarted as he was by the threefold opposition of the ministry, the colonial agents, and the great body of English dissenters, did not lessen the prevailing suspicion and fear among the colonists, especially among those of New England. They felt no confidence in the profession [u] that authority purely ecclesiastical would alone be accorded to the bishop, or that American churchmen themselves would long be satisfied with a bishopric so shorn of power. And already, on November 1, 1766, the Episcopalians of New York, New Jersey, and Connecticut had met together in their first annual convention at Elizabethtown. [v] The avowed object of their conference was the defense of the liberties of the Church of England, and "to diffuse union and harmony, and to keep up a correspondence throughout the united body and with their friends abroad." [151]

It was a time of drawing together, whether of the colonies as political bodies, or of their people as groups of individuals affiliating with similar groups beyond the local boundaries. Upon November 5, 1766, also at Elizabethtown, the Consociated Churches of Connecticut had united with the Presbyterian Synod of New York and Philadelphia in their first annual convention, which was composed of Presbyterian delegates to the Synod and of representatives from the Associations in Connecticut. While the general object was the promotion of Christian friendship between the two religious bodies, the spread of the gospel, and the preservation of the liberties of their respective churches, the conventions of 1769-75 determined to prosecute measures for preserving these same liberties, threatened "by the attempt made by the friends of Episcopacy in the Colonies and Great Britain, for the establishment of Diocesan Bishops in America." [152] Accordingly this representative body at once entered into correspondence with the Committee of Dissenters in England. In recalling these movements towards combination, one remembers that, among the

dissenters, the Quakers had long held to their system of Monthly, Quarterly, and Annual Meetings, to their correspondence with the London Annual Meeting, and to the frequent interchange of traveling preachers. In the years 1767-69, the scattered Baptists of New England had united in the Warren (Rhode Island) Association. It was a council for advice only, yet its approval lent multiple weight to the influence of any Baptist preacher. It urged the collection of all authentic reports of oppression or persecution, and a firm, united resistance on the part of the weaker churches. [w] The founding of Brown University, Rhode Island, as a Baptist College in 1764, gave the sect prestige by marking their approval of education and of a "learned ministry."

To return to the subject of the episcopate, the Chandler controversy had been precipitated by Dr. Johnson of Connecticut, who, at the Elizabeth convention, urged that the opposition to the American bishops was largely caused by ignorance concerning their proposed powers and office, and that if some one would put the scheme more fully before the people, they might be won over. The task was assigned to Thomas Bradbury Chandler, who published his "An Appeal to the Public," 1767. Dr. Charles Chauncy of Boston replied to Chandler, giving the New England view of bishops in "The Appeal Answered." Chandler, as has been said, retorted with his "The Appeal Defended," and the newspapers took up the controversy. The discussion turned immediately and almost entirely from the ecclesiastical aspect, with its dangers to New England church-life, to the political and constitutional phases of this proposed extension of the Church of England. The New York and Philadelphia press agitated the subject in 1768-69, while all New England echoed Mayhew's earlier denunciations of the evils to be anticipated. In the pulpit, by the study fire, and at the tavern-bar, leaders, scholars, people discussed the possible loss of civil and personal liberty. Let the bishops once be seated; and would they not introduce ecclesiastical courts, demand uniformity, and impose a general tax for their church which

might be perverted to any use that the whim of the King and of his subservient bishops might propose? There is no question that this subject of the episcopate, with its political and constitutional phases, and with the considerations of personal and civil liberty involved, did much to familiarize the people with those principles upon which they made their final break with England, and helped to prepare their minds for the separation from the mother country.

In considering the various elements that contributed to the development of the national spirit, to the destruction of that provincialism so marked in the colonies before 1750, and to the creation in each of breadth of thought and clearness of vision, trade and commerce had their part. Because of them, came increasing knowledge of the widely different habits of life in the thirteen colonies. It came also from the association of the people of the different sections when as soldiers of their King they were summoned to the various wars. Still another impetus was given to the national idea by the fashion of long, elaborate correspondence. Especially was this true after the Albany convention of 1754, called to discuss Franklin's Plan of Union, had introduced men of like minds, abilities, and purpose, and also the needs of their respective sections, and had interested them in the common welfare of all. Moreover, Franklin was the highest representative of still another movement that roused the slumbering intelligence of men by opening their minds to impressions from the vast and unexplored world of natural science. He founded, in 1743, the University of Pennsylvania and the American Philosophical Society. The recognition, in 1753, [x] of his work by European scholars was an honor in which every American took pride as marking the entrance of the colonies into the world of scientific investigation. Such honorable recognition produced a widespread interest in the study of the physical world and its forces. Following this awakening and broadening of the intellectual life, there came, at the very dawn of the Revolution, the first out-cropping of genuine American literature in the

satires and poems of Philip Freneau of New York, a graduate of Princeton, and in those of John Trumbull and Joel Barlow [y] of Yale. New Haven became a centre of literary life, and the cultivation of literature took its place beside that of the classics, broadening the preeminently ministerial groove of the Yale curriculum.

In considering some of the individual acts leading up to Connecticut's part in the Revolution, we find that the colony had disapproved Franklin's Plan of Union of 1754. She thought it lacking in efficiency and in dispatch in emergencies, and possibly dangerous to the liberties of the colonies. She also believed it liable to plunge the colonies into heavy expense, when many of them were already floundering in debt. Yet Connecticut had, with Massachusetts, willingly borne the brunt of expense and loss necessary to protect the colonies in the wars arising from French and English claims. She, accordingly, greatly rejoiced at the Peace of Ryswick, 1763, for it gave security to her borders by the cession of Canada to England, brought safety to commerce and the fisheries, and promised a new era of prosperity. The attempt of England to recoup herself for the expenses of the war by a rigid enforcement of the Navigation Laws—an enforcement that paralyzed commerce, and turned the open evasion of honorable merchantmen into the treasonable acts of smugglers—grieved Connecticut; the Sugar Act provoked her, and the proposed Stamp Act drove her to remonstrance. Her magistrates issued the dignified and spirited address, "Reasons why the British Colonies in America should not be charged with Internal Taxes by Authority of Parliament." [z] It was firmly believed in the colony that when the severity of the English acts should be demonstrated, they would at once be removed and some substitute, such as the proposed tax on slaves or on the fur trade, would be adopted. Jared Ingersoll, the future stamp-officer, carried the address to England. There it received praise as an able and temperate state-paper. Ingersoll is credited with having succeeded in slightly modifying the Stamp Act and in postponing somewhat the date for

its going into effect. Having done what he could to modify the measure, and not appreciating the growth of opposition to it during his absence, he accepted the office of Stamp-Distributor, and returned to America, where he was straightway undeceived as to the desirability of his office, but made his way from Boston to Connecticut, hoping for better things. On reaching New Haven, he was remonstrated with for accepting his office and urged to give it up. But learning that Governor Fitch, after mature deliberation, had resolved to take the oath to support the Stamp Act, and had done so, though seven of his eleven Councilors, summoned for the ceremony, had refused to witness the oath, Ingersoll decided to push on to Hartford. Starting alone and on horseback, he rode unmolested through the woods; but as he journeyed through the villages, group after group of stern-looking men, bearing in their hands sticks peeled bare of bark so as to resemble the staves carried by constables, silently joined him, and, later, soldiers and a troop of horse. Thus he was escorted into Wethersfield, where, virtually a prisoner, he was made to resign his commission. The cavalcade, ever increasing, proceeded with him to Hartford, [aa] where he publicly proclaimed his resignation and signed a paper to that effect. Everywhere the towns burned him in effigy. Everywhere the spirit of indignation and of opposition spread. The "Norwich Packet" discussed the favored East Indian monopolies and the Declaratory and Revenue Acts of Parliament. The "Connecticut Courant" (founded in Hartford in 1764), the "Connecticut Gazette," the "Connecticut Journal and New Haven Post-Boy," [ab] and the "New London Gazette" encouraged the spirit of resistance. A Norwich minister[153] preached from the text "Touch not mine anointed," referring to the people as the "anointed" and arguing that kings, through Acts of Parliament which take away, infringe, or violate civil rights, touch the "anointed" people in a way forbidden by God. This Norwich minister was not alone among the clergy, for the sermons of the three sects, Baptist, Separatist, and Congregational, "connected with one indissoluble bond the

principles of civil Government and the principles of Christianity." The laity of the Episcopal church were, as a body, patriots, and so, also, were many of their clergy; but party spirit, roused by the discussion of the episcopate and of their relation to the King, as head of their church as well as head of the State, tended to Toryism. From their pulpits was more frequently heard the doctrine of passive obedience. But in all the opposition to the Stamp Act, in all the preparations for resistance, in the carrying out of non-importation agreements, in the movement that created small factories and home industries to supply the lack of English imports, and later during the struggle for independence, the Connecticut colonists, whether Congregationalists, patriotic Episcopalians, Baptists, or Separatists, worked as one.

Toward the Separatists, oppressed dissenters yet loyal patriots, there began to be the feeling that some legislative favor should be shown. Accordingly the Assembly, having them in mind, in 1770 passed the law that—

no person in this Colony, professing the Christian protestant religion, who soberly and conscientiously dissent from the worship and ministry established or approved by the laws of this Colony and attend public worship by themselves, shall incur any of the penalties ... for not attending the worship and ministry so established on the Lord's day or on account of their meeting together by themselves on said day for the public worship of God in a way agreeable to their consciences.

And in October of the same year, it was further decreed that—

all ministers of the gospel that now are or hereafter shall be settled in this Colony, during their continuance in the ministry, shall have all their estates lying in the same society as well as in the same



town wherein they dwell exempted out of the lists of polls and rateable estates. [154]

But for the Separatists to obtain exemption from ecclesiastical taxes for the benefit of the Establishment required seven more years of argument and appeal. During the time, they and the Baptists continued to increase in favor. The Separatist, Isaac Holly, preached and printed a sermon upholding the Boston tea-party. The Baptists were so patriotic as to later win from Washington his "I recollect with satisfaction that the religious society of which you are members have been throughout America uniformly and almost unanimously the firm friends of civil liberty, and the persevering promoters of our glorious revolution." [155] In 1774, good-will was shown to the Suffield Baptists by a favorable answer to their memorial to be relieved from illegal fines. In behalf of these Baptists, Governor Trumbull frequently exerted his influence. He also wrote to those of New Roxbury, who were in distress as to whether they had complied with the law, assuring them that the act of 1770 had done away with the older requirement of a special application to the General Assembly for permission to unite in church estate. [156] Notwithstanding such favor, there was still so much injustice that the Baptists of Stamford wrote, during the rapid increase of the sect through the local revivals of 1771-74, that the emigration from Connecticut of Baptists was because "the maxims of the land do not well suit the genius of our Order, and beside, the country is so fully settled, as population increases, the surplusage must go abroad for settlements."

Among the Baptists, the most vigorous champion for mutual toleration and for liberty of conscience was Isaac Backus, "the father of American Baptists," and their first historian. In *An Appeal to the Public for Religious Liberty*, Boston, 1773, after calling attention to the lack of state provision in Massachusetts as well as in Connecticut for ecclesiastical prisoners,[157] he thus defines the limits of spiritual and temporal power:—

And it appears to us that the true difference and exact limits between ecclesiastical and civil government is this. That the church is armed with *light and truth*, to pull down the strongholds of iniquity and to gain souls to Christ and into his church to be governed by his rules therein; and again to exclude such from their communion who will not be so governed; while the state is armed with *the sword to guard the peace and to punish those who violate the same*. Where they have been confounded together no tongue nor pen can fully describe the mischiefs that have ensued.

He proceeds to argue that every one has an equal right to choose his religion, since each one must answer at God's judgment seat for his own choice and his life's acts. Consequently, there is no warrant for the making of religious laws and the laying of ecclesiastical taxes. With this premise, it followed that the Baptist exemption act of 1729 was defective and unjust, in that it demanded certificates; and from this time there began a steadily increasing opposition to the giving of these papers. Backus objected to the certificates upon several grounds, chief of which were:—

(1) Because the very nature of such a practice implies an acknowledgement that the civil power has right to set one religious sect up above another.... It is a tacit allowance that they have the right to make laws about such things which we believe in our own conscience they have not.

(2) The scheme we oppose tends to destroy the purity and life of religion.

(3) The custom which they want us to countenance is very hurtful to civil society.... What a temptation then does it not lay for men to contract guilt when temporal advantages are annexed to one

persuasion and disadvantages laid upon another? *i.e.*, in plain terms, how does it tend to lying hypocrisy and lying? [159]

In all his writings this man pleads the cause of religious liberty, and, whenever possible, he emphasizes the likeness of the struggle of the dissenters for freedom of conscience to that of the colonists for civil liberty, and argues the injustice of wresting thousands of dollars from the Baptists for the support of a religion to them distasteful, while they exert themselves to the utmost to win political freedom for all; "with what heart can we support the struggle?"

Two remarkable little books of some eighty or ninety pages that were issued from the Boston press in 1772 require a word of notice because of their hearty welcome. Two editions were called for within the year, and more than a thousand copies of the second were bespoke before it went to press. They had originally been put forth, the first in 1707, "The Churches Quarrel Espoused: or a Reply In Satyre to certain Proposals made, etc." (the Massachusetts "Proposals of 1705"), and the second in 1717, "A Vindication of the Government of the New England Churches, Drawn from Antiquity; Light of Nature; Holy Scripture; the Noble Nature; and from the Dignity Divine Providence has put upon it." In 1772 their author, the Rev. John Wise, a former pastor of the church in Ipswich, Massachusetts, had been dead for over forty years. In his day, he had regarded the "Proposals" as treasonable to the ancient polity of Congregationalism, and had attacked what he considered their assumptions, absurdities, and inherent tyranny. His books were forceful in their own day, serving the churches, persuading those of Massachusetts to hold to the more democratic system of the Cambridge Platform, and largely affecting the character of the later polity of the New England churches. The suffering colonist of 1772, smarting under English misrule, turned to the vigorous, clear, and convincing pages wherein John Wise set forth the natural rights of men, the quality of

political obligation, the relative merits of government, whether monarchies, aristocracies, or democracies, and the well developed concept that civil government should be founded upon a belief in human equality. In his second attempt to defend the Cambridge Platform, Wise had advanced to the proposition that "Democracy is Christ's government in Church and State." [160]

Such expositions as these, and those in Isaac Backus's "The Exact Limits between Civil and Ecclesiastical Government," published in 1777, and in his "Government and Liberty described," of 1778, together with the discussion prevalent at the time, and with the logic of the Revolutionary events, opened the mind of the people to a clearer conception of liberty of conscience, though their practical application of the notion was deferred. For many years longer, persons had to be content with a toleration that was of itself a contradiction to religious liberty. Yet in May, 1777, such toleration was broadened by the "Act for exempting those Persons in this State, commonly styled Separates from Taxes for the Support of the established Ministry and building and repairing Meeting Houses," on condition that they should annually lodge with the clerk of the Established Society, wherein they lived, a certificate, vouching for their attendance upon and support of their own form of worship. Said certificate was to be signed by the minister, elder, or deacon of the church which "they ordinarily did attend." [161]

Israel Holly's "An Appeal to the Impartial, or the Censured Memorial made Public, that it may speak for itself. To which is added a few Brief Remarks upon a Late Act of the General Assembly of the State of Connecticut, entitled an 'Act for Exempting those Persons in this State Commonly styled Separates, from Taxes for the Support of the Established Ministry &c.'" gave in full an "Appeal" of eleven Separatist churches to the General Assembly in May, 1770. That body would not suffer the petition to

be read through, stopping the reader in the midst, while some of its members went so far as to declare that "all, who had signed it, ought to be sent for to make answer to the Court for their action." But the majority of the legislature were not so intolerant, so that during the session the act above mentioned was passed. Holly, in his book, includes with the "Appeal" a severe criticism of the new law, and, in quoting the petition, he gives a full explanation of its text as well as the comments of the Assembly upon it and their objections to parts of it. When recounting the long struggle for toleration and in detail the persecutions of the Suffield Separatists, Holly dwells upon the fact that before the recent legislation of the Assembly, the spirit of fair dealing had in some communities influenced the members of the Establishment in their treatment of the Separatists. Holly also enlarges upon the inconsistency between demanding freedom in temporal affairs from Great Britain and refusing it in spiritual ones to fellow-citizens. The "Censured Memorial" closes [162] with an expressed determination on the part of the Separatists to appeal to the Continental Congress if the state continue to refuse to do them justice. Holly, remarking upon the act of 1777, expresses great dissatisfaction with it as falling short of the liberty desired, and, particularly, with its retention of the certificate clause.

Such continued agitation of the rights of individuals and of churches eventually created a broader public opinion, one that, permeating the Establishment itself, tended to make its ministers resent any great exercise of authority on the part of those among them who clung to the strong Presbyterian construction of the Saybrook Articles. Communications upon the subject of religious liberty were to be found in many of the newspapers. Two governors of Connecticut wrote pamphlets that tended to weaken the hold of the Saybrook Platform over the people. Governor Wolcott in 1761 wrote against it, and in 1765 Governor Fitch (anonymously) explained away its authoritative interpretation. The term "Presbyterian" came to be applied more frequently to the conservative churches of the Establishment, and "Congregational" to those wherein the New Light ideas prevailed. Some years later, while the two terms were still used interchangeably, the term "Congregational" rose in favor, and, after the Revolution, included even the few Separatist churches. As for the latter, they had by 1770 concluded that with reference "to our Baptist brethren we are free to hold occasional communion with such as are regular churches and ... make the Christian profession and acknowledge us to be baptized." [163] For some years these two religious parties attempted to unite in associations, but finding that they disagreed too much on the question of baptism, they mutually decided to give up the attempt, and separated with the greatest respect and good will toward each other. In 1783, the Presbyterians refused to meet the Separatists in the attempt to devise some plan of union between them, but did advance to the concession "to admit Separatists to Ordination with the greatest care." [164] The Presbyterians were beginning to realize that if the Saybrook Platform was to govern the churches of the Establishment, its old judicial interpretation must give way. An example of the revolt to be anticipated, if such interpretation were insisted upon, followed the attempt by the Consociation of Windham in 1780 to discipline Isaac Foster, a Presbyterian minister, for "sundry doctrines looked upon as

dangerous and contrary to the gospel;" [ac] and a similar attempt to reprove Mr. Sage of West Simsbury drew forth such stirring retorts from Isaac Foster and from Dan Foster, minister of Windsor (who defended Mr. Sage), that church after church promptly renounced the Saybrook Platform. These churches agreed with Isaac Foster in his declaration of the absolute independence of each church and that—

no clergyman or number of clergymen or ecclesiastical council of whatever denomination have right to make religious creeds, canons or articles of faith and impose them upon any man or church on earth requiring subscription to them.... A church should be the sole judge of its pastor's teachings so long as he teaches nothing *expressly* contrary to the Bible. ... The Consociation has no right to pretend that it is a divinely instituted assembly with the Saybrook Platform for its charter, imposing a tyranny more intolerable on the people than that from which they are trying to free themselves.  
[165]

The result of all this agitation for liberty of conscience, emphasized by its counterpart in the political life of the state and nation, was that in the first edition of the "Laws and Acts of the State of Connecticut in America," [ad] appearing in 1784, all reference to the Saybrook Platform was omitted, and all ecclesiastical laws were grouped under the three heads entitled Rights of Conscience, Regulations of Societies, and the Observation of the Sabbath. [166] Under the Sunday laws, together with numerous negative commands, was the positive one that every one, who, for any trivial reason, absented himself from public worship on the Lord's day should pay a fine of three shillings, or fifty cents. The society regulations remained much the same, with the added privilege that to all religious bodies recognized by law permission was given to manage their, temporal affairs as freely as did the churches of the Establishment. Dissenters were even permitted to join

themselves to religious societies in adjoining states, [ae] provided the place of worship was not too far distant for the Connecticut members to regularly attend services. To these terms of toleration was affixed the sole condition of presenting a certificate of membership signed by an officer of the church of which the dissenter was a member, and that the certificate should be lodged with the clerk of the Established society wherein the dissenter dwelt. While legislation still favored the Establishment, toleration was extended with more honesty and with better grace. All strangers coming into the state were allowed, a choice of religious denominations, but while undecided were to pay taxes to the society lowest on the list. Choice was also given for twelve months to resident minors upon their coming of age, and also to widows. In any question, or doubt, the society to which the father, husband, or head of the household belonged, or had belonged, determined the church home of members of the household unless the certificates of all dissenting members were on file. If persons were undecided when the time of choice had elapsed, and they hadjiot presented certificates, they were counted members of the Establishment. Thus the Saybrook Platform, no longer appearing upon the law-book, was quietly relegated to the status of a voluntarily accepted ecclesiastical constitution which the different churches might accept, interpreting it with only such degrees of strictness as they chose. Consequently, all Congregational and Presbyterian churches drew together and remained intimately associated with the government as setting forth the form of religion it approved.

As toleration was more freely extended, oppression quickly ceased. The smaller and weaker sects [af] that appeared in Connecticut after 1770 received no such persecution as their predecessors. Among them the Sandemanians [ag] appeared about 1766, and from the first created considerable interest. The Shakers were permitted to form a settlement at Enfield in 1780. The Universalists began making converts among the Separatist churches of Norwich as early as 1772. The year 1784 saw the



organization of the New London Seventh-day Baptist church, the first of its kind in Connecticut.

The abrogation of the Saybrook Platform was implied, not expressed, by dropping it out of the revised laws of 1784. The force of custom, not the repeal of the act of establishment, annulled it. As in the revision of 1750, certain outgrown statutes were quietly sloughed off. After the abrogation of the Saybrook system, the orthodox dissenters felt most keenly the humiliation of giving the required certificates, and the favoritism shown by the government towards Presbyterian or Congregational churches. This favoritism did not confine itself to ecclesiastical affairs, but showed itself by the government's preference for members of the Establishment in all civil, judicial, and military offices. If immediately after the Revolution this favoritism was not so marked, it quickly developed out of all proportion to justice among fellow-citizens.

#### **FOOTNOTES:**

[a] As a petition "To the King's Most Excellent Majesty in Council."

[b] "Shall the throne of iniquity have fellowship with thee, which frameth mischief by law?"

[c] The "History" is brief, and the "Vindication" is largely of President Clap's own reasons for establishing the college church. See F. B. Dexter, "President Clap and his Writings," in *New Haven Hist. Soc. Papers*, vol. v, pp. 256-257.

[d] "Let no man, orders of man, Civil or Ecclesiastical Rulers, majority, or any whoever pretend they have a right to enjoyn upon me what I shall believe and practice in matters of Religion, and I bound to subject to their

Injunctions, unless they can convince me, that in case there should happen to be a mistake, that they will suffer the consequences, and not I; that they will bear the wrath of God, and suffer Damnation, in my room and stead. But if they can't do this, don't let them pretend to a right to determine for me what religion I shall have. For if I must stand or fall for myself, then, pray let me judge, and act and choose (in Matters of Religion) for myself now. Yea, when I view these things in the Light of the Day of Judgment approaching, I am ready to cry out Hands off! Hands off! Let none pretend a right to my subjection in matters of Religion, but my Judge only; or, if any do require it, God strengthen me to refuse to grant it." *A Word in Zion's Behalf*. Quoted by E. H. Gillett in *Hist. Magazine*, 2d series, vol. iv, p. 16.

[e] *A Key to unlock the Door, that leads in, to take a fair view of the Religious Constitution Established by Law in the Colony of Connecticut; With a Short Observation upon the Explanation of the Say-Brook-Plan; and Mr. Hobart's Attempt to establish the same Plan*, by Ebenezer Frothingham.

[f] Robert Bragge, *Church Discipline*, London, 1738. The author takes for his text 1 Peter ii, 45, and under ten heads considers the Congregational church as the true Scriptural church, its rights, privileges, etc. Under topic four, "The Charter of this House," he says: "The charter of this house exempts all its inhabitants from obeying the whole ceremonial law:... from the doctrines of men in matters of faith,... from man's commands in the worship of God. Man can no more prescribe how God shall be worshipped, under the new testament than he could under the old.... He alone who is in the bosom of the Father hath declared this. To worship God according to the will and pleasure of men is, in a sense to attempt to dethrone him: for it is not only to place man's will on a level with God's, but above it."—*Church Discipline*, p. 39.

[g] "Now suffer me to say something respecting the unreasonableness of compelling the people of our persuasion to hear or support the minister of another. Can a person who has been redeemed, be so ungrateful as to hire a minister to preach up a doctrine which in his heart he believes to be directly contrary to the institutions of his redeemer? How if one of you should happen to be in the company with a number of Roman Catholics, who should tell you that if you would not hire a minister to preach transubstantiation and the worshipping of images to your children and to an unlearned people, they would cut off your head; would you do it? Can you any better submit to hire a minister to preach up a doctrine which you in your heart believe contrary to the institution of Christ? I do not doubt but that many of you, and I do not know but that all of you know what it is to experience redeeming love; and if so, now can you take a person of another persuasion, and put him in gaol for a trifling sum, destroy his estate and ruin his family (as you signify the law will bear you out) and when he is careful to support the religion which he in his conscience looks upon to be right, who honestly tells you it is wronging his conscience to pay your minister, and that he may not do so though he suffer?... Is it not shame? Are we sharers in redemption, and do we grudge to support religion? No: let us seek for the truth of the gospel. If we can't think alike, let us not be cruel one to another."

[h] *Connecticut Gazette* (New Haven) April 1755-Apr. 14, 1764; suspended; revived July 5, 1765-Feb. 19, 1768. The *New London Gazette*, founded in 1763, was after 1768 known as the *Connecticut Gazette*, except from Dec. 10, 1773, to May 11, 1787, when it was called *The Connecticut Gazette and Universal Intelligencer*.

Maryland published her first newspaper in 1727, Rhode Island and South Carolina in 1732, Virginia in 1736, North Carolina in 1755, New Hampshire in 1756, while Georgia fell into line in 1763.

[i] Edwards's *Nature of True Virtue*, written about 1755, was not published until 1765.

[j] This book, otherwise essentially Edwardean, was second only to Edwards's *Religious Affections* in popularity and in its success in spreading the influence of this school of theology, and it did much, in Connecticut, to break down the opposition to the New Divinity. Edwards himself approved its manuscript, and in his writings recommended it highly.

[k] In 1769-70, Bellamy wrote a series of tracts and dialogues against this practice. They were very effective in causing its abandonment by those conservative churches that had so long clung to its use.

[l] Experience Mayhew in his *Grace Defended*, of 1744.

Lemuel Briant's *The Absurdity and Blasphemy of Depreciating Moral Virtue*, 1749. This was replied to in Massachusetts, by Rev. John Porter of North Bridgewater in *The Absurdity and Blasphemy of Substituting the Personal Righteousness of Men*, etc.; also by a sermon of Rev. Thomas Foxcroft, Dr. Charles Chauncy's colleague; and by Rev. Samuel Niles's *Vindication of Divers Important Gospel Doctrines*. Jonathan Mayhew, son of Experience, wrote his *Sermons* (pronouncedly Arian) in 1755, and in 1761 two sermons, *Striving to Enter at the Strait Gate*.

Other ministers were affected by these unorthodox views, notably Ebenezer Gay, Daniel Shute, and John Rogers. This religious development was cut short by the early death of the leaders and by the Revolutionary contest. Briant died in 1754, Jonathan Mayhew in 1766, and his father in 1758.—See W. Walker, *Hist. of the Congregational Churches in the United States*, chap. viii.

[m] Hopkins replied in 1765 to Jonathan Mayhew's sermons of 1761. Mayhew died before he could answer, but Moses Hemenway of Wells, Maine, and also Jedediah Mills of Huntington, Conn, (a New Light sympathizer), answered Hopkins's extreme views in 1767 in *An Inquiry concerning the State of the Unregenerate under the Gospel*. This involved Hopkins in further argumentation in 1769, and drew into the discussion William Hart (Old Light) of Saybrook, and also Moses Mather of Darien, Conn, (also Old Light). This attack upon Hopkins resulted in 1773 in his greatest work, *An Inquiry into the Nature of True Holiness*. The whole question at stake between the Old Calvinists and the followers of the New Divinity was how to class men, morally upright, who made no pretensions to religious experience.

[n] West, in his *Essay on Moral Agency*, defended Edwards's *Freedom of the Will* against the Rev. James Dana of New Haven in 1772, but his *Scripture Doctrine of Atonement*, published in 1785, was his best-known work. In his doctrinal views, he was greatly influenced by Hopkins. Both West and Smalley trained students for the ministry. The latter was the teacher of Nathaniel Emmons. Smalley was settled in what is now New Britain, Conn., from 1757-1820.

[o] Emmons died there, in 1840, at the age of ninety-five. Apart from his influence upon the development of doctrine, he did more than any other man to bring back the early independence of the churches and to create the Congregational polity of the present day.

[p] To fortify their position, this party cited various acts of Parliament and the Act of Union, 1707, wherein Scotland is distinctly released from subjection to the Church of England,—an exemption, they maintained, that had never formally been extended to the colonies.

[q] On January 30, 1750, Jonathan Mayhew preached a forceful sermon upon the danger of being "unmercifully priest-ridden."

[r] Rev. East Apthorpe, S. P. G. missionary at Cambridge, Mass., had replied to a newspaper criticism upon the policy of the Society for Propagating the Gospel in New England, in his *Considerations on the Institutions and Conduct of the Society for the Propagation of the Gospel in Foreign Parts*. Jonathan Mayhew published in answer his *Observations on the Character and Conduct of the Society*, censuring the Society not only for intruding itself into New England, but for being the champion of the proposed episcopate, which he denounced. This was in 1763. For two years the controversy raged. There were four replies to Mayhew. Two were unimportant, a third presumably from Rev. Henry Caner, and the fourth, *Answer to the Observations*, an anonymous English production, really by Archbishop Seeker. Mayhew wrote a *Defense*, and Apthorpe summed up the whole controversy in his *Review*.—A. L. Cross, *Anglican Episcopate*, p. 145 *et seq.*; footnote 1, p. 147.

[s] John Adams's *Works*, x, 288.

[t] Dr. Charles Chauneŷ attacked the S. P. G. as endeavoring to increase their power, not to proselytize among the Indians, but to episcopize the colonists. Dr. Chandler, of Elizabethtown, N. J., replied in *An Appeal to the Public*. Chauneŷ retorted with *The Appeal Answered*, and Chandler with *The Appeal Defended*. The newspapers of 1768-69 took up the controversy.

[u] In 1767, Dr. Johnson in a letter to Governor Trumbull assured him that "It is not intended, at present, to send any Bishops into the American Colonies,... and should it be done at all, you may be assured that it will be done in such manner as in no degree to prejudice, nor if possible even give the least offense to any denomination of Protestants."—E. E. Beardsley, *Hist. of the Epis. Church in Conn.*, i, 265.

[v] There were nine clergymen from Connecticut, and twenty-five from New York and vicinity.

[w] The Association had sent petitions in behalf of the Baptists to the legislatures of Massachusetts and Connecticut. Both were refused. For its Circular Letter of 1776, see Hovey's *Life of Backus*, p. 289; also p. 155.

[x] This year the Royal Society awarded him the Copley medal for his discovery that lightning was a discharge of electricity.

In 1761 the medal of the Royal Society was also awarded to the Rev. Jared Eliot of Killingworth, Conn., for making iron and steel from black ferruginous sand.

[y] John Trumbull, b. 1750, d. in Michigan, 1831; Joel Barlow, b. 1754, d. in Poland, 1812; Gen. David Humphreys, b. 1752, d. in New Haven, 1818. These Yale men, together with Dr. Lemuel Hopkins, were the leading spirits in the club known as "The Hartford Wits." Dr. Dwight was a fellow collegian with them. Trumbull and Dwight did much to interest the students in literature. The latter was also tutor in rhetoric and professor of belles-lettres and oratory.

[z] Conn. Col. Rec. xii, Appendix. This was drawn up by the Governor and three members of the General Assembly, May, 1761.

[aa] With grim humor, he turned to one of his escort, saying that he at last realized the description in Revelation of "Death riding a white horse and hell following behind."

[ab] The latter half of the title was omitted about 1775.

[ac] Foster replied: "One man is not to be called a 'heretick,' purely because he differs from another, as to the articles of faith. For either we

should all be 'hereticks' or there would be no 'heresy' among us.... Heresy does not consist in opinion or sentiments: it is not an error of head but of will."—Foster, *A Defense of Religious Liberty*, p. 47.

[ad] This revision of the laws was in charge of Roger Sherman and Richard Law.

[ae] Quakers and Baptists frequently crossed the state line to attend services in Rhode Island.

[af] There was only an occasional Romanist; Unitarians first took their sectarian name in 1815; Universalists were few in number until the second quarter of the new century.

[ag] This sect received its name from Robert Sandeman, the son-in-law of its founder, the Rev. John Glass of Scotland. Sandeman published their doctrines about 1757. In 1764, he left Scotland and came to America, where he began making converts near Boston, in other parts of New England, and in Nova Scotia. He died at Danbury, Connecticut, 1771. The members of the sect are called Glassites in Scotland, where the Rev. John Glass labored. He died there in 1773. See W. Walker, in *American Hist. Assoc. Annual Report*, 1901, vol. i.

## CHAPTER XII

### CONNECTICUT AT THE CLOSE OF THE REVOLUTION

The piping times of peace.



During the fifteen years following the ratification of the Constitution of the United States by Connecticut, January 9, 1788, no conspicuous events mark her history. These years were for the most part years of quiet growth and of expansion in all directions, and, because of this steady advancement, she was soon known as "the land of steady habits" and of general prosperity.

Even in the dark days of the Revolution, Connecticut's energetic people had continued to populate her waste places, and had carved out new towns from old townships,—for the last of the original plats had been marked off in 1763. In 1779-80, the state laid out five towns; from 1784 to 1787, twenty-one,—twelve of them in one year, 1786. [a] Tolland County was divided off in 1786 as Windham had been in 1726, Litchfield in 1751, and Middlesex in 1765. These, with, the four original counties of Fairfield, New Haven, Hartford, and New London, made the present eight counties of the state. The cities of Hartford, New Haven, New London, Middletown, and Norwich were incorporated in 1784. They were scarcely more than villages of to-day, for New Haven approximated 3,000 inhabitants, and Hartford, as late as 1810, only 4,000. The Litchfield of the post-Revolutionary days, ranking, as a trade-centre, fourth in the state, was as familiar with Indians in her streets as the Milwaukee of the late fifties, and "out west" was no farther in miles than the Connecticut Reserve of 3,800,000 acres in Ohio which, in 1786, the state had reserved, when ceding her western lands to the new nation. Thither emigration was turning, since its check on the Susquehanna and Delaware by the award, in 1782, to Pennsylvania of the contested jurisdiction over those lands, and of the little town of Westmoreland, which the Yankees had built there. [b] After the decision new settlements were discouraged by the bitter feuds between the Connecticut and Pennsylvanian claimants to the land.

The Revolution had left Connecticut exhausted in men and in means. Her largest seaboard towns had suffered severely. With her commerce and coasting trade almost destroyed, she found herself, during the period preceding the adoption of the national Constitution and the establishment of the revenue system, a prey to New York's need on the one hand and to Massachusetts' sense of impoverishment on the other; and thus, for every article imported through either state, Connecticut paid an impost tax. It was estimated that she thus provided one third of the cost of government for each of her neighbors. Consequently she attempted to reinstate and to enlarge her early though limited commerce, and was soon sending cargoes, preëminently of the field and pasture, [c] to exchange for West India commodities, while with her larger vessels she developed an East Indian trade. As another means to wealth, the state, in 1791, passed laws for the encouragement of the small factories [d] that the necessity of the war had created; but it was not until after the act of 1833, creating the joint-stock companies, that Connecticut turned from a purely agricultural community to the great manufacturing state we know to-day. She shared in the national prosperity, which, as early as 1792, proved the wisdom of Hamilton's financial policy, and about 1795 her citizens wisely bent themselves to the improvement of internal communication. This was the era of the development of the turnpike and of the multiplicity of stage-lines. Kegular stages plied between the larger cities. Yet up to 1789 there was not a post-office or a mail route in Litchfield county, and the "Monitor" was started as a weekly paper to circulate the news. In 1790 Litchfield had a fortnightly carrier to New York and a weekly one to Hartford, while communication with the second capital [e] of the state was frequent. From 1800, there was a daily stage to Hartford, New Haven, Norwalk, Poughkeepsie, and Albany. [167] Wagons and carriages began to multiply and to replace saddle-bags and pillions, yet as late as 1815 Litchfield town had only "one phaeton, one coachee, and forty-six two-wheeled pleasure-wagons." [168]

Towns continued to commend and encourage good public schools. Every town or parish of seventy families had to keep school eleven months of the year, and those of less population for at least six months. Private schools and academies sprang up. [f] Harvard and Yale, as the best equipped of the New England colleges, competed for its young men, and drew others from the central and southern sections of the nation. Neither had either Divinity or Law School. [g] Young men after completing their college course usually went to some famous minister for graduate training. Rev. Joseph Bellamy, John Smalley, and Jonathan Edwards, Junior, were the foremost teachers in Connecticut, though the first-named had ceased his active work in 1787. [h] The New Divinity was very slowly spreading. Even as late as 1792, President Stiles of Yale declared that none of the churches had accepted it. [i] This versatile minister interested himself in languages, literatures, natural science, and in all religions, as well as in the phases of New England theology. He esteemed piety and sound doctrine, whether in Old or New Divinity men, and welcomed to his communion all of good conscience who belonged to any Christian Protestant sect. He was liberal-minded and tolerant beyond the average of his colleagues. His tolerance, however, was more for the old Calvinistic principles in the New Divinity, and not for its advanced features, for which he had little regard. President Stiles held very firmly to the belief that his ministerial privileges and authority remained with him after he became president of the college, although he was no longer pastor by the election of a particular church.

The first law school in America was established in Litchfield in 1784 by Judge Tappan Reeve, later chief justice of Connecticut. He associated with him in 1798 Judge James Gould. "Judge Keeve loved law as a science and studied it philosophically." He wished "to reduce it to a system, for he considered it as a practical application of moral and religious principles to business life." His students were drilled in the study of the Constitution of the United States and on the current legislation in Congress. Under Judge

Gould, the common law was expounded methodically and lucidly, as it could be only by one who knew its principles and their underlying reasons from *a* to *z*. [169] In 1789, Ephraim Kirby of Litchfield published the first law reports ever issued in the United States. [j] Law students from many states were attracted to the town. The roll of the school, kept regularly only after 1798, included over one thousand lawyers, among them one vice-president of the United States, several foreign ministers, five cabinet ministers, [k] two justices of the United States Supreme Court, ten governors of states, sixteen United States senators, fifty members of Congress, forty judges of the higher state courts, and eight chief justices of the state. [170]

Among Connecticut towns, the two capitals of the state were also literary centres, while Norwich, New Haven, and New London were fast becoming commercial ports. Middletown soon had considerable coasting trade. Wethersfield had vessels of her own. Even Saybrook and Milford sent a few vessels to the West and East Indies. Farmington was a big trading centre, shipping produce abroad and importing in vessels of her own that sailed from Wethersfield or New Haven. Some few towns developed a special industry, like Berlin and New Britain, that made the Connecticut tin-peddler a familiar figure even in the Middle and Southern states. There were also several towns with large shipyards, where some of the largest ships were built. But back of all such centres of activity, the whole state was solidly agricultural. Connecticut's commerce was an import commerce exchanging natural products for foreign ones, such as sugar, coffee, and molasses from the West Indies; tea and luxuries from the East; and obtaining, either directly or indirectly, from Europe, all the fine manufactured products, whether stuffs for personal use or tools for labor.

In measuring the prosperity and intelligence of the Connecticut people neither the parish library nor the newspaper must be overlooked. "I am

acquainted," wrote Noah Webster in 1790, "with parishes where almost every householder, has read the works of Addison, Sherlock, Atterbury, Watts, Young, and other familiar writings: and will conversely handsomely on the subjects of which they treat." [171] "By means of the general circulation of the public papers," wrote the same author, "the people are informed of all political affairs; and their representatives are often prepared to debate upon propositions made in the legislature." [172]

Through the agricultural communities of Connecticut, as well as in the towns, the weekly newspapers of the state began to circulate freely as soon as carriers or mail routes were established. Even by 1785 there was in Connecticut a newspaper circulation of over 8000 weekly copies, which was equal to that published in the whole territory south of Philadelphia. [173] These papers lacked locals and leaders, leaving the former to current gossip, and for the latter substituting, to some extent, letters and correspondence. The newspapers gave foreign news three months old, the proceedings of Congress in from ten to twelve days after their occurrence, and news from the Connecticut elections three weeks late. Subjects relating to religion and politics were heard *pro* and *con* in articles, or rather letters, signed with grandiloquent pseudonyms and frequently marked "Papers, please copy" in order to secure for them a larger public. Fantastic bits of natural science, or what purported to be such, and stilted admonitions to virtue, as well as poems, eulogies, and obituaries, were admitted to the columns of these colonial papers. In 1786, the "Connecticut Courant" apologized for its meagre reports of legislative proceedings, especially of those of the Upper House, Council, or Senate, and promised to give full details. This reporting was a new thing, and it was fully five years more before the practice became general among the half dozen papers published in Connecticut. [1] Space was also given in the papers to the reproduction of selections, even whole chapters, from current and popular writers. Among such letters was a series on "the Establishment of the Worship of the Deity

essential to National Happiness." In one of the letters, the author suggests:

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To secure the advantages ... allow me to propose *a general and equitable tax collected from all the rateable members of a state, for the support of the public teachers of religion, of all denominations, within the state...* Let a moderate poll tax be added to a tax of a specified sum on the pound, and levied on all the subjects of a state and collected with the public tax, and paid out to the public teachers of religion of the several denominations in proportion to the number of polls or families, belonging to each respectively; or according to their estimates. [For]

1. It would be equitable.

2. It would be for the good order of the civil state.

3. All ought to contribute to such a religious education of the people as would conduce to civil order.

4. It would promote the peace in towns and societies.

5. It would do away with the legal expenses consequent upon difficulties in collecting rates.

6. It would "extinguish the ardor of the founders of new delusions and their weak and mercenary abettors."

7. It would prevent separation except upon the firmest principles; "the powerful motive of saving a penny or two in the pound, would cease to operate, because their tax would continue still the same, go where they will." [174]

It was also suggested that the Assembly should fix ministers' salaries at so much per hundred families, and that congregations should be permitted to add to the annual grant by voluntary contributions. These are but examples of the reaching out of the public mind for some equitable method of enforcing the support of public worship,—a principle to which the majority still adhered.

The Laws of the State of Connecticut, under which after the Revolution parishes were organized, contained no reference to the Episcopal church as such. All societies and congregations were placed on the same footing precisely, *i.e.*, they "had power to provide for the support of public worship by the rent or sale of pews or slips in the meeting-house, by the establishment of funds, or in any other way they might deem expedient." With this amount of freedom Episcopalians were content, since by the consecration, in 1784, of Samuel Seabury, Bishop of Connecticut, their ecclesiastical equipment was complete.[m] Further, many of them had been Tories, and, satisfied with the clemency shown them at the close of the war by the authorities, they gladly affiliated with them in all Federal measures of national importance, and also, for over thirty years, in all local issues.

From 1783 to 1787 there was throughout the United States a general disintegration of political parties. [175] Federalists and nascent Anti-Federalists were alike seeking some basis for a safe national existence. The Constitution once established, political parties differentiated themselves as the party in power and the "out-party" developed their respective interpretations of the Constitution and of measures permitted under it. The Anti-Federalist party in Connecticut is sometimes said to have been born in 1783 out of opposition both to the Commutation Act of the Continental Congress, voting five years' full pay instead of half-pay for life to the Revolutionary officers, and to the formation of the Cincinnati. Both of these measures touched the main spring of party difference. America had caste as

well as Europe. Though of a different type, it existed in every town and county. There were the people of position, attained by family standing, professional prominence, superior intelligence (rarely by wealth alone), and then, as now, by natural leadership. There were the common people of ordinary abilities and meagre possessions, who looked up to this first class. Between the two there was an invisible barrier. The customs of the day emphasized it. Yet the institutions of the land and its democracy demanded that this barrier, not impassable to men of parts and character who could push up from the masses, should never become insurmountable, as it often did under a monarchy; that it should be steadily leveled by intrusting the governing power more and more to the whole people, rather than to a few leaders; and by educating the masses up to their responsibilities. But many of the leading Federalists preferred to concentrate power in the hands of the few, hesitating to trust the judgment of the great body of citizens with the new and novel government. And to the people at large any measure that bore a remote resemblance to monarchical institutions or monarchical aspirations—however far remote from either—was subject to suspicion and antagonism. The Cincinnati might be the beginning of a nobility, and half-pay or five years' full pay to the officers ignored the common soldiery who had done most of the fighting, and who had suffered even more severely in their fortunes.[n] When the measures of the first Congress pressed hardest upon the impoverished landed proprietors of the South and upon the small farmers in other sections, of the country, they welded the landed aristocracy of the South and the democracy of the North into the Anti-Federal party. Add to their sense of impoverishment, their common hatred of England, and these classes would hold their prejudice longer than the merchants, the lawyers, and the clergy, whose business, studies, and labors would tend to soften the antagonism created by the war. New England, however, was largely Federal, and Connecticut was one of the strongholds of that party, priding herself upon returning Federal electors as long as there was the



shadow of the Federal name to vote for. Moreover, the "Presbyterian Consociated Congregational Church" and the Federalists were so closely allied that the party of the government and the party of the Establishment were familiarly and collectively known as the "Standing Order." During the early years of statehood, by far the larger number of the dissenters were also good Federalists. But they drew away from the party at a later date, when the Democratic-Republicans began, in their Connecticut state politics, to call for a broader suffrage and full religious liberty, while the Federal Standing Order still continued to claim, as within its patronage, legal favors, political office, and the honors of judicial, military, and civil life.

After the Revolution, the rapidly increasing Baptists continued their warfare waged against certificates and in behalf of religious liberty. Methodists soon sympathized, for Methodist itinerants, entering Connecticut in 1789, gained a footing, in spite of much opposition and real oppression through fines and imprisonments, [o] and quickly made many converts. Their preachers urged upon penurious and backward members the importance of voluntary support of the gospel in almost the same words as those of the Baptist leader: "It is as real *robbery* to neglect the *ordinances* of God, as it is to force people to support preachers who will not trust his influence for a temporal living." [176] Baptists, Methodists, and many other dissenters were far from satisfied with their status, and the government from time to time was forced to take notice of the dissatisfaction. Temporary legislation was enacted to allay the unrest, but, as there was a settled determination to protect the Establishment and to keep the political leadership among its friends, the various measures were not successful. For instance, the legislature in 1785-86 had arranged for the sale of the Western Lands and for the money expected from their sale to be divided among the various Christian bodies, and it had also enacted—

that there shall be reserved to the public five hundred acres of land in each township for the support of the gospel ministry and five hundred acres more for the support of schools in such towns forever; and two hundred and forty acres of good ground in each town to be granted in fee simple to the first gospel minister who shall settle in such town. [177]

Nothing is here said of the Presbyterians, or of any other sect, yet that denomination was sure to receive the greater benefit under the working of the law. They were a wealthy body, and in the next year, they began, under the General Association of Connecticut, to renew their earlier efforts for an organized planting of missions. Attempts to establish missionary posts were begun as early as 1774, but they had been interrupted by the war, and were not revived until 1780, when two missionaries were sent to Vermont. After a little, the missionary spirit languished through lack of support; but interest had been roused again by the promised lands and money from the sales in the Western Reserve, and by the contributions that, flowing in from 1788 to 1791, warranted the dispatch of missionaries into the western field in 1792, and regularly thereafter. [178]

Turning to the religious and more strictly theological side of the development of toleration, there was within the Establishment itself a gradual modification of opinion concerning membership. It was witnessed to by the contents of a book entitled "Christian Forbearance to Weak Consciences a Duty of the Gospel," by John Lewis of Stepney parish, Wethersfield. It was sent out in 1789 for the purpose of "Attempting to prove that Persons, absenting themselves from the Lord's Table, through honest scruples of Conscience, is not such a breach of Covenant but that they partake other Privileges." One may recall that twenty years previous, 1769-71, Dr. Bellamy was thundering not only against the Half-Way Covenant, but also against the Stoddardean view of the Lord's Supper as a

"means" of grace,—as a sacrament the partaking of which would help unworthy or unconverted men to conversion and to the leading of moral and holy lives. One might, for a moment, anticipate that the Wethersfield pastor was harking back to the old idea. But this was not his point of view. "I reprobate," he writes, "the idea of a Half-Way Covenant, or sealing of such a covenant." [179] Lewis contended that all seekers after holiness were to enter the church through the "very same covenant," but that to all of them were to be extended the same and all church privileges, and that they were to accept them "as far as in their conscience they can see their way clear, hoping for further light." If they could accept baptism and church oversight, and could not, because of honest scruples of conscience (lest they were not worthy), approach the Lord's Table, they were not for that reason to be considered reprobates. As to such charity opening a way for persons of immoral lives to creep into the churches or to put off willfully the partaking of communion, the author's experience of many years had proved the contrary, though he could not deny that the possibility of hypocrisy and backsliding might exist under any form of membership.

As a side light upon the growth of toleration during twenty years within the churches of the Establishment, two entries in President Stiles's diary may be quoted. Writing in 1769, to the Rev. Noah Wells of Stamford, Conn., with reference to the call of the Rev. Samuel Hopkins to a pastorate in Newport, R. I., where Dr. Stiles was then preaching, the latter says: "If I find him (Hopkins) of a Disposition to live in an honorable Friendship, I shall gladly cultivate it. But he must not expect that I recede from my Sentiments both in Theology and ecclesiastical Polity more than he from his, in which I presume he is immovably fixed. We shall certainly differ in some things. I shall endeavor to my utmost to live with him as a Brother; as I think (it) dishonorable that in almost every populous place on this Continent, where there are two or more Presb.[yterian] or Cong.[regational] Chhs. [churches], they should be at greater variance than Prot. [estants] and

Romanists: witness every city or Town from Georgia to Nova Scotia (except Portsm'th) [p] where there are more Presb. chhs than one. The Wound is well nigh healed here, may it not break out again." [180] Writing some two years after the appearance of Lewis's book, President Stiles, commenting upon the fact that each dissenting sect was so absolutely sure that it alone had the only perfect type of faith and polity, notes the greater tolerance among the Congregational churches, for the latter were not as a rule close communion churches, as were those of the dissenting sects.

Indeed, the intolerance shown towards dissenters was by this time not so much sectarian, not so much a lack of tolerance toward slightly varying fundamentals of faith, form of worship, and organization, as an intolerance based upon the conviction that the body politic must be protected by a state church. There was, of course, a little of the exasperating sense of superiority in belonging to the favored Establishment. The old objection to dissent as heresy—as a sin for which the community was responsible—had for the most part given way to opposition to it as introducing a system of voluntary contributions for the support of religion. And there was a very general and well-defined fear that such a support would prove inadequate. If so, deterioration of the state and of its people would follow. For individual worth and character, many among the dissenters were highly respected, and the great body of them were esteemed good citizens. Among the churches, some few of the established ones were beginning to have their own services occasionally conducted by dissenting ministers. The First Society of Canterbury entered a vote to this effect in 1791. As the churches translated more liberally the Articles of the Saybrook Platform, they approached a polity more in common with that of Separatist and Baptist. By 1800, the teachings of John Wise of Ipswich, reinforced by those of Nathaniel Emmons, "the father of modern Congregationalism," had permeated all New England. Wise, in his efforts to revive the independence of the single churches, had exploded the Barrowism which New England usage had

introduced into original Congregationalism, and the rebound had carried the churches as far beyond the Cambridge Platform towards original Brownism as the Presbyterian movement had carried their polity away from the Cambridge instrument. The later Edwardean school had devoted itself to the discussion of doctrine rather than to polity, and, in the alliance with Presbyterianism outside of Connecticut, it had affiliated without attaching much weight to differences in church government. Their common interest, at first, was to unite against a possible supremacy of the Church of England, and against the danger to their own churches and to good government from the increase of dissenters. Later, their united efforts were directed to forwarding Christian missions in order that the gospel might not be left out of the civilization on the frontier. In this later work, they had competitors as soon as the Baptists and Methodists became strongly organized bodies. Accordingly Presbyterians and Congregationalists still further sank their differences of discipline in the Plan of Union of 1801, formed for the furtherance of the mission work. Thus it was many years before questions of polity again took front rank in the Congregational churches. Already their very indifference to it, the long years of the gradual abandonment of the Saybrook system, together with the development in civil life of a broader conception of humanity, had tended to bring back the independence of the individual church, while custom had preserved the inrooted principle of church-fellowship. It needed only Nathaniel Emmons to embody practice and opinion in a system that should break away from the aristocratic Congregationalism, the semi-Presbyterianized Congregationalism of the eighteenth century, and give to the nineteenth a democracy in the Church equivalent to that in the State. Emmons, however, carried his theory to extremes [q] when opposing ministerial associations; yet with some modifications modern Congregationalism is essentially that of his school. Church polity, however, did not become a topic of general interest for at least half a century more, nor was it formulated anew until the Albany

Convention of 1862 passed "upon the local work and responsibility of a Congregational Church."

From the politico-ecclesiastical point of view, the legislative measures in the history of Connecticut, during the fifteen years after the colony became a state, that are of chief importance are the Certificate Laws and Western Land bills. In order to properly appreciate their significance this summary of the industrial, social, and religious life of the Connecticut people during the years following the Revolution was necessary.

#### **FOOTNOTES:**

[a] Five towns were laid out in 1785; from 1784 to 1787, twenty-one in all; from 1787 to 1800, ten; and from 1800 to 1818, eleven.—Hollister, *Hist, of Connecticut*, pp. 469-70.

[b] Of the seven hundred members of the Susquehanna Land Company, formed in 1754, six hundred and thirty-eight were Connecticut men. A summer settlement was made on the Delaware in 1757 and on the Susquehanna in 1762. The first permanent settlement was in 1769. At the close of the Revolution, renewed attempts to colonize resulted in a reign of lawlessness and bloodshed.

[c] Horses, cattle, beef, pork, stages, flour, grain. During the European wars, the United States exported foodstuffs in great quantities, to feed both French and English armies, amounting to over 100,000 men.

[d] President Stiles was interested in silk culture and in the manufacture of silk. His commencement gown in 1789 was of Connecticut make. Through the efforts of General Humphreys (1784-94) attempts were made to introduce the Spanish merino sheep and to establish factories for fine

broadcloth. Iron works were set up in different parts of the state. The earliest cotton factories centred about Pomfret. Clocks, watches, cut shingle-nails, paper, stone, and earthenware pottery, were among the manufactures started in Norwalk between 1767 and 1773, while in Windham, hosiery, silk and tacks were manufactured.

[e] In 1701 the General Court enacted that the May session of the Legislature should be held at New Haven, and the October one at Hartford. This was a concession to the former sovereignty of the New Haven Colony. The arrangement continued until 1873. The biennial sessions, introduced by the constitution of 1818, alternated between the two capitols.

[f] "Mr. Dwight is enlarging his School to comprehend the Ladies, ... promising to carry them through a course of belles Lettres, Geography, Philosophy, and Astronomy. The spirit for Academy making is vigorous."—*Stiles Diary*, iii, 247.

Of the academies, the more famous were Lebanon, Plainfield, Greenfield (under Dr. Dwight), Norwich, Windham, Waterbury (for both sexes), and Stratfield from 1783 to 1786. There was also a second school in Norwich from 1783 to 1786. See *Stiles Diary*, iii, 248.

[g] Harvard Divinity School was established 1815; Yale, 1822. Previously both universities had each a professor of divinity.

[h] "For three years and three months before his [Bellamy's] death he was disabled by a paralytic Shock, we impaired his Intellect as well as debilitated his Body. Few were equal to him in the Desk & he was Communicative and instructive in Conversation upon religious Subjects." The passage closes with the prophecy, "His numerous noisy Writings have blazed their day, and one Generation more will put them to sleep."—*Stiles*

*Diary*, March 16, 1790 (on hearing the news of Bellamy's death). See vol. iii, pp. 384-385. See Trumbull, ii, 159, for a more favorable opinion.

[i] Referring to the successor of Dr. Wales in the Yale chair of divinity, Pres. Stiles wrote, "An Old Divinity man will be acceptable to all the Old Divy. *Ministers & to all the Churches*: a New Divt man will be acceptable to all the New Divy. Ministers and to *None of the Churches*, as none of the Chhs. in New Engl. are New Divt."—*Stiles Diary*, iii, 506, note (Sept. 8, 1793). See also under date of Nov. 16, 1786, where churches are said to take New Divinity pastors "because they can get no others, but persons in the parish know nothing of the New Theology."

[j] "Law Reports of the Superior and Supreme Courts, 1785-1788, by E. Kirby. Just published at this office and ready for subscribers and gentlemen disposed to purchase, for which most kinds of country produce will be received."—Advertisement in *Litchfield Monitor* of Apr. 13, 1789.

[k] Calhoun, Woodbury, Mason, Clayton, and Hubbard. Judge Reeve retired in 1820; Judge Gould in 1833.

[l] Reporters were admitted to the national House of Representatives in 1790 and to the Senate in 1802.

[m] Bishop Seabury was consecrated by the Scotch non-juring bishops, Nov. 14, 1786. The latter, about four years later, were restored to their position as an integral part of the Anglican hierarchy. Meanwhile, Dr. Samuel Provoost of New York and Dr. William White of Pennsylvania, on Feb. 4, 1787, were consecrated by the Archbishops of Canterbury and York, assisted by the Bishops of Wells and Peterborough, after a special Act of Parliament permitting the consecration to take place without the usual oaths of allegiance to the King as head of the church. In 1789, Bishop Seabury became president of the House of Bishops thus formed in America. The



following year, James Madison of Virginia was consecrated by the English bishops, thus giving to the United States three bishops after the English succession, so that the validity of the Scottish rite should not be questioned in the consecration of future American bishops.

[n] The eighty dollars proposed for privates would not go far toward mending broken fortunes, or care for broken constitutions and crippled bodies.

At the Middletown Convention, Sept. 3, 1783, delegates from Hartford, Wethersfield, and Glastonbury met to denounce the Commutation Act. At its adjourned meeting on Sept. 30 fifty towns, a majority in the state, disapproved the Act in an address to the General Assembly, and called attention to the Society of the Cincinnati. At the last meeting, March, 1784, an address to the people of the state was framed which condemned both the Commutation Act and the Cincinnati.— J. H. Trumbull, *Notes on the Constitution*, p. 18. Noah Webster, *History of the Parties in the United States*, pp. 317-320.

[o] Methodism was twenty-eight years old, when, in 1766, Robert Strawbridge introduced it into New York, and Philip Embury preached his first sermon in a sail-loft. In 1771, Francis Asbury, later Bishop Asbury, was appointed John Wesley's "Assistant" in America. In 1773, the first Annual Conference was held. Methodism rapidly spread in the Middle and Southern states. By the year 1773-74, the year's increase in members was nine hundred and thirteen; in 1774-75, ten hundred and seventy-three. The preachers traveled on foot or on horseback, preaching as they went; living on the smallest allowance; sleeping where night overtook them; and meeting often with grudging hospitality, suspicion, and, sometimes, open violence.

Methodism "began when Episcopacy was at its lowest point, both in efficiency, and in the good-will of the people." It agreed with Jonathan Edwards on the nature of personal religion, and separated from the Church of England in this, the Methodist's central principle of "conscious conversion" or "emotional experience." Later in New England, Wesley's missionaries united in Methodist societies many of the converts to the Edwardean theology.

At the opening of the Revolution, the whole body of Methodists were within the Church of England. Of the English missionaries only Asbury, Dempster, and Wharcott remained in America to carry on, with native preachers, the work of proselytizing. It was "the only form of religion that advanced in America during that dark period, and during the war, it more than quadrupled both its ministry and members." At the beginning of the war, it had eighty traveling preachers, beside local preachers and exhorters; a membership of one thousand, and auditors ten thousand. In 1784, there was a year's increase of fourteen thousand nine hundred and eighty-eight members, and of one hundred and four preachers to rejoice in the consecration of Bishop Asbury. In the November of that year, Bishops Coke and Asbury, organizing the "American Episcopal Church," in spite of Wesley's anathemas probably led out one hundred thousand souls as the nucleus of the new church.

For a while the Connecticut authorities refused to recognize "as sober Dissenters" any converts other than the stationed preachers and their charges. The persecutions which the Methodists suffered were those of slander, the refusal to them of halls, churches, or public buildings; the refusal to permit their ministers, unless located, to perform the marriage ceremony; and petty fines, with occasional unjust imprisonment.

[p] Portsmouth, N. H.

[q] "A pure democracy which places every member of the church upon a level and gives him perfect liberty with order." Under such a definition of a church as this, its pastor becomes only a moderator at its meetings, and every church is absolutely independent. It would follow that from its decisions there could be no appeal. Emmons was fond of declaring that "Association leads to Consociation; Consociation leads to Presbyterianism; Presbyterianism leads to Episcopacy; Episcopacy to Roman Catholicism, and Roman Catholicism is an ultimate fact."

In spite of his teaching as to democracy, Emmons was as intolerant of it in the State as he was earnest for it in the Church.

## CHAPTER XIII

### CERTIFICATE LAWS AND WESTERN LAND BILLS

And make the bounds of Freedom wider yet.—Alfred Tennyson.

The legal recognition of conscience, the acknowledgment of fundamental dogmas held in common, the gradual approachment of the various religious organizations in polity, their common interest in education and good government, would seem to furnish grounds for such mutual esteem that the government would willingly do away with the objectionable certificates. On the contrary, the old conception of a state church, and of its value to the body politic, was so strongly intrenched in the hearts of the majority of the people that they felt it incumbent upon them to require the certificates as guarantees that those who were without the Establishment were fulfilling their religious duties. Particularly was this the case when new sects continued to increase and radical opinions to spread among the masses. And as the government saw these apparently destructive ideas permeating the

people, it endeavored, rather unwisely, to hem dissent in closer bounds, and to favor still more Congregationalists and Presbyterian-Congregationalists.

The aggressively successful proselytizing by the Methodists revived the old dislike of rash exhorters and itinerant preachers, and the old contempt for an ignorant and unlearned ministry. The proselytizing movement had also created a suspicion that it was hypocritical, and that it was masking a deliberate attempt to undermine the Establishment. Outside this Methodist propaganda there were also all sorts of unorthodox ideas that were spreading notions of Universalism, Arianism, deism, atheism, and freethinking, and making many converts. These proselytes were frequent among the untutored and irresponsible members of society who caught at the doctrines of greater freedom, and sometimes translated them, theoretically at least, into principles of greater personal license; and where they did not do this, the authorities felt sure that they would soon, and if unrestrained by ecclesiastical law, would quickly become lawless, first in religious affairs and then, as a consequence, in moral ones. Not only in this radical class, but among the recognized dissenters and among a minority of other, religious folk, there was a tendency to question both the authority and the justice of the government in its restrictive religious laws, its ecclesiastical taxation, and its Sabbath-day legislation. Particularly was there opposition to the fine for absence from public worship on Sunday, unless excused by weighty reasons, and to the assessment upon every one of a tax for the support of some form of recognized public worship, even though the tax-payer had no personal interest or liking for that which he was obliged to support. The feeling that such injustice ought not to continue was strong among some members of the Establishment. They found a powerful advocate in Judge Zephaniah Swift of Windham, the author of the "System of the Laws of the State of Connecticut."

Judge Swift was a thorough-going Federalist, but so bitter an opponent of the union of Church and State that his enemies, and even members of his own party, taunted him with being a freethinker,—a serious charge in those days. Nevertheless, Judge Swift held the loyalty of a county and of one rather tolerant of dissent. "The Phenix or Windham Herald," founded in 1790, though Federal in politics, became Judge Swift's organ; and so acceptable were his opinions, taken all in all, to the community, that from 1787 to 1793 it returned this arch-enemy of the Establishment as its deputy to the House, and then his congressional district honored him with a seat in the national council until 1799. He became chief justice in 1806, and died in 1819, having lived to see the charter constitution set aside and Church and State divorced.

The small Anti-Federal party in the state, though making but very few converts at this time, and though of very little importance politically, were the pronounced advocates of a wider suffrage, a larger tolerance, and of radical changes in the method of government. The last they believed necessary before any great improvement in the terms of the franchise or in those of religious toleration could be secured. "An Address to the Baptists, Quakers, Rogerines, and all other denominations of Christians in Connecticut, freed by law from supporting what has been called the 'Established Religion,'" went the rounds of the newspapers urging continued resistance to the support of any religious system that enforced a tax. The "Address" closed with the cheerful prediction that, as their numbers were increasing very rapidly, they might hope yet "to carry the vote against those who have put on haughty airs and affected to treat us as their inferiors."

Such seething opposition among various classes induced the government to enact some special legislation; but it was unfortunately not of a conciliatory character. In May, 1791, a law was passed varying the old requirement that certificates, after being signed by a church officer, should

be lodged with the Society clerk, to the demand that they be signed by two civil officers, or, where there was only one, by the justice of the peace of the town in which the dissenter lived. Considering that the justices were mostly Congregationalists, the enactment amounted to an intrenchment of the Standing Order at the expense of the dissenters. With these officers lay full power to pass upon the validity of the certificates and upon the honesty of intent on the part of the persons presenting them. The certificates read:—

We have examined the claim of —— who says he is a Dissenter from the Established Society of —— and hath joined himself to a church or Congregation of the name of ——; and that he ordinarily attends upon the public worship of such Church or Congregation; and that he contributes his share and proportion toward supporting the public worship and ministry thereof, do upon examination find that the above facts are true.

Dated

Justice of the Peace. [182]

A veritable doubt, spite, malice, prejudice, or mistaken zeal, might determine the granting of the certificate to the dissenter.

The authorities defended this measure upon the ground that it was the *civil* effect of preaching that gives the *civil* magistrate jurisdiction. "The law," they said, "has nothing to do with *conscience* and *principles*." [183] They further declared that there were persons who were taking undue advantage of the certificate exemptions, and that there were good reasons, to doubt the validity of many of the certificates.

This Certificate Act roused the dissenters throughout the state. "In public society meetings and in speaking universal abroad, sensible that their

numbers though scattered were large," they strove to create a sentiment that should send to the next legislature a "body of representatives who would remember their petition and see that equal religious liberty should be established."

In regard to the certificates, a writer in the "Courant" exclaims:—

It is sometimes said that the giving of a certificate once a year or once in a man's life is but a trifle, and none but the obstinate will refuse it as none but the covetous desire it. True it is but a trifle—ten times as much would be but a trifle if it was right. If it must be done, let them who plead for it do the little trifle; they have no scruples of conscience about it.... The certificate law is as much worse than the tax on tea as religious fetters are worse than civil.

[184]

The Rev. John Leland's "The Rights of Conscience inalienable; therefore Religious Opinions not cognizable by Law; Or The High flying Churchman, stript of his legal Robe appears a yaho" was a powerful arraignment of the government and defense of the right of all to worship as conscience bade them. Leland had recently come from Virginia and settled in New London. In the southern state he had been one of the most influential among the Baptist ministers and a great power in politics. In Virginia he had seen the separation of Church and State in 1785, and had witnessed the benefits following that policy. After the publication of his "Rights of Conscience" the question before the Connecticut people became one of establishment or disestablishment, because Leland, not content with showing the falsity of the position that civil necessities required an established church, or with a logical demonstration of the inalienable rights of conscience, proceeded to boldly attack the Charter of Charles II as being in no rightful sense the constitution of the state of Connecticut. He

maintained that, "Constitution" though it was called, it was not such, because it had been enforced upon the people by a mere vote of the legislature [a] and was a "constitution" never "assented to further than passive obedience and non resistance" by the people at large; a constitution

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contrary to the known sentiments of a far greater part of the States in the Union; and inconsistent with the clear light of liberty, which is spreading over the world in meridian splendor, and dissipating those antique glooms of tyrannical darkness which were ever opposed to free, equal, religious liberty among men.

Leland arraigns a union of Church and State that presupposes a need of legislative support for religion, which the example of other states has proved unnecessary; and which the experience of communities, persisting in such union, has shown to be productive of evil, of ignorance, superstition, persecution, lying and hypocrisy, a weakness to the civil state, and a conversion of the Bible and of religion to tools of statecraft and political trickery.

Government has no more to do with religious opinions of men than it has with the principles of mathematics.... Truth disdains the aid of law for its defence, ... it will stand upon its own merit.... Is it just to balance the Establishment against the rights guaranteed in the charter, and to enact a law which has no saving clause to prevent taxation of Jew, Turk, Papist, Deist, Atheist, for the support of a ministry in which they would not share and which violated their conscience? [185]

Many Federalists of Judge Swift's type sympathized with Leland's bold arraignment of the Establishment, if not with his view of the



unconstitutionality of the charter government. These men repudiated the new certificate law.

The authorities felt that they had gone too far, and in October, 1791, after an existence of only six months, they repealed the certificate law by one hundred and five yeas to fifty-seven nays. The new law that was substituted permitted each dissenter to write his own certificate, release, or "sign-off," as the papers were colloquially called, and required him to file it with the clerk of the Established Society wherein he dwelt. [186] This favor was not so great a privilege as it seemed. It bore hard upon the dissenters in two ways. It created "Neuters," people who wished to be relieved from the ecclesiastical taxes, but who were too indifferent to the principles and welfare of the churches to which they allied themselves to faithfully support them. For their churches to complain of such persons to the authorities would only give the latter reasons for enforcing the laws for the support of the Establishment. Then again, the new certificate law did not relieve the dissenters who lived too far from their churches to ordinarily attend them from petty fines and from court wrangles as to the justice of them, for with the judges lay the determination of what the words "far" and "near" and "ordinarily do attend" in the laws meant. [b] The important question of how many absences from church would prevent a man from claiming that he was a regular attendant was thus left in the hands of judges, who were for the most part prejudiced or partial. Many amusing and exasperating legal quibbles occurred in the courts between judges, who were determined to sentence for neglect of public worship, and defendants, who were equally positive of their rights. Many dissenters attempted later to ridicule the law out of existence by substituting for the formal—

I certify that I differ in sentiment from the worship and ministry in the ecclesiastical society of —— in the town of —— constituted bylaw within certain local bounds, and have chosen to join myself

to the (Insert here the name of society you have joined) in the town of \_\_\_\_.

Dated at \_\_\_\_ this \_\_\_\_ day of \_\_\_\_ A. D.

declarations, undignified in wording and sometimes written in doggerel rhyme. While granting the new certificate law, the Assembly were careful to pass a minor ecclesiastical statute enforcing a fine of from six to twelve shillings upon all who should neglect to observe all public fasts and thanksgivings. [187] This law at times proved unsatisfactory to the Episcopalians, for the Congregational fasts and feasts were appointed by the authorities, who naturally did not consider the Churchman's feeling when called upon to celebrate a feast or thanksgiving during an Episcopalian season of fasting, or to observe a public fast, to go in sackcloth, upon an anniversary that should be marked by joy and praise.

In 1792, the year following the attempt to remodel the certificate laws, certain legislative measures with reference to Yale College fed the discontent among the dissenting sects. For some years there had been an increasing dissatisfaction with the management of the college. It culminated in 1792 in the reorganization of the governing board, to which were added eight civilians, including the governor, lieutenant-governor, and the six senior councilors or state senators. At the same time, and in consideration of the admission of laymen to the board, \$40,000 was given to the college. [c] This money was a part of the taxes which had been collected to meet the expenses of the Revolutionary war, and which were in the state treasury when the United States government offered to refund the state for such expense. It was granted to the college on condition that she should invest it in the new United States bonds, and that half the profits of the investment should be at the disposal of the state. This arrangement relieved the crippled finances of the college and gratified many of its friends. But there were

many who regarded the measure as out-and-out favoritism to a Congregational college, and who put no faith in the proposed half-sharing of profits. They maintained that eventually the college would get the whole benefit of the money that had been collected for other purposes, and from many persons who could derive no benefit from such a disposal of it. These prophets were not far wrong, for after Yale had paid into the state treasury a little more than \$13,000 she was relieved from further payments by a repeal, in 1796, of the conditional clause of the grant.

This favoritism to Yale was not the only legislation to anger the dissenters, and especially the Baptists. Another measure, mooted at the same time as the certificate acts and the special grant to the college, was accepted as a further mark of the government's determination to ignore the rights of dissenters. In 1785-86 the Assembly had granted lands for the support of the Gospel ministry, for schools, and to the first minister to settle in each township of the Western Reserve. This act, as has been shown, was considered to unduly favor the Presbyterians. But little had come of this legislation beyond the survey of the land and the opening of a land office there for its sale. Five years later, in 1791, even though no part of the tract had been sold, the Assembly introduced a new bill appropriating the anticipated proceeds from the sale of the land to the several ecclesiastical societies as a fund with which to pay their ministers so as to enable them to do away with the tax for salaries. But the excitement roused by the first certificate law—of 1791—was so great that it was deemed prudent to continue this Western Land bill over to the next session of the legislature, and there it was lost. The session of May, 1792, contented itself with only such legislation in regard to the Western Reserve as that by which it granted the "Fire Lands," so called, a grant of 500,000 acres as indemnity to the citizens of New London, Groton, Fairfield, Norwalk, and Danbury, for the destruction of their property in the burning of their towns by British troops.

As the lands of the Western Reserve did not sell well, [d] the Assembly, in 1793, appointed a committee to dispose of the tract to the highest bidder if the amount offered should be duly guaranteed with interest; principal and interest payable to the state within four or six years, whether paid in lump sum on demand, or by installments. The sale was widely advertised both within and without the state. It was now calculated that the amount realized from the sale of the lands would be a sum yielding an annual interest of \$60,000, or an average of \$600 to a town, beside a bonus to Yale of \$8000. Therefore, the Assembly, in October, 1793, voted that—

moneys arising from the sale of the territory belonging to the State, lying west of the state of Pennsylvania, be, and the same is hereby established a perpetual fund, the interest whereof is granted, and shall be appropriated to the use and benefit of the several ecclesiastical societies, churches, congregations of all *denominations* in this State, to be by them applied to the support of their respective ministers or preachers of the Gospel, and schools of education, under such rules and regulations as shall be adopted by this or some future session of the General Assembly. [188]

An earlier bill had been proposed, discussed, and tabled. This act was originally a resolution framed by a large committee whose members represented both the friends and opponents of the proposal for the immediate sale of the lands. When the vote passed, it was by eighty-three yeas to seventy nays in the House and by a large and favorable majority in the Council.

One fault that the dissenters found with the law was that, under the rules and regulations adopted by the Assembly, they believed that the alternative which the law allowed of voting the money to the ministerial fund, or to the school, would work to their disadvantage. Where there were few dissenters,

the Presbyterian vote would carry the money over to the minister's use, and where there were many, the same vote would be sufficient, if thrown, as it probably would be, to direct the money to the school appropriation. It would follow that the dissenters might never have the use of the money for the support of their own worship.

The Baptists voiced the general opposition among the dissenters,—an opposition so strong that it appealed to some of the conservatives as sufficient reason in itself to condemn the law. "A Friend to Society" wrote to the "Hartford Courant" that—

if a religion whose principles are universal love and harmony is to be supported and promoted by a means which will blow up the sparks of faction and party strife into a violent flame, it is a new way of promoting religion. Much better would it be for the State of Connecticut that their Western Lands should be sunk by an earthquake and form part of the adjoining lake than that they should be transplanted hither for a bone of contention.

Apart from sectarian interests, the law met with hostility. There were those who thought that the money ought to be applied at once to the remaining indebtedness of the state, rather than for it to wait for another installment on the Revolutionary debt that was still due from the national government. There were more who thought that the money ought to go for the expenses of government, or for direct advantages, such as the repair of bridges and highways. But the expenses of government were light, [e] and, as a rule, the people were willing to keep the highways in repair. There was still another party who contended that the money should go for schools, both because they were needed in larger numbers, and because they ought to be able to pay larger salaries and not ones so small as to tempt only the farmer lad, or the ambitious student, to keep a country school for a few

months in winter, or a somewhat similarly equipped woman to teach in summer. And there was yet another party who were convinced that the money should go to the support of the ministry, for they believed that morality could be taught only by religion, and that the people were losing interest in the latter because of the inferiority of the preachers whom the small salaries and insecure support kept in the field. [189]

While this discussion of certificate laws, of grants to Yale, and of grants of land and money to the ecclesiastical societies had been constantly before the public, there had also been present a minor grievance due to the Assembly's interest in the missionary work that the General Association had extended to include parts of Vermont, western New York, Pennsylvania, and the outlying settlements in Ohio. In the western field the missionaries sent by Connecticut frequently met those sent out by the Presbyterian General Assembly. Drawn together by their interests in these missions in 1794, the practice was begun of having three delegates from the General Association meet with the Presbyterian General Assembly in their annual convention, and three delegates from the General Assembly take their seats in the yearly convocation of the General Association of Connecticut. So long as the Connecticut churches were strongly Presbyterian in sentiment, there was no clashing of interests among the workers in the mission field. Naturally, Connecticut wanted to do her full share of missionary work; and feeling the need of more money for the purpose, the General Association, in 1792, appealed to the legislature for permission to take up an annual collection for three years. The Association hesitated to take up such a collection in all the churches, dissenting or Established, without such permission. The Baptists expressed their indignation at the wording of Governor Huntington's proclamation, "that there be a contribution taken up in every congregation for the support of the Presbyterian Missions in the western territory." More than that, they refused to contribute, on the ground that if the collection had

been "recommended" they would gladly have helped a Christian cause, but that it was inexpedient to yield to a demand that all societies should contribute to the support of missions that were entirely under the control of one religious body. Furthermore, with reference to the appropriation of money from the Western Lands, they would join with other dissenters in opposing it, on the ground that, in order to obtain their share of the money, they would have to admit their inferiority through the showing of the compulsory certificates. Moreover, even the scant favor secured through these was in danger from the continual favoritism of the legislature, with its treasury open at all times to its Congregational college, and with its enactments in favor of the Established Churches.

At the May session of the Assembly, 1794, the Baptists from all over the state thronged the steps of the capitol at Hartford, angered almost to the point of precipitating civil war. There John Leland addressed them, urging the necessity of government; the power of constitutional reform; arguing for rights of conscience, citing both European and colonial history to prove their reasonableness and their value to the body politic; and setting forth Connecticut's departure from the glorious freedom mapped out by her founders. He declared to that great and angry crowd:—

Government is a necessary evil and so a chosen good. Its business is to preserve the life, liberty and property of the many units that form the body politic.... When a constitution of government is formed, it should be simple and explicit; the powers that are vested in, and work to be performed by each department should be defined with the utmost perspicuity; and this constitution should be attended to as scrupulously by men in office as the Bible should be by all religionists.... Let the people first be convinced of the deficiency of the constitution, and remove the defects thereof, and then, those in office can change the administration upon constitutional grounds.

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[The right to worship] God according to the dictates of conscience, without being prohibited, directed or controlled therein by human law, either in *time, place or manner*, cannot be surrendered up to the general government for an equivalent. [190]

Had not Governor Haynes said to Roger Williams, "The Most High God hath provided and cut out this part of the world for a refuge and receptacle for all sorts of consciences?" How had not Connecticut fallen? How passed her ancient glory, how ignored her charter's rights? How firm a grip upon her had that incubus of her own raising, the pernicious union of Church and State? Break that, as elsewhere it had been broken, and then as freemen demand a constitution guaranteeing both civil and religious liberty.

The result of the widespread hostility was the attempt at the May session of 1794 to repeal the offensive law. The Lower House did repeal it, after a lively debate, by a vote of 109 yeas to 58 nays, but the Council, or Upper House, where the conservatives were intrenched, refused to pass the bill. However, they were induced to pass a resolution suspending the sale of the lands. The debate in the House was published verbatim in the "Hartford Gazette" of May 19, 1794, and was copied by the papers throughout the state. In the following October a bill was passed by the Council, but continued over by the House and ordered to be printed in all the papers, that the people might have opportunity to consider it before it should come up to be passed upon by their representatives in the May session of 1795. [191] The terms of the bill were that the principal sum of money received from the sale of the Western Lands should be apportioned among the several school societies according to the list of polls and rateable estates, and that the interest arising from the money so divided should be appropriated to the support of schools that were kept according to the law, or to the support of



the public worship of God and the Christian ministry, "as the majority of the legal voters should annually determine." [192]

The proposed law was subjected to public scrutiny of all sorts. It was agitated in town meetings, and the discussions for and against it were noticed in the newspapers, where much space was given to its consideration. Ministers made it the subject of their sermons. Dr. Dwight discoursed upon the subject in his Thanksgiving sermon. [193] When the proposed bill came up before the legislature, it encountered considerable opposition, but after some modifications it became a law. As in school societies the dissenters had an equal vote, and in all town affairs were worth conciliating, there was more justice in the new law than in the old, where the ecclesiastical society was made the unit of division. From 1717 to 1793 the towns, parishes, and occasionally the ecclesiastical societies had charge of the schools. [194] But in 1794 school districts were authorized and the change to them begun. Such districts could, upon the vote of two thirds of all the qualified voters, locate schools, lay taxes to build and repair them, and appoint a collector to gather such rates. The act of May, 1795, appropriating the money from the Western Lands to the schools, provided also that the school districts should be erected into school societies to whom the money should be distributed, and by whom the interest thereon should be expended; and that it should go "to no other Use or Purpose whatsoever; except in the Case and under the circumstances hereafter mentioned." The circumstances here referred to were in cases where two thirds of the legal voters in a school society meeting, legally warned, voted to use the interest money for the support of the ministry in that Society, and appealed to the General Assembly for permission to so use the money. Upon such an expression of the wish of voters, the General Assembly was empowered to answer in the affirmative. The act also repealed that of 1793. The legislature appointed another commission for the sale of the lands. They were sold in the following October for \$1,200,000. By this legislation was laid the

foundation of Connecticut's School Fund. The Connecticut Land Company, which had made the purchase, petitioned the legislature in 1797 that Connecticut should surrender her jurisdiction over the lands to the United States. The state complied. In 1798 the organization of the new school societies was perfected, and the control of the schools passed entirely into their hands until the district system of 1856 was adopted.

The Western Land bills had resulted in the establishment of a public school fund and in its just distribution, without reference to sectarianism, among the people. All the agitation attending both the certificate acts and Western Land bills had demonstrated the intense opposition of the dissenting minority, and that they were beginning to look to the increase of their numbers and the power of the ballot as the only means of changing the vexatious laws under which they were treated as inferiors. To the Congregationalists, strong both as the Established Church and as members of the Federal party, which counted many adherents among all the dissenting sects, the possibility that any voting strength could be brought against them, adequate to oppose their party measures, seemed improbable. Such a possibility must be very remote. Yet within twenty years, they were to see the downfall of the Federal party, of the Established Church, and of Connecticut's charter government.

## **FOOTNOTES:**

[a] The vote of the Assembly was: "That the ancient form of civil government, containing the charter from Charles the Second, King of England, and adopted by the people of this State, shall be and remain the Civil Constitution of the State under the sole authority of the people thereof, independent of any King, or prince whatever. And that this Republic is and shall forever be and remain a free, sovereign, and independent State, by the

name of the State of Connecticut."—Revision of Acts and Laws, Ed. 1784, p. 1.

[b] "Courts and juries had usually been composed of what was considered the standing church, and they had frequently practiced such quibbles and finesse with respect to the forms of certificates and the nature of dissenting congregations as to defeat the benevolent intentions of the law."—Swift's *System of Laws*, pp. 146, 147.

[c] Yale received in all \$40,629.80. In 1871, six alumni replaced the six senior councilors.

[d] So far the highest bid for the tract of land had been \$350,000.

[e] The annual expenses were estimated to be approximately \$90,000. In *Advice to Connecticut Folks*, 1786, occurs the following estimate:—

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Necessary Unneces'y

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Governor's salary, £300 £300

Lieutenant-Governor's, 100 100

Upper House attendance and travel

60 days at £10 per day, 600 600

Lower House attendance and travel

170 members at 6s. a day, 60 days, 3,060 1,530 £1,530

Five Judges of the Superior Court at

24s. a day, suppose 150 days, 900 900

Forty Judges of Inferior Court at

9s. a day, suppose 40 days, 720 720

|                                       |        |              |
|---------------------------------------|--------|--------------|
| Six thousand actions in the year, the |        |              |
| legal expenses of each, suppose £3,   | 18,000 | 1,000 17,000 |
| Gratuities to 120 lawyers, suppose    |        |              |
| £50 each,                             | 6,000  | 1,000 5,000  |
| Two hundred clergymen at £100 each,   | 20,000 | 20,000       |
| Five hundred schools at £20 a year,   | 10,000 | 10,000       |
| Support of poor,                      | 10,000 | 10,000       |
| Bridges and other town expenses,      | 10,000 | 10,000       |
| Contingencies and articles not        |        |              |
| enumerated,                           | 10,000 | 10,000       |

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Total, £89,680 £66,150 £23,530

As a glimpse at society, it may be added that the *Advice* itself is an energetic and statistical condemnation of the prevalent use of "Rum," estimated at £90,000 or "ninety-nine hundredths unnecessary expense" in living. "Deny it if you can, good folks. Now say not a word about taxes, Judges, lawyers, courts and women's extravagances. Your government, your courts, your lawyers, your clergymen, your schools and your poor, do not all cost you so much as one paltry article which does you little or no good but is as destructive of your lives as fire and brimstone."—Noah Webster's *Collection of Essays*, pp. 137-139.

The evil was beginning to be recognized in all its danger. Here and there voluntary temperance clubs were beginning to be formed among the better classes, but it was a time when hardly a contract was closed without a stipulation of a certain quantity of rum for each workman.

## CHAPTER XIV

## **POLITICAL PARTIES IN CONNECTICUT AT THE BEGINNING OF THE NINETEENTH CENTURY**

As well dam up the waters of the Nile with Bullrushes as to fetter the steps of Freedom.—L. M. Child.

Leland's attack upon the constitution of Connecticut during the excitement over the Western Land bills called for new tactics on the part of the dissenters. Thus far, in all their antagonism to the union of Church and State, there had been on their part practically no attack upon the constitution itself. Yet even as early as 1786 the Anti-Federalists had proclaimed that the state of Connecticut was without a constitution; that the charter government fell with the Declaration of Independence; and that its adoption by the legislature as a state constitution was an unwarranted excess of authority. The Anti-Federalists maintained also that many of the charter provisions were either outgrown or unsuited to the needs of the state. But the majority of the dissenters, like the Constitutional Reform party of recent date, preferred redress for their grievances through legislation rather than through the uprooting of an ancient and cherished constitution. Accordingly, it was not until the elections of 1804-6 that this question of a new constitution could reasonably be made a campaign issue. But from 1793 the dissenters began to lean towards affiliation with the Democratic-Republican [a] party, the successors to the Anti-Federal; yet it was not until toward the close of the War of 1812 that the Republican party made large gains in Connecticut and the dissenters began to feel sure that the dawn of religious liberty was at hand. But before that time the Republicans made three distinct though abortive attempts to secure the electoral power.

The Anti-Federalists early began to probe for weak spots in the constitutional government of Connecticut. The Fundamental Orders had given four deputies to each of the three original towns, and had made the

number of deputies from each new town proportionate to its population. The Charter had limited the deputies to two from each town. The Fundamental Orders gave the General Court, composed of Governor, Magistrates or Assistants, and Deputies, supreme governing power, including, together with that of legislation, the granting of levies, the admission of freemen, the disposal of public lands, and the organization of courts. It had also a general supervision over individuals, magistrates, and courts, with power to revise decisions and to mete out punishments. The Charter of 1662 did not materially alter the laws and customs of the government as previously established under the Fundamental Orders, or the "first written constitution." The Charter emphasized the executive, and began the segregation of the Upper House or Council, since by it the "Particular Court" of the founders became the Governor's Council, serving upon like occasions, but requiring the presence of at least six magistrates for the transaction of business. The Particular Court had consisted of the Governor or Deputy-Governor, and three Assistants. In emergencies occurring during adjournment of the General Court, the Particular Court was to serve in place of the larger body. After 1647 this special court could consist of two or three magistrates who, in the absence of the Governor or Deputy-Governor, chose one of their number to act as moderator. After 1662 the formula of the General Court "Be it ordered, enacted and decreed" was changed to "Be it enacted by the Governor and Council and House of Representatives in General Court assembled." At the regular session of the General Court or General Assembly, the Councilors first sat as a separate body in 1698. After the Declaration of Independence this Upper House or Council became the Senate, and for many years was referred to under any one of the three names.

The power of the General Court—this jumble of legislative, executive, and judicial—worked well so long as the community consisted of a few hundred or a few thousand souls with little diversity of sentiment or

industrial interest. It was not until the last quarter of the eighteenth century that the inefficiency of the "first written constitution" began to be felt. Then there arose the need of a new constitution to modify the body of laws and customs that had grown up; to destroy much of the erroneous legislation that in effect perverted or nullified their original intent; and to furnish a constitutional basis for the government of a larger and less homogeneous people. Here and there a few thoughtful men, irrespective of their church or party, were beginning to apprehend the difficulty of piloting a democratic state under the old royal charter. The more prominent among them belonged to the Anti-Federal party, and naturally they sought to expose the constitutional difficulties which they believed impeded progress. [b]

One of the earliest party tilts grew out of the increase of new towns and the unequal development of some of the older ones. Then as now, though on a much smaller scale, the unit of town representation threatened rotten boroughs and a fictitious representation of the will of the majority as represented by the delegates to the Lower House. The state in 1786 had not recovered from the exhaustion due to the Revolutionary War, and the support of the many new deputies, due to the increase of the towns, was a burden which the October legislation of that year attempted to lighten. With the object of cutting down state expenses a bill was introduced into the House to refer to the freemen some proposition for reducing the number of their delegates and for equalizing representation. Mr. James Davenport of Stamford moved to substitute for the bill [c] another in which this reduction should be made by the legislature without submitting the proposed change to the freemen. This was objected to on the ground that a reduction of delegates was a constitutional question, "the Assembly having no right to alter the representation without authority given by their constituents." The supporters of the bill contended with Mr. Davenport that—

*we have no Constitution but the laws of the State. The Charter is not the Constitution.* By the Revolution *that* was abrogated. A law of the State gave a subsequent sanction to that which was before of no force; if that law be valid, any alteration made by a later act will also be valid; if not, we have no Constitution, so defined, as to preclude the Legislature from exercising *any* power necessary for the good of the people.

The bill was carried over to the May session of 1787, when it was defeated by sixty-two yeas to seventy-five nays, the towns of Hartford, East Hartford, Berlin, Stamford and Woodbury favoring it. A confidential letter of February, 1787, from Dr. Gale, the probable author of "Brief, decent but free Remarks or Observations on Several Laws passed by the Honorable Legislature of the State of Connecticut since the year 1775, by a Friend to his Country," suggested that in addition to the reduction of representatives, laws should be passed forbidding any citizen to hold, at the same time, more than one place of public trust, either civil or military, and also requiring an increase in the number of councilors, or senators, from the total of twelve to three from each county. [d] Dr. Gale believed that if these senators should be elected by each county, and not upon a general ticket, the change would be beneficial. [195]

In regard to the senators, the Fundamental Orders prescribed that nominations for the magistrates should be made by the towns through their deputies to the fall session of the General Court, and that the election should take place the following spring at the Court of Elections. As the life of the colony expanded, modifications of this rule were made; in time, vote by proxy took the place of the freeman's presence at the Court of Election. After 1689, the Assistants to be nominated, twenty in number, were balloted for in the fall town meetings. The sealed lists were sent to the legislature, where they were opened, and the ticket for the spring election was made out



from the twenty names receiving the largest vote. The Court could no longer as in earlier times add any new names. Hence, the custom grew up of listing nominations, not according to popularity, but first according to seniority in office, and then according to the number of votes received. These lists were published in the papers throughout the state. The candidates for election were presented at the April town meetings, where each name was read in order and voted upon. A much later enactment provided twelve ballots, and forbade any one to cast more than twelve, whether for or against a candidate or in blank. If a man held any one of his slips in reserve for a more satisfactory candidate, he had none for the teller, and thus the secrecy of the ballot was almost destroyed. New candidates or those not up for reelection, whose names appeared at the foot of the list, whatever the number of votes received, were sometimes kept waiting years for an election, until those above them had died in office or resigned. [e] For instance, Jonathan Ingersoll received 4600 votes in nomination in 1792, while the senior councilor, William Williams, had only 2000; yet Williams's name was preferred, and Ingersoll's had to wait over another year, when he was again nominated and elected, and held his seat from 1793 to 1798. An election was a wearisome affair, and many men would not stay until the voting upon the list was finished, preferring for various reasons to cast an early ballot. The natural tendency was to support the experienced and known, even if indifferently efficient councilor, rather than to vote for an untried and unfamiliar man whose name would come up later, or even for popular men who could not be proposed until far into the day. As a result the party in power felt assured of their continuance in office. Moreover, proxies for the election were returned in April, but the result was not announced until the legislature met in May, nor was there any supervision compelling an honest count. Thus it was easy to keep in office Federal candidates, and thus the Senate, or Council, came to reflect public opinion about twenty years behind the popular sentiment. Furthermore, the clergy of

the Establishment would get together and talk matters over before the elections, and the parish minister would endeavor to direct his people's vote according to his opinion of what was best for the commonwealth. This ministerial influence was not shaken until about 1817.

There was still another grievance against the Council besides that just mentioned. It had come to be almost a Privy Council for advice and consultation. Furthermore it was, until 1807, the Supreme Court of the state to which lay appeals in all cases, civil or criminal, where errors of law had been committed in the trial courts. Its twelve members were mostly, if not all, lawyers, holding a tremendous power of patronage over the members of the Lower House, many of whom were also lawyers, eager for preferment; over the courts throughout the state, from which, since 1792, the old non-professional judges had been debarred, and also over the militia, whose officers, from the earliest times, had been appointed by the General Court. Further, the united action of the two houses was necessary to pass or to repeal a law, and thus much important legislation centred upon a majority of seven in the Council.

Furthermore, at the opening of the nineteenth century, the courts of law also were thought to need reorganizing. The judges were declared partisan, as they naturally would be under the conditions of their appointment. The Republicans could not meet the Federals upon an equal footing in the state tribunals. They were disparaged in their business relations, "were treated as a degraded party, and this treatment was extended to all the individuals of the party however worthy or respectable; in fact as the Saxons were treated by the Normans and the Irish by the English government." [196]

Because of these political conditions, early in statehood, there were three schools of politicians; namely, those who approved a constitutional convention, expressly called to frame a new constitution; those who wished

such a convention merely to amend the existing charter-constitution; and those, until 1800, predominately in the majority, who were convinced that whether the state had a constitution or not was a most frivolous and baneful question, mooted only by "visionary theorists," or by those who were desirous of a change, no matter how disastrous it might be to good government. The conservative party held that, since the charter had been drawn according to the tenor of a draft submitted by Winthrop and outlining the government according to the Fundamental Orders, framed in 1639 by the "inhabitants and residents of Hartford, Windsor and Wethersfield," the charter was not a grant of privileges but an approval asked and obtained for a government already existing. Consequently, such government as had been exercised before and was continued under the charter was essentially a creation of the people. It therefore needed only the declarative act of the legislature to annul those clauses of the charter that bound the colony to the crown and to continue over into statehood the government of the colonial period. Further, granting that the separation from Great Britain annulled the constitution, the subsequent conduct of the people in assenting to, approving of, and acquiescing in such acts of the legislature, had established and rendered those acts valid and binding, and had given them all the force and authority of an express contract. [197] Such discussion of constitutional questions, confined at first to the few, spread among the many after Leland's attack upon the charter, and were debated with great earnestness. Leland's attack gained him, at the time, comparatively few adherents, but it brought the question of disestablishment fairly before the people, demonstrating to the discontented that there was very little hope for larger liberty, for greater justice, until the power of legislation, granted by the old charter, should be curtailed, and the bond between Church and State severed.

The growth in Connecticut of the Democratic-Republican party, outside its following among Methodists, Baptists and a few radical thinkers, was

very slow. The Episcopalians were held in much higher esteem by the Federal members of the Establishment, or "Standing Order," as they were called, than were the other dissenters. Yet notwithstanding the wealth and conservatism of the sect, they were looked at askance when it came to giving them political office, for the old dislike to a Churchman still lingered in New England. Accordingly, they were somewhat dissatisfied at the treatment they received as political allies of the Standing Order, and, in order to quiet their incipient discontent, the government thought best to occasionally extend some small favor to them. So in 1799, the legislature granted them a charter for a fund for their bishop which they were trying to raise. About the same time, Yale first conferred upon an Episcopal clergyman the title of doctor of divinity. The transfer of the annual fast day to coincide with Good Friday was appreciated by the Churchmen. The change was first made in 1795, and came about through Governor Huntington's friendship for Bishop Seabury, and because of a desire to remove from the public mind a misapprehension, arising from the refusal of the Episcopal church in New London to comply with President Washington's proclamation for a national Thanksgiving. [f] From 1797 this change of fast-day became customary. It removed the long-standing complaint that Presbyterian days of fasting or rejoicing frequently occurred during Episcopal feasts or fasts. At an earlier period, the ignoring of such public proclamations was sometimes made the occasion for imposing fines for the benefit of the Establishment.

As has been said, the Republican gains were greater among the Methodists and Baptists. This was partly because not a few among these dissenters associated Jefferson's party with his efforts towards disestablishment in Virginia in 1785. Out of Connecticut's population of two hundred and fifty thousand, the Republicans counted upon recruits from the Methodist body, numbering, in 1802, one thousand six hundred and fifty-eight, and from the Baptists, approximating four thousand six

hundred and sixty members. In 1798-1800 the division of the Federalists over national issues strengthened the Republicans in Connecticut, as they were the successors to the Anti-Federalists, those "visionary theorists" of 1786. The new Democratic-Republican party received further additions to their ranks through the opposition in Connecticut to the Federal and obnoxious "Stand-up Law" of 1801. This law, which required a man to stand when voting for the nomination of senators, "was made to catch the secret vote of the Republicans," [198] and revealed at once the opposition of every dissenter, debtor, employee, or of any one who had cause to fear injury to himself if he gave an honest vote. It was passed by a compact and reunited body of Federalists whose boast was that no division upon national questions could affect their unity and strength in the Land of Steady Habits.

The Republican-Democratic party in the state would have gained recruits more rapidly had it not been for its attitude as a national party toward France. To appreciate the situation in Connecticut, one must consider, first of all, the influence of the French Revolution. One must realize the intense interest, the mingled exultation and terror with which conservatives who, though they might differ in their religious preferences, were yet the rank and file of the state, watched its varying aspects from its outbreak in 1789 on through the years of its earliest experiments in statecraft, of its exaggerated exploitation of "liberty, equality, and fraternity," and of its casting off of all religious bonds and trammels. As the Federal party lost its sympathy with the French cause the attitude of the nation changed. The consolidated factions of the Anti-Federalists, however, increased their ardor for the French republic, and took from 1792 the name Democratic-Republican. They carried their keen sympathy even to expressing their French sentiments by their dress and manners. The change in the national attitude was reflected in Connecticut by the whole-hearted antipathy of large numbers of her people to what they considered "radicalism of the most destructive character." English Arianism and Arminianism, with which

the Edwardeans had waged war, were nothing compared to the influx of French infidelity and atheism which appeared to be sweeping over the land. Books formerly guarded by the clergy were on sale everywhere. They found among the masses many like Aaron Burr, who, during his period of study with Dr. Bellamy, had preferred the logic of the printed books upon the shelves to that of the master who placed them there. Dr. Bellamy proposed to confute the pernicious arguments of these books, bringing them one by one before his select body of students, so that they should be able to guide their future parishioners when the insidious poison of these dangerous authors, these "followers of Satan," should force its way among them.

All sects attempted to oppose such an influx of irreligion. All but the Episcopalians fell back upon revivals as their chief means. In these revivals the Methodists and Congregationalists were perhaps the most successful in securing converts. The policy of the Episcopal church did not favor this phase of religious life. It felt that its whole attitude was a protest against exaggerated liberty, or license, and against all atheistical ideas. During the revivals the Baptists, also, added largely to their numbers. The Methodists, however, brought to their revival meetings the peculiar strength of fervent proselytes to a new faith; of one rapidly becoming popular, appealing strongly to the emotions, and having a touch of martyrdom still clinging to its profession. Among those Federalists who were also Congregationalists, the French Revolution was believed to be the "result of a combination long since formed in Europe by infidels and atheists to root out and effectually destroy religion and civil government." Holding this opinion; seeing the Baptists and Methodists increasing in importance, both in the nation and in the state; watching the continual increase of the unorthodox and of the freethinker, and perceiving the growing loss of confidence in the Federal party both in the nation and the state, the Standing Order felt itself face to face with imminent peril. It scented danger to itself and to the existence of the commonwealth. But it sadly lacked a great leader, until the year 1795,

when it found one in the recently elected president of Yale, the Rev. Timothy Dwight. He was a grandson of Jonathan Edwards, and was a man of amazing energy, of varied training, and of great personal charm.

In his experience Dr. Dwight counted a college education, a theological training under Jonathan Edwards, Jr., a tutorship at Yale, a chaplaincy among the rough soldiers of the war of the Revolution, home-life on his father's farm at Northampton, where the men in the field vied with each other "to rake or hoe beside Timothy" in order to hear him talk. In political life Dr. Dwight had served an apprenticeship in the General Court of Massachusetts, where he sat as deputy from Northampton. He had had experience as a preacher in several small towns, and as pastor at Greenfield Hill, a part of Fairfield. There he had added to his income by establishing the Greenfield Academy for both sexes. Upon accepting the presidency of Yale he became also professor of theology, and in addition he took under his special care the courses in rhetoric and oratory. These last two, together with literature, had, he thought, been entirely too much neglected. [g] His coming was a forecast of the man of the nineteenth century.[199] Dr. Stiles had been a fine type of the eighteenth. Dr. Dwight was a man of less acquirements in languages, but he was a more accurate scholar, of broader intelligence, and with a mind well stocked and ready. He had a pleasing power of expression, was tactful, and could readily adapt himself to men and circumstances. It was he who was to give Yale its initial movement from college to university. He himself was to become a celebrated teacher and theologian. He was to be one of the founders of the New England school, whose principles Dr. Taylor, in 1827, was to make known under the name of the New Haven Theology. [h] In his own day Dr. Dwight was equally celebrated as a power both in religion and politics. "Pope Dwight" his enemies termed him, and they nicknamed his ministerial following his "bishops," while they dubbed the Council or Senators "his Twelve Cardinals."

Outside his college duties, and as a part of his care for its spiritual welfare, President Dwight's immediate purpose was to combine all forces that could be used to stem the dangerous currents rushing against the bulwarks of Church and State. He had early favored the drawing together of Congregational and Presbyterian bodies. He had discerned, as early as 1792, a stirring of new life in the religious world, the breaking down of the apathy of half a century that had been indicated by revivals in places far scattered, not only throughout New England but in other states. Towns in Massachusetts, with East Haddam and Lyme in Connecticut, had been roused as early as the year named. That element of personal experience which had been so marked a feature of the Great Awakening reappeared, but without that excessive emotionalism [i] which characterized the earlier revival. Nor was there any such pronounced leadership as then. There was the same conviction of sinfulness, the peace after its acknowledgment, and the joyous satisfaction in the determination to lead an upright life, seeking God's grace and will. Recognition of this spiritual awakening had in some measure entered into the proposed disposal of the money from the Western Lands, as it had also in the discussion of the joint missionary work of 1791-1794, and again in 1797-98, [200] when the General Association of Connecticut was incorporated as the Connecticut Missionary Society, [j] In all of these movements President Dwight had taken an active part. Upon entering the presidency of Yale he at once began a series of sermons, which he delivered Sunday mornings, and which were so arranged that in each four years the course was complete. These lectures were his "Theology Explained and Defended," first published in 1818. President Dwight, with the leading Presbyterian or Congregational ministers, together with the Methodist and Baptist clergy, continued to favor the revival movement. This reached its height in 1807. From beginning to end it lasted nearly a quarter of a century, and was punctuated by the revival years of 1798, 1800, and 1802, that were especially fruitful of conversions in Connecticut. That



of 1802 attracted large numbers of the college students. The success of the revivals was marked by increasing austerities, such as the denunciation of amusements, both public and private, and the revival of dead-letter laws for the more strict observance of Sunday. Traveling or driving was prohibited without a pass signed by a justice of the peace. Travelers were held up over "holy time." Attempts were made to prevent the young people from gathering in companies on Sunday evenings after the Sabbath was legally over. Too much hilarity, though innocent, was condemned. Such restrictions were extremely distasteful to a large minority in the state, and seemed to many citizens only repeated proofs of how closely the government and the Presbyterian-Congregational church were banded together. Accordingly the Republicans began to think it was time to test the strength of such a platform as they could put forth while making a bid for the whole dissenting vote.

The election of Adams and Jefferson [k] in 1797 was a spur to both parties, lending hope to the scattered Republicans, and prodding the recently over-confident Federalists. In March, 1798, the whole nation was roused almost to forgetfulness of party lines by the anger created by the publication of the "X Y Z Papers." A few months later the Federal party, through its Alien and Sedition laws, had lost its renewed hold upon the nation. Connecticut denounced the Virginia and Kentucky resolutions of 1798-99, and was to all appearances staunchly Federal. But her leaders were looking for another presidential candidate than Adams, while the Republicans, elate with the anticipated national victory in 1800, were making preparations to catch any and every dissatisfied voter in the state. The scattered Republican clubs and committees awoke to new activity. As Jefferson kept his party well in hand, and let the national dissatisfaction increase that he might rush to victory at the presidential election of 1800, so the Connecticut Republicans matured their plans. They did not formally organize their party till 1800, first making sure of their great leader as the

nation's executive, and almost of his reelection. Then they began to urge the acceptance of their platform upon the oppressed Connecticut dissenters, and to taunt the Federal Episcopalians with an allegiance that as late as 1802 had not been thought of sufficient worth to warrant the small favor of a college charter for their academy at Cheshire. The Federalists attempted to disarm the Episcopal dissatisfaction over the refusal by granting them a license for a lottery to raise \$15,000 for the bishop's fund.

The leader of the Republicans in Connecticut was Pierpont Edwards, a recently appointed United States district judge. He was brother of Jonathan Edwards, Jr., for years the pastor of the North Church at New Haven, and in 1800 president of Union College. This Republican leader was the maternal uncle of his opponent in Federal state politics, President Dwight, and also of the Republican Vice-President, Aaron Burr. Another nephew of his was Theodore Dwight, the brother of Yale's president, who led the Federal civilians, and who was editor of the "Hartford Courant," the organ of the Connecticut Federalists. The Hartford "American Mercury" voiced the sentiments of the Republicans. The latter party throughout the state was formally organized in 1800 at a meeting in New Haven, the home of Mr. Edwards and of his henchman, Abraham Bishop, son of that city's mayor.

The close personal relationship of the leaders, [1] the scorn of the radicals, the abhorrence of the conservatives for the principles, opinions, and even, in some cases, habits of life of their opponents, entered into the strife and vituperation of the political campaigns from 1800 to 1806. Personalities were unsparing, passion rose high, and speeches were bitter. This was particularly the case in New Haven, where Abraham Bishop's impudent boldness of attack and denunciation was exaggerated by his father's position. Samuel Bishop, the father, was a man of seventy-seven, and old in the service of both Church and State. He was senior deacon in the North Church, or what was at that time known as the Church of the

United White Haven and Fair Haven Societies. He was also a justice of the peace, town clerk, and mayor of the city. The last office was held, according to the charter, during the pleasure of the legislature. Samuel Bishop was also chief judge of the court of common pleas for New Haven County, and sole judge of probate, annual offices which the General Assembly had re-conferred upon him in 1800 and in 1801. His son was a graduate of Yale (1778). He was a lawyer of somewhat indifferent practice, and from 1791 to 1798 clerk of the county court under his father, while from 1798 he had been clerk of the superior court. Before settling down to practice at the bar he had lived abroad, and had been caught in the whirl of French thought and democratic ideas. He had returned home bearing words of recommendation to Washington's secretary of state from Jefferson's European friends. A personal meeting with that party leader had added to Bishop's enthusiasm. For some years he had lived in Boston, and tried his hand at literature. He had returned to New Haven in 1791, and had thrown himself into politics. He purposely exaggerated his opinions. He was careless of his unorthodox expressions even to the verge of blasphemy. Though himself a believer in God, he was perhaps what one would probably have termed a little later a Unitarian. His enemies exaggerated his exaggerations,—and Unitarianism was a crime according to the Connecticut statutes. [m]

In his speeches and essays Abraham Bishop struck out boldly, with earnestness, logic, shrewd wit, and irony, and, as has been said, at times with dangerous irreverence,—often with down-right impudence when that would serve his purpose. An illustration of his extreme use of it was in 1800, about the time of the organization of the Republican party throughout the state.

He had been honored with the Phi Beta Kappa oration, annually delivered on the eve of the Yale Commencement, then in September. A polished literary effort was expected. He broke tradition, courtesy, and

every implied obligation in the choice of his subject. In August he sent to the committee his paper for their acceptance or refusal. It was entitled "The Extent and Power of Political Delusions," and was an out and out campaign document. The presidential election was due in November! Further, Bishop made political capital of the anticipated refusal of his paper, which was not sent him until the eleventh hour. The readers of the morning paper, wherein the committee offered an apology for the change of speakers at the Society's meeting to be held that night, were confronted by the announcement that the refused address would be given to all who cared to listen to it in the parlors of the White Haven church that same evening, and by the still further notice that copies of it were fresh from the printer's hands and were ready to be distributed to the remotest parts of the state. Needless to state, the Phi Beta Kappa audience dwindled away to swell the crowd of fifteen hundred, wherein Bishop gleefully counted "eight clergymen and many ladies." The address met with great favor, and the Wallingford Republicans at their celebration of March 11, 1801, in honor of the election of Jefferson and Burr, asked Mr. Bishop to be their orator. [n]

To top Bishop's insult,—as it was regarded by every friend of the Standing Order,—came in the following spring Jefferson's displacement of Elizur Goodrich, President Adams's appointee as collector of the port of New Haven, and the substitution of Samuel Bishop. President Jefferson considered himself at liberty to make this change; and all the more so because President Adams had made the appointment as one of his last official acts, when he must have known it would have been unacceptable to the incoming Republican administration. The merchants of New Haven immediately united in a petition to President Jefferson, in which they declared that Samuel Bishop was too old to perform the duties of the office, and, moreover, not acquainted with accounts. Assuming that his son Abraham would assist him, they denounced the latter as "entirely destitute of public confidence, so conspicuous for his enmity to commerce and

opposition to order, so odious to his fellow citizens, that we presume his warmest partizans would not have hazarded a recommendation of him." Notwithstanding this protest the appointment was continued, the President pointing out the honors bestowed upon the father and the care with which he, Jefferson, had investigated the case before acting upon it. Reproving the authorities for so long excluding the Republicans entirely from office, Jefferson expressed his regret at finding upon his accession to the presidency not even a "moderate participation in office in the hands of the majority." He further stated that when such a situation was in some measure relieved he would be only too glad to make the question "Is he capable? Is he honest? Is he faithful to the Constitution?" the only tests for obtaining and holding office. Samuel Bishop died in 1803, and the collector ship was then bestowed upon his son, who held it until his death in 1829.

In Connecticut the two political parties prepared for conflict. The Republicans desired a new constitution and disestablishment. The old constitutional and religious debates were opened and fiercely fought out in pamphlet, press, sermon, and political oration. Noah Webster replied to the "Extent and Power of Political Delusion" by "A Rod for the Fool's Back." John Leland published his famous Hartford speech as "A Blow at the Root, a fashionable Fast-Day Sermon," and his "High Flying Churchman," as contributions in behalf of civil and religious liberty. Abraham Bishop took up the latter topic in his "Wallingford Address, Proofs of a Conspiracy Against Christianity and the Government of the United States," published in 1802, as well as in his "Extent and Power of Political Delusion" of 1800. A fair type of Mr. Bishop's style and treatment is shown in his "Connecticut Republicanism," a campaign document, wherein he sets forth his opinion of the union of Church and State. [o]

In his campaign document under the title "Connecticut Republicanism" Bishop declared:

Christianity has suffered more by the attempts to unite church and state than by all the deistical writings, yet the men who denounce them are pronounced atheists and no proof of their atheism is required but their opposition to Federal measures.... Church and state cannot be better served than by keeping them distinct and by placing them where they ought to be, above, instead of beneath the control of men who care no more for either of them than they can turn to their personal benefit. The self-styled friends of order have in all nations been the cause of all the convulsions and distresses which have agitated the world.... The clergyman preaches politics, the civilian preaches of orthodoxy, and if any man refuse to join their coalition they endeavor to hunt him down to the tune "The Church is in danger."... In 1787 this visible intolerance had abated in New England; there was no written law in force that none but church-members should be free burgesses: yet the avowed charge of Christ's church was in our law-books, some nice points of theology were settled in our statutes and the common law of church and state was in full force.... The Trinitarian doctrine is established by laws, and the denial of it is placed in the rank of felony. Though we have ceased to transplant from town to town Quakers, New Lights, and Baptists; yet the dissenters from our prevailing denominations are even at this moment praying for a repeal of those laws which abridge the rights of conscience.

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Break the league of church and state which first subjugates your consciences, then treating your understanding like galley slaves, robs you of religion and civil freedom.... Thirty thousand freemen are against the union of church and state. Thirty thousand more

men, deprived of voting because they are not rich or learned enough, are ready to join them. [201]

In his "Wallingford Address," Bishop exclaims "The clerical *politician* is a useless preacher; the *political* Christian is a dangerous statesman." On the title page of this address appeared the epigram, "Our statesmen to the Constitution; our Clergy to the Bible." The unfortunately irreverent parallel which Bishop drew between the Saviour of the world and the leader of the national Republican party, or of the democracy or common people, gave to the epigram an evil significance not intended, and to its author a reputation not wholly deserved.

David Daggett, a prominent New Haven Federalist and lawyer, [p] tried in "Facts are Stubborn Things" to refute the charge that the people were priest-ridden, the legislature arbitrary and tyrannical, the clergy bigots. In the course of his argument he gives an account of the reception of a Baptist petition which, voicing the smouldering discontent that was kept burning by the certificate law, had been presented to the legislature. Daggett charged the Republicans with instituting the custom of holding their party meetings in Hartford and New Haven at the time of the meeting of the Assembly in those cities, and of making the political gathering a means of directing what topics should be brought up for discussion in the House of Representatives, and what discussed in their party organ the "American Mercury." Daggett accused the Republicans of purposely choosing subjects of discussion of an inflammable character, and declared that it was in Babcock's paper (so called from its editor) that the Baptist petition originated, which, circulated through the state, received some three thousand signatures, "many of whom doubtless sought the public good." [202] The petition was presented for trial in 1802 and a day set for its hearing, upon which Mr. Pierpont Edwards and Mr. Gideon Granger were to advocate it. The gentlemen, according to Mr. Daggett's account, did not appear, and of course no trial was held. Instead,

the Assembly referred it to a committee of eighteen from the two houses. Mr. Daggett insisted that "it was thoroughly canvassed, and every gentleman professed himself entirely satisfied that there was no ground of complaint which the Legislature could remove, except John T. Peters, Esq., who declared that nothing short of an entire repeal of the law for the support of religion would accord with his idea."

The truth of the matter was that the committee were chiefly Federalists. Mr. Peters was a Republican. In their answer to the petition, the committee assumed that it "was an equitable principle, that every member of the society should, in some way, contribute to the support of religious institutions and so the complaint of those who declined to support any such institution was invalid." If there was ground for complaint because of sequestration of property for the benefit of Presbyterians only, the committee failed to find any such cause, and if such existed, the proper channel of appeal was through the courts. All other complaints in the petition were considered to be answered by the assumption that the legislature had the right, on the ground of utility, to compel contributions for the support of religion, schools, and courts, whether or not every individual taxpayer had need of them. The next year, 1803, the petition gained a hearing, but that was all. It continued to be presented at every session of the Assembly, and was first heard by both houses in 1815. It was finally withdrawn at the session that passed the bill for the new constitution of 1818.

As one of the preliminary steps in the education of the people in Republican principles and aims, John Strong of Norwich in 1804 founded the "True Republican," thus giving a second paper for the dissemination of Republican opinions. From 1792 the "Phenix or Windham Herald" had been dealing telling blows at the Establishment and at the courts of law through a discussion in its columns carried on by Judge Swift, the inveterate foe of



the union of Church and State, and a lawyer, frank to avow that partiality existed in the administration of justice. Though both the paper and the judge were strongly Federal in their politics, they were both materially helping the Republican advocates of reform. From the Windham press came, also, a republication of "A Review of the Ecclesiastical Establishments of Europe," edited by R. Huntington, with special reference to the bearing of its arguments upon the conditions existing in Connecticut, where illustration could be found of the absurdities and dangers that the book had been originally written to expose. In 1803 John Leland, representing forty-two Baptist clergymen, twenty licensed exhorters, four thousand communicants, and twenty thousand attendants, sent out another plea for disestablishment in his "Van Tromp lowering his Peak with a Broadside, containing a Plea for the Baptists of Connecticut." In it he urges that thirteen states have already granted religious liberty, and that many of them have formed newer constitutions since the Revolution. Such should also be the case in Connecticut. Moreover, it could readily be accomplished at the small cost of five cents per man. Such a small sum would pay the expenses of a convention to formulate a constitution and another to ratify it, while five cents more per person would furnish every citizen with a copy of the proposed document, so that each could decide for himself upon the constitutionality of any measure proposed, and would no longer be obliged to read pamphlet after pamphlet or column after column in the newspaper to determine its validity. [203]

All this was preparatory; and the first purely political note of warning and call to battle for a new constitution was sounded by Abraham Bishop at Hartford, May 11, 1804, in his "Oration in Honor of the Election of President Jefferson and the peaceful acquisition of Louisiana." He sums up the situation thus:—

Connecticut has no Constitution. On the day independence was declared, the old charter of Charles II became null and void. It was derived from royal authority, and went down with royal authority. Then, the people ought to have met in convention and framed a Constitution. But the General Assembly interposed, usurped the rights of the people, and enacted that the government provided for in the charter should be the civil constitution of the State. Thus all the abuses inflicted on us when subjects of a crown, were fastened on us anew when we became citizens of a free republic. We still live under the old jumble of legislative, executive and judicial powers, called a Charter. We still suffer from the old restrictions on the right to vote; we are still ruled by the whims of seven men. Twelve make the council. Seven form a majority, and in the hands of these seven are all powers, legislative, executive and judicial. Without their leave no law can pass; no law can be repealed. On them more than half of the House of the Assembly is dependent for re-appointments as justices, judges, or for promotion in the militia. By their breath are, each year, brought into official life six judges of the Superior Court, twenty-eight of the probate, forty of county courts, and five hundred and ten justices of the peace, and, as often as they please, all the sheriffs. Not only do they make laws, but they plead before justices of their own appointment, and as a Court of Errors interpret the laws of their own making. Is this a Constitution? Is this an instrument of government for freemen? And who may be freemen? No one who does not have a freehold estate worth seven dollars a year, or a personal estate on the tax list of one hundred and thirty-four dollars.... For these evils there is but one remedy, and this remedy we demand shall be applied. *We demand a constitution that shall separate the legislative, executive and judicial power, extend*

*the freeman's oath to men who labor on highways, who serve in the militia, who pay small taxes, but possess no estates. [204]*

Abraham Bishop threw down the gauntlet, and in the following July his party issued a circular letter. It emanated from the Republican General Committee, of which Pierpont Edwards was chairman. It stated "that many very respectable Republicans are of the opinion that it is high time to speak to the citizens of Connecticut plainly and explicitly on the subject of forming a constitution; but this ought not to be done without the approbation of the party." A general meeting was proposed to be held in New Haven on August 29, 1804. In response, ninety-seven towns sent Republican delegates to assemble at the state house in New Haven on that date. Major William Judd of Farmington was chosen chairman. The meeting was held with closed doors, and a series of resolutions was passed in favor of adopting a new constitution. It was declared "the unanimous opinion of this meeting that the people of this state are at present without a constitution of civil government," and "that it is expedient to take measures preparatory to the formation of the Constitution and that a committee be appointed to draft an Address to the People of this State on that subject." The address reported by this committee was printed in New Haven on a small half-sheet with double columns, and ten thousand copies were ordered distributed through the state.

The issue was fairly before the people. From the Federal side, just before the September elections, came David Daggett's "Count the Cost," in which he ably reviewed the Republican manifesto, impugning the motives of the leaders of the Republican party, and eloquently urging every friend of the Standing Order and every freeman to "count the cost" before voting with the Republicans for the proposed reform.

The fall election of 1804 was lost to the Republicans, for while they made many gains here and there throughout the state, [q] the immediate slight access to the Federal ranks showed that the people generally were not yet ready for a constitutional change.

As one result of the defeat at the polls, there arose a wider sympathy for the defeated party. When the legislature met in October, the Federal leaders resolved to administer punishment to the defeated Republicans. So strong was the popular feeling, and so determined the attitude of the legislature, that it summoned before it all five of the justices of the peace [r] who had attended the New Haven convention of August 29, to show why they did not deserve to be deprived of their commissions. Their oath of office ran "to be true and faithful to the Governor and Company of this state, and the Constitution and government thereof." What right, the Federals asked, had they to attack a constitution they had sworn to uphold? At the same time, several of the militia, known to be of Republican sympathies, were also deposed or superseded. Mr. Pierpont Edwards was allowed to make the defense for the justices. Mr. Daggett appeared for the state. Reviewing the proceedings of the Republican meeting, Mr. Daggett traced the history of the government of the colony and state in order to demonstrate that the charter was peculiarly a constitution of the people, "*made by the people* and in a sense not applicable to any other people." He declared the New Haven "address" an outrage upon decency, and it to be the duty of the Assembly to withdraw their commissions from men who questioned the existence of the constitution under which they held them. The day after the hearing, a bill to revoke the commissions was passed unanimously by the governor and council, and by a majority of eleven in the Lower House, the vote standing 67 yeas to 56 nays. This attempt to stifle public opinion won a general acknowledgment that the minority were oppressed. The feeling of sympathy thus roused was increased by the death of Major Judd, who had been taken ill after his arrival in New Haven. His partisans asserted that his death was

caused by his efforts to save himself and friends, and his consequent obligation to appear at the trial when really too ill to be about. The day after his death, the Republicans published and distributed broadcast his "Address to the people of the State of Connecticut on the subject of the removal of himself and four other justices from office."

From this time forward the minority thoroughly realized that it was "not a matter of talking down but of voting down their opponents." Their leaders also understood it. Bishop entered the lists, not only against his political antagonist David Daggett, but against such men as Professor Silliman, Simeon Baldwin, Noah Webster, Theodore Dwight, and against the clergy, led by President Dwight, Simon Backus, Isaac Lewis, John Evans, and a host of secondary men who turned their pulpits into lecture desks and the public fasts and feasts into electioneering occasions. Their general plea was that religion preserved the morals of the people, and consequently their civil prosperity, and hence the need for state support. Occasionally one would insist that it was a matter of conscience with the Presbyterians which made them enforce ecclesiastical taxes and fines, and that all had been given the dissenters that could be; that the Presbyterians had "yielded every privilege they themselves enjoyed and subjected them (the dissenters) to no inconvenience, not absolutely indispensable to the countenance of the practice" (of dissent). David Daggett maintained that there was a just and wide-spread alarm lest the Republicans should undermine all religion, and therefore it behooved all the friends of stable government to support the Standing Order.

The Republicans vigorously contested the elections of 1804, 1805, and 1806. Their second general convention, that of August, 1806, at Litchfield, was more outspoken in its criticism, and so much bolder in its demands that many conservative people hesitated to follow its programme. The Republican gains were so small that after 1806 there was a lull in the

agitation for constitutional reform for some years. It was well understood that the religious establishment was the greatest clog upon the government. It was also thoroughly understood by many that its destruction meant the destruction of the Federal party in Connecticut. Consequently the Federal patronage distributed the several thousand offices within the gift of Church and State with a "liberality equalled only by the fidelity with which they were paid for." So firm was the Federal control over the state that even in 1804 they risked antagonizing the Episcopalians by again refusing to charter the Cheshire Academy as a college with authority to confer degrees in art, divinity, and law. In the face of a strong protest, it was refused again in 1810. The House approved this last petition, but the Council rejected it. Naturally, the Episcopalians felt still more aggrieved when in 1812 the charter was once more refused; but still they did not desert the Federal party. The latter clung to the spoils of office for their partisans, to the old restrictive franchise, and to the obnoxious Stand-up Law, nor were they less disdainful of the dissenters and of the Republican minority.

Yet many of their best men had come to feel that there was wrong and injustice done the minority; that there should be a stop put to the open ignoring of Democratic lawyers, numbering in their ranks many men of wide learning and of great practical ability; that the spectacle of a Federal state-attorney prosecuting Republican editors was not edifying, and that the imprisonment of such offenders and their trial before a hostile judiciary opened that branch of the state government to damaging and dangerous suspicion. [205]

In July, 1812, a meeting was called in Judge Baldwin's office in New Haven, with President Dwight in the chair, to organize a Society for the Suppression of Vice and the Promotion of Good Morals. At this meeting the political situation was thoroughly discussed, and measures were taken to cope with it.

I am persuaded [wrote the Rev. Lyman Beecher to Rev. Asahel Hooker in the following November] that the time has come when it becomes every friend of the State to wake up and exert his whole influence to save it from innovation.... That the effort to supplant Governor Smith [s] will be made is certain unless at an early stage the noise of rising opposition will be so great as to deter them; and if it is made, a separation is made in the Federal party and a coalition with Democracy, which will in my opinion be permanent, unless the overthrow by the election should throw them into despair or inspire repentance.

If we stand idle we lose our habits and institutions piecemeal, as fast as innovations and ambitions shall dare to urge on the work.

My request is that you will see Mr. Theodore Dwight, expressing to him your views on the subject, ... and that you will in your region touch every spring, *lay* or clerical, which you can touch prudently, that these men do not steal a march upon us, and that the rising opposition may meet them early, before they have gathered strength. Every blow struck now will have double the effect it will after the parties are formed and the lines drawn. I hope we shall not act independently, but I hope we shall all act, who fear God or regard men. [206]

Writing of the meeting to organize the Society for the Suppression of Vice and the Formation of Good Morals, Dr. Beecher in his "Autobiography" gives a sketch of the politics of the time that had led up to the occasion. One of the prominent actors of the time, he tells us that this meeting, composed of prominent Federalists of all classes, was unusual, for

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it was a new thing in that day for the clergy and laymen to meet on the same level and co-operate. It was the first time there had ever been such a consultation in our day. The ministers had always

managed things themselves, for in those days the ministers were all politicians. They had always been used to it from the beginning.... On election day they had a festival, and, fact is, when they got together they would talk over who should be Governor, and who Lieutenant-Governor, and who in the Upper House, and their councils would prevail. Now it was a part of the old steady habits of the state ... that the Lieutenant-Governor should succeed to the governorship. And it was the breaking up of this custom by the civilians, against the influence of the clergy, that first shook the stability of the Standing Order and the Federal party in the state. Lieutenant Governor Treadwell (1810) was a stiff man, and the time had come when many men did not like that sort of thing. He had been active in the enforcement of the Sabbath laws, and had brought on himself the odium of the opposing party. Hence of the civilians of our party, David Daggett and other wire-pullers, worked to have him superseded, and Roger Griswold, the ablest man in Congress, put in his stead. That was rank rebellion against the ministerial candidate. But Daggett controlled the whole of Fairfield County bar, and Griswold was a favorite with the lawyers, and the Democrats helped them because they saw how it would work; so there was no election by the people, and Treadwell was acting Governor till 1811, when Griswold was chosen. The lawyers, in talking about it, said: "We have served the clergy long enough; we must take another man, and they must look out for themselves." Throwing Treadwell over in 1811 broke the charm and divided the party; persons of third-rate ability on our side who wanted to be somebody deserted; all the infidels in the state had long been leading on that side ... minor sects had swollen and complained of certificates. Our efforts to reform morals by law were unpopular. [t]



Finally the Episcopalians went over to the Democrats. The Episcopal split was due to a foolish and arbitrary proceeding on the part of the Federals. In the spring of 1814, a petition was presented to the General Assembly for the incorporation of the Phoenix Bank of Hartford, offering "in conformity to the precedents in other states, to pay for the privilege of the incorporation herein prayed for, the sum of sixty thousand dollars to be collected (being a Premium to be advanced by the stockholders) as fast as the successive instalments of the capital stock shall be paid in; and to be appropriated, if in the opinion of your Honors it shall be deemed expedient, in such proportion as shall by your Honors be thought proper, to the use of the Corporation of Yale College, of the Medical Institution, established in the city of New Haven, and to the corporation of the Trustees of the Fund of the Bishop of the Episcopal church in this state, or for any purpose whatever, which to your Honors may seem best." The capital asked for was \$1,500,000. "The purpose of this offer [u] a was a double one,—creating an interest in favor of the Bank Charter among Episcopalians and retaining their influence on the side of the Charter Government, as there was no inconsiderable amount of talent among them." The Bishop's Fund, slowly gathering since 1799, amounted to barely \$6000. This bonus would give it a good start, and conciliate the Episcopalians, still indignant at the refusal of the Assembly to incorporate their college. When presented to the Assembly, the Lower House favored the bank charter; the Council, rejecting it, appointed a committee to consider its request. They soon originated an act of incorporation, granting a capital of \$1,000,000, and ordered the bonus to be paid into the treasury. An act of incorporation, rather than a petition, was, they claimed, the way established by custom of granting bank charters. The same session of the legislature originated bills giving \$20,000 to the Medical Institution of Yale College, and one of the same amount to the Bishop's Fund, "in conformity to the offer of the petitioners for the Phnix Bank, and out of the first moneys received from it as a bonus." The bill for

the medical school was passed unanimously by the House; that for the Bishop's Fund uniformly voted down. [v] The Episcopalians, to whom the Republicans were quick to offer their sympathy, asserted that by the "grant to Yale the legislature had *committed themselves in good faith* to make the grant to the two other corporations connected with it in the same petition." [w] Stripped of formal and courteous wording, the petition, both in letter and in spirit, had offered its conditions to all, if accepted by one; or, if refused at all, the opportunity to divert the money from all three recipients to some other and quite different use which should be approved by the legislature.

The further bad faith of both branches of the Assembly increased the enmity of the Episcopalians. In the spring of 1815, they petitioned for their first installment of \$10,000. They were told that the treasury was empty, and that war time was no time to attend to such matters. In the fall, in answer to their second petition, they found the Lower House still hostile; the majority of the Council, including the governor, in their favor, until the discussion came up, when the Council, with one exception, sided with the House. The explanation of the change appeared to the Episcopalians to be due to the fact that during the session the Medical School had petitioned for the balance of the \$30,000, and seemed likely to receive it at the spring meeting. This was too much for the Episcopalians, and thereafter the Democrats claimed nine tenths of their vote. The sect was estimated in 1816 to contain from one eleventh to one thirteenth of the population. The Democratic-Republicans had won over discontented radicals, a majority of the dissatisfied dissenters, a few conservatives, and now the indignant Episcopalians. Their political hopes rose higher, but the War of 1812-1814 interfered, substituting national interests for local ones, yet all the while adding recruits to the Republican ranks, so that at its close there was a strong party. There was also a Federal faction in process of disintegration. The result was that when the constitutional reform movement again became

the issue of the day, though supported by the Republicans, the question at issue soon drew to itself a new political combine which under various forms kept the name of the Toleration Party, and which eventually won the victory for religious freedom and disestablishment.

## FOOTNOTES:

[a] This party, called for short "Republican," stood for the principles known as "democratic,"—the appellation of the party itself since 1828. This was the school of Jefferson.

[b] There were men of mark among the Anti-Federalist leaders, such as William Williams of Lebanon, a signer of the Declaration, Gen. James Wadsworth of Durham, and Gen. Erastus Wolcott of East Windsor,—these three were members of the Council; Dr. Benjamin Gale of Killingworth, Joseph Hopkins, Esq., of Waterbury, Col. Peter Bulkley of Colchester, Col. William Worthington of Saybrook, and Capt. Abraham Granger of Suffield. At the ratification of the Constitution the Tote stood 128 to 40. Afterwards for about ten years, in the conduct of state politics, there was little friction, for in local matters the Anti-Federalists were generally conservatives."

[c] Two deputies were allowed every town rated at \$60,000. In 1785 Oliver Ellsworth had prepared a bill limiting towns of £20,000 or under to one deputy. It passed the Senate, but was defeated in the House.—*The Constitution of Connecticut*, 1901, State Series, p. 105.

[d] In his pamphlet Dr. Gale advises that each town nominate one man, and from the nominations in each county, the General Assembly elect two, four or six delegates from each county to meet and frame a new constitution, since "any legislature is too numerous a body, and too unskilled in the science of government to properly perform such a task" (p.

29).—J. Hammond Trumbull, *Hist. Notes on the Constitution of Conn.*, p. 17, and Wolcott's Manuscript in *Mass. Hist. Soc. Col.* vol. iv.

[e] A similar method of election applied to the representatives in Congress. Eighteen names were voted on in May for nomination, of which the seven highest were listed for election in September.

[f] Bishop Seabury's church, St. James of New London, had neglected to observe President Washington's proclamation of a national thanksgiving on February 19, 1795, which fell in Lent. This roused some antagonism, and was made the subject of a sharp and rather censorious newspaper attack upon the Episcopalians. At the same time a few Federal Congregationalists were further stirred by Bishop Seabury's signature, viz. "Samuel, Bishop of Connecticut and Rhode Island," to a proclamation that the prelate had issued, urging a contribution in behalf of the Algerine captives. This signature was regarded as a "pompous expression of priestly pride." Governor Huntington was a personal friend of Bishop Seabury. Moreover, at this particular time, the congregation to which the Governor belonged in Norwich was worshiping in the Episcopal church during the rebuilding of their own meeting-house, which had been destroyed by fire. The Governor had previously been approached with a suggestion that the fasts and feasts of the Congregationalists and Episcopalians should be made to coincide, or at least that the annual fast day should not be appointed for any time between Easter Week and Trinity Sunday, and that the public thanksgivings, when occasion required them, should, if possible, not be appointed during Lent. In 1795, the annual fast day would have fallen upon the Thursday in Holy Week. In order to avoid laying any stress upon the sanctity of certain days of the week, and because Governor Huntington wished to turn the public mind away from the petty controversy, he appointed the fast day on Good Friday. In 1796, the annual fast fell in the Lenten season. In 1797, in order to avoid having the fast interfere with the regular sessions of the

County Courts, and at the same time to avoid its falling in Easter week, Governor Trumbull appointed it again on Good Friday. The arrangement was accepted with satisfaction by the Episcopalians and with no objections from the Congregationalists, and thereafter it became the custom. (Bishop Seabury had been elected to the bishopric of Rhode Island in 1790.)—William DeLoss Love, Jr., *Fasts and Thanksgivings of New England*, pp. 346-361.

[g] Early in his career he had written a versification of the Psalms, in 1788 his *Conquest of Canaan*, and later *Triumph of Infidelity*. President Dwight taught the seniors rhetoric, logic, ethics, and metaphysics, and the graduate students in theology. In 1805 he was appointed to the professorship of the latter study.

[h] Dr. Dwight's *Theology Explained* was not published until 1818, after his death, and his *Travels* not until 1821-22.

[i] Except among the backwoodsmen of Kentucky in 1799-1803.

[j] The Society was granted a charter in 1802. In 1797 interest in the missions was intensified by the free distribution of seventeen hundred copies of the report of missionary work in England and America.

[k] The Rev. Jedidiah Champion of Litchfield, an ardent Federalist, on the Sunday following the news of the election of Adams and Jefferson, prayed fervently for the president-elect, closing with the words, "O Lord! wilt Thou bestow upon the Vice-President a double portion of Thy grace, *for Thou knowest he needs it.*" This was mild, for Jefferson was considered by the New England clergy to be almost the equal of Napoleon, whom one of them named the "Scourge of God."

[l] Pierpont Edwards, b. April 8, 1750, graduated at Princeton, 1768, died April 5, 1826.

Timothy Dwight, b. May 14, 1752, died January 11, 1817.

Aaron Burr, b. February 6, 1756, Vice-President 1801-05, died September 14, 1836.

Theodore Dwight, b. December 15, 1754, educated for the law under Pierpont Edwards, and practiced it for a time in New York city with his cousin, Aaron Burr. He broke the partnership because of difference in politics, and went to Hartford. He became a member of the governor's council, 1809-1815; secretary of the Hartford Convention, 1814. He established the *Connecticut Mirror* in 1809; founded and conducted the *Albany Daily Advertiser*, 1815-16, and the *Daily Advocate*, New York, 1816-36. He died June 12, 1846.

[m] The crimes against religion punishable by law were Blasphemy (by whipping, fine, or imprisonment); Atheism, Polytheism, Unitarianism, Apostasy (by loss of employment, whether ecclesiastical, civil, or military, for the first offense).—*Swift's System of Law*, ii, 320, 321.

[n] *Oration delivered in Wallingford on the eleventh of March 1801, before the Republicans of the State of Connecticut at the General Thanksgiving for the election of Thomas Jefferson to the Presidency, and of Aaron Burr to the Vice-Presidency, of the United States of America 1801.*

See the appendix to the Oration for an account of the New Haven episode.

[o] "Connecticutensis," or David Daggett, also replied in *Three Letters to Abraham Bishop*. Theodore Dwight's *Oration at New Haven before the*

*Society of the Cincinnati, July 7, 1801*, took up the constitutionality of the charter government.

[p] Later chief justice.

[q] Windham County was steadily Republican after this election.

[r] Major William Judd of Farmington, Jabez H. Tomlinson of Stratford, Augur Judson of Huntington, Hezekiah Goodrich of Chatham, and Nathaniel Manning of Windham.

[s] Federalist.

[t] To preserve our institutions and reform public morals, to bring back the keeping of the Sabbath was our aim ... We tried to do it by resuscitating and enforcing the law (That was our mistake, but we did not know it then.) and wherever I went I pushed that thing; Bear up the laws—execute the laws.... We took hold of it in the Association at Fairfield, June, 1814, ... recommending among other things a petition to Congress." (*Autobiography*, i, 268.) At this meeting originated the famous petition against Sunday mail.

Dr. Beecher urged a domestic missionary society to build up waste places in Connecticut. His sermon "Reformation of Morals practicable and desirable" warned against "profane and profligate men of corrupt minds and to every good work reprobate."

[u] Judge Church.

[v] The final speech in favor of the bill was made by Nathan Smith, a lawyer of New Haven. When he had finished his eloquent setting forth of the benefits and dangers attendant upon passing the bill, there was an unusual and solemn silence. Dr. Gillett says if the bill had been promptly put to vote it would probably have been passed, but the churchlike silence

was broken by a shrill voice piping forth, "Mr. Speaker, Mr. Speaker, what shall we sing?" The laughter which followed broke the orator's charm and sealed the fate of the bill.

[w] See *Columbian Register* of June 17, 1820, for a full account of the Bishop's Fund and the final award of the bonus.

## CHAPTER XV

### DISESTABLISHMENT

No distinction shall I make between Trojan and Tyrian.

The Federal grip upon Connecticut, one of the last strongholds of that party, was weakening. Preceding the deflection of the Episcopalians in Connecticut, there had been throughout New England a strong Federal opposition to the national government and its commands during the War of 1812. Such conduct had shattered party prestige, and when its opposition culminated in the Hartford Convention of 1814, it wrote its own death-warrant. The Republicans, on the contrary, had dropped local questions of constitutional reform and religious liberty, preferring to bend all their energies to the support of the general government. When as a national party they humbled England and brought the war to a victorious close, the contrast of their loyalty to state and national interests steadily drew the popular favor. In the era of good feeling and prosperity that followed, the great national political parties dissolved somewhat and crystallized anew. In Connecticut a similar change took place in local politics. In the years immediately following the war, the Democratic-Republicans, the majority of the dissenters, and the dissatisfied among the Federalists, formed different coalitions that, under the general name of Toleration, [a] opposed



the Standing Order. In 1816 the agitation for constitutional reform was revived, and after three years resulted in the overthrow of the Federalists and the triumph of a peaceful revolution whereby religious liberty was assured.

The conduct of the Federal party, both within and without Connecticut from 1808 to 1815, was quite as much the real cause of their downfall in the state as that coalition between clergy and lawyers described by Dr. Beecher as causing the breakdown of party machinery and its ultimate ruin. Glancing somewhat hastily at some of the most far-reaching acts of the Federalists, we find first the Federal opposition to the embargo that from December 22, 1807, for over a year paralyzed New England commerce. In February, 1809, John Quincy Adams, who had recently resigned the Massachusetts senatorship because of his unpopular support of the embargo, informed President Jefferson that the measure could no longer be enforced. He assured the President that the New England Federalist leaders, privily encouraged by England, were preparing to break that section off from the union of the states if the embargo were not speedily repealed. This information, whether accurate or not, so influenced the President and his advisers that the Non-intercourse Act, applying only to France and England, replaced the embargo, whose repeal took effect from March 4, 1809. In the following December, Madison's administration (in the belief that France had withdrawn her hostile decrees) limited non-intercourse to England alone, after having vainly urged upon her a repeal of her Orders in Council. With the embargo lifted, New England commerce revived, and Connecticut seamen, Connecticut farmers, [b] Connecticut merchants, together with artisans of all the allied industries that were called upon in the fitting out of ships and cargoes, enjoyed two years of prosperity. The period was given over to money-getting, and the ordinary rules of national or commercial honesty were flung to the winds. Napoleon sold licenses to British vessels to supply his famishing soldiers stationed in continental ports, while forged

American and British papers were openly sold in London. So enormous were the profits of a successful voyage that the possibility of capture only added zest to the American ventures and contributed not a little to the daring of the privateers in the years of the war. So enriched was the state that by May, 1811, Connecticut had so far recovered from her late financial distress that the "state owed no debt and every tax was paid," while her exports were: domestic, \$994,216; foreign, \$38,138, or a total of \$1,032,354.

The ninety days' embargo of 1812, the declaration of war (June 18, 1812), and the patrolling of Long Island Sound by a British fleet, brought such desolation to Connecticut that ships again lay rotting at the wharves, ropewalks and warehouses were deserted, cargoes were without carriers, and seamen were either scattered or idling about, a constant menace to the public peace. National taxes to support a detested war were laid upon the people at a time when their incomes were ceasing, and their homes and property were laid bare to a plundering enemy. "A nation without fleets, without armies, with an impoverished treasury, with a frontier by sea and land extending many hundreds of miles, feebly defended" by fortifications old and neglected, had rushed headlong into war with the strongest nation of the earth without "counting the cost." Such was the opinion of the Federalists everywhere and, at first, of the large wing of the Republican party who preferred peace. The Federalists of Connecticut, when they saw a small majority sweep the nation into the conflict with Great Britain, believed the war threatened liberty of speech. They feared military despotism, when the general government demanded the control of the militia; and that the war would prostrate" their civil and religious institutions by increasing taxation and loss of income." [c] They feared "national dismemberment" when the war measures, together with the presence of the British fleet blockading the coast, alternately angered the people almost to rebellion against an apparently indifferent central

government, or drove them into plans for self-defense. Much of the opposition in New England is in part accounted for by the rebound towards Federalism which the declaration of the war caused, and by the belief that the national election of 1812 would be a Federal victory. Though it turned out to be a defeat, it consolidated and so strengthened that party in New England that before the close of 1813 all the state executives were Federalists and were arrayed against the administration. The Republicans kept their hold upon the minority, partly by the diversion of the capital, thrown out of the carrying trade, into privateer ventures, war supplies, and manufactures.

At the beginning of the war, Governor Griswold, of Connecticut, backed by both houses of the legislature, joined with Governor Strong of Massachusetts (supported only by the House of Representatives) in a refusal to place the militia under regular officers of the United States army. They refused also to allow the quotas called for by General Dearborn (under the Act of Congress of April 10, 1812), for the expedition against Canada, to leave the state. These executives claimed that the troops were not needed to execute the laws of the United States, to suppress insurrection, or to repel invasion,—the only three constitutional reasons giving the President the right to consider himself "commander in chief of the militia of the several states." [207] By taking such a stand, the state governors assumed to decide whether a necessity existed that gave the President his constitutional right to call out the militia. Mr. Henry Cabot Lodge, in his "Memoir of Governor Strong," exonerates that executive by pleading his intense convictions of duty, his loyal patriotism, and his later efficient aid [d] in defending the eastern coast of the state. Mr. Lodge reminds his reader that the governor's position was supported by the best lawyers, whom he had been at great pains to consult concerning state and federal rights, which, at that period, had not been so carefully examined and discriminated between as since. The same pleas may be urged for

Governors Griswold [e] and Smith. The Connecticut legislature immediately passed an act for raising twenty-six hundred men for state defense under state officers. Governor Griswold's successor, Gov. J. Cotton Smith, when Decatur was blockaded in the Thames, when the descent upon Saybrook was made, at the attack upon Stonington, and during those months when the enemy hovered upon the long exposed coast line, kept a large force of militia ready for duty. The state supported these troops, for, in the wrangle over officership, the national government refused the promised supplies.

The New England Federalists soon found seven great reasons for party action. They were the uncertain success of the war by land; the great commercial distress; [f] the possession by the enemy of a large part of Maine; the publication of the terms upon which England would grant peace; [g] the proposed legislation in the fall of 1814, providing for the increase of the United States army by draft or conscription; the proposed modified form of impressment of sailors; and the bill allowing army officers to enlist minors and apprentices over eighteen years of age, with or without consent of parents or guardians. [h] These measures drove the New England Federalists, at the call of Massachusetts, to the formation of the Hartford Convention. The Connecticut legislature approved the sending of delegates by a vote of 153 to 36 opposed. Massachusetts and Rhode Island answered with like enthusiasm. New Hampshire and Vermont hesitated, but the counties of Cheshire and Grafton in the former state and of Windham in the latter sent each a delegate to the convention. Rhode Island sent four delegates and Massachusetts twelve, of whom George Cabot was elected president of the convention. Connecticut furnished the secretary of the convention, and later its historian in Theodore Dwight of Hartford. She also sent seven other delegates, namely: Chauncey Goodrich, mayor of Hartford, and from 1814 to 1815 governor of the state; John Treadwell, ex-governor; James Hillhouse, who had served as United States representative and

senator; Zephaniah Swift, United States representative and later chief judge of superior court of Connecticut; Calvin Goddard, United States representative; Nathaniel Smith, United States representative and later judge of the supreme court; and Roger Minot Sherman, a distinguished lawyer and member of the state legislature. All the delegates to the Hartford Convention were men of high character, and most of them well-known leaders of the Federal party. The convention lasted for three weeks, and, as its sessions were conducted with the greatest secrecy, many prejudicial rumors and surmises arose. The Massachusetts summons had bidden the delegates convene for measures of safety "not repugnant to our obligations as members of the Union," and the convention acknowledged that it found the greatest difficulty in "devising means of defense against dangers, and of relief from oppressions proceeding from the act of their own Government without violating constitutional principles or disappointing the hopes of a suffering and injured people." The secrecy, the known antagonism to the Administration, the knowledge of New England's early disbelief in the cohesive power of the Union, and the convention's demands and resolutions, combined to give a bad and traitorous reputation to the Hartford Convention that has never been absolutely cleared away.

As early as 1796, over the signature "Pelham," there had appeared in the "Hartford Courant" a series of articles written with great ability and keen foresight as to the difficulties that would arise in making any impartial legislation for a nation composed of parts having such diverse economic systems as those of the North and the South. The articles suggested the development of two nations instead of one. During the War of 1812, various suggestions had been thrown out by different newspapers enlarging upon the resources of New England and hinting at a separate peace with England. There were not a few who, upon learning of the resolutions of the convention, felt that "Pelham" was a close adviser of its measures if not one of its delegates. Public opinion was so wrought up by the assumed

disloyalty of the Hartford Convention that in 1815 it forced the publication of the convention's brief and non-committal "Journal." From it little more was learned than that the convention had resolved that the different states should take measures to protect themselves against draft by the national government, that New England should be allowed to defend herself, and for that purpose should have returned to each of her states a reasonable share of the national taxes to meet the expense of their arming. In addition, each New England state should set apart a certain portion of her militia under her governor to give aid in cases of extremity should she be called upon by the governor of another state. At the close of the convention, delegates were appointed to proceed to Washington with these resolutions and also with six proposed amendments [i] to the national constitution. These demands and resolves were reinforced by the proposal that should the Administration refuse to consider the propositions, another convention should be held in the following summer to consider further action. When the delegates arrived in Washington with the resolutions, of which two state legislatures had meantime approved, the news of peace had been declared. In the general jubilation they saw fit to leave their message undelivered. For years the taint of rebellion clung to the Hartford Convention, and forced its secretary, in 1833, to publish his "History," a defense of its members and their measures. Even this did not remove the stigma. The delegates had in their own communities always retained their reputation for high personal character, but politically they were irretrievably ruined by their participation in the Hartford gathering. They had dealt their party in their states a mortal blow, and the Hartford Convention has been well named "the grave of the Federal party."

However much the members of the convention swathed their sentiments in expressions of allegiance to the Union, at least until extreme provocation should force a separation; or however much they declared their conviction that peace, not war, should be the time chosen for such a separation, and

that, first of all, distinction should be carefully made between a bad constitution and a bad government, and a good constitution or government badly administered, there was no doubt but that they proposed to push nullification to the point of active resistance within what they considered their legal rights. They had also proposed a set of amendments which they knew stood no chance of meeting with approval from any number of the states. Moreover the Hartford Convention, whatever its intentions, seriously alarmed and embarrassed the Administration. Because of the consequences of their policy, its members were culpable in the opinion of all who hold that, in the distress of war, to hamper one's own government is to lend assistance to the enemy. [j]

The war at first was not popular, but made friends for itself as it progressed. Connecticut sailors were among the seamen that England had impressed, and Connecticut captains had surrendered ships and rich cargoes at the command of the mistress of the seas. But the naval triumphs of the first year caught the popular fancy, for "not until the Guerriere's colors were struck to the Constitution had a British frigate been humiliated on the ocean." The victories on land were about equally balanced. The disclosures of English perfidy in attempting through her secret agents [k] to detach New England from the Union before war should break out, and during the conflict, by favoritism to Massachusetts, helped to increase the supporters of the war policy. Further, the war brought out the latent powers of the nation, both for defense and for prosperity. The gradual introduction of machinery since 1800 had enlarged the small manufactories of Connecticut, and begun the exchange of products between near localities. But before the War of 1812 no manufacturing in Connecticut had achieved a notable success. [l] There was invention and skill, [m] and often profit, in the home market for the coarser products, but there was a general tendency to prefer imported goods of finer make. The war cut off such supplies, and the need created a paying demand and developed an ability to supply it. The political

party that conducted the war to a successful finish developed the policy of protection of infant industries, and the tariff of 1816 gave birth to Connecticut as a manufacturing state. The repeal of the obnoxious war measures, the speedy reduction of the national expenses, and the promise of prosperity smoothed out lingering resentment. The Federal party was virtually extinct outside of its last strongholds in New England and Delaware. In the Era of Good Feeling following the war the whole people composed one party, with principles neither those of the original Federal party nor those of the original Republican party, but a combination of both." [n]

In New England during the War of 1812, as in the Revolution, the clergy had been the nucleus of the local dominant party, and with its leaders had been bitter opponents of the "unrighteous war." [208] Consequently the Congregational clergy shared in the popular disapproval and condemnation that overtook the Federalists. In Connecticut, for a time, the Standing Order by its affiliation with the Federal party prolonged its control. of the state. But the tide was turning. Dr. Lyman Beecher, Dr. Dwight's able lieutenant, made vigorous and laudable efforts to uphold the Dwights, the Aaron and Moses, as it were, of the waning political power. The "Home Missionary Society," [o] Bible societies, the "Domestic Missionary Society for the Building up of Waste Places," and the many branches of the "Society for the Suppression of Vice and Promotion of Good Morals" [p] did much good among those who welcomed them. Where their results were simply those of a morality enforced by law, they caused still greater dissatisfaction with the ruling party. [q] The union of the clergy and lawyers was not as influential as had been anticipated in the early days of 1812. Soon after the war the clergy adopted a less vigorous policy, preferring an attitude of defense against calumny and a withdrawal from politics. [r]



The elections showed the change in public opinion. At the April election, 1814, the Federals reelected Governor Smith, while the Republican candidate, Mr. Edward Boardman, received 1629 votes. The following year, notwithstanding Governor Smith's reelection, Mr. Boardman polled 4876 votes, and the Republicans made a gain of twenty in the House of Representatives, while in the fall nominations for Assistants, the highest Federal vote was 9008 and that of the Republicans was 4268. [209]

In January, 1816, "a meeting of citizens from various parts of the state" was held in New Haven to agree upon a nomination for governor and lieutenant-governor, which would bind together the Republicans and such of the Federalists as were opposed to the Standing Order. Oliver Wolcott and Jonathan Ingersoll were unanimously agreed upon. Oliver Wolcott had been living out of the state for fourteen years, and for most of that time had not been in politics. His Republican supporters had had time to forget him as a staunch Federalist, and remembered him only as a man of parts who had held the secretaryship of the treasury under Washington and Adams, and who had "opposed the Hartford Convention; like Washington was a friend to the *Union*, a foe to rebellion; with mild means resisted bigotry, with a glowing heart favored toleration." [210] As he had approved the policy of the general government since the days of Madison, he was pronounced an available candidate. A good Congregationalist, he would not offend the Federalists, would be acceptable to the Republicans, and would stand to the capitalists and farmers as favorable to a protective tariff and to more equitable taxation within the state. The prestige given him by the executive abilities of his father and grandfather in the gubernatorial chair also counted in his favor. The candidate for lieutenant-governor was Jonathan Ingersoll, a Federalist, an eminent New Haven lawyer, a prominent Episcopalian, senior warden of Trinity Church, and chairman of the Bishop's Fund. He had had political training in the Council, 1792-1798, and had been judge of the Superior Court, 1798-1801, and again from 1811

to 1816. His nomination was the price of the Episcopal vote, for "it was deemed expedient by giving the Episcopalians a fair opportunity to unite with the Republicans, to attempt to affect such change in the Government as should afford some prospect of satisfaction to their united demands." [s]

The "Connecticut Herald," indignant at the Assembly's conduct in the Phoenix Bank affair, left the Federal party and independently nominated Jonathan Ingersoll for lieutenant-governor instead of the regular candidate of that party, Chauncey Goodrich. The "American Mercury," the organ of the American Toleration party, the union of Republicans, dissenters, and dissatisfied, in order "to produce that concord and harmony among parties which have too long, and without any real diversity of interests, been disturbed, and which every honest man must earnestly desire to see restored," nominated for governor, Oliver Wolcott; for lieutenant-governor, Jonathan Ingersoll. The Federal candidate for the executive was Governor John Cotton Smith, up for reëlection. The Tolerationists failed by a few hundred votes to seat their candidate for the executive, with the result that the election of 1816 raised to office Governor Smith and Lieutenant-Governor Ingersoll. Governor Smith received 11,589 votes, Mr. Wolcott 10,170, while Lieutenant-Governor Ingersoll polled a majority of 1453 over his opponent, Mr. Calvin Goddard. [t] It was the first time that a dissenter had held so high an office. The Federalists might have seized the opportunity to renew their former friendship with the Episcopalians had it not been for their stubbornness and for their old fear of Churchmen in political office. At the October town meetings, the returns from ninety-three towns gave a Federal vote of 7995 and a Republican of 6315 for representatives, with a Federal majority of about thirty in the House. [21l]

The Federalists, realizing that the Episcopal vote was almost lost to them, that their domestic policy was in disfavor, and that their conduct during the war had damaged them and was leading to their downfall in Connecticut

even as in the nation, resolved upon a desperate measure to conciliate a larger number of the dissenters. This was the Act of October, 1816, for the Support of Literature and Religion. Briefly, it divided the balance of the money which the nation owed Connecticut for expenses during the war, namely \$145,000, among the various denominations. To the Congregationalists it gave in round numbers, and including the grant to Yale, \$68,000; to the Episcopalians, \$20,000; to Methodists, \$12,000; and to Baptists, \$18,000; to Quakers, Sandemanians, etc., nothing. [u] The Quakers were assumed to be satisfied with their recent exemptions from military duty upon the payment of a small tax; Sandemanians and other insignificant sects to be conciliated by the act of the preceding April, which repealed, after a duration of nearly one hundred and eighty years, the fine of fifty cents for absence from church on Sunday. The people were at last free, not only to worship as they chose, but when they chose, or to omit worship. They had yet to obtain equal privileges for all denominations, and exemption from enforced support of religion. The passage of the Act for the Support of Literature and Religion raised, as the Congregationalists ought to have known it would, a violent protest from every dissenter and from every political come-outer. Some of the towns in town-meetings opposed the bill as unnecessary for the support of schools and clergy; as wasteful, when it would be wiser to create a state fund; and as unduly favorable to Yale, where the policy was to create an intellectual class and not to advance learning and literature among the commonalty. At Andover, February 1, 1817, Episcopalians, Baptists, and Methodists met together and denounced the act because they disapproved of the union of Church and State which it encouraged; because of Yale's tendency to bias religion; because they all approved of the voluntary support of religion; and because they all scorned such a political trick as the bill appeared to them, namely, an attempt to win by their acceptance of the money their apparent approval of the enforced support of religion. The Baptist societies in different towns met to condemn

the measure on the same grounds, and on the additional ones that it was unfair to the Quakers, who had no paid preachers; to the Universalists, because they were numerically still too small to be of political importance; and indeed to many men, since, as every man had contributed to the expense of the war, every man ought to be rewarded proportionally. The Methodists agreed in all these criticisms, and were no more backward in denouncing a measure which forced on them money they did not seek, and for a purpose of which they disapproved. The Methodist Society of Glastonbury were most outspoken, declaring the law—

incompatible with sound policy and inconsistent with any former act of the legislature of the state; the ultimate consequence of which will prove a lasting curse to vital religion, which every candid and reflecting mind may easily foresee; and we view it as a very bold and desperate effort to effectuate a union between Church and State.... We are induced to believe that Pilate and Herod, and the chief Priests are still against us,... \$12,000 to the contrary notwithstanding. Resolved—

(1) We don't want such reparation for being characterized as an illiterate set of enthusiasts devoid of character; our clergy a set of worthless rambles, unworthy the protection of our civil laws.

(2) Pity and contempt for the Legislature should be expressed for bribery.

(3) We believe the money, if received, would be a lasting curse.

(4) The measure was intended for politics, not religion, and was a species of Tyranny.

(5) We should use our best endeavors to have the money used for state expenses.

(6) Thanks should be sent to the members of the Legislature who had opposed the measure.

All Methodists were further angered by the affront put upon them by the General Assembly, which, in spite of their known determination not to receive the money, appointed Methodist trustees, of whom a majority were Federalists, to receive their share of the appropriation. The trustees accepted the money, defending their action on the ground that they believed that their claim would become void if they did not draw the money, and it might then be put to a worse use. But the Methodist societies did not uphold the trustees, and "regretted the committee imposed on us by the Legislature of the state." The chairman of the committee, the Rev. Augustus Bolles, refused to serve, and the societies rejected the money. [v]

As a result of the unwelcome legislation, the Republicans received the whole vote of the Methodists for the "Toleration and Reform Ticket" of 1817, which repeated the nominations of the preceding election. The Episcopalians of course favored the reëlection of Lieutenant-Governor Ingersoll. One small provocation by the Congregationalists of the First Church of New Haven—the attempt to place the odium of expulsion upon a member who became an Episcopalian—did not tend to allay feeling. The Toleration party were sure of the votes of the more feeble dissenters, whose interests they promised to regard, as well as of those of the Baptists and of such Federalists as disapproved of the high-handed policy of the Standing Order. The Tolerationists were also counting upon a steady increase of recruits from the Federal ranks as soon as the appreciation of a recent attack by the legislature upon the judiciary and its danger should become more and more realized. Many such recruits, convinced of the necessity of

constitutional reform, had gathered at the general meeting of Republicans held in New Haven in October, 1816, to make up the ticket for the spring election of 1817. The campaign issue was "whether freemen shall be tolerated in the free exercise of their religious and political rights." It was met by the election of Governor Wolcott with a majority of 600 votes over ex-Governor J. Cotton Smith, and by no opposition to the reelection of Lieutenant-Governor Ingersoll. [w] At the same election many minor Republican officials were seated, and the House went Republican by an assured majority of nearly two to one, the Senate remaining strongly Federal.

Governor Wolcott's inaugural placed before the Assembly the following subjects for consideration: (1) A new system of taxation; for, as the governor pointed out, the capitation tax was equivalent to about one-sixteenth of the laboring man's income. (2) Judges of the Superior Court should hold their office during good behavior instead of by annual appointment by the legislature. (3) There should be a complete separation of legislative and judicial powers of government. (4) Rights of conscience and the voluntary support of religion, though if necessary with "laws providing efficient remedies for enforcing the voluntary contracts for their [ministers'] support," should be considered; and (5) Freedom of suffrage. In concluding, the governor urged that "whenever the public mind appears to be considerably agitated on these subjects, prudence requires that the legislature should revise its measures, and by reasonable explanation or modifications of the law, restore public confidence and tranquillity." [x]

To consider briefly these various points: Taxes upon mills, machinery, and manufactures needed to be light in order to secure their continued existence. The necessities of war-time had created a larger market for their products, but one that could not be continued after the close of the war allowed European products to enter free of duty. Nor could the factories

exist if burdened with heavy taxes before the new tariff measures of 1816 had revived these depressed industries. In agriculture, taxes upon horses, oxen, stock, dairy products, and increased areas of tillage handicapped the farmer. Again, the tax upon fire-places, rather than upon houses, weighed heavily upon the poor and the moderately well-to-do, who built small and inexpensive houses with say three fireplaces, while the rich owners of older and more pretentious dwellings were often rated for fewer. [y] Money was scarce, rich men rare. So also was great poverty. There was a scanty living for the majority. Trades were few, wages low. A farm-hand averaged three shillings a day, paid in provisions. Women of all work drudged for two shillings and sixpence per week, while a farm overseer received a salary of seventy dollars a year. The children of people in average circumstances walked barefoot to church, carrying their shoes and stockings, which they put on under the shelter of the big tree nearest to the meeting-house. Their fathers made one Sunday suit last for years. The wealthy had small incomes, though relatively great. It was whispered that Pierpont Edwards, the rich and prosperous New Haven lawyer, had an income from his law practice of two thousand dollars per year.

Points (2) and (3) in the governor's address were prompted by the widespread interest created by the action of the legislature in October, 1815, when it had set aside the conviction, by a special Superior Court at Middletown, of Peter Lung for murder, on the ground that the court was irregularly and illegally convened. The chief judge was Zephaniah Swift of Windham, author of the "System of Connecticut Laws." [z] Judge Swift appealed to the public [aa] to vindicate his judicial character from the censure implied by the Assembly's action. An ardent Federalist, who in the early days of statehood could see no need of a better constitution than he then insisted Connecticut possessed through the adoption of her ancient charter, he had long opposed the ecclesiastical establishment which that charter upheld. In his defense of the constitution he had maintained that "it

ought to be deemed an inviolable maxim that *when proper courts of law are constituted, the legislature are divested of all judicial authority.*" [212] But when the legislature claimed as constitutional the right to call to account any court, magistrate, or other officer for misdemeanor or mal-administration, [ab] Judge Swift admitted the lack of "a written constitution." He further argued that the one "made up of usages and customs, had always been understood to contain certain fundamental axioms which were held sacred and inviolable, and which were the basis on which rested the rights of the people." Of these self-evident principles one was that the three branches of government—the executive, legislative, and judicial—were coordinate and independent, and that the powers of one should never be exercised by the other. "It ought to be held as a fundamental axiom," the judge declared, "that *the Legislature should never encroach on the jurisdiction of the Judiciary*, nor assume the province of interfering in private rights, nor of overhauling the decisions of the courts of law." Otherwise, "the legislature would become one great arbitration that would engulf all the courts of law, [ac] and *sovereign discretion* would be 'the only rule of decision,—a state of things *equally favorable to lawyers and criminals.*" [213]

With respect to the fifth point in the governor's address, the right of suffrage, the Republicans and their allies demanded its extension from householders having real estate rated at \$7 (40s.), or personal estate of \$134 (£40), to "men who pay small taxes, work on highways, or do service in the militia."

In the fall of 1817, the reform party had forced the repeal of the obnoxious Stand-Up Law, and it demanded that other restrictive measures should be annulled. So bitter was the Federal antagonism in the Council that during all the spring session of 1817, the Tolerationists loudly complained that every reform measure proposed in the House was lost in the Federal



Senate. The committees to which parts of the governor's speech had been referred for consideration did little. That on taxation made a report in the fall recommending that a careful investigation of conditions and resources should be made, because, as capital sought investment, in banks, manufacturing, and various commercial enterprises unknown to the earlier generations, [ad] the fairness of the old system of taxation was lapsing. The mixed committee, including several Tolerationists and having an Episcopal chairman, that was to report upon the religious situation, gave no encouragement to dissenters. The spring session allowed one barren act to pass, the "Act to secure equal rights, powers, and privileges to Christians of all denominations in this state." It enacted that henceforth certificates should be lodged with the *town clerk*, and permitted a come-outer to return to the society from which he had separated. In the following spring, when an attempt was made to pass a bill to supersede this act, it was maintained that the law of 1817 "did not effect the object or answer the desire of the aggrieved party," for it retained the certificate clause and continued to deny to dissenters the measure of religious liberty freely accorded to the Established churches.

The Tolerationists were determined to carry the elections of 1818. In the fall elections of 1817, they again had a majority of nearly two to one in the House, and consequently the struggle was for the control of the Senate. At the fall meetings, they placed in nomination their candidates for senators, and all through the winter they agitated in town meetings and in every other way the discussion of their "Constitution and Reform Ticket." Party pamphlets were scattered throughout the state. One of these, the most in favor, was "The Politics of Connecticut: by a Federal Republican" (George H. Richards of New London). At the spring elections of 1818, the Constitution and Reform Ticket carried the day, seating the reflected governor and lieutenant-governor, eight anti-Federal senators, and preserving the anti-Federal majority in the House. The political revolution

was complete, and the preliminary steps towards the construction of a new constitution were at once begun. [ae]

The governor's inaugural address specified the main task before the Assembly in the following words:—

As a portion of the people have expressed a desire that the form of civil government in this State should be revised, this highly interesting subject will probably engage your [the Assembly's] deliberations.... Considered merely as an instrument denning the powers and duties of magistrates and rulers, the Charter may justly be considered as unprovisional and imperfect. Yet it ought to be recollected that what is now its greatest defect was formerly a pre-eminent advantage, it being then highly important to the people to acquire the greatest latitude of authority with an exemption from British influence and control.

If I correctly comprehend the wishes which have been expressed by a portion of our fellow citizens, they are now desirous, as the sources of apprehension from external causes are at present happily closed, that the Legislative, Executive and Judicial authorities of their own government may be more precisely denned and limited, and the rights of the people declared and acknowledged. It is your province to dispose of this important subject in such manner as will best promote general satisfaction and tranquillity.

The House appointed a select committee of five to report upon the revision of the form of civil government. The Council appointed Hon. Elijah Boardman (Federalist) and Hon. William Bristol (Tolerationist) to act as joint committee with several gentlemen selected by the House. The joint committee reported that "the present was a period peculiarly auspicious for carrying into effect the wishes of our fellow-citizens,—the general desire

for a revision and reformation of the structure of our civil government and the establishment of a Constitutional Compact" and "that the organization of the different branches of government, the separation of their powers, the tenure of office, the elective franchise, liberty of speech and of the press, freedom of conscience, trial by jury, rights which relate to these deeply interesting subjects, ought not to be suffered to rest on the frail foundation of legislative will." [214] Immediately, the House passed a bill requiring the freemen of the towns to assemble in town meeting on the following Fourth of July "to elect by ballot as many delegates as said towns now choose representatives to the General Assembly," said delegates to meet in constitutional convention at Hartford on the fourth Wednesday of the following August (Aug. 26) for "the formation of a Constitution of Civil Government for the people of this state." The bill further declared that the constitution when "ratified by such majority of the said qualified voters, convened as aforesaid, as shall be directed by said convention, shall be and remain the Supreme Law of this State." An attempt was made to substitute "one delegate" for "as many delegates" as the towns sent. Upon the question in the convention, as to what majority should be required for ratification, there was considerable diversity of opinion. "Two-thirds of the whole number of *towns*" was suggested, but was opposed on the ground that "two-thirds of the whole number of the *towns* might not contain one-fourth of the people." "*Three-fifths* of the legal voters of the state" was also suggested. In the final decision, the simple "majority of the freemen" was accepted. Had this not been the case, the constitution would have failed of ratification, for, as Burlington made no returns, the vote stood 59 out of 120 towns for ratification, with 13,918 yeas to 12,364 nays, giving a majority of but 1554.

Several causes tended to bring about an eager, an amiable, or tolerant support of the work of the convention. Eepublicans and Tolerationists hoped for sweeping reforms. The Federalists were divided. Many there were who believed it dangerous for the state to continue destitute of

fundamental laws defining and limiting the powers of the legislature, and to such as these the need of a bill of rights, and of the separation of the powers of the government, was immediate and imperative. The influential faction of the New Haven Federalists were moved to modify any opposition existing among them by the proposed change to annual sessions of the legislature with alternate sittings in the two capitals. There were still other Federalists who accepted the proposed change in government as inevitable, and who wisely forebore to block it, preferring to use all their influence toward saving as much as possible of the old institutions under new forms. And in this resolve they were encouraged by the high character of the men that all parties chose as delegates to the constitutional convention.

The convention met August 26, 1818, at Hartford. Governor Wolcott, one of the delegates from Litchfield, was elected president, and Mr. James Lanman, secretary. Mr. Pierpont Edwards was chosen chairman of a committee of three from each county to draft a constitution. The estimated strength of the parties was one hundred and five Republicans to ninety-five Federalists, and, of the drafting committee, five members belonged to the political minority. [af] An idea of the character of the men chosen for this important task of framing a new constitution is gained from a glance at some of the names. To begin with, over thirty-nine of the delegates to the convention either were Yale alumni or held its honorary degrees, and half of the drafting committee were her graduates. Ex-Governor Treadwell and Alexander Wolcott led the opposing parties, while their able seconds in command were General Nathaniel Terry of Hartford and Pierpont Edwards of New Haven. The latter still held the office of judge of the United States District Court, to which Jefferson had appointed him. Among the delegates, there were Mr. Amasa Learned, formerly representative in Congress, the ex-chief-judges Jesse Root and Stephen Mix Mitchell, Aaron Austin, a member of the Council for over twenty years until the party elections of 1818 unseated him, ex-Governor John Treadwell, and Lemuel Sanford,—all of

whom had been delegates to the convention of 1788, called to ratify the constitution of the United States. Five members of the drafting committee were state senators, namely: Messrs. William Bristol, Sylvester Wells, James Lanman, Dr. John S. Peters of Hebron, and Peter Webb of Windham. Five others, Messrs. Elisha Phelps, Gideon Tomlinson, James Stevens, Orange Merwin, and Daniel Burrows were afterwards elected to that office, while Gideon Tomlinson and John S. Peters became in turn governors of the state. James Lanman, Nathan Smith (a member also of the committee), and Tomlinson entered the national Senate. Among the delegates, there were nearly a dozen well-known physicians, most of them to be found among the Tolerationists. Messrs. Webb, Christopher Manwaring of New London, Gideon Tomlinson of Fairfield, and General Joshua King of Ridgefield, together with Joshua Stow of Middletown (also on the drafting committee), had been for years the warhorses of the democracy, loyal followers of their leader Alexander Wolcott, who had been the Republican state manager from 1800 to 1817.

The method of procedure in the convention was to report from time to time a portion of the draft of the constitution, of which each article was considered section by section, discussed, and amended. After each of the several sections had been so considered, the whole article was opened to amendment before the vote upon its acceptance was taken. When all articles had been approved, the constitution was printed as so far accepted, and was again submitted to revision and amendment before receiving the final approval of the convention.

While the constitutional convention was in session, the Baptists and Methodists resolved that no constitution of civil government should receive their approbation and support unless it contained a provision that should secure the full and complete enjoyment of religious liberty. [215] And it was known that the Episcopalians were ready to second such resolutions. These

expressions of opinion were of weight as foreshadowing the kind of reception that many of the towns where the dissenters were in the ascendant would accord any constitution sent to them for ratification.

In the convention both the old Federal leader and the old Democratic chief objected to the incorporation in the constitution of a bill of rights. Governor Treadwell opposed it on the ground that such "*unalterable*" regulations were unnecessary where, as in a republic, all power was vested in the people. Alexander Wolcott objected that such a "bill would circumscribe the powers of the General Assembly" and also because of his disapproval of some of its clauses. [216] When the draft of fourth section was under discussion, namely that "No preference shall be given by law to any religious sect or mode of worship," the Rev. Asahel Morse, a Baptist minister, offered the substitute,—

That rights of conscience are inalienable, that all persons have a natural right to worship Almighty God according to their own consciences; and no person shall be compelled to attend any place of worship, or contribute to the support of any minister, contrary to his own choice.

The substitute was rejected, and after some discussion, the wording of the section was changed by substituting "Christian" in place of "religious" and this change retained in the final revision. [ag]

The seventh article, "Of Religion," was the subject of a long and earnest debate.

Sec. 1. It being the right and duty of all men to worship the Supreme Being, the great Creator and Preserver of the universe, in the mode most consistent with the dictates of their own consciences; no person shall be compelled to join or support, nor by law be

classed with or associated to any congregation, church or religious association. And each and every society or denomination of Christians in this State, shall have and enjoy the same and equal powers, rights and privileges; and shall have power and authority to support and maintain the Ministers or Teachers of their respective denominations, and to build and repair houses for public worship, by a tax on the members of the respective societies only, or in any other manner.

Sec. 2. If any person shall choose to separate himself from the society or denomination of Christians to which he may belong, and shall leave written notice thereof with the Clerk of such society he shall thereupon be no longer liable for any future expenses, which may be incurred by said society.

The Federalists contested its passage at every point, and succeeded in modifying the first draft in important particulars, but could not prevent complete severance of Church and State, nor the constitutional guarantee to all denominations of religious liberty and perfect equality before the law. To the first clause as reported—"It being the right and *duty* of all men to worship the Supreme Being, the Great Creator and Preserver of the Universe, in the mode most consistent with the dictates of their consciences"—Governor Treadwell objected that "Conscience may be perverted, and man may think it his duty to worship his Creator by image, or as the Greeks and Romans did; and though he would *tolerate* all modes of worship, he would not recognize it in the Constitution, as the *duty* of a person to worship as the heathen do." Mr. Tomlinson afterwards moved to amend the clause to its present shape, "The duty of all men to worship... and their right to render that worship." Governor Treadwell objected that the same clause went "to dissolve all ecclesiastical societies in this State. That was probably its intent as Messrs. Joshua Stow and Gideon Tomlinson

had drafted it. The former answered all objections by asserting that "if this section is altered *in any way*, it will curtail the great principles for which we contend." [ah]

The first section was finally adopted by a vote of 103 to 86, while a motion to strike out the second section was rejected by 105 to 84. On its final revision it read:—

Sec. 1. It being the duty of all men to worship the Supreme Being, the Great Creator and Preserver of the Universe, and their right to render that worship in the mode most consistent with the dictates of their consciences; no person shall, by law, be compelled to join or support, nor be classed with, or associated to, any congregation, church, or religious association. But every person now belonging to such congregation, church, or religious association, shall remain a member thereof, until he shall have separated himself therefrom, in the manner hereinafter provided. And each and every society or denomination of Christians, in this state, shall have and enjoy the same and equal powers, rights and privileges; and shall have power and authority to support and maintain the ministers or teachers of their respective denominations, and to build and repair houses for public worship, by a tax on the members of any such society only, to be laid by a major vote of the legal voters assembled at any such society meeting, warned and held according to law, or in any other manner. [ai]

During the last revision of the constitution Mr. Terry had offered the two amendments that continue the old ecclesiastical societies as corporate bodies. [217]

The draft of the whole constitution was read through for the last time as amended and ready for acceptance or rejection, and put to vote on



September 15, 1818. It was passed by 134 yeas to 61 nays. The constitution then went before the people for their consideration [aj] and ratification. For a while its fate seemed doubtful; but by the loyalty of the Federal members of the convention and their efforts in their own districts the whole state gave a majority for ratification. The southern counties, with a vote of 11,181, gave a majority for ratification of 2843; the northern counties, with a vote of 15,101, gave a majority *against* ratification of 1189. [218]

The Toleration party as such had triumphed, and they felt that they had won all they had promised the people, for they had secured "the same and equal powers, rights and privileges to all denominations of Christians." They had also cleared the way for a broader suffrage and for the proper election laws to guarantee it. At the last two elections the Republicans in the Toleration party had carefully separated state and national issues, and had in large measure forborne from criticism of the partisan government, insisting that the people's decision at the polls would give them—the people—rather than any political party, the power to correct existing abuses. The Republicans also insisted that the Tolerationists, no matter what their previous party affiliation, would with one accord obey the behests of the sovereign people. But when the constitution was an assured fact the Republicans felt that the Federalist influence had dominated the convention, and the Federalists that altogether too much had been accorded to the radical party. Nevertheless it was the loyalty of the Federal members of the convention that won the small majority for the Tolerationists and for the new constitution, even if that loyalty was founded upon the belief, held by many, that the choice of evils lay in voting for the new regime.

The constitution of 1818 was modeled on the old charter, and retained much that was useful in the earlier instrument. The more important changes were: (1) The clearer definition and better distribution of the powers of government. (2) Rights of suffrage were established upon personal

qualifications, and election laws were guaranteed to be so modified that voting should be convenient and expeditious, and its returns correct. (3) The courts were reorganized, and the number of judges was reduced nearly one half, while the terms of those in higher courts were made to depend upon an age limit (that of seventy years), efficiency, and good behavior. Their removal could be only upon impeachment or upon the request of at least two thirds of the members of each house. Judges of the lower courts, justices of the peace, were still to be appointed annually by the legislature, and to it the appointment of the sheriffs was transferred. [ak] (4) Amendments to the constitution were provided for. (5) Annual elections and annual sessions of the legislature, alternating between Hartford and New Haven, were arranged for, and by this one change alone the state was saved a yearly expense estimated at \$14,000, a large sum in those days. (6) The governor [al] was given the veto power, although a simple majority of the legislature could override it. (7) The salaries of the governor, lieutenant-governor, senators, and representatives were fixed by statute, and were not alterable to affect the incumbent during his term of office. (8) And finally, *the union of Church and State was dissolved*, and all religious bodies were placed upon a basis of voluntary support.

Among the minor changes, the law that before the constitution of 1818 had conferred the right of marrying people upon the located ministers and magistrates only, thereby practically excluding Baptist, Methodist and Universalist clergy, now extended it to these latter. While formerly the only literary institution favored was Yale College, Trinity College, despite a strong opposition, was soon given its charter, and one was granted later to the Methodists for Wesleyan College at Middletown. Moreover, the government appropriated to both institutions a small grant. The teaching of the catechism, previously enforced by law in every school, became optional. Soon a normal school, free to all within the state, was opened. The support of religion was left wholly to voluntary contributions. [am] The

political influence of the Congregational clergy was gone. "The lower magistracy was distributed as equally as possible among the various political and religious interests," and the higher courts were composed of judges of different political opinions.

The battle for religious liberty was won, Church and State divorced, politics and religion torn asunder. The day of complete religious liberty had daw'ned in Connecticut, and in a few years the strongest supporters of the old system would acknowledge the superiority of the new. As the "old order changed, yielding place to new," many were doubtful, many were fearful, and many there were who in after years, as they looked backward, would have expressed themselves in the frank words of one of their noblest leaders: [an] "For several days, I suffered what no tongue can tell *for the best thing that ever happened to the State of Connecticut.*"

## FOOTNOTES:

[a] Party names were "American," "American and Toleration," "Toleration and Reform."

[b] Three fourths of Connecticut's exports were products of agriculture.

[c] "All institutions, civil, literary and ecclesiastical, felt the pressure, and seemed as if they must be crushed. Our schools, churches and government even, in the universal impoverishment, were failing and the very foundations were shaken, when God interposed and took off the pressure."—Lyman Beecher, *Autobiography*, i, 266.

[d] The Massachusetts militia were placed under General Dearborn, August 5, 1812.

[e] Governor Griswold died October, 1812, and was succeeded in office by Lieutenant-Governor John Cotton Smith.

[f] The direct tax laid July 22-24, 1813, by the national government, was apportioned in September, as follows: To Massachusetts, \$316,270.71; to Rhode Island, \$34,702.18; and to Connecticut, \$118,167.71, divided as follows (which shows the relative wealth of the different sections of the state), Litchfield, \$19,065.72; Fairfield, \$18,810.50; New Haven, \$16,723.10; Hartford, \$19,608.02; New London, \$13,392.04; Middlesex, \$9,064.20; Windham, \$14,524.38; and Tolland, \$6,984.69. Duties were levied upon refined sugar, carriages, upon licenses to distilleries, auction sales of merchandise and vessels, upon retailers of wine, spirits, and foreign merchandise; while a stamp tax was placed upon notes and bills of exchange.—See *Niles Register*, v, 17; *Schouler*, ii, 380. The tax in 1815 was \$236,335.41.—*Niles*, vii, 348.

[g] Briefly, an independent Indian nation between Canada and the United States; no fleets or military posts on the Great Lakes, and no renunciation of the English rights of search and impressment.

[h] The April (1815) session of the Connecticut legislature passed an "Act to secure the rights of parents, masters and guardians." It declared the proposed legislation in Congress contrary to the spirit of the Constitution of the United States, and an unauthorized interference with state rights. It commanded all state judges to discharge on habeas corpus all minors enlisted without consent of parents or guardians, and it enacted a fine, not to exceed five hundred dollars, upon any one found guilty of enlisting a minor against the consent of his guardian, and a fine of one hundred dollars for the advertising or publication of enticements to minors to enlist.

[i] "Amendments: (1) Restrictions upon Congress requiring a two thirds vote in making and declaring war, (2) in laying embargoes, and (3) in

admitting new states. (4) Restriction of the presidential office to one term without reelection, and with no two successive Presidents from the same state. (5) Reduction of representation and taxation by not reckoning the blacks in the slave states. (6) No foreign born citizen should be eligible to office.

[j] "They advocated nullification and threatened dissolution of the Union."—J. P. Gordy, *Political History of the United States*, ii, 299.

[k] The President in March, 1812, sent to Congress the documents for which he had paid one John Henry \$50,000. The latter claimed to be an agent sent from Canada in 1809 to detach New England Federalists from their allegiance to the Union. Congress by resolution proclaimed the validity of the documents. The British minister solemnly denied all knowledge of them on the part of his government. The American people believed in their authenticity, which belief was confirmed during the war by the distinct favor shown for a while to Massachusetts, and by the hope, openly entertained by England, of separating New England from New York and the southern states.

[l] Manufactures in Connecticut (abridged from the U. S. marshal's report in the autumn of 1810, cited in *Niles' Register*, vi, 323-333) were represented by 14 cotton mills, 15 woolen mills. (By 1815 New London county alone had 14 woolen mills and 10 cotton.) These had increased to 60 cotton in 1819, and to 36 woolen. Flax cloth, blended or unnamed cloths, and wool cloth,—all these made in families,—amounted to a yearly valuation of \$2,151,972; hempen cloth, \$12,148; stockings, \$111,021; silks (sewing and raw), \$28,503; hats to the value of \$522,200; straw bonnets, \$25,100; shell, horn, and ivory in manufactured products, \$70,000. Looms for cotton numbered 16,132; carding machines, 184; fulling mills, 213, and there were 11,883 spindles.

In iron, wood, and steel: 8 furnaces, with output of \$46,180; 48 forges, \$183,910; 2 rolling and slitting mills, 32 trip-hammers, \$91,146; 18 naileries, \$27,092; 4 brass foundries, 1 type foundry, brass jewelry, and plaited ware, \$49,200; metal buttons, 155,000 gross, or \$102,125; guns, rifles, etc., \$49,050.

Among other manufactories and manufactures there were 408 tanneries, \$476,339; shoes, boots, etc., \$231,812; the tin plate industry, \$139,370; 560 distilleries, \$811,144; 18 paper mills, \$82,188; ropewalks, \$243,950; carriages, \$68,855, and the beginnings of brick-making, glass-works, pottery, marble works, which, with the state's 24 flaxseed mills and seven gunpowder mills, brought the sum total to approximately \$6,000,000.

Still the great impetus to manufacturing, which completely revolutionized the character of the state, followed the Joint-stock Act of 1837, with its consequent investment of capital and rush of emigration, resulting in later days in a development of the cities at the expense of the rural districts.

[m] Gilbert Brewster, the Arkwright of American cotton machinery, Eli Whitney, with his cotton gin and rifle improvements, and John Fitch, with his experiments with steam, are the most distinguished among a host of men who made Yankee ingenuity and Yankee skill proverbial.

[n] "Era of Good Feeling, 1817-1829. The best principles of the Federalists, the preservation and perpetuity of the Federal government, had been quietly accepted by the Republicans, and the Republican principle of limiting the powers and duties of the Federal government had been adopted by the Federalists. The Republicans deviated so far from their earlier strict construction views as in 1816 to charter a national bank for twenty years, and to model it upon Hamilton's bank of 1791 which they had refused to re-charter in 1811,"—A. Johnson, *American Politics*, pp. 80, 81.

[o] "This was for the support of missions outside the state. The Domestic or State Home Missionary Society undertook the buiding up of places within the state that were without suitable religious care. The former finally absorbed the latter when its original purpose was accomplished. Then, there was the Litchfield County Foreign Mission Society, founded in 1812, the \_first \_auxiliary of the American Board, which began its career in 1810, and was incorporated the same year that its youngest branch was organized."—Lyman Beecher, *Autobiography*, i, 275, 287-88 and 291.

[p] Organized in New Haven in October, 1812, with Dr. Dwight as chairman. Members of the committee upon organization included nearly all the prominent men of that day, both of the clergy and of the bar. A list is given in Lyman Beecher, *Autobiography*, i, 256.

[q] "We really broke up riding and working on the Sabbath, and got the victory. The thing was done, and had it not been for the political revolution that followed, it would have stood to this day.... The efforts we made to execute the laws, and secure a reformation of morals, reached the men of piety, and waked up the energies of the whole state, so far as the members of our churches, and the intelligent and moral portion of our congregation were concerned. These, however, proved to be a minority of the suffrage of the state."—Lyman Beecher, *Autobiography*, i, 268.

"In Pomfret the Justice of the Peace arrested and fined townspeople who persisted in working on Sunday, and held travellers over until Monday morning."—E. D. Lamed, *History of Windham*, ii, 448.

[r] "The odium thrown upon the ministry was inconceivable. ... The Congregational ministers agreed to hold back and keep silent until the storm blew over. Our duty as well as policy was explanation and self-defence, expostulation and conciliation."—*Autobiography*, i, 344.

[s] "Aristides," March 26, 1826, and "Episcopalian," March 13, issues of the *American Mercury*.



"When the Episcopal Church petitioned the legislature in vain, as she did for a series of years, for a charter to a college, he (the Rev. Philo Shelton of Fairfield) with others of his brethren *proposed a union with the political party, then in a minority*, to secure what he regarded a just right. And the first fruit of the union was the charter of Trinity (Washington) College, Hartford. He was one of a small number of clergymen who decided on this measure, and were instrumental in carrying it into effect; and it resulted in a change in the politics of the State which has never yet been reversed."—*Sprague's Annals of American Pulpit* (Episcopal), v, 35.

[t] Total vote for governor 21,759. Mr. Goddard received 9421 votes.—J. H. Trumbull, *Hist. Notes*, p. 36.

[u] The law apportioned one third of the money to the Congregationalists; one seventh to Yale; one seventh to the Episcopalians; one eighth to the Baptists; one twelfth to the Methodists, and the balance to the state treasury.—Cited in *Connecticut Courant*, November 8, 1816. *Acts and Laws*, pp. 279, 280.

[v] The first installment, \$50,000, was paid into the Treasury in June, 1817. The Methodists, and later the Baptists, accepted their share, but not until political events had removed some of their objections.

See the *Mirror*, February 16, 1818. It was not until 1820 that the final acceptance of the money took place.

J. H. Trumbull, *Hist. Notes*, p. 36, foot-note, gives the following figures. By November, 1817, \$61,500 had been received and apportioned: Congregationalists, \$20,500.00; Trustees of the Bishop's Fund, \$8,785.71; Baptist Trustees, \$7,687.50; Methodist Trustees, \$5,125.00; Yale College, \$8,785.71, and a balance still unappropriated of \$10,616.08.

[w] Legal returns gave Wolcott 13,655  
Smith 13,119  
Scattering 202 13,321

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"The correction of errors increased the majority to 600, which the Federalists conceded.—J. H. Trumbull, *Hist. Notes*, p. 38, footnote.

[x] Governor Wolcott's speech, *Connecticut Courant*, May 20, 1817; also *Niles' Register*, xii, pp. 201-204.

[y] "In our climate, three fireplaces are occasionally necessary to the comfortable accommodation of every family."—Governor's speech.

[z] Published 1795.

[aa] A vindication of the calling of the Special Superior Court at Middletown... for the trial of Peter Lung... with observations, &c, Windham, 1816.

[ab] The legislature had also interfered with decisions regarding the Symsbury patent. See E. Kirby, *Law Reports*, p. 446.

[ac] A summary of the Connecticut constitution, taken from *Niles's Register*, asserts that the General Court has sole power to make and repeal laws, grant levies, dispose of lands belonging to the state to particular towns and persons, to erect and style judicatories and officers as they shall see necessary for the good government of the people; also to call to account any court, magistrate, or other officer for misdemeanor and maladministration, or for just cause may fine, displace, or remove, them, or deal otherwise as the nature of the ease shall require; and may deal or act in any other matter

that concerns the good of the state except the election of governor, deputy-governor, assistants, treasurer and secretary, which shall be done by the freemen at the yearly court of election, unless there be any vacancy by reason of death or otherwise, after an election, when it may be filled by the General Court. This court has power also, for reasons satisfactory to them, to grant suspension, release, and jail delivery upon reprieves in capital and criminal cases.

The elections for the assistants and superior officers are annual; for the representatives, semi-annual. The sessions of the General Court are semi-annual. The Governor and the speaker have the casting vote in the Upper and Lower House, respectively.

The Superior Court consists of one chief judge and four others, and holds two sessions in each county each year. Its jurisdiction holds over all criminal cases extending to life, limb, or banishment; all criminal cases brought from county courts by appeal or writ of error, and in some matters of divorce.

The county court consists of one judge and four justices of the quorum, with jurisdiction over all criminal cases not extending to life, limb, or banishment, and with original jurisdiction in all civil actions where the demand exceeds forty shillings. Justices of the Peace, in the various towns, have charge of civil actions involving less than forty shillings, and criminal jurisdiction in some cases, where the fine does not exceed forty shillings, or the punishment exceed ten stripes or sitting in the stocks. Judges and Justices are annually appointed by the General Court, and commonly reappointed during good behavior, while sheriffs are appointed by the governor and council without time-limit and are subject to removal. Recently county courts determined matters of equity involving from five

pounds to two hundred pounds, the Superior Court two hundred pounds to sixteen hundred, and the General Assembly all others.

Probate districts, not coextensive with the counties, exist, with appeal to the Superior Court.

In military matters, the governor is the captain-general of the militia, and the General Court appoints the general officers and field officers, and they are commissioned by the governor. Captains and subalterns are chosen by the vote of the company and of the householders living within the limits of the company, but must be approved by the General Court and commissioned by the governor before they can serve. All military officers hold their commissions during the pleasure of the General Assembly and may not resign them without permission, except under penalty of being reduced to the ranks.— *Niles' Register*, 1813, vol. iii, p. 443, etc. Corrected slightly by reference to Swift's *System of Laws*.

[ad] Banks and insurance companies began to organize about 1790 to 1810.

[ae] In 1818, for the first time, a dissenter, Mr. Croswell, rector of Trinity Church, New Haven, preached the Election Sermon.

[af] Messrs. Pitkin, Todd, G. Lamed, Pettibone, and Wiley. Of these, the first had been twenty times state representative, five times speaker of the House, and for thirteen years had been representative in Congress.

[ag] The first seven sections of the Bill of Bights according to the final revision are:—

Sec. 1. That all men when they form a social compact, are equal in rights; and that no man, or set of men are entitled to exclusive

public emoluments or privileges from the community.

Sec. 2. That all political power is inherent in the people, and all free governments are founded on their authority, and instituted for their benefit; and that they have, at all times, an undeniable and indefeasible right to alter their form of government, in such a manner as they may think expedient.

Sec. 3. The exercise and enjoyment of religious profession and worship, without discrimination, shall forever be free to all persons in this state; provided, that the right, hereby declared and established, shall not be so construed as to excuse acts of licentiousness, or to justify practices inconsistent with the peace and safety of the state.

Sec. 4. No preference shall be given by law to any Christian sect or mode of worship.

Sec. 5. Every citizen may freely speak, write, and publish his sentiments on all subjects, being responsible for the abuse of that liberty.

Sec. 6. No law shall ever be passed to curtail or restrain the liberty of speech or of the press.

Sec. 7. In all prosecutions or indictments for libels, the truth may be given in evidence; and the jury shall have the right to determine the law and the facts, under the direction of the court.

[ah] Mr. Trumbull asserts that "writers and historians are in error when attributing to Mr. Morse of Suffield (the Baptist minister aforementioned) the drafting of the Article on Religious Liberty. The drafting committee

were Messrs. Tomlinson and Stow, and the first clause, as reported, seems to have been taken with slight alteration from Governor Woleott's speech to the General Assembly, May, 1817, namely, 'It is the right and duty of every man publicly and privately to worship and adore the Supreme Creator and Preserver of the Universe in the manner most agreeable to the dictates of his own conscience.'" —J. H. Trumbull, *Notes on the Constitution*, pp. 56, 57.

[ai] The second section remained unchanged.

[aj] Seven hundred copies were distributed among the towns.

[ak] By later amendments, judges of the Supreme Court of Errors and the Superior Court are nominated by the governor and appointed by the General Assembly. Judges of probate are now elected by the electors in their respective districts; justices of the peace in the several towns by the electors in said towns; and sheriffs by their counties.

[al] By amendment of 1901, the vote for governor, lieutenant-governor, secretary, treasurer, comptroller, and attorney-general was changed from a majority to a plurality vote, the Assembly to decide between candidates, if at any time two or more should receive "an equal and the greatest number" of votes.

[am] "It cut the churches loose from dependence upon state support—It threw them wholly on their own resources and on God." "The mass is changing," wrote Dr. Beecher. "We are becoming another people. The old laws answered when all men in a parish were of one faith."—Lyman Beecher, *Autobiography*, i, pp. 344, 453.

[an] Lyman Beecher.

## APPENDIX

### NOTES

#### **CHAPTER I. THE EVOLUTION OF EARLY CONGREGATIONALISM.**

1, H. M. Dexter, Congregationalism as seen in Literature, p. 49.

2, Robert Browne, A True and Short Declaration, p. 1.

3, H. M. Dexter, Congregationalism as seen in Literature, p. 70.

4, Report of Conference April 3, 1590, quoted in F. J. Powicke, Henry Barrowe, p. 54.

5, W. Walker, Creeds and Platforms, p. 12.

6, Ibid., pp. 14, 15; also H. M. Dexter, Congregationalism as seen in Literature, pp. 96-104.

7, Robert Browne, A Treatise on Reformation without Tarrying, pp. 4, 7, 12.

8, Robert Browne, A True and Short Declaration, p. 7; Book which Sheweth, pp. 117-148.

9, Robert Browne, Book which Sheweth, Questions 55-58.

10, Ibid., Def. 35-40; Henry Barrowe, Discovery of False Churches, p. 34, and The True Description in Appendix IV of F. J. Powicke's Henry Barrowe.

11, Robert Browne, Book which Sheweth, Def. 53 and 54.

12, Henry Barrowe, Discovery of False Churches, p. 48.

13, Henry Barrowe, Discovery of False Churches, pp. 166, 275; Robert Browne, Book which Sheweth, Def. 51; A True and Short Declaration, p. 20; The True Confession of Faith, Article 38.

14, H. M. Dexter, Congregationalism as seen in Literature, pp. 221, 232; also John Brown, Pilgrim Fathers of New England, pp. 22-25.

15, The True Confession, Art. 39.

16, "The Seven Articles," of which the following is the text:—

(1) "To ye confession of fayth published in ye name of ye Church of England and to every artikell thereof wee do w'th ye reformed churches wheer wee live & also els where assent wholly."

(2) "And as wee do acknowlidg ye doctryne of fayth theer tawght so do wee ye frutes and effectks of ye same docktryne to ye begetting of saving fayth in thousands in ye land (conformistes & reformistes) as ye ar called w'th whom also as w'th our brethren wee do desyer to keepe speirtuall communion in peace and will pracktis in our parts all lawful thinges."

(3) "The King's Majesty wee acknowlidg for Supreme Governor in his dominion in all causes, and over all parsons [persons] and ye none maye decklyne or apeale his authority or judgment in any cause whatsoever, but ye in all thinges obedience is dewe unto him, either active, if ye thing commanded be not against God's woord, or passive yf itt bee, except pardon can bee obtayned."



(4) "Wee judge itt lawfull for his Majesty to apoynt bishops, civill overseers, or officers in awthority onder hime in ye severall provinces, dioses, congregations or parishes, to oversee ye churches, and governe them civilly according to ye Lawes of ye Land, uutto whom ye ar in all thinges to geve an account and by them to bee ordered according to Godlyness." (This is not an acknowledgment of spiritual—superiority or authority, only the recognition that as church officers were also magistrates, the king could appoint them as his civil servants.)

(5) "The authority of ye present bishops in ye land wee do acknowlidg so far forth as ye same is indeed derived from his Majesty untto them and as ye proseed in his name, whom wee will also therein honor in all thinges and hime in them."

(6) "Wee believe ye no sinod, classes, convocation or assembly of Ecclesiastical Officers hath any power or awthority att all but ye same by ye Majestraet given unto them." (Intended to be a denial of Presbyterianism.)

(7) "Lastly wee desyer to geve untto all Superiors dew honour to preserve ye unity of ye spiritt w'th all ye feare God to have peace w'th all men what in us lyeth and wherein wee err to bee instructed by any." (Text of Points of Difference and Seven Articles in W. Walker, *Creeds and Platforms*, pp. 75-93.)

## **CHAPTER II. THE TRANSPLANTING OF CONGREGATIONALISM.**

17, The Commons prayed, "that no man hereafter be compelled to make or yield any gift, loan, benevolence, tax, or such like charge, without common

consent by Act of Parliament. And that none be called to make answer, or to take such oaths, or to be confined or otherwise molested or disputed concerning the same, or for refusal thereof. And that no freeman may in such manner as is before mentioned be imprisoned or detained."—Extract from the Petition of Right. See J. R. Green, *Short History of the English People*, pp 486, 487.

18, E. H. Byington, *The Puritan in England and New England*, pp. 486, 487.

19, See Gott's Letter in Bradford's Letter-Book, *Mass. Hist. Soc.*, iii, 67,68.

20, G. L. Walker, *History of the First Church in Hartford*, p. 154.

### **CHAPTER III. CHURCH AND STATE IN NEW ENGLAND.**

21, Thomas Hooker, *Survey of Church Discipline*, chap. 3, p. 75; also *Mass. Col. Rec.*, iii, 424; J. Cotton, *Way of the Churches*, pp. 6, 7.

22, J. Cotton, *Way of the Churches*, pp. 6, 7; *Plymouth Col. Rec.*, ii, 67; *Mass. Col. Rec.*, i, 216, iii, 354; *Hartford Town Voter*, in *Conn. Hist. Soc. Coll.*, vi, 32; *Conn. Col. Rec.*, i, 311, 545.

23, *Plymouth Col. Laws*, ed. 1836, p. 258; *Conn. Col. Rec.*, i, pp. 96, 138, 290, 331, 389, 525.

24, J. Cotton, *A Discourse about Civil Government in a New Plantation whose Design is Religion* (written many years since), London, 1643, pp. 12, 19. (This is a misprint in the title-page, for the author was John Davenport.)

25, *Mass. Col. Rec.*, i, 87.

26, J. Cotton, *Keys of the Kingdom of Heaven*, pp. 50, 53.

27, *Mass. Law of 1636*; *Conn. Col. Rec.*, i, 341.

28, *Conn. Col. Rec.*, i, 525.

29, G. F. Ellis, *Puritan Age in Massachusetts*, p. 34.

30, *Winthrop*, i, 81.

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"Whereas there is a cursed sect of heretics lately risen up in the world, which are commonly called Quakers, who take upon them that they are immediately sent of God and infallibly assisted by his spirit, who yet write and speak blasphemous opinions, despise governments and the order of God, in church and commonwealth... we do hereby order and declare

"That whosoever shall hereafter bring, or cause to be brought, directly or indirectly, any known Quaker or Quakers, or other blasphemous heretics, into this jurisdiction, every such person shall forfeit the sum of 600 pounds to the jurisdiction, except it appear that he wanted true knowledge or information of their being such... and it is hereby ordered that what Quaker or Quakers soever come into this jurisdiction, from foreign parts or places adjacent, if it be about their civil, lawful occasions to be quickly despatched among us, which time of stay shall be limited by the civil authority in each plantation, and that they shall not use any means by words, writings, books, or any other way, to go about to seduce others, nor revile nor reproach, nor any other way make disturbance or offend. They shall upon their first arrival, or coming in, appear to be brought before the authorities of the place and from them have license to put about and issue their lawful occasions, and shall have one or more to attend upon them at their charge until such occasions of theirs be discharged, and they return out of the jurisdiction which if they

refuse to do, they shall be denied such free passage and commerce and be caused to return back again, but if this first time they shall offend in any of the ways as before expressed, and contrary to the intent of this law, they shall be committed to prison, severely whipped, kept to work, and none suffered to converse with them during their imprisonment, which shall be no longer than necessity requires, and at their own charge sent out of the jurisdiction."

For a second offense, they were to be branded, as well as to be committed to prison. For a fourth offense, they were to have their tongues bored through with hot irons. Their books, papers, etc., were to subject their possessors to a fine of 5 pounds, and entertaining or concealing a Quaker was to be punished by a fine of 20s.; while undertaking to defend any of their heretical opinions was doubly fined.—New Haven Col. Kec., ii, 217, 238,363.

In 1656, the Connecticut Court, in conformity to a suggestion from the commissioners of the United Colonies, ordered that "no towne within this jurisdiction shall entertaine any Quakers, Kanters, Adamites, or such notorious heretiques, or suffer them to continue with them above the space of fourteen days,... and shall give notice to the two next towns to send them on their way under penalty of £5 per week for any town entertaining any such person, nor shall any master of a ship land such or any." In August, 1657, the above fine was imposed on the individual who entertained the Quaker, etc., as well as on the town, and an officer was appointed to examine suspects. A little later, a penalty of 10s. was imposed for Quaker books and MSS. found in the possession of any but a teaching elder. Twice the Court saw fit to leave, notwithstanding all former orders, all such cases to the jurisdiction of the separate towns, to order fines, banishment, or corporal punishment, provided the fines "exceed not ten pounds."

The tone is brief and businesslike, dealing with a matter that had already caused great trouble to the other United Colonies, and which might become a menace to Connecticut. There are almost no recorded cases of sentence being imposed. See Conn. Col. Kec., i, 283,303,308, 324.

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The Constitution of 1818, admirable for the conditions of that time, leaves now large room for betterment. The century-old habit of legislative interference was not wholly uprooted in 1818, and soon began to grow apace. The Constitution stands to-day with its original eleven articles and with thirty-one amendments, some of which, at least in their working, are directly opposed to the spirit of the framers of the commonwealth. The old cry of excessive legislative power is heard again, for the legislature by a majority of one may override the governor's veto, and, through its powers

of confirmation and appointment, it may measurably control the executive department and the judicial. Moreover, apart from these defects in the constitution, certain economic changes have resulted in a disproportionate representation in the House of Representatives. The Joint-Stock Act of 1837 gave birth to great corporations, and with railroads soon developed the formation of large manufacturing plants. As a result, there was a rush, at first, of the native born, and, later, of large numbers of immigrants, who swelled the population, to the cities. This, together with the development of the great grain-producing western states, changed Connecticut from an agricultural to a manufacturing state, and from a producer of her own foodstuffs to a consumer of those which she must import from other states.

Such shifting of the population has produced a condition where a bare majority of one in a House of two hundred and fifty-five members may pass a measure that really represents the sentiment of but one-fifteenth of the voters of the state. There results a system of rotten boroughs and the opportunity for a well-organized lobby and the moneyed control of votes. It is asserted that the first section of the bill of rights, namely, "That no man or set of men are entitled to exclusive public emoluments or privileges from the community," is constantly violated by this misrepresentation, which especially affects the population in the cities, and is felt not only in all state measures, but in all local ones about which the legislature must be consulted. As an illustration of the inequality of representation, the following figures are given. In the Constitutional Convention of 1818, 81 towns sent *two* delegates each, and 39 towns sent *one*, from communities out of which 11 had a population of less than 1000, and 100 ranged between 1000 and 4000, while only 9 surpassed this last number. In the Constitutional Convention of 1902, 87 towns, with an aggregate population of 781,954, sent each *two* delegates, while 81, with a combined population of 126,411, sent each *one* delegate. Thus it happened that in 1902, New Haven, population 108,027, sent *two* delegates, and the town of Union,

population 428, also sent *two* delegates, while ten other towns, with a population ranging from 593 to 885 each, sent *two* delegates.

The "Standing Order" of to-day is not a privileged church, but a dominant political party strong in the privilege and powers derived from long tenure of office and intrenched behind constitutional amendments which, in addition to this unequal representation in the House, provide for the election of Senators upon town and county lines rather than upon population. The Constitutional Reform Party of to-day propose radical measures to remedy these more glaring defects in the administration of government, and to consider these, called the Constitutional Convention of 1902. In it, the influence of the small towns on the drafting of the proposed constitution was so great that, when it was presented to the people for ratification, an adverse majority in every county refused to accept it. In fact, only fifteen per cent of the whole people thought it worth while to express any opinion at all.

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### **4. LOCAL**

Connecticut-State, county, town, etc., of which only the more important town and county histories, and reports of anniversary celebrations are given. Those omitted are of small interest outside of their respective towns, except to genealogists or to those whose families chance to be mentioned in the sketch of historical development or of commercial growth. The many books of this type contribute general coloring, and some of them a few important bits of information, to the story of the development of the state, but many are not worth enumerating as sources, or as assistants to the general reader or student.

Allen, Francis Olcott. *The History of Enfield*, compiled from all the public records of the town known to exist, covering from the beginning to 1850. Lancaster, 1900. 3 vols.

Carefully compiled and attested by the town clerk. Includes also graveyard inscriptions and extracts from Hartford, Northampton and Springfield records.

Andrews, Charles M. *The River Towns of Connecticut*, Wethersfield, Hartford and Windsor. Baltimore, 1889. (Also Johns Hopkins Historical and Political Science Papers, vii, 341-456.)

Atwater, Edward E. (editor). *History of the City of New Haven*. New York, 1887.

Good for the earlier history, for a few extracts from records; contains descriptions of public men and events, also extracts from old newspapers, etc.

———*History of the Colony of New Haven to its absorption into Connecticut*. New Haven, 1881. A much better book, being the best special history of the New Haven Colony.

Baldwin, Simeon E. Constitutional Reform. A Discussion of the Present Inequalities of Representatives in the General Assembly [of Connecticut]. New Haven, 1873.

——The Early History of the Ballot in Connecticut. American Historical Association Papers, i, 407-422. New York, 1890.

——The Three Constitutions of Connecticut. In New Haven Historical Society Papers, vol. v.

Barber, John W. Connecticut Historical Collections. New Haven, 1856.

A book of brief anecdotal town histories, curious legends, notable events, newspaper clippings, together with a goodly number of illustrations.

Bolles, John Rogers. The Rogerenes: Some hitherto unpublished annals belonging to the Colonial History of Connecticut. Part 1. A. Vindication, by J. R. Bolles. Part 2. History of the Rogerenes, by Anna B. Williams. Boston, 1904.

Bowen, Clarence W. The Boundary Disputes of Connecticut. Boston, 1882.

Breckenridge, Francis A. Recollections of a New England Town (Meriden). Meriden, 1899.

Typical of the life in New England towns, 1800-1850.

Bronson, Henry, Early Government of Connecticut. (New Haven Historical Society Papers, iii, 293 et seq.)

Bushnell, Horace. "Work and Play," being the first volume of his "Literary Varieties." New York, 1881.

Contains an historical estimate of Connecticut.

Caulkins, Frances M. History of New London, Connecticut. New London, 1852.

——History of Norwich, Connecticut. Norwich, 1845.

These two histories are readable, reliable and full of detail, culled from original records, many of which are now deposited with the New London Historical Society.

Clap, Thomas. Annals or History of Yale College. New Haven, 1766.

Cothren, William. History of Ancient Woodbury, Connecticut, 1669-1879. (Including Washington, Southbury, Bethlehem, Roxbury, and part of Oxford and Middlebury.) Waterbury, 1854, 1872, 1879. 3 vols.

Vols. i and ii, history, with considerable genealogy. Vol. iii, 1679-1879, births, marriages and deaths.

Dexter, Franklin Bowditch. Thomas Clap and his Writings. See New Haven Historical Society Papers, vol. v.

——Sketch of the History of Yale University. New Haven, 1887.

Dwight, Theodore. History of Connecticut. New York, 1841.

——History of Hartford Convention. Hartford, 1833.

Of the 447 pages, 340 are devoted to recounting the events which led to the calling of the convention, and, with much political bias, to the

history of Jefferson's political career from 1789, quoting from official correspondence and his private letters. Pages 340-422 deal with the convention proper, giving, pp. 383-400, its "Secret Journal." The Appendix, pp. 422-447, has brief biographies of the members.

Dwight, Timothy. *Travels in New England and New York*. New Haven, 1831. 4 vols.

Dodd, Stephen. *The East Haven Register in Three Parts*. New Haven, 1824.

A rare little book of 200 pages compiled by the pastor of the Congregational Church in East Haven. Part i contains a history of the town from 1640 to 1800; part ii, names, marriages, and births, 1644-1800; part iii, account of the deaths in families, from 1647 to 1824.

Field, David Dudley. *A History of the Towns of Haddam and East Haddam*. Middletown, 1814.

A book of some forty-eight pages, of which six are devoted to genealogies "taken partly from the records of the towns, and partly from the information of aged people" by the pastor of the church in Haddam. Though largely ecclesiastical, its author—a college A. M.—realizes the value of statistics in references to population, necrology, taxes, militia, farming, and other industries, and weaves them into his rambling story.

———*Statistical Account of the County of Middlesex*. Middletown, 1819.

Fowler, William Chauncey. *History of Durham, 1662- 1866*.

Includes in chapter xii—pp. 229-443—extracts from Town Records, Ministerial Records, Proprietor's Eecords.

Gillett, E. H., Rev. The Development of Civil Liberty in Connecticut. In Historical Magazine, 2d series, vol. iv (1868), pp. 1-34, Appendices, pp. 34-49. Morrisania, N. Y., 1868.

Appendix A. Report of the Rev. Elizur Goodrich, D. D., to the Convention of Delegates from the Synod of New York and Philadelphia and from the Associations of Connecticut, held annually from 1766 to 1775 inclusive (being a statement on the subject of Religious Liberty in the Colony), with notes by E. H. G. pp. 34-43.

Appendix B. Letter of Rev. Thomas Prince of Boston to Rev. John Drew of Groton, Conn., May 8, 1744, pp. 43-47. (Sympathizing with the New Lights.)

Appendix C. Three short paragraphs omitted from the body of the article.

Appendix D. Extracts from the American reprint of Graham's "Ecclesiastical Establishments of Europe," pp. 47, 48.

This article in itself contains Israel Holly's "Memorial," Joseph Brown's "Letter to Infant Baptisers of North Parish in New London" (in part); also copious citations from the pamphlets of Bolles, Frothingham, Bragge, the Autobiography of Billy Hibbard (Methodist preacher) and extracts from Abraham Bishop's pamphlets.

Hartford Town Votes, 1635-1716. (Transcribed by Chas. J. Hoadly.) See Connecticut Historical Society Collections, 1897, vol. vi.

Hollister, Gideon H. Address in Litchfield, April 9, 1856, before the Historical and Antiquarian Society, on the occasion of completing its organization. Hartford, 1856.

Hollister, Gideon H. *The History of Connecticut*. New Haven, 1855. 2 vols.

A history of Connecticut from the first settlement of the colony to the adoption of the present Constitution in 1818.

Hurd, D. Hamilton. *History of Fairfield County, Connecticut, with illustrations and Biographical Sketches of its Prominent Men and Pioneers*. Philadelphia, 1881.

Johnson, William Samuel. *Letters to the Governors of Connecticut, 1766-1771*. See Mass. Historical Society Collections, series 5, vol. ix, pp. 211-490.

Johnston, Alexander. *The Genesis of a New England State, Connecticut*. Baltimore, 1883. Revised 1903. (Also in Johns Hopkins University Studies, vol. i, no. 11.)

———*Connecticut; a Study of a Commonwealth Democracy*. Boston and New York, 1887. Revised 1903.

Jones, Frederick R. *History of Taxation in Connecticut*. Johns Hopkins University Studies in Political Science, series 14, no. 8. Baltimore, 1896.

*Journal of the Proceedings of the Convention of Delegates Convened at Hartford, August 26, 1818*. Hartford, 1873. Reprinted by order of the state comptroller, Hartford, 1901.

Kilbourne, P. K. *Sketches and Churches of the Town of Litchfield*. Historical, biographical, statistical. Hartford, 1859.



An excellent account, drawing in part upon Woodruff's (George C.) History of Litchfield, 1845, and Morris' Statistical Account of Litchfield County, 1818, with additional matter.

Kingsley, F. J. Old Connecticut. See New Haven Historical Society Papers, vol. iii.

Kingsley, James Luce. Sketch of Yale College. Boston, 1835.

Lambert, Edward R. History of the Colony of New Haven, before and after the Union with Connecticut. New Haven, 1838.

Larned, Ellen D. History of Windham County. Worcester, 1874. 2 vols.

One of the best of the local histories.

Vol. 1, book iii. Account of Canterbury Church difficulties and of the Clevelands.

——Historic Gleanings in Windham County, Connecticut. Providence, 1899.

Levermore, Charles H. The Republic of New Haven. Also in Johns Hopkins University Studies, extra vol. i. Baltimore, 1886.

Litchfield Book of Days, A collection of the historical, biographical and literary reminiscences of Litchfield, Connecticut. Edited by George C. Boswell. Litchfield, 1899.

Litchfield County Centennial Celebration, August 13-14, 1851. Hartford, 1851.

Loomis (Dwight) and Calhoun (J. Gilbert). The Judicial and Civil History of Connecticut. Boston, 1895.

Orcutt, Samuel. History of New Milford and Bridgewater, Connecticut, 1703-1882. Hartford, 1882.

——History of Old Town of Derby. Springfield, 1880.

"Prepared with great fidelity and thoroughness, and to take rank with the best town histories," wrote Noah Porter on Feb. 1, 1880. *Biography and Genealogy*, pp. 523-785.

——History of the Old Town of Stratford and the City of Bridgeport. New Haven, 1886. 2 pts.

The Proceedings of a Convention of Delegates from the states of Massachusetts, Connecticut, Rhode Island, the Counties of Cheshire and Grafton in the State of New Hampshire and the County of Windham in the State of Vermont convened at Hartford in the State of Connecticut, December 15, 1814. Hartford, 1815.

Sanford, Elias B. A History of Connecticut. Hartford, 1887.

A school history.

Selleck, Charles M. History of Norwalk. Norwich, 1886.

Statistical Account of the Towns and Parishes in the State of Connecticut, published by Connecticut Academy of Arts and Sciences, vol. i, no. 1. New Haven, 1811.

Steiner, Bernard Christian. A History of the Plantation of Menunkatuck and of the Original Town of Guilford, Connecticut (present towns of Guilford and Madison) written largely from the manuscripts of The Hon. Ralph Dunning Smyth. Baltimore, 1897.

The book draws upon the preceding histories of Guilford, namely that of the Rev. Thomas Kuggles, Jr., and the later sketch of Guilford and Madison by Daniel Dudley Field, first written in 1827 for the Connecticut Academy of Arts and Sciences. It was revised by R. D. Smyth in 1840 and published in 1877 after his death. Mr. Sterner has added matter derived from a study of the town records and other sources, making a history that covers all points of development.

——Governor William Leete and the absorption of New Haven by the Colony of Connecticut. American Historical Association, Annual Report, 1891, pp. 209-222.

——History of Slavery in Connecticut. (See Johns Hopkins Historical Studies, ii, 30 et seq.) Baltimore, 1893.

Stiles, Ezra. A Discourse on the Christian Union. Brookfield, 1799.

——The Literary Diary of Ezra Stiles, edited under the authority of the corporation of Yale University by F. B. Dexter, M. A. New York, 1901. 3 vols.

Stiles, Henry Reed. Ancient Windsor. Hartford, 1891. 2 vols.

Swift, Zephaniah. System of the Laws of the State of Connecticut. Windham, 1795.

Trumbull, Benjamin. A Complete History of Connecticut, Civil and Ecclesiastical, 1639 to 1713, continued to 1764. New Haven, 1818. 2 vols.

Reprint with Introductory Notes and Index by Jonathan Trumbull. New London, 1898.

Trumbull, J. Hammond (Editor). Hartford County Memorial History. Hartford, 1886. 2 vols.

Vol. i, part i, The County of Hartford treated topically, as early history, the colonial period, "Bench and Bar," "Medical History," etc. Part ii, Hartford, Town and City. Vol. ii, Brief Histories of the different towns.

Trumbull, J. Hammond. Historical Notes of the Constitutions of Connecticut, 1639 to 1818; and Progress of the Movement which resulted in the Convention of 1818, and the Adoption of the present Constitution. Hartford, 1873. Reprinted by order of State Comptroller, Hartford, 1901.

———Origin and Early Progress of Indian Missions in New England. Worcester, 1874.

———Defense of Stonington (Connecticut) against a British Squadron. Hartford, 1864.

———The True Blue Laws of Connecticut and New Haven and the False Blue Laws invented by the Rev. Samuel Peters. To which are added specimens of the Laws of other Colonies and some of the Blue Laws of England. Hartford, 1876.

———List of Books printed in Connecticut, 1709-1800 (edited by his daughter Annie E. Trumbull). The list contains 1741 titles and also a list of printers. Hartford, 1904.

Webster, Noah. Collection of Papers on Political, Literary and Moral Subjects. New York, 1843.

## **5. LOCAL BIOGRAPHIES**

Bacon, Leonard. Sketch of Life and Public Services of James Hillhouse. New Haven, 1860.

Blake, B.L. Gurdon Saltonstall. In New London Historical Society Papers, part 5, vol. i.

Dexter, Franklin B. Biographical Sketches of Graduates of Yale. 3 vols. May, 1701-May, 1745; New York, 1885. May, 1745-May, 1763; New York, 1896. May, 1763-May, 1778; New York, 1903.

Kilbourne, P. K. Biographical History of the County of Litchfield. New York, 1851.

Mitchell, Donald G. American Lands and Letters. 3 vols.

First volume, for early newspapers, the Hartford Wits and literati of the colonial period.

Sprague, W. B. Annals of the American Pulpit. New York, 1857-69. 9 vols.

Biographical Sketches in chronological order, contributed by 540 writers of sectarian prominence, and with intent to show development of churches and the power of character.

Vols. i and ii, Trinitarian-Congregationalists. Vols. iii and iv, Presbyterian. Vol. v, Episcopalians (reference for the Episcopal Republican coalition in 1818 in Connecticut). Vol. vi, Baptists. Vol. vii, Methodists. Vol. viii, Unitarians. Vol. ix, Lutherans, Dutch Reformed, etc.

Tyler, Moses Coit. Three Men of Letters (George Berkeley, Timothy Dwight and Joel Barlow). New York and London, 1895.

## **B. CONNECTICUT NEWSPAPERS**

w. abbreviation for weekly

### **HARTFORD**

American Mercury, w. Anti-Federal.

Founded July 12, 1784, with Joel Barlow, editor, and Elisha Babcock, publisher. In 1833 merged into the Independent Press.

Yale University Library has a file practically complete to 1828, only 20 numbers missing.

Connecticut Courant. w. Federal, Whig, Republican.

Founded 1764, by Thomas Green as organ of the Loyal Sons of Liberty; later supported Washington and Adams; continued as the weekly and now daily Hartford Courant. Said to be the oldest newspaper still published in the United States. Connecticut Courant and the Weekly Hartford Intelligencer, 1774.

Connecticut Courant and the Weekly Intelligencer, Feb. 1781.

The latter part of title dropped March 21, 1791.

In 1837 the Daily Courant was established. This paper bought out the Independent Press (which in turn had absorbed the American Mercury); and the staff of the Press, including Charles Dudley Warner, Gen. J. K. Hawley and Stephen A. Hubbard, joined William H. Goodrich, who was the business manager of the Couraut.

Connecticut Mirror, w. Federal.

Founded July 10, 1809, by Charles Hosmer, publisher. During the War of 1812, it was the organ of the "extreme right" of the Federal party. It was continued until about 1835.

Yale University Library contains an almost complete file up to 1831.

Times. w. Democratic-Republican.

Founded Jan., 1817, with Frederick D. Bolles, publisher, and M. Niles, editor. Its slogan was "Toleration" and the New Constitution.

March 2, 1841, it became the Daily Times, and still continues.

#### **NEW HAVEN**

Columbian Register, w. Democrat.

Founded Dec. 1, 1812, Joseph Barber, publisher, to give "proceedings of Congress, latest news from Europe and history of New England, particularly of Connecticut." Daily edition, 1845; Sunday edition, 1877.

Yale University has a continuous file.

The Connecticut Gazette, w.

Printed by James Parker, April, 1755. Suspended April 14, 1764. Revived by Benjamin Mecom, July 5, 1765. Ended Feb. 19, 1768.

Connecticut Herald, w. Federal, Republican.

Founded 1803, by Corstock, Griswold & Co., publishers, Thomas Green Woodward, editor. A Daily Herald, issued Nov. 16, 1832. In 1835 its publishers, Woodward & Carrington, bought the Connecticut Journal.

The Daily Herald and Journal of 1846 soon became, by buying out the Courier, The Morning Journal and Courier, as now, and its weekly edition, the Connecticut Herald.

Yale University has a continuous file.

The Connecticut Journal and New Haven Post Boy. w. Federal.

Founded 1767 by Thomas and Samuel Green. It was started about four months before the Connecticut Gazette (New Haven). It failed April 7, 1835, and was sold to Woodward & Carrington, owners of the Daily Herald.

The title "and New Haven Post Boy" was omitted about 1775. It was known in 1799, for a few months only, as the Connecticut Journal and Weekly Advertiser, and in 1809, for a few months only, as the Connecticut Journal and Advertiser.

Yale's file dates from 1774 to 1835.

The New Haven Gazette and the Connecticut Magazine, w. Meigs & Dana, Feb. 16, 1786-1798.

#### **NEW LONDON**

The Connecticut Post and New Haven Visitor, w.

Founded Oct. 30, 1802, as the Visitor; title changed Nov. 3, 1803. Ended its existence about Nov. 8, 1834.

The New London Gazette, w. (Connecticut Gazette.)

Founded by Timothy Green, November, 1763. The earlier Connecticut Gazette, published at New Haven, April, 1755-April 14, 1763, having



ended February, 1768, the New London Gazette adopted the New Haven paper's name. The firm became Timothy Green & Son, 1789-1794. Samuel Green (the son) conducted the paper to 1841, except the year 1805, and from 1838 to 1840. Known as the Connecticut and Universal Intelligencer, Dec. 10, 1773-May 11, 1787.

Yale University files are from 1765 to 1828, except 1775, '76, '77, and '78.

#### **OUTSIDE OF CONNECTICUT**

Niles' Weekly Register, w. Baltimore, 1811-1849.

It was known from 1811 to 1814 as the Weekly Register; from 1814 to August, 1837, as Niles' Weekly Register, and from 1837 to 1849 as Niles' National Register. It devoted itself to the record of public events, essays and documents dealing with political, historical, statistical, economic and biographical matter.

#### **C. PUBLIC RECORDS AND OTHERS TOUCHING UPON CONNECTICUT HISTORY**

New Haven Colonial Records, ed. by C. J. Hoadly. 2 vols. 1638-1649; 1653-1664. Hartford, 1857-58.

Connecticut, Colonial Records of, ed. by C. J. Hoadly and J. Hammond Trumbull. 15 vols. 1635-1776,. Hartford, 1850-90.

State of Connecticut, Records of the, ed. by C. J. Hoadly. 2 vols. 1776-1778; 1778-1780. Hartford, 1894-95.

United Colonies of New England, Records of the, in vol. ii. of E. Hazard's "Historical Collections consisting of State Papers and other authentic Documents, etc."

Plymouth Colony, Records of, ed. by N. R. Shurtleff and D. Pulsifer. 12 vols. Boston, 1855-61.

Records of the General Association of Connecticut, June 20, 1738, June 19, 1799; Hartford, 1888. 8 vols.

Minutes of Proceedings of the General Association, 1818, on.

Proceedings of Connecticut Missionary Society, 1801-1819.

Report of the Superintendent of Common Schools of Connecticut, 1853.

This annual report has a detailed account of the Western Land Bill appropriations, pp. 64-108.

The Constitutions of Connecticut, with Notes and Statistics regarding Town Representation in the General Assembly, and Documents relating to the Constitutional Convention of 1902. Printed by Order of the State Comptroller. Hartford, 1901.

The Code of 1650. In Hinman's "Antiquities of Connecticut."

The Public Statute Laws of the State of Connecticut. Hartford, 1808.

Acts and Laws, 1784-1794. (Supplements to Oct., 1795, laid in.) New London, 1784.

Acts and Laws, 1811-1821.

## **D. HISTORICAL SOCIETY PUBLICATIONS**

American Historical Association Annual Report. 1889-1904.

Connecticut Historical Society Collections. 8 vols.

Especially vol. i, Extract from Hooker's Sermon. Vol. ii, Hartford Church Papers. Vol. iii, Extract from Letter to the Rev. Thomas Prince. Vols. v and vi, Talcott Papers.

Massachusetts Historical Society Collections, 1792-1904. 64 vols.

Volumes containing the Mather, Sewall, and Winthrop Papers were especially useful.

Narragansett Club Publications. Providence, 1866. 6 vols.

The Correspondence of Roger Williams and John Cotton, vols. i and ii.

New Haven Colony Historical Society Papers. 6 vols.

Rhode Island Historical Society Collections. 8 vols. 1827-92. Proceedings, 4 vols., 1871-92, and Publications, 1892, onwards.

### **MANUSCRIPTS**

Judge Church's MS. in New Haven Historical Society Library.

A sketch prepared for the historian Hollister.

Manuscript Records of the Newport Yearly Meeting, deposited in the Friends' School, Providence, R. I.

Manuscript Minutes of the Hartford North Association, deposited in Yale library.

Stiles, Ezra. Itinerary and Memoirs, 1760-1794, deposited in Yale College.

## **E. DENOMINATIONAL LITERATURE**

### **1. BAPTIST**

Asplund, John. The Annual Register of the Baptist Denomination in North America ... to Nov. 1, 1790; containing an account of the Churches and their Constitutions, Ministers, Members, Associations, their Plan and Sentiments, Rule and Order, Proceedings and Correspondence. Worcester, 1791-94.

Backus, Isaac. A History of New England with Particular Reference to the Denomination of Christians called Baptists. Newton, Mass., 1871. 2 vols.

This edition by D. Weston includes Isaac Backus' prefaces to vol. i, finished 1777; vol. ii, 1784; and vol iii, 1796.

This contemporary writer is regarded as an authority, as much of his work was founded upon the court, town, and church records and upon the minutes of ecclesiastical councils. He searched diligently the records of Plymouth, Taunton, Boston, Essex, Providence, Newport, Hartford and New Haven. The book has a chronological record of the Connecticut churches. It is very discursive.

Benedict, David. A General History of the Baptist Denomination in America and other parts of the world. Boston, 1813.

This contains a more complete list of the associations and churches than that given by Backus. There is a valuable chapter, "Baptist Communities who differ from the main body of the denomination and who are also distinguished by some peculiarities of their own."

Burrage, Henry S. A History of the Baptists in New England. Philadelphia, 1894.

Particularly useful in tracing the progress of the denomination in the different states, and in its contribution to the history of religious liberty.

Cathcart, William (Editor). The Baptist Encyclopedia: A Dictionary of the Doctrines ... of the Baptist Denomination in all Lands. Philadelphia, 1883. 2 vols.

Curtis, Thomas F. The Progress of Baptist Principles in the Last Hundred Years. Boston, 1856.

Denison, Frederic. Notes of the Baptists and their Principles in Norwich. Norwich, 1859.

This contains the famous Separatist Petition to the King in 1756.

Guild, Reuben A. History of Brown University, with Illustrated Documents. Providence, 1867.

Hovey, Alvah. A Memoir of the Life and Times of the Reverend Isaac Backus, A. M. Boston, 1858.

Newman, Albert H. A History of the Baptist Churches in the United States. New York, 1894.

## 2. CONGREGATIONALIST

A Confession of Faith, Owned and Consented to by the Elders and Messengers of the Churches in the Colony of Connecticut in New England Assembled by Delegates at Saybrook, Sept. 9, 1708.

First Edition (first book printed in Connecticut), New London, 1710.

Second Edition, New London, 1760, with Heads of Agreement; Edition of Hartford, 1831. [a]

A Faithful Narrative of the Surprising Work of God in the Conversion of Many Hundred Souls in Northampton and the Neighboring Towns.... In a letter to the Rev'd. Doctor Benjamin Colman of Boston, written by the Rev'd. Mr. Edwards, Minister of Northampton, on Nov. 6, 1736. London, 1737.

Autobiography of Lyman Beecher, D. D. New York, 1864. 3vols.

Especially valuable for the attitude of the Congregational clergy during the first constitutional reform movement in Connecticut.

Bacon, Leonard. The Genesis of the New England Churches. New York, 1874.

——Thirteen Historical Discourses, on completion of Two Hundred Years from the beginning of the First Church, New Haven. New Haven, 1839.

Baldwin, Simeon E. Ecclesiastical Constitution of Yale College. In New Haven Historical Society's Papers, vol. iii.

Contributions to the Ecclesiastical History of Connecticut: prepared under the direction of the General Association, to commemorate the completion of one hundred and fifty years since its first annual Assembly. New Haven, 1861.

See under L. Bacon, the history of David Brainerd.

Barrowe, Henry. Answer to Mr. Gifford.

———A Briefe Discoverie of the False Church. Date, 1590. London ed. 1707.

———A True Description of the Word of God, of the Visible Church, 1589.

Briggs, Charles Augustus. American Presbyterianism: Its Origin and Early History. New York, 1885.

Browne, Robert. An Answer to Master Cartwright His Letter for Joyning with the English Churches. London, 1585.

———A True and Short Declaration. Middelburg, 1584.

———A Treatise of Reformation without tarrying. Middelburg, 1582.

———The Book which Sheweth the life and manners of all true Christians, and how unlike they are unto Turkes and Papists and Heathen folk. Also the pointes and partes of all Divinitie that is of the revealed will and words of God, and declared by their severall Definitions and Divisions in order as followeth. Middelburg, 1582.

Browne, Robert. "A New Years Guift:" an hitherto lost treatise. (Letter of Dec. 31, 1588, to his uncle, M. Flower.) Edited by Champlin Burrage. London, 1904.

Clap, Thomas. Religious Constitution of Colleges, with Special Reference to Yale. New London, 1754.

Cotton, John. Civil Magistrates Power in Matters of Religion. London, 1655.

——The Keyes of the Kingdom of Heaven and Powers thereof according to the Word of God. London, 1644.

——Questions and Answers upon Church Government. London, 1713.

——Way of the Churches of Christ in New England. London, 1645.

——Way of the Congregational Churches Cleared. London, 1648.

Cotton, John. In title, but a misprint for:—

Davenport, John. A Discourse about Civil Government in a New Plantation whose design is Religion, written many years since. Cambridge, 1643.

Dexter, Henry Martyn. The Congregationalism of the last Three Hundred Years: as seen in its Literature with special reference to certain Recondite, Neglected or Disputed Passages. New York, 1880.

Lectures, with Bibliography of over 7000 titles and Index. An historical review of Congregationalism from its earliest forms to the last half of the nineteenth century.

——History of Congregationalists. Hartford, 1894. Brief popular history.

——Story of the Pilgrims. Boston and Chicago, 1894. Dunning, Albert E. Congregationalists in America. New York, 1894.



Dutton, S. M. S. History of the North Church, New Haven, from its Formation in May 1742, during the Great Awakening, to the Completion of the Century, in May 1842. New Haven, 1842.

Edwards, Jonathan. Works of, with Memoir by S. E. Dwight. New York, 1829. 10 vols.

Fisher, George P. Discourses ... Church of Christ in Yale College, November 22, 1857. New Haven, 1858.

Frequent citations from the diaries of the Cleveland brothers.

Fitch, Thomas. Explanation of the Saybrook Platform. The Principles of the Consociated Churches in Connecticut; Collected from the Plan of Union. By one that heartily desires the Order, Peace and Purity of these Churches. Hartford, 1765.

Hobart, Noah. An Attempt to illustrate and confirm the Ecclesiastical Constitution of the Consociated Churches in the Colony of Connecticut. New Haven, 1765.

Hooker, Richard. Of the Laws of Ecclesiastical Polity. London, 1648.

Hooker, Thomas. Survey of the Summe of Church Discipline. London, 1648.

Lechford, Thomas. Plaine Dealing. London, 1642.

Letter of Many Ministers in Old England requesting the Judgment of their Brethren in New England concerning Nine Positions ... 1637.... Together with their Answer thereunto returned Anno 1639 (by J. Davenport). London, 1643.

Mather, Cotton. *Magalia Christi Americana; or, The Ecclesiastical History of New England 1620-1698*. London, 1702. Hartford, 1855. 2 vols.

———*Ratio Discipline Fratrum Nov-Anglorum; A Faithful Account of the Discipline Professed and Practised in the Churches of New England*. Boston, 1726. Mather, Richard. *Church Government and Church Covenant Discussed*. London, 1643.

Prince, Thomas. *The Christian History of the Revival and Propagation of Religion*. Boston, 1743.

Purchard, George. *History of Congregationalism from about 250 A. D. to 1616*. New York and Boston, 1865-1888. 5 vols.

Walker, George Leon. *History of the First Church of Hartford*. Hartford, 1884.

———*Some Aspects of the Religious Life of New England with special reference to Congregationalists*. New York, Boston and Chicago, 1897.

Walter, Williston. *The Creeds and Platforms of Congregationalism*. New York, 1893.

———*A History of the Congregational Churches in the United States*. (American Church History Series). New York, 1894.

White, Daniel Appleton. *New England Congregationalism in its Origin and Purity: illustrated by the foundation and early records of First Church in Salem*. Salem, 1861.

Wolcott, Roger. *A Letter to Rev. Mr. Noah Hobart*. [The New English Congregational Churches.... Consociated Churches.] Boston, 1761.

### 3. EPISCOPALIAN

Beardsley, E. Edwards, D. D. History of the Episcopal Church in Connecticut. New York, 1865-68. 2 vols.

An account of the church in Connecticut with strong church bias and inclination to excuse the Tory sentiments of the early rectors. Second volume gives the Episcopal side of the "Toleration" conflict of 1817-18. Much interesting detail.

Church Review and Ecclesiastical Register. In American Quarterly Church Review, vol. x, p. 116. New Haven and New York, 1848-91.

Collections of the Protestant Episcopal Historical Society, The. New York, 1851-53. 2 vols.

These MSS. are found in Perry and Hawks's Documentary History, and include a valuable article on the Episcopate before the Revolution, by F. L. Hawks, also "Thoughts upon the present state of the Church of England in the Colonies," [1764] by an unknown contemporary.

Cross, Arthur Lyon. The History of the Anglican Episcopate and the American Colonies. New York and London, 1902.

Hawkins, E. Historical Notices of the Missions of the Church of England in the North American Colonies. London, 1845.

Chiefly drawn from MS. documents of the Society for the Propagation of the Gospel.

Hawks (Frances Lister) and Perry (William Stevens). Documentary History of the Protestant Episcopal Church in the United

States. Containing ... documents concerning the Church in Connecticut. New York, 1863-34. 2vols.

See Perry, William Stevens.

McConnell, Samuel Davis. History of the American Episcopal Church. New York, 1890.

A brief general history with a number of pages devoted to the attempts to establish the Episcopate in America and to the political hostility that it roused.

Perry, William Stevens (Bishop of Iowa). [See F. L. Hawks.] Documentary History of the Protestant Episcopal Church. New York, 1863-64. 2 vols.

Unbiased; arranged under topical heads; has illustrated monographs by different authors; illustrations, including facsimiles; and also critical notes, frequently referring to original sources. It contains many letters from the missions established by the London Society for the Propagation of the Gospel in Foreign Parts.

Shaw, W. A. A History of the Church of England. 2 vols.

#### **4. METHODIST**

Asbury's (Francis) Journal. New York, 1821. 3 vols. A brief diary of all Bishop Asbury's American journeys: Vols. ii and iii concern New England, with comments on his surroundings, his preaching and the people.

Bangs, Nathan. History of the Methodist Episcopal Church. New York, 1841-45. 4 vols.

Clark, Edgar F. The Methodist Episcopal Churches of Norwich. Norwich, 1867.

Convenient secondary authority gives, pp. 6-21, a connected account of the early days of Connecticut Methodism.

Scudder, Moses Lewis. American Methodism. Hartford, 1870.

General attitude of New England towards the introduction of Methodism.

Stevens, Abel. Memorials of the Introduction of Methodism into the Eastern States. Boston, 1848.

Biographical notices of the early preachers, sketches of the earlier societies, and reminiscences of struggles and successes. "Some account of every Methodist preacher who was regularly appointed to New England during the first five years" of New England Methodism, derived from original sources, letters, and from books now out of print. The fullest account of Connecticut Methodists. It contains frequent citations from Jesse Lee's diary.

Appendix A contains valuable statistics; appendix B has a scurrilous pamphlet, "A Key to unlock Methodism, or Academical Hubbub," etc., published in Norwich, 1800.

——The Centenary of American Methodism: a Sketch of its History, Theology, Practical System, and Success. New York, 1866.

——The History of the Religious Movement of the Eighteenth Century, called Methodism. New York, 1858-61. 3 vols.

## **5. QUAKERS, OR THE SOCIETY OF FRIENDS**

Besse, Joseph. A Collection of the Sufferings of the People called Quakers, for the Testimony of a Good Conscience, etc., to the year 1689. London, 1753. 2 vols.

Vol. ii contains a full account of their persecutions, together with copies of the proceedings against them and letters from the sufferers.

Bowden, James. History of the Society of Friends in America. New York and London, 1845. 2 vols.

A history of the sect throughout New England, containing many short biographies. It is fair and frank in its record of New England persecutions. The author adopts the unique plea that the excesses of the converts were inspired by the Holy Spirit as a reproof to their persecutors for the kind of persecution and punishment that was meted out to innocent persons.

Evans, Charles. Friends in the Seventeenth Century. Philadelphia, 1876.

Gough, John. History of the People called Quakers. Dublin, 1789-90. 4 vols.

Hallowell, Richard Price. The Pioneer Quakers. Boston and New York, 1887.

Manuscript Records of Early Newport Yearly (Friends') Meetings—at Friends' School, Providence, R. I.

Minutes of meetings, reports of cases of oppression, of converts, etc.

Sewel, William. The History of the Rise, Increase and Progress of the Christian People called Quakers, Intermixed with Several Remarkable

Occurrences. Written originally in Low Dutch by W. S. and by himself translated into English.

1st ed., Amsterdam, 1717; 2d ed., London, 1722; 3d ed., 1725, 2 vols. Philadelphia, 1728, etc. New York, 1844. [a]

Wagstaff, William R. History of the Friends (compiled from standard records and authentic sources). New York and London, 1845.

A defense of the excesses in Quaker eccentricities as religious enthusiasm in persons who were driven by persecution to the verge of madness. A similar view is expressed by R. P. Hallowell and by Brooks Adams in his "Emancipation of Massachusetts."

## **F. TRACTS (RELIGIOUS, POLITICAL OR BOTH)**

Of these, several titles that are found at full length either in the text or footnotes are omitted here. Many more might have been added, but it is thought best to omit them because of their cumbrous titles, their scant interest to the average reader, and their inaccessibility, being found only in the largest libraries or among rare Americana. For similar reasons, works strictly theological in character are also not listed. Any sizable library possesses a copy of H. M. Dexter's "Congregationalism as seen in the Literature of the last Three Hundred Years." Its bibliography of over 7000 titles gives all the religious, ecclesiastical or politico-ecclesiastical tracts, and theological works touching upon Congregationalism. Yale University library has a large amount of the Americana collected by Mr. Dexter.

Trumbull's list of books published in Connecticut before 1800 gives the titles of books and pamphlets of strictly local import

The Baptist Confession of Faith; first put forth in 1648; afterwards enlarged, corrected and published by an Assembly of Delegates (from the churches in Great Britain) met in London, July 3, 1689; adopted by the Association at Philadelphia, September 22, 1742, and now received by churches of the same denomination in most of the American States, to which is added a System of Church Discipline. Portland, 1794.

Bartlett, Moses. False and Seducing Teachers. New London, 1757.

Beecher, Lyman. Sermon. A Reformation of Morals practicable and indispensable. ... New Haven, 1813. Andover, 1814.

Bishop, Abraham. Connecticut Republicanism. An Oration on the extent and power of Political Delusion. Delivered in New Haven, September, 1800.

——Proofs of a Conspiracy against Christianity and the Government of the United States; exhibited in several views of the Church and State in New England. Hartford, 1802.

——The Oration in honor of the election of President Jefferson and the peaceful acquisition of Louisiana, 1801.

Bishop, George. New England Judged, Not by Man's, but the Spirit of the Lord: And the Summe sealed up of New England's Persecutions. Being a Brief Relation of the Sufferings of the People called Quakers in these Parts. London, 1661.

Bolles, John. Concerning the Christian Sabbath. 1757.

——To Worship God in Spirit and in Truth is True Liberty of Conscience. 1756.



——A Relation of the Opposition which some Baptist People met at Norwich. 1761.

Booth, Abraham. Essay on Kingdom of Christ. London, 1788. New London, 1801. [a]

American edition edited by John Sterry of the Norwich "True Republican," together with notes containing his strictures on the Connecticut and English Established Church.

Bragge, Robert. Church Discipline. London, 1739. Republished, New London, 1768. [a]

"A Defence of simple Congregationalism and disestablishment."

Browne, Joseph. Principles of Baptism. A Letter to Infant Baptisers in the North Parish of New London. New London, 1767.

Quoted by Rev. E. H. Gillett, Hist. Mag. 2d series, vol. iv, p. 28.

Browne, Robert. A Treatise of reformation without tarrying for Magistrates and of the wickednesse of those Preachers which will not reforme till the Magistrates commande or compell them. Middelburg, 1582. Only three copies known. Reprint at Boston and London.

Chauncy, Charles, Rev. Seasonable Thoughts. Boston, 1743.

Treats of the Great Awakening, of which the author was a determined opponent.

Clap, Thomas. Brief History and Vindication of the Doctrines received and established in the Churches of New England. New Haven, 1755.

Daggett, David. Argument, before the General Assembly of Connecticut, Oct. 1804, in the case of Certain Justices of the Peace.... New Haven, 1804.

——Count the Cost. An Address to the People of Connecticut.... By Jonathan Steadfast. Hartford, 1804.

——Facts are Stubborn Things, or Nine Plain Questions to the People of Connecticut. By Simon Holdfast. Hartford, 1803.

——Steady Habits Vindicated. Hartford, 1805.

——Sun-Beams may be extracted from Cucumbers, but the process is tedious. An Oration, pronounced 4 July, 1799.... New Haven, 1799.

Darling, Thomas. Some Remarks on President Clap's "History and Vindication." New Haven, 1757.

Foster, Isaac. Defence of Religious Liberty. Worcester, 1779.

Frothingham, Ebenezer. A Key to unlock the Door, That leads in, to take a Fair View of the Religious Constitution, Established by Law, in the Colony of Connecticut ... with a short Observation upon the Explanation of Saybrook Plan, etc. and Mr. Hobart's attempt etc. Reviewing R. Ross, Plain Address. Boston, 1767.

Hobart, Noah. An Attempt to Illustrate and Confirm the Ecclesiastical Covenant of the Connecticut Churches,—occasioned by a late Explanation of the Saybrook Platform. New Haven, 1765.

Holly, Israel. A Plea in Zion's Behalf: The Censured Memorial made Public ... to which is added a few Brief Remarks upon ... an Act for Exempting ... Separatists from Taxes, etc. 1765.

Quoted by Rev. E. H. Gillett, *Hist. Mag.*, 2d series, vol. iv.

Huntington, R. (Editor). *Review of the Ecclesiastical Establishments of Europe* (by William Graham). 1808.

Special reference to the bearing of the book on the Connecticut Establishment, and particularly upon its Parish System.

Judd, William. *Address to the People of the State of Connecticut, on the removal of himself and four other Justices from Office....* New Haven, 1804.

Leland, John. *A Blow at the Root. Being a fashionable Fast-Day Sermon.* New London, 1801.

———*The Connecticut Dissenters' Strong Box: No. I. Containing, The High-flying Churchman stript of his legal Robe appears a Yaho.* New London, 1802.

———*Van Tromp lowering his Peak with a Broadside: Containing a plea for the Baptists of Connecticut.* Danbury, 1803.

———*The Rights of Conscience inalienable; ... Or, The high-flying Churchman, stript of his legal Robe, appears a Yaho.*

See *The Connecticut Dissenters' Strong Box*.

*Martin-Mar-Prelate Tracts.* See H. M. Dexter's *Congregationalism* as seen in Literature, Lecture iii, pp. 131-205.

Norton, John. *The Heart of New England rent at the Blasphemies of the Present Generation. Or a brief Tractate concerning the Doctrine of the Quakers etc.* Cambridge, New England, 1659.

Paine, Solomon. A Short View of the Difference between the Church of Christ, and the established Churches in the Colony of Connecticut in their Foundation and Practice with their Ends: being a Word of Warning to several Ranks of Profession; and likewise Comfort to the Ministers and Members of the Church of Christ. 1752.

Richards, George H. The Politics of Connecticut; by a Federal Republican. New London, 1817.

Rogers, John. A Midnight Cry from the Temple of God to the Ten Virgins. See F. M. Caulkins' History of New London, pp. 202-221.

——John Rogers, A Servant of Jesus Christ ... giving a Description of True Shepherds of Christ's Flocks and also of the Anti-Christian Ministry. 4th ed. Norwich, 1776.

——New London Prison.

See F. H. Gillett, Hist. Mag., 2d series, vol. iv.

Ross, Robert. Plain Address to the Quakers, Moravians, Separatists, Separate Baptists, Rogerines, and other Enthusiasts on Immediate Impulses and Revelations, etc. New Haven, 1752.

Stiles, Ezra. A Discourse on Christian Union. (Appendix containing a list of New England Churches. A. D. 1760.) Boston, 1761.

Stoddard, Solomon. The Doctrine of Instituted Churches Explained and Proved from the Word of God. 1700. Webster, Noah. A Rod for the Fool's Back. New Haven, 1800.

Being a reply to Abraham Bishop.

Williams, Nathan. An Inquiry Concerning the Design and Importance of Christian Baptism and Discipline. Hartford, 1792.

Wolcott, Roger. The New-English Congregational Churches are and always have been Consociated Churches, and their Liberties greater and better founded, in their Platform of Church Discipline agreed to at Cambridge, 1648, than what is contained at Saybrook, 1705, etc. Boston, 1761.

#### **FOOTNOTES:**

[a] This is the edition referred to in text.

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